

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

In the Matter of CHERYL ACKERMAN, Appellant, v NEW YORK
STATE DEPARTMENT OF HEALTH, Respondent.

Submitted July 16, 2018; decided August 30, 2018

Reported below, 155 AD3d 1138.

Motion for reargument of motion for leave to appeal denied
[see 31 NY3d 905 (2018)].

THE ALLIANCE TO END CHICKENS AS KAPOROS et al., Appellants,
v NEW YORK CITY POLICE DEPARTMENT et al., Respondents,
et al., Defendants.

Submitted August 20, 2018; decided August 30, 2018

Reported below, 152 AD3d 113.

Motion by Animal Legal Defense Fund for leave to file a brief
amicus curiae on the appeal herein granted and the proposed
brief is accepted as filed. The brief must be submitted in digital
format within seven days.

Judge FEINMAN taking no part.

In the Matter of AZIMJON A. ADMINISTRATION FOR CHILDREN'S
SERVICES, Respondent; ADOLAT K., Appellant, et al., Re-
spondent. (Proceeding No. 1)

In the Matter of AZIZA A. ADMINISTRATION FOR CHILDREN'S SER-
VICES, Respondent; ADOLAT K., Appellant, et al., Respon-
dent. (Proceeding No. 2)

Submitted June 25, 2018; decided August 30, 2018

Reported below, 161 AD3d 849.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

DANIELLE BITON et al., Appellants, v STATE OF NEW YORK et al.,
Respondents. (Claim No. 118083)

DANIELLE BITON et al., Appellants, v STATE OF NEW YORK et al.,
Respondents. (Claim No. 118086)

SAPHYRE REDFORD et al., Appellants, v AG CUOMO et al.,
Respondents. (Claim No. 118087) (And Another Action.)

Submitted July 9, 2018; decided August 30, 2018

Reported below, 2017 NY Slip Op 85447(U); 2013 NY Slip Op 74632(U).

Motion for reargument of motion for leave to appeal denied
[see 31 NY3d 1105 (2018)].

Judge FEINMAN taking no part.

JAMES H. BRADY, Appellant, v STATE OF NEW YORK et al.,
Respondents.

Submitted July 2, 2018; decided August 30, 2018

Reported below, 158 AD3d 457.

Motion for reargument of motion for leave to appeal denied
[see 31 NY3d 909 (2018)].

JAMES H. BRADY, Appellant, v NEW YORK COUNTY DISTRICT AT-
TORNEYS OFFICE et al., Respondents.

Submitted July 30, 2018; decided August 30, 2018

Reported below, 158 AD3d 457.

Motion for reargument of motion for leave to appeal denied
[see 31 NY3d 909 (2018)].

In the Matter of the Accounting by DONALD K. CZEIZINGER, as Administrator of the Estate of FREDERICK D. CZEIZINGER, Deceased, Respondent. TINA CHAMBLISS-PARTEE, Appellant; ROBERT F. BALDWIN, JR., Guardian Ad Litem of FREDERICK DONALD CZEIZINGER, Deceased, Respondent.

Submitted June 18, 2018; decided August 30, 2018

Reported below, 160 AD3d 1445.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DEUTSCHE BANK NATIONAL TRUST COMPANY, Solely in its Capacity as Trustee for the HARBORVIEW MORTGAGE LOAN TRUST SERIES 2007-7, Appellant, v FLAGSTAR CAPITAL MARKETS CORPORATION, Defendant, and QUICKEN LOANS, INC., Respondent.

Submitted August 6, 2018; decided August 30, 2018

Reported below, 143 AD3d 15.

Motion by LNR Partners, LLC, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge GARCIA taking no part.

IGS REALTY Co., L.P., Respondent, v JAMES H. BRADY, Appellant.

Submitted June 11, 2018; decided August 30, 2018

Reported below, 149 AD3d 524.

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 1036 (2018)]. Motion for a stay dismissed as academic.

In the Matter of JAYDEN M.A.-M. JENNIFER A., Appellant; GREGORY M. et al., Respondents. (Proceeding No. 1)

In the Matter of KENNETH J.A.-M. JENNIFER A., Appellant; GREGORY M. et al., Respondents. (Proceeding No. 2)

Submitted June 25, 2018; decided August 30, 2018

Reported below, 156 AD3d 878.

Motion for reargument of motion for leave to appeal denied.

Judge FEINMAN taking no part.

VLADIMIRA KOCH, Appellant, et al., Plaintiffs, v SHERESKY, ARONSON & MAYEFKY LLP et al., Respondents.

Submitted July 9, 2018; decided August 30, 2018

Reported below, 161 AD3d 647.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of LACEE L., an Infant. STEPHANIE L., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et al., Respondent.

Submitted August 6, 2018; decided August 30, 2018

Reported below, 153 AD3d 1151.

Motion by Brooklyn Defender Services et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LACEE L., an Infant. STEPHANIE L., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et al., Respondent.

Submitted August 13, 2018; decided August 30, 2018

Reported below, 153 AD3d 1151.

Motion by Human Rights and Gender Justice Clinic of the City University of New York School of Law et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LACEE L., an Infant. STEPHANIE L., Appellant;
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et
al., Respondent.

Submitted August 6, 2018; decided August 30, 2018

Reported below, 153 AD3d 1151.

Motion by The Arc et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LACEE L., an Infant. STEPHANIE L., Appellant;
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et
al., Respondent.

Submitted August 6, 2018; decided August 30, 2018

Reported below, 153 AD3d 1151.

Motion by SisterSong Women of Color Reproductive Justice Collaborative, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LACEE L., an Infant. STEPHANIE L., Appellant;
ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et
al., Respondent.

Submitted August 13, 2018; decided August 30, 2018

Reported below, 153 AD3d 1151.

Motion by American Civil Liberties Union Foundation et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION. MARY JUNI, Individually and as Administratrix of the Estate of ARTHUR H. JUNI, Deceased, Appellant, v A.O. SMITH WATER PRODUCTS CO. et al., Defendants, and FORD MOTOR COMPANY, Respondent.

Submitted July 2, 2018; decided August 30, 2018

Reported below, 148 AD3d 233.

Motion by Military-Veterans Advocacy, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge FEINMAN taking no part.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

Submitted August 13, 2018; decided August 30, 2018

Reported below, 148 AD3d 642.

Motion by Advance Publications, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of 141 AVENUE A ASSOCIATES, Respondent, v JAY KLEIN, Appellant.

Submitted June 11, 2018; decided August 30, 2018

Reported below, 158 AD3d 541.

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

ADA OPARAJI, Appellant, v CITIBANK, N.A., Respondent.

Submitted June 11, 2018; decided August 30, 2018

Reported below, 2018 NY Slip Op 62266(U).

Motion for reargument of motion for leave to appeal denied [*see* 31 NY3d 1062 (2018)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLINTON BRITT, Appellant.

Submitted August 27, 2018; decided August 30, 2018

Reported below, 160 AD3d 428.

Motion for assignment of counsel granted and Justine M. Luongo, Esq., Attorney-in-Chief, Criminal Defense Practice, The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL CUBERO, Appellant.

Submitted July 16, 2018; decided August 30, 2018

Reported below, 160 AD3d 1298.

Motion for assignment of counsel granted and George J. Hoffman, Jr., Esq., P.O. Box 264, East Greenbush, NY 12061 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR DELEON, Appellant.

Submitted July 23, 2018; decided August 30, 2018

Reported below, 157 AD3d 649.

Motion for assignment of counsel granted and Justine M. Luongo, Esq., Attorney-in-Chief, Criminal Defense Practice, The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WINSTON GAJADHAR, Also Known as WINSTON GAJADHAD, Appellant.

Submitted August 27, 2018; decided August 30, 2018

Reported below, 2017 NY Slip Op 77504(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAKIM GRIMES, Appellant.

Submitted August 13, 2018; decided August 30, 2018

Reported below, 148 AD3d 1724.

Motion by New York County Lawyers Association, Appellate Courts Committee for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID MAIRENA, Appellant.

Submitted August 13, 2018; decided August 30, 2018

Reported below, 160 AD3d 986.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMEE McCULLUM, Appellant.

Submitted August 27, 2018; decided August 30, 2018

Reported below, 159 AD3d 8.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GANESH RAMLALL, Appellant.

Submitted August 27, 2018; decided August 30, 2018

Reported below, 59 Misc 3d 134(A), 2018 NY Slip Op 50491(U).

Motion for assignment of counsel granted and Justine M. Luongo, Esq., Attorney-in-Chief, Criminal Defense Practice, The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CORY REID, Appellant, v ROBIN BEAULIUE, Respondent.

Submitted July 23, 2018; decided August 30, 2018

Reported below, 2018 NY Slip Op 64897(U).

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 912 (2018)].

In the Matter of IVAN SMITH, Appellant, v MONIQUE MURPHY, Respondent.

Submitted July 2, 2018; decided August 30, 2018

Reported below, 161 AD3d 1174.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

DANIEL WILLIAMS et al., Appellants, v BEEMILLER, INC., Doing Business as Hi-POINT, et al., Defendants, and CHARLES BROWN, Respondent.

Submitted July 23, 2018; decided August 30, 2018

Reported below, 159 AD3d 148.

Motion by Everytown for Gun Safety for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(August 1, 2018 through August 31, 2018)

LeGere v Cramer	Sup Ct, Albany County, 4/23/18	8/31/18
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APPEALS WITHDRAWN AND DISCONTINUED

(August 1, 2018 through August 31, 2018)

Capital One Taxi Medallion Fin. v Corrigan	1st Dept: 147 AD3d 677	8/21/18
Clark, Matter of, v Villegas	1st Dept: 153 AD3d 437	8/17/18

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2018 through August 31, 2018)

People v Adams	2d Dept: 162 AD3d 680 (Orange)	denied 8/29/18 (Feinman, J.)
People v Aisewomhanio	2d Dept: 162 AD3d 786 (Kings)	denied 8/21/18 (Fahey, J.)
People v Albert	4th Dept: 160 AD3d 1377 (Ontario)	denied 8/3/18 (DiFiore, Ch. J.)
People v Almonte	1st Dept: 160 AD3d 594 (Bronx)	granted 8/9/18 (Rivera, J.)
People v Althiser	3d Dept: 162 AD3d 1327 (Otsego)	denied 8/16/18 (Feinman, J.)
People v Anastasiou	2d Dept: 162 AD3d 1062 (Suffolk)	denied 8/27/18 (Rivera, J.)
People v Anderson (Omar)	2d Dept: 161 AD3d 1097 (Westchester)	denied 8/9/18 (Stein, J.)
People v Anderson (Tajh)	4th Dept: 159 AD3d 1592 (Monroe)	denied reconsideration 8/22/18 (Garcia, J.)

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People v Anonymous	1st Dept: 162 AD3d 557 (NY)	denied 8/21/18 (Fahey, J.)
People v Ashworth	4th Dept: 162 AD3d 1557 (Onondaga)	denied 8/24/18 (Wilson, J.)
People v Ayala	4th Dept: 162 AD3d 1509 (Genesee)	denied 8/17/18 (Feinman, J.)
People v Bacon	4th Dept: 161 AD3d 1533 (Onondaga)	denied 8/9/18 (Rivera, J.)
People v Baqir	4th Dept: 162 AD3d 1558 (Onondaga)	denied 8/23/18 (Garcia, J.)
People v Bell	1st Dept: 162 AD3d 521 (NY)	denied 8/21/18 (Fahey, J.)
People v Benn	3d Dept: 159 AD3d 1272 (Albany)	denied 8/9/18 (Rivera, J.)
People v Binda	2d Dept: 161 AD3d 1098 (Kings)	denied 8/15/18 (Feinman, J.)
People v Black	2d Dept: 161 AD3d 997 (Dutchess)	denied 8/8/18 (Feinman, J.)
People v Blount	3d Dept: 162 AD3d 1323 (Albany)	denied 8/31/18 (DiFiore, Ch. J.)
People v Bogun	2d Dept: 162 AD3d 898 (Queens)	denied 8/18/18 (DiFiore, Ch. J.)
People v Bragg	2d Dept: 161 AD3d 998 (Kings)	denied 8/24/18 (Wilson, J.)
People v Briggs	2d Dept: 163 AD3d 585 (Suffolk)	denied 8/29/18 (Feinman, J.)
People v Brooks	4th Dept: 159 AD3d 1576 (Monroe)	denied 8/3/18 (Rivera, J.)
People v Brown (Elijah)	3d Dept: 159 AD3d 1149 (Fulton)	denied 8/9/18 (Stein, J.)
People v Brown (James)	4th Dept: 162 AD3d 1568 (Wayne)	denied 8/22/18 (Feinman, J.)
People v Bruno	2d Dept: 161 AD3d 766 (Kings)	denied 8/1/18 (Garcia, J.)
People v Burchici	2d Dept: 161 AD3d 1099 (Queens)	denied 8/8/18 (Feinman, J.)
People v Burgos	App Div, 4th Dept, 6/8/18 (Monroe)	dismissed 8/23/18 (Stein, J.)
People v Butler	App Term, 1st Dept: 59 Misc 3d 144(A) (Bronx)	denied 8/2/18 (Wilson, J.)
People v "C"	4th Dept: 162 AD3d 1602 (Erie)	denied 8/29/18 (DiFiore, Ch. J.)
People v Cabassa	1st Dept: 161 AD3d 671 (NY)	denied 8/23/18 (Garcia, J.)
People v Campbell	3d Dept: 161 AD3d 1380 (Rensselaer)	denied 8/17/18 (Feinman, J.)
People v Cantey	3d Dept: 161 AD3d 1449 (Albany)	denied 8/21/18 (Fahey, J.)
People v Caporusso	4th Dept: 160 AD3d 1440 (Monroe)	denied 8/9/18 (Stein, J.)

People v Caraballo	1st Dept: 162 AD3d 439 (Bronx)	denied 8/3/18 (Wilson, J.)
People v Carey	4th Dept: 162 AD3d 1476 (Erie)	denied 8/31/18 (DiFiore, Ch. J.)
People v Carias	1st Dept: 162 AD3d 471 (NY)	denied 8/2/18 (Wilson, J.)
People v Carmichael	App Term, 1st Dept: 60 Misc 3d 129(A) (Bronx)	denied 8/21/18 (Fahey, J.)
People v Castillo	2d Dept: 161 AD3d 1099 (Westchester)	denied 8/9/18 (Rivera, J.)
People v Chandler	3d Dept: 162 AD3d 1406 (Albany)	denied 8/21/18 (Fahey, J.)
People v Chess (Michael)	4th Dept: 162 AD3d 1585 (Monroe)	denied 8/13/18 (Stein, J.) (Appeal No. 2)
People v Chess (Michael)	4th Dept: 162 AD3d 1577 (Monroe)	denied 8/13/18 (Stein, J.) (Appeal No. 1)
People v Chodakowski	1st Dept: 162 AD3d 476 (NY)	denied 8/9/18 (Stein, J.)
People v Clark	4th Dept: 162 AD3d 1668 (Cayuga)	denied 8/9/18 (Rivera, J.)
People v Cori (Christopher)	1st Dept: 161 AD3d 579 (NY)	denied 8/14/18 (Stein, J.)
People v Cori (Christopher)	App Div, 1st Dept: 2018 NY Slip Op 73094(U) (NY)	dismissed 8/14/18 (Stein, J.)
People v Cotto	1st Dept: 157 AD3d 441 (NY)	denied 8/9/18 (Stein, J.)
People v Cox	2d Dept: 161 AD3d 1100 (Queens)	denied 8/8/18 (Garcia, J.)
People v Dauria	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 131(A) (Richmond)	denied 8/30/18 (DiFiore, Ch. J.)
People v Davis (Kevin)	App Div, 1st Dept: 2018 NY Slip Op 73085(U) (NY)	denied 8/21/18 (Fahey, J.)
People v Davis (Lamar)	4th Dept: 162 AD3d 1596 (Erie)	denied 8/29/18 (Rivera, J.)
People v Davis (Rodney)	App Div, 3d Dept: 2018 NY Slip Op 72124(U) (Schenectady)	denied 8/17/18 (Feinman, J.)
People v Dawes	App Term, 1st Dept: 59 Misc 3d 142(A) (NY)	denied 8/9/18 (Rivera, J.)
People v DeBerry	2d Dept: 157 AD3d 715 (Kings)	denied reconsideration 8/23/18 (Feinman, J.)
People v Diego P.	2d Dept: 162 AD3d 796, 2018 NY Slip Op 04350; 162 AD3d 796, 2018 NY Slip Op 04351 (Kings)	denied 8/9/18 (Stein, J.)
People v Dor	1st Dept: 160 AD3d 547 (NY)	denied 8/1/18 (Wilson, J.)
People v Dove	App Div, 3d Dept: 2018 NY Slip Op 75211(U) (Broome)	dismissed 8/14/18 (Stein, J.)

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People v Duggins	3d Dept: 161 AD3d 1445 (Broome)	denied 8/9/18 (Rivera, J.)
People v Echevarria	App Div, 1st Dept: 2018 NY Slip Op 73084(U) (NY)	denied 8/30/18 (DiFiore, Ch. J.)
People v Eldridge	1st Dept: 161 AD3d 644 (NY)	denied 8/24/18 (Fahey, J.)
People v Ellis	3d Dept: 162 AD3d 161 (Essex)	granted 8/17/18 (Feinman, J.)
People v Fauntleroy	2d Dept: 162 AD3d 682 (Kings)	denied 8/15/18 (Feinman, J.)
People v Ferebee	2d Dept: 161 AD3d 1004 (Queens)	denied 8/1/18 (Garcia, J.)
People v Fernandez	2d Dept: 162 AD3d 682 (Rockland)	denied 8/24/18 (Wilson, J.)
People v Figueroa	App Term, 1st Dept: 60 Misc 3d 126(A) (NY)	denied 8/9/18 (Stein, J.)
People v Fitzrandolph	4th Dept: 162 AD3d 1537 (Erie)	denied 8/29/18 (Feinman, J.)
People v Fletcher	1st Dept: 162 AD3d 563 (NY)	denied 8/27/18 (Rivera, J.)
People v Foster-Bey	2d Dept: 158 AD3d 641 (Kings)	granted 8/23/18 (Wilson, J.)
People v Fulton	App Div, 1st Dept: 2017 NY Slip Op 81414(U) (NY)	denied reconsideration 8/24/18 (Wilson, J.)
People v Garcia	4th Dept: 162 AD3d 1602 (Monroe)	denied 8/27/18 (Rivera, J.)
People v Gardner	4th Dept: 162 AD3d 1758 (Onondaga)	denied 8/31/18 (DiFiore, Ch. J.)
People v Giddens	2d Dept: 161 AD3d 1191 (Rockland)	denied 8/9/18 (Rivera, J.)
People v Glaramo	App Div, 1st Dept: 2018 NY Slip Op 73084(U) (NY)	denied 8/30/18 (DiFiore, Ch. J.)
People v Glen	County Ct, 6/8/18 (Onondaga)	denied 8/23/18 (Garcia, J.)
People v Glover	1st Dept: 162 AD3d 486 (Bronx)	denied 8/3/18 (Wilson, J.)
People v Gonzalez	App Term, 1st Dept: 60 Misc 3d 126(A) (NY)	denied 8/18/18 (DiFiore, Ch. J.)
People v Gould	4th Dept: 162 AD3d 1595 (Niagara)	denied 8/8/18 (Feinman, J.)
People v Grant	App Div, 1st Dept: 2018 NY Slip Op 66997(U) (NY)	dismissed 8/2/18 (Rivera, J.)
People v Harding	1st Dept: 161 AD3d 613 (Bronx)	denied 8/23/18 (Garcia, J.)
People v Harripersaud	1st Dept: 161 AD3d 504 (Bronx)	denied 8/1/18 (Garcia, J.)
People v Harris (Lyman)	3d Dept: 162 AD3d 1240 (Madison)	denied 8/21/18 (Stein, J.)

People v Harris (Ricky)	1st Dept: 162 AD3d 502 (NY)	denied 8/31/18 (Fahey, J.)
People v Haverly	3d Dept: 161 AD3d 1483 (Albany)	denied 8/15/18 (Feinman, J.)
People v Hinds	2d Dept: 160 AD3d 983 (Queens)	denied 8/8/18 (Feinman, J.)
People v Hinojoso-Soto	4th Dept: 161 AD3d 1541 (Onondaga)	denied 8/24/18 (Wilson, J.)
People v Holley	4th Dept: 162 AD3d 1669 (Erie)	denied 8/23/18 (Garcia, J.)
People v Holton	3d Dept: 160 AD3d 1288 (Broome)	denied 8/9/18 (Rivera, J.)
People v Hopkins	2d Dept: 162 AD3d 792 (Queens)	denied 8/21/18 (Garcia, J.)
People v Huggins	4th Dept: 162 AD3d 1663 (Jefferson)	denied 8/17/18 (Feinman, J.)
People v Hurley	1st Dept: 161 AD3d 687 (NY)	denied 8/9/18 (Rivera, J.)
People v Israel	2d Dept: 161 AD3d 1195 (Kings)	denied 8/20/18 (DiFiore, Ch. J.)
People v Jackson	4th Dept: 162 AD3d 1567 (Onondaga)	denied 8/21/18 (DiFiore, Ch. J.)
People v James	1st Dept: 160 AD3d 592 (NY)	denied 8/2/18 (Rivera, J.)
People v Janowsky	4th Dept: 162 AD3d 1699 (Erie)	denied 8/29/18 (Feinman, J.)
People v Javier	App Div, 1st Dept: 2018 NY Slip Op 74344(U) (NY)	denied 8/27/18 (Stein, J.)
People v Jones (Anthony)	2d Dept: 161 AD3d 1009 (Kings)	denied 8/8/18 (Garcia, J.)
People v Jones (Antwione)	2d Dept: 162 AD3d 683 (Kings)	denied 8/8/18 (Feinman, J.)
People v Jones (Roy)	2d Dept: 162 AD3d 902 (Suffolk)	denied 8/21/18 (DiFiore, Ch. J.)
People v Jones (Shawn)	2d Dept: 161 AD3d 1103 (Kings)	denied 8/18/18 (DiFiore, Ch. J.)
People v Katzman	2d Dept: 161 AD3d 770 (Queens)	denied 8/30/18 (DiFiore, Ch. J.)
People v Kelley	1st Dept: 162 AD3d 524 (NY)	denied 8/30/18 (Stein, J.)
People v Kocaj	2d Dept: 160 AD3d 766 (Dutchess)	denied 8/23/18 (Garcia, J.)
People v Kripanidhi	App Term, 1st Dept: 59 Misc 3d 148(A) (NY)	denied 8/30/18 (Stein, J.)
People v Langston	1st Dept: 162 AD3d 581 (NY)	denied 8/23/18 (Garcia, J.)
People v LaRoche	2d Dept: 162 AD3d 684 (Suffolk)	denied 8/20/18 (Stein, J.)
People v Latham	2d Dept: 162 AD3d 1068 (Kings)	denied 8/17/18 (Feinman, J.)

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People v Laury	4th Dept: 156 AD3d 1473 (Cayuga)	denied 8/3/18 (Rivera, J.)
People v Layou	4th Dept: 159 AD3d 1413 (Onondaga)	denied reconsideration 8/9/18 (Stein, J.)
People v Lindsay	4th Dept: 162 AD3d 1647 (Erie)	denied 8/21/18 (Garcia, J.)
People v Livermore	4th Dept: 161 AD3d 1569 (Yates)	denied 8/17/18 (Feinman, J.)
People v Lynch	App Div, 2d Dept: 2018 NY Slip Op 74856(U) (Queens)	dismissed 8/21/18 (Fahey, J.)
People v Malloy	App Div, 3d Dept: 2018 NY Slip Op 74475(U) (Albany)	dismissed 8/2/18 (Rivera, J.)
People v Martinez	1st Dept: 162 AD3d 568 (Bronx)	denied 8/6/18 (DiFiore, Ch. J.)
People v May	4th Dept: 159 AD3d 1587 (Herkimer)	denied 8/17/18 (Feinman, J.)
People v McCauley	3d Dept: 162 AD3d 1307 (Albany)	denied 8/21/18 (DiFiore, Ch. J.)
People v McFadden	1st Dept: 162 AD3d 501 (NY)	denied 8/31/18 (Fahey, J.)
People v McLaurin	4th Dept: 160 AD3d 1438 (Onondaga)	denied 8/21/18 (Stein, J.)
People v Medina	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 59 Misc 3d 146(A) (Kings)	denied 8/2/18 (Feinman, J.)
People v Meeks	App Div, 2d Dept: 2018 NY Slip Op 67430(U) (Queens)	dismissed 8/1/18 (Wilson, J.)
People v Mena	1st Dept: 161 AD3d 542 (Bronx)	denied 8/21/18 (DiFiore, Ch. J.)
People v Miele	2d Dept: 161 AD3d 1196 (Queens)	denied 8/21/18 (Fahey, J.)
People v Miller (Daniel)	3d Dept: 162 AD3d 1231 (Chemung)	denied 8/27/18 (Rivera, J.)
People v Miller (Maurice)	3d Dept: 160 AD3d 1040 (Rensselaer)	denied 8/2/18 (Rivera, J.)
People v Montalvo	1st Dept: 162 AD3d 594 (NY)	denied 8/29/18 (Stein, J.)
People v Moore	4th Dept: 162 AD3d 1594 (Onondaga)	denied 8/15/18 (Feinman, J.)
People v Morales	4th Dept: 160 AD3d 1414 (Ontario)	denied 8/9/18 (Stein, J.)
People v Nelson	1st Dept: 159 AD3d 570 (NY)	denied 8/20/18 (Stein, J.)
People v Nemelc	1st Dept: 161 AD3d 615 (NY)	denied 8/21/18 (Garcia, J.)
People v Nevins	3d Dept: 161 AD3d 1393 (Warren)	denied 8/6/18 (DiFiore, Ch. J.)
People v Niang	1st Dept: 161 AD3d 571 (NY)	denied 8/1/18 (Wilson, J.)
People v Nolan	1st Dept: 159 AD3d 455 (NY)	denied 8/27/18 (Rivera, J.)

People v Oliva	App Div, 2d Dept: 2018 NY Slip Op 72584(U) (Queens)	dismissed 8/3/18 (DiFiore, Ch. J.)
People v Oliveras	App Term, 1st Dept: 60 Misc 3d 129(A) (Bronx)	denied 8/23/18 (Garcia, J.)
People v Orama	2d Dept: 157 AD3d 967 (Richmond)	denied 8/17/18 (Feinman, J.)
People v Ovalles	2d Dept: 161 AD3d 1107 (Dutchess)	denied 8/15/18 (Feinman, J.)
People v Pepe	4th Dept: 162 AD3d 1546 (Oneida)	denied 8/14/18 (Stein, J.)
People v Perez	1st Dept: 162 AD3d 588 (NY)	denied 8/31/18 (Fahey, J.)
People v Pettigrew	3d Dept: 161 AD3d 1306 (Rensselaer)	denied 8/24/18 (Wilson, J.)
People v Phillips	App Term, 1st Dept: 60 Misc 3d 126(A) (NY)	denied 8/24/18 (Wilson, J.)
People v Pohl	4th Dept: 160 AD3d 1453 (Niagara)	denied 8/23/18 (Wilson, J.)
People v Polanco	1st Dept: 162 AD3d 434 (Bronx)	denied 8/20/18 (Stein, J.)
People v Polanco-Almonte	County Ct, 4/24/18 (Monroe)	denied 8/3/18 (Wilson, J.)
People v Polo	1st Dept: 162 AD3d 445 (Bronx)	denied 8/8/18 (Garcia, J.)
People v Poulin	3d Dept: 159 AD3d 1049 (Rensselaer)	denied 8/31/18 (Fahey, J.)
People v Pratt	3d Dept: 162 AD3d 1202 (Greene)	denied 8/9/18 (Garcia, J.)
People v Rah	3d Dept: 161 AD3d 1449 (Albany)	denied 8/21/18 (Fahey, J.)
People v Ramlall	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 59 Misc 3d 134(A) (Kings)	granted 8/2/18 (Rivera, J.)
People v Ramsood	2d Dept: 161 AD3d 1198 (Queens)	denied 8/9/18 (Stein, J.)
People v Randall	4th Dept: 162 AD3d 1762 (Monroe)	denied 8/17/18 (Feinman, J.)
People v Rice	3d Dept: 162 AD3d 1244 (Greene)	denied 8/23/18 (Garcia, J.)
People v Rivera	2d Dept: 162 AD3d 912 (Queens)	denied 8/23/18 (Garcia, J.)
People v Roberson	1st Dept: 161 AD3d 544 (NY)	denied 8/9/18 (Stein, J.)
People v Roberts	3d Dept: 162 AD3d 1404 (Albany)	denied 8/23/18 (Garcia, J.)
People v Robinson (Davawn)	1st Dept: 161 AD3d 608 (NY)	denied 8/31/18 (Fahey, J.)
People v Robinson (Eddie)	App Div, 2d Dept: 2018 NY Slip Op 72585(U) (Kings)	dismissed 8/23/18 (Wilson, J.)
People v Rodgers	4th Dept: 162 AD3d 1500 (Erie)	denied 8/16/18 (Feinman, J.)

MEMORANDA

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People v Rodriguez (Jonathan)	1st Dept: 162 AD3d 513 (NY)	denied 8/21/18 (Fahey, J.)
People v Rodriguez (Miguel)	1st Dept: 161 AD3d 513 (NY)	denied 8/20/18 (Stein, J.)
People v Rogers	2d Dept: 161 AD3d 1013 (Queens)	denied 8/9/18 (Rivera, J.)
People v Roman	App Term, 1st Dept: 60 Misc 3d 127(A) (NY)	denied 8/21/18 (Fahey, J.)
People v Rouse	1st Dept: 159 AD3d 530 (Bronx)	granted 8/6/18 (Rivera, J.)
People v Ruiz	1st Dept: 161 AD3d 712 (NY)	denied 8/2/18 (Wilson, J.)
People v Rush	2d Dept: 161 AD3d 1199 (Kings)	denied 8/30/18 (DiFiore, Ch. J.)
People v Sanders	2d Dept: 162 AD3d 690 (Queens)	denied 8/13/18 (Feinman, J.)
People v Scarver	4th Dept: 162 AD3d 1602 (Erie)	denied 8/29/18 (DiFiore, Ch. J.)
People v Scott (Anthony)	1st Dept: 161 AD3d 580 (NY)	denied 8/24/18 (Fahey, J.)
People v Scott (Orlando)	App Term, 2d Dept, 9th & 10th Jud Dists: 59 Misc 3d 149(A) (Westchester)	denied 8/23/18 (Garcia, J.)
People v Secor	3d Dept: 162 AD3d 1411 (Albany)	denied 8/31/18 (Fahey, J.)
People v Sheikh	App Term, 1st Dept: 58 Misc 3d 158(A), 2018 NY Slip Op 50242(U) (NY)	denied 8/9/18 (Rivera, J.)
People v Sisto	3d Dept: 161 AD3d 1483 (Essex)	denied 8/17/18 (Feinman, J.)
People v Sloane	App Term, 2d Dept, 9th & 10th Jud Dists: 59 Misc 3d 143(A) (Dutchess)	denied 8/1/18 (Garcia, J.)
People v Smith (Donnie)	2d Dept: 162 AD3d 799 (Orange)	denied 8/21/18 (Fahey, J.)
People v Smith (Kermitt)	1st Dept: 159 AD3d 504 (Bronx)	denied 8/24/18 (Wilson, J.)
People v Smith (Lewis)	4th Dept: 162 AD3d 1597 (Cayuga)	denied 8/6/18 (Garcia, J.)
People v Smith-Jones	2d Dept: 163 AD3d 725 (Kings)	denied 8/29/18 (Feinman, J.)
People v Solider	3d Dept: 161 AD3d 1380 (Rensselaer)	denied 8/17/18 (Feinman, J.)
People v Stokes	App Div, 4th Dept, 6/22/18 (Erie)	dismissed 8/20/18 (DiFiore, Ch. J.)
People v Surdis (Kristofer)	3d Dept: 160 AD3d 1305 (Ulster)	denied 8/8/18 (DiFiore, Ch. J.)
People v Surdis (Kristopher)	3d Dept: 160 AD3d 1305 (Ulster)	denied 8/8/18 (DiFiore, Ch. J.)
People v Taylor (Dante)	4th Dept: 158 AD3d 1095 (Wayne)	denied 8/6/18 (Garcia, J.)
People v Taylor (Ronald)	2d Dept: 162 AD3d 690 (Kings)	denied 8/24/18 (Wilson, J.)

People v Terborg	App Div, 4th Dept: 2018 NY Slip Op 75088(U) (Monroe)	dismissed 8/15/18 (Feinman, J.)
People v Tilford	4th Dept: 162 AD3d 1569 (Niagara)	denied 8/6/18 (Garcia, J.)
People v Tripp	2d Dept: 162 AD3d 691 (Queens)	denied 8/21/18 (Fahey, J.)
People v Valentin	2d Dept: 162 AD3d 693 (Queens)	denied 8/22/18 (Feinman, J.)
People v Van Ness	3d Dept: 161 AD3d 1390 (Saratoga)	denied 8/15/18 (Feinman, J.)
People v Vargas	1st Dept: 162 AD3d 531 (NY)	denied 8/31/18 (DiFiore, Ch. J.)
People v Vasquez	App Term, 1st Dept: 60 Misc 3d 129(A) (NY)	denied 8/14/18 (Stein, J.)
People v Vinson	2d Dept: 161 AD3d 1109 (Queens)	denied 8/8/18 (Garcia, J.)
People v Walker	1st Dept: 162 AD3d 524 (NY)	denied 8/20/18 (DiFiore, Ch. J.)
People v Wallace	App Term, 1st Dept: 59 Misc 3d 143(A) (NY)	denied 8/9/18 (Rivera, J.)
People v Walters	1st Dept: 162 AD3d 489 (NY)	denied 8/9/18 (Rivera, J.)
People v Ward (Brandon)	3d Dept: 161 AD3d 1488 (Ulster)	denied 8/21/18 (Fahey, J.)
People v Ward (Jesse)	1st Dept: 161 AD3d 520 (NY)	denied 8/24/18 (Wilson, J.)
People v Waring (Rondel)	1st Dept: 161 AD3d 546 (NY)	denied 8/9/18 (Stein, J.)
People v Waring (Rondell)	1st Dept: 161 AD3d 546 (NY)	denied 8/9/18 (Stein, J.)
People v Washington	4th Dept: 160 AD3d 1458 (Herkimer)	denied 8/17/18 (Feinman, J.) (Appeal No. 2)
People v West	App Div, 3d Dept: 2018 NY Slip Op 72210(U) (Schoharie)	dismissed 8/15/18 (Feinman, J.)
People v Whitehead	4th Dept: 162 AD3d 1532 (Erie)	denied 8/8/18 (Feinman, J.)
People v Wilcher	1st Dept: 162 AD3d 466 (NY)	denied 8/27/18 (Rivera, J.)
People v Williams (Cadman)	1st Dept: 158 AD3d 471 (Bronx)	granted 8/16/18 (Rivera, J.)
People v Williams (Eric)	2d Dept: 162 AD3d 694 (Suffolk)	denied 8/27/18 (Rivera, J.)
People v Williams (Talisha)	3d Dept: 161 AD3d 1296 (Chemung)	denied 8/6/18 (Garcia, J.)
People v Wilmet	4th Dept: 161 AD3d 1587 (Livingston)	denied 8/9/18 (Rivera, J.)
People v Wood	3d Dept: 150 AD3d 1544 (Albany)	denied 8/9/18 (Rivera, J.)
People v Wright	App Div, 1st Dept: 2018 NY Slip Op 73086(U) (NY)	denied 8/13/18 (Stein, J.)

People v Young	3d Dept: 163 AD3d 60 (Saratoga)	denied 8/16/18 (Feinman, J.)
People v Zi He Wu	3d Dept: 161 AD3d 1396 (Montgomery)	denied 8/31/18 (Fahey, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(August 1, 2018 through August 31, 2018)

People v McIntosh	4th Dept: 162 AD3d 1612 (Monroe)	granted 8/15/18 (Carni, J.)
People v Neulander	4th Dept: 162 AD3d 1763 (Onondaga)	granted 8/7/18 (Smith, J.)
People v Rodriguez (Alexis)	3d Dept: 164 AD3d 1024 (Schenectady)	granted 8/30/18 (Lynch, J.)
People v Smith (Samuel)	4th Dept: 162 AD3d 1686 (Monroe)	granted 8/17/18 (Carni, J.)

DEIDRE HOLMES CLARK, Appellant, v ALLEN & OVERY, LLP, Respondent.

Submitted April 23, 2018; decided September 6, 2018

Reported below, 159 AD3d 478.

Motion, insofar as it seeks leave to appeal from the portion of the Appellate Division order that affirmed the parts of the August 2016 Supreme Court order dismissing the complaint and awarding sanctions for frivolous conduct, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order do not finally determine the action within the meaning of the Constitution.

In the Matter of JONATHAN S., an Attorney and Counselor-at-Law, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Decided September 6, 2018

Motion for reargument and/or clarification of this Court's January 16, 2018 dismissal order dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 30 NY3d 1083 (2018)]. Motion for renewal of this Court's January 16,

* Includes only applications that were granted.

2018 dismissal order denied. Motion for a stay dismissed as academic. Motion for other relief denied.

In the Matter of DARYLL BOYD JONES, a Suspended Attorney, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Decided September 6, 2018

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of KEVIN McK., Appellant, v ELIZABETH A.E., Respondent.

Submitted June 18, 2018; decided September 6, 2018

Reported below, 151 AD3d 600.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the dismissal of so much of the petition that sought enforcement of a visitation order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MELVIN M. MARIN, a Suspended Attorney, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Decided September 6, 2018

Reported below, 158 AD3d 889.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the February 2018 Appellate Division order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MATHESON KK, Respondent; ULSTER COUNTY
DISTRICT ATTORNEY, Appellant.

Submitted June 25, 2018; decided September 6, 2018

Reported below, 161 AD3d 1260.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION. (ALL
NYCAL CASES.) CLEAVER-BROOKS, INC., et al., Appellants.

Decided September 6, 2018

Reported below, 159 AD3d 576.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine an action or proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. VICTOR MC-
KEEVER, Appellant, v WARDEN, NASSAU COUNTY JAIL, Re-
spondent.

Submitted August 6, 2018; decided September 6, 2018

Reported below, 2018 NY Slip Op 68789(U); 2017 NY Slip Op 93026(U).

Motion, insofar as it seeks leave to appeal from the April 2018 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

KEVIN PHILLIP, Appellant, v STATE OF NEW YORK, Respondent.

Decided September 6, 2018

Reported below, 2018 NY Slip Op 70273(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

TRIBECA LENDING CORPORATION, Respondent, v GREGORY M. BARTLETT, Appellant, and NYS DEPARTMENT OF TAXATION et al., Defendants.

Submitted July 9, 2018; decided September 6, 2018

Reported below, 156 AD3d 519; 2018 NY Slip Op 63511(U).

On the Court's own motion, defendant's appeal from the December 2017 Appellate Division order dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for reargument granted. Upon reargument, motion for leave to appeal from the December 2017 and February 2018 Appellate Division orders dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of ANTHONY JACOB ZAPPIN, an Attorney, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Decided September 6, 2018

Reported below, 160 AD3d 1.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

CHARLES BRITZ, Appellant, v GRACE INDUSTRIES, LLC, Respondent, and THE HAUGLAND GROUP, LLC, et al., Defendants.

Submitted June 25, 2018; decided September 13, 2018

Reported below, 156 AD3d 533.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JENNIFER CANGRO, Appellant, v JOHN Z. MARANGOS, Respondent.

Decided September 13, 2018

Reported below, 160 AD3d 580.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

CHIP FIFTH AVENUE LLC, Respondent, v QUALITY KING DISTRIBUTORS, INC., Appellant, et al., Defendants. (And a Third-Party Action.)

Submitted July 2, 2018; decided September 13, 2018

Reported below, 158 AD3d 418.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for permission to expand the record denied.

In the Matter of CITY OF SYRACUSE INDUSTRIAL DEVELOPMENT AGENCY, Respondent, Pursuant to Article 4 of the Eminent Domain Procedure Law, to Acquire Title to Certain Real Property Generally Identified as 100-08 Onondaga Street East & Warren Street in the City of Syracuse, New York and More Particularly Identified as SBL NO. 101.-09-01.0. AMADEUS DEVELOPMENT, INC., Respondent; FINANCITECH, LTD., Appellant.

Submitted June 18, 2018; decided September 13, 2018

Reported below, 156 AD3d 1329.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ESTEBAN DONOSO, Appellant, v NEW YORK UNIVERSITY, Respondent.

Decided September 13, 2018

Reported below, 160 AD3d 522.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of WILLIAM F. KOEGEL, Also Known as WILLIAM FISHER KOEGEL, Deceased. JOHN B. KOEGEL, Respondent; IRENE LAWRENCE KOEGEL, Appellant.

Submitted June 18, 2018; decided September 13, 2018

Reported below, 160 AD3d 11.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NELLA MANKO et al., Appellants, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, OFFICE OF RENT ADMINISTRATION, Respondent.

Submitted July 9, 2018; decided September 13, 2018

Reported below, 88 AD3d 719.

Motion for reargument of motion dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) (*see* 29 NY3d 1049 [2017]). Motion for poor person relief dismissed as academic.

In the Matter of MATTHEW JOSEPH MANN, an Attorney, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Submitted July 2, 2018; decided September 13, 2018

Reported below, 157 AD3d 1160.

Motion for reconsideration of this Court's April 26, 2018 dismissal order dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 31 NY3d 1037 (2018)]. Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of HASHIM MATTHEWS, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted June 25, 2018; decided September 13, 2018

Reported below, 2017 NY Slip Op 84589(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 30 NY3d 1087 (2018)].

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

THERESA WARREN, Respondent, v AMCHEM PRODUCTS, INC., et al., Defendants, and J-M MANUFACTURING COMPANY, INC., Appellant.

Submitted July 2, 2018; decided September 13, 2018

Reported below, 157 AD3d 564.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

ANTONIA PALAIA, Respondent, v VINCENT PALAIA, Appellant.

Submitted June 25, 2018; decided September 13, 2018

Reported below, 158 AD3d 719.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. VERNON ROBERTS, Appellant, v TODD K. BAXTER, Respondent.

Decided September 13, 2018

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of THE PLASTIC SURGERY GROUP, P.C., Appellant,
v COMPTROLLER OF THE STATE OF NEW YORK, Respondent.

Submitted July 2, 2018; decided September 13, 2018

Reported below, 155 AD3D 1417.

Motion by Medical Society of the State of New York et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

PRIME ALLIANCE GROUP, LTD., et al., Respondents, v AFFILIATED FM INSURANCE COMPANY, Defendant, and PRAXIS INTERNATIONAL CORPORATION, Appellant, HUB INTERNATIONAL NORTHEAST LIMITED, et al., Respondents.

Submitted July 9, 2018; decided September 13, 2018

Reported below, 159 AD3d 845.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NICHOLAS L. VASSENELLI, Appellant, v CITY OF SYRACUSE et al., Respondents.

Submitted June 11, 2018; decided September 13, 2018

Reported below, 160 AD3d 1412.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VYRTLE TRUCKING CORP., Appellant, v JAMES M. BROWNE, Also
Known as JAMES BROWNE, Respondent.

Submitted July 9, 2018; decided September 13, 2018

Reported below, 157 AD3d 842.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* CPLR 5602).

[109 NE3d 1119, 84 NYS3d 819]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v WILLIAM
MORRISON, Respondent.

Argued June 5, 2018; decided June 28, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered March 24, 2017. The Appellate Division (1) reversed, on the law, a judgment of the Oneida County Court (Michael L. Dwyer, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree, sexual abuse in the first degree and endangering the welfare of a vulnerable elderly person in the second degree; and (2) granted a new trial on counts one through three of the indictment.

People v Morrison, 148 AD3d 1707, affirmed.

HEADNOTE

**Crimes — Jurors — Failure to Provide Counsel with Meaningful
Notice of Substantive Jury Note — Mode of Proceedings Error
Requiring Reversal**

Reversal of defendant's conviction was required where the record demonstrated that defense counsel was made aware of the existence of a substantive jury note, but there was no indication that the entire contents of the note were shared with counsel. Meaningful notice under *People v O'Rama* (78 NY2d 270 [1991]) means notice of the actual specific content of the jurors' request. Moreover, where a trial transcript does not show compliance with *O'Rama's* procedure as required by law, it cannot be assumed that the omission was remedied at an off-the-record conference that the transcript does not refer to. In other words, in the absence of record proof that the trial court complied with its meaningful notice obligation under CPL 310.30, a mode of proceedings error occurred requiring reversal. A trial court has an affirmative obligation to create a record of compliance under CPL 310.30 and *O'Rama*.

APPEARANCES OF COUNSEL

Barbara D. Underwood, Attorney General, New York City (*Hannah Stith Long* and *Nikki Kowalski* of counsel), for appellant.

Mary R. Humphrey, New Hartford, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The trial court's failure to provide counsel with meaningful notice of a substantive jury note is a mode of proceedings error that requires reversal (*see People v Mack*, 27 NY3d 534, 538 [2016], *rearg denied* 28 NY3d 944 [2016]; *People v Nealon*, 26 NY3d 152, 156-157 [2015]). "[M]eaningful notice 'means notice of the actual specific content of the jurors' request'" (*Mack*, 27 NY3d at 538, quoting *People v O'Rama*, 78 NY2d 270, 277 [1991]). Although the record demonstrates that "defense counsel was made aware of the existence of the note, there is no indication that the entire contents of the note were shared with counsel" (*People v Walston*, 23 NY3d 986, 990 [2014]). We therefore reject the People's argument that defense counsel's awareness of the existence and the "gist" of the note satisfied the court's meaningful notice obligation, or that preservation was required. "Where the record fails to show that defense counsel was apprised of the specific, substantive contents of the note—as it is in this case—preservation is not required" (*id.*).

Moreover, "[w]here a trial transcript does not show compliance with *O'Rama's* procedure as required by law, we cannot assume that the omission was remedied at an off-the-record conference that the transcript does not refer to" (*id.*). In other words, "[i]n the absence of record proof that the trial court complied with its [meaningful notice obligation] under CPL 310.30, a mode of proceedings error occurred requiring reversal" (*People v Tabb*, 13 NY3d 852, 853 [2009]). We again decline "to disavow our holding in *Walston* . . . that imposes an affirmative obligation on a trial court to create a record of compliance under CPL 310.30 and *O'Rama*" (*People v Silva*, 24 NY3d 294, 300 [2014], *rearg denied* 24 NY3d 1216 [2015]; *see People v Parker*, 32 NY3d 49 [2018] [decided today]).

The jury note marked as court exhibit 9, which is the only note at issue on this appeal, was not ministerial.* Even assuming for the sake of argument that the jury was requesting instruction on whether to continue deliberating or to return the next morning—a request that would require only a ministerial response—the note also stated that the jury had reached a decision on counts two and three but had “a lot of work to do” on count one. A note that informs the court that the jury has reached a verdict on two counts but is struggling with another count is not a note that is “‘wholly unrelated to the substantive legal or factual issues of the trial’” (*People v Hameed*, 88 NY2d 232, 241 [1996], quoting *People v Harris*, 76 NY2d 810, 812 [1990]) of which the trial court had no obligation to provide meaningful notice to counsel (see *People v Wallace*, 27 NY3d 1037, 1039 [2016]; *Nealon*, 26 NY3d at 161; *People v Ochoa*, 14 NY3d 180, 188 [2010]). Counsel, upon receiving meaningful notice, may have requested a partial verdict or a modified *Allen* charge, which was the response the trial court ultimately provided to the jury.

To the extent the People contend that the presence of media in the courtroom justified the trial court’s failure to provide counsel with meaningful notice, that argument is without merit. The *O’Rama* Court recognized that “special circumstances,” such as concern about sharing an individual juror’s note with the rest of the jury, might warrant departure from the *O’Rama* procedure, but the Court found it “difficult to imagine a situation in which a court would be justified in declining to show or read a juror’s note to counsel” (*O’Rama*, 78 NY2d at 278-279). If the trial court was concerned about media influence, it could have simply asked counsel to confirm on the record that they had read the note.

“‘[T]hough it hardly needs restating, we underscore the desirability of adherence to the procedures outlined in *O’Rama*’” (*Nealon*, 26 NY3d at 163, quoting *People v Kisoona*, 8 NY3d 129, 135 [2007]).

Chief Judge DiFiore, Ch. J. (dissenting). For the reasons stated in my dissent in *People v Parker* (32 NY3d 49 [2018] [decided today]), I would not apply a per se rule of reversal where there is sufficient ambiguity in the record as to whether

* The Appellate Division concluded that the jury note marked as court exhibit 8 was ministerial and that issue is not before us on this appeal by the People. Accordingly, we express no opinion on whether the Appellate Division properly concluded that court exhibit 8 was ministerial.

defense counsel received meaningful notice of the content of jury note seven (court exhibit 9). As noted by Judge Garcia's dissent in this case, the trial court demonstrated a pattern of compliance with the notice procedures mandated by CPL 310.30 and *People v O'Rama* (78 NY2d 270 [1991]). In addition, in responding to the jury note at issue, which sought guidance as to whether to continue deliberations, the court told the jury that "we as a group would like you to keep working." Under these circumstances, there is a significant ambiguity in the record before us and a reconstruction hearing is warranted (see *People v Velasquez*, 1 NY3d 44, 49 [2003]). Thus, I also join part IV of Judge Garcia's dissenting opinion.

GARCIA, J. (dissenting). Defendant confessed to forcibly raping a 90-year-old Alzheimer's patient, and his confession was corroborated by DNA evidence. Today, the Court reverses defendant's conviction (majority op at 952), and the convictions of two other defendants (*People v Parker*, 32 NY3d 49, 52 [2018] [decided today]), based solely on an unpreserved claim. The majority forgives defendant's failure to preserve his challenge by relying on a record-making deficiency—the trial court declined to read a jury note into the record—even though defense counsel was aware of the note at issue and was informed that the trial court would not read the note aloud. The record also supplies reason to believe that defense counsel received the note and read its contents.

Rather than simply asking for the contents of the note, or lodging any form of an objection, defendants in these circumstances are better off—under this Court's precedent—remaining silent and hoping for an acquittal; in the event of an unfavorable verdict, their claim will secure an automatic reversal on appeal. In its current form, the "mode of proceedings" doctrine ignores basic notions of fairness and common sense. It enables gamesmanship, encouraging litigants to "manipulate the system by remaining silent while error is committed, only to complain of it later" (*People v Walston*, 23 NY3d 986, 992 [2014, Smith, J., concurring]). And it serves only to undermine the important, fundamental purposes of our preservation rule.

The sweeping rule of *O'Rama* should no longer bind us. Where defense counsel is aware of a jury note and does not know its contents, he should be required to preserve his claim. At minimum, we should permit trial courts to reconstruct the record to determine whether, in fact, defense counsel had notice of the contents of the note. I dissent.

I.

While working as a nurse's aide in 2006, defendant raped a 90-year-old Alzheimer's patient in her nursing home. The victim reported the rape to nursing home staff. A physical examination and rape kit revealed a laceration and the presence of semen in her vagina. DNA testing confirmed that defendant was the source of the semen. Defendant later confessed, providing graphic details of the sexual assault. He was arrested and proceeded to trial.

The court attempted to schedule the case for trial on three occasions. The first ended in a mistrial because of the unavailability of a witness who had suffered a heart attack. The second attempt was derailed by a blizzard. The third and latest attempt proceeded without incident and, at the end of the third day of trial, the court charged the jury.

The jury began deliberating and sent out two notes that afternoon. The first note requested "[the] definitions of the laws," defendant's "confessions," and "[the] DNA results." The second note stated: "We won't be able to reach a verdict on all 3 counts today—Can we come back at 9:00 AM tomorrow please." The court informed the parties of the contents of the notes, responded to the first note without objection, and instructed the jury to break until the next morning.

The jury resumed deliberations the next morning and, that day, the court addressed three more notes requesting legal instruction, testimony readbacks, and exhibits. The court read each note into the record before responding. Shortly before 5:00 p.m., the court received a sixth and seventh note from the jury. The sixth note stated: "We have made a decision on the Third Count we are having hard time with 1 and 2 just giving you are [sic] status." The seventh note—the note at issue in this case—stated: "We have arrived on decision on 2 and 3. [B]ut we have a lot of work to do on #1. . . . [D]on[']t see it being quick. Not sure what do to. We ars [sic] starting to make way." The record reflects that both of these notes were marked as court exhibits in the presence of counsel.

The court then brought the jury back into the courtroom and, with all parties present, stated: "I have received a note [jury note seven], which I have marked as Court Exhibit Number 9, and I will not read that into the record, but I'm sure you know what it says." The court then encouraged the jury to continue deliberating—stating, "we as a group would like you to keep working"—and asked the jurors to indicate

whether they would like to continue for another hour that evening, or break for the day and resume deliberations in the morning. Defense counsel did not object. In response, the jury sent out a note asking to adjourn until the following morning.

The next day, the jury sent out four more notes containing requests for legal instruction. The court read each note into the record and provided responses without objection. That afternoon, the jury reached a unanimous verdict. Defendant was convicted of first-degree rape, first-degree sexual abuse, and second-degree endangering the welfare of a vulnerable elderly person. He was sentenced to 25 years' imprisonment.

Defendant appealed, asserting a *Brady* violation, a *Rosario* violation, and a Confrontation Clause violation. The Appellate Division affirmed the judgment (*People v Morrison*, 90 AD3d 1554 [4th Dept 2011]), and this Court denied defendant's application for leave to appeal (19 NY3d 1028 [2012]).

Eight years after the conclusion of his trial, defendant petitioned for a writ of error coram nobis, raising, for the first time, his jury note claim. The Appellate Division determined that "the issue may have merit" and vacated its prior order (*People v Morrison*, 128 AD3d 1424, 1425 [4th Dept 2015]).

Upon de novo consideration of the appeal, the Appellate Division, with one Justice dissenting, reversed the judgment, holding that the trial court's failure to advise counsel on the record of the contents of jury note seven was a mode of proceedings error warranting a new trial (*see People v Morrison*, 148 AD3d 1707 [4th Dept 2017]). Specifically, the majority determined that note seven "was a substantive jury note requiring notice to defense counsel," and that, by "failing to advise counsel on the record of the contents" of the note, the trial court "violated a core requirement of CPL 310.30" (*id.* at 1708).

One Justice dissented, concluding that the jury note at issue was "ministerial in nature"—not a substantive *O'Rama* error—and therefore defendant was "required to preserve his challenge to County Court's handling of that jury note" (*id.* at 1709 [Peradotto, J., dissenting]). The dissenting Justice granted the People's application for leave to appeal (29 NY3d 1039 [2017]).

The victim is now deceased.

II.

As a general matter, "a court's failure to adhere to a statutorily or constitutionally grounded procedural protection

does not relieve the defendant of the obligation to protest” (*People v Kelly*, 5 NY3d 116, 120 [2005] [citations omitted]; *People v Silva*, 24 NY3d 294, 299 [2014]). A strict application of the preservation rule “allows trial courts to correct errors in a timely fashion and prevent[s] unnecessary surprise after the conduct of a complete trial” (*People v Mack*, 27 NY3d 534, 540 [2016] [internal quotation marks and citations omitted]). “Were the rule otherwise, the State’s fundamental interest in enforcing its criminal law could be frustrated by delay and waste of time and resources invited by a defendant” (*People v Patterson*, 39 NY2d 288, 295 [1976]), resulting in “an unmanageable morass of collateral proceedings within each prosecution” (*People v Michael*, 48 NY2d 1, 6 [1979]). We have therefore enforced the preservation requirement in a broad array of contexts, including in cases involving critical and fundamental rights (see e.g. *People v Gray*, 86 NY2d 10 [1995] [claim that the prosecution failed to prove each element of the crime charged]; *People v Irizarry*, 83 NY2d 557 [1994] [alleged failure, in a case involving dual juries, to seal first jury’s verdict until second verdict was returned]; *People v Buford*, 69 NY2d 290 [1987] [excusal of sworn juror as “grossly unqualified”]), in cases implicating errors of constitutional dimension (*People v Alvarez*, 20 NY3d 75, 81 [2012] [alleged violation of defendant’s “right to a public trial”]), and even in cases where the trial court’s “handling of the proceedings” was “far from ideal” (*People v Williams*, 27 NY3d 212, 222, 224-225 [2016] [defendant’s “promised sentence was illegal”]). It is “both proper and necessary,” we have held, “for the State to require that all such objections be raised at a time when they can be dealt with most readily” (*Michael*, 48 NY2d at 6; *Mack*, 27 NY3d at 540).

Preservation is also “essential to the exercise of this Court’s jurisdiction, which is limited to the review of questions of law” (*Kelly*, 5 NY3d at 119). Under CPL 470.05 (2), to present a “question of law” reviewable by this Court, the party claiming error must preserve their challenge “at the time of” the trial court’s ruling or at a “subsequent time when the court had an opportunity of effectively changing the same” (CPL 470.05 [2]). Absent timely and proper preservation, this Court is without jurisdiction to review the claimed error (*id.*).¹

1. The Appellate Division has jurisdiction to review unpreserved errors in the interests of justice (see CPL 470.15). This Court does not.

A.

We have recognized an exception to the preservation rule only in a “very narrow” class of cases involving errors that “would affect the organization of the court or the mode of proceedings proscribed by law” (*Patterson*, 39 NY2d at 295). Historically, these so-called “mode of proceedings” cases involved errors going “to the essential validity of the proceedings” such that “the entire trial is irreparably tainted” (*id.* at 296). In *Cancemi v People*, for instance, the Court held that a defendant could not consent to being tried by a jury of less than 12 members (18 NY 128, 138 [1858]). Later, in *People ex rel. Battista v Christian*, the Court ruled that the defendant could not be convicted without being indicted, despite his consent, where the State Constitution required indictment by grand jury (249 NY 314, 319 [1928]). And in *People v Coons*, preservation was not required where the trial court failed to keep the jury sequestered during deliberations (75 NY2d 796, 797 [1990]).²

Mode of proceedings errors are immune from the rules governing preservation and waiver, as well as from harmless error analysis (*see People v Mehmedi*, 69 NY2d 759, 760 [1987]; *People v Ahmed*, 66 NY2d 307, 310 [1985]; *Patterson*, 39 NY2d at 295). Because of the significant ramifications associated with these types of errors—they require automatic reversal—we have generally resisted expansion of the mode-of-proceedings-error doctrine (*see People v Cosmo*, 205 NY 91, 104 [1912]; *People v Sherlock*, 166 NY 180, 183 [1901]; *Pierson v People*, 79 NY 424, 429-431 [1880]; *People v Bradner*, 107 NY 1, 4-5 [1887]).

2. Notably, a number of the Court’s mode of proceedings designations have been overruled by statute or constitutional amendment (*see People v Gajadhar*, 9 NY3d 438, 446 [2007] [recognizing that *Cancemi* is no longer good law in light of 1938 constitutional amendments]; *People v Trueluck*, 88 NY2d 546, 548-549 [1996] [noting that a 1973 constitutional amendment undermined the Court’s holding in *Battista*]; CPL 310.10 [2] [overruling *Coons* by abolishing mandatory sequestration]). The legislature has also abrogated this Court’s per se reversal policy in other contexts (*see* CPL 240.75 [noting that *Rosario* violations “shall not constitute grounds for any court to . . . set aside a conviction, or reverse, modify or vacate a judgment of conviction in the absence of a showing by the defendant that there is a reasonable possibility that the non-disclosure materially contributed to the result of the trial or other proceeding”]; *see also People v Jones*, 70 NY2d 547, 556-557 [1987, Bellacosa, J., concurring] [noting that the Court’s earlier “per se error rule” in the *Rosario* context served to “elevate() the consequences of . . . non-constitutional *Rosario* violations to a level higher than a host of constitutional errors to which harmless error analysis applies”]).

B.

Nearly 30 years ago, in *People v O’Rama*, the Court first applied the mode of proceedings exception to an irregularity in the trial court’s handling of a jury note (78 NY2d 270 [1991]). The Court’s analysis began with CPL 310.30, which provides that, “[a]t any time during its deliberation, the jury may request the court for further instruction or information with respect to the law, with respect to the content or substance of any trial evidence, or with respect to any other matter pertinent to the jury’s consideration of the case.” Upon receipt of such a request, “the court must direct that the jury be returned to the courtroom and, after notice to both the people and counsel for the defendant, and in the presence of the defendant, must give such requested information or instruction as the court deems proper” (*id.*). CPL 310.30 thus “imposes two separate duties” on the trial court following a substantive juror inquiry: the duty to notify counsel, and the duty to respond (*O’Rama*, 78 NY2d at 276). With regard to the statute’s notice requirement, the Court stated that notice must be “meaningful”—that is, it must give “notice of the actual specific content” of the note (*id.* at 277).

Based on these requirements, the *O’Rama* Court set forth a procedure for addressing juror inquiries—a procedure designed not to mandate “adherence to a rigid set of procedures,” but rather to “delineate a set of guidelines calculated to maximize participation by counsel at a time when counsel’s input is most meaningful, i.e., before the court gives its formal response” (*O’Rama*, 78 NY2d at 278). According to the *O’Rama* Court, upon receiving a jury note, a trial court

“should mark the note as a court exhibit and read it into the record before the jury is called in (thereby ensuring adequate appellate review); afford counsel an opportunity to suggest responses to the note; inform counsel of the substance of the court’s proposed response (thereby giving counsel an opportunity to suggest appropriate modifications before the jury is returned to the courtroom); and read the note aloud in open court before the jury so that any inaccuracies may be corrected by the individual jurors” (*People v Walston*, 23 NY3d 986, 989 [2014], citing *O’Rama*, 78 NY2d at 277-278).

That said, “modified procedures that are equally conducive to participation by defense counsel are permissible,” and “the choice of methods to be used to address particular idiosyncratic situations is a matter to be entrusted to the sound discretion of the trial courts” (*O’Rama*, 78 NY2d at 278).

Ultimately, the Court in *O’Rama* determined that the trial court’s actions—it “declined to read the note aloud”—constituted error, as “the court’s . . . decision to withhold the contents of the juror’s note fell outside the acceptable bounds of its discretion” (*O’Rama*, 78 NY2d at 275, 278-279). The Court’s preservation discussion was limited to a single sentence: “[T]he [trial] court’s error in failing to disclose the contents of the note had the effect of entirely preventing defense counsel from participating meaningfully in this critical stage of the trial,” amounting to a mode of proceedings error exempt from the preservation rule (*id.* at 279). With that sentence, the floodgates opened.

The Court’s application of the “meaningful notice” requirement has yielded particularly harsh results. “[A] trial court’s failure to provide meaningful notice to counsel of a substantive jury note,” we have stated, “constitutes a mode of proceedings error” exempt from the preservation rule (*Mack*, 27 NY3d at 539). Meaningful notice, even for preservation purposes, requires notice of “the actual specific content” of the jury’s inquiry—meaning a “verbatim account” of the note (*O’Rama*, 78 NY2d at 277, 279; *see also Silva*, 24 NY3d at 299; *People v Kisson*, 8 NY3d 129, 135 [2007]). A trial court therefore “does not satisfy its responsibility to provide counsel with meaningful notice . . . by summarizing the substance of the note” (*People v Nealon*, 26 NY3d 152, 156-157 [2015]). Notice “of the existence of the note,” we have held, is inadequate where “the entire contents of the note” were not “shared with counsel” (*Walston*, 23 NY3d at 990). Countless convictions have been reversed on these grounds, despite the defendants’ failure to preserve their claims (*see e.g. Morrison*, 148 AD3d at 1709 [reversing convictions for rape, sexual abuse, and endangering the welfare of a vulnerable elderly person on *O’Rama* grounds]; *People v Thomas*, 146 AD3d 991 [2d Dept 2017] [reversing convictions for murder, assault, and criminal possession of a weapon on *O’Rama* grounds]; *People v Gough*, 142 AD3d 673 [2d Dept 2016] [reversing convictions for criminal sexual act, burglary, attempted aggravated sexual abuse, assault, sexual abuse, and unlawful imprisonment on *O’Rama* grounds]; *People v Caban*, 78 AD3d 403 [1st Dept 2010] [reversing conviction for

criminally negligent homicide on *O’Rama* grounds]; *People v Martin*, 26 AD3d 847 [4th Dept 2006] [reversing conviction for murder and criminal possession of a weapon on *O’Rama* grounds]; *People v Roberts*, 236 AD2d 848 [4th Dept 1997] [reversing convictions for criminal possession of a weapon, unlawful imprisonment, sexual abuse, and endangering the welfare of a child on *O’Rama* grounds]; *see also Parker*, 32 NY3d at 52 [reversing defendant’s conviction on *O’Rama* grounds]; *People v Nonni*, 32 NY3d 49 [2018] [same]; *People v Silva*, 24 NY3d 294 [2014] [same]; *People v Hanson*, 24 NY3d 294 [2014] [same]; *People v Walston*, 23 NY3d 986 [2014] [same]; *People v Tabb*, 13 NY3d 852 [2009] [same]; *People v Kisoan*, 8 NY3d 129 [2007] [same]; *People v Diaz*, 150 AD3d 538 [1st Dept 2017] [same]; *People v Morris*, 147 AD3d 873 [2d Dept 2017] [same]; *People v Robinson*, 144 AD3d 40 [1st Dept 2016] [same]; *People v Brown*, 129 AD3d 854 [2d Dept 2015] [same]; *People v Cotton*, 127 AD3d 778 [2d Dept 2015] [same]; *People v Garrow*, 126 AD3d 1362 [4th Dept 2015] [same]; *People v Roberites*, 115 AD3d 1291 [4th Dept 2014] [same]; *People v Giraldo*, 116 AD3d 711 [2d Dept 2014] [same]; *People v Thomas*, 115 AD3d 995 [2d Dept 2014] [same]; *People v McGhee*, 103 AD3d 667 [2d Dept 2013] [same]; *People v Stocks*, 101 AD3d 1049 [2d Dept 2012] [same]; *People v Lockley*, 84 AD3d 836 [2d Dept 2011] [same].³

C.

Having opened Pandora’s box, the Court later clarified that “not every violation” of the *O’Rama* procedure is “immune from normal preservation principles” (*Silva*, 24 NY3d at 299). Specifically, while meaningful notice and a meaningful response are both “core responsibilities” of the trial court under *O’Rama*, the Court determined that these two types of errors should not be treated the same: a trial court’s failure to provide meaningful notice of a jury note will constitute a mode of proceedings error, while the court’s failure to fulfill its second core responsibility—a meaningful response—will not (*Mack*, 27 NY3d at 539-544). “[L]ack of notice,” the Court reasoned, “is

3. These reversals result not from any “widespread failure” of our trial courts (*Parker*, 32 NY3d at 61-62 n 7), but rather from the Court’s indiscriminate expansion of the “mode of proceedings” designation—a blunt tool that carries drastic and harsh consequences. Given the relatively “small number” of criminal trials, and the “relatively rare” occurrence of appellate reversals (*Parker*, 32 NY3d at 61-62 n 7), this sampling of cases suggests that *O’Rama* errors cause a disproportionately large number of criminal reversals.

the key determinant in classifying a particular procedure as a mode of proceedings error” (*Mack*, 27 NY3d at 541; *see also Nealon*, 26 NY3d at 160-161; *Silva*, 24 NY3d at 299-300). Broadening the mode of proceedings exception, we noted, “might open the door to abuse” and erode the “important purposes underlying the preservation rule” (*Mack*, 27 NY3d at 540, 544 [internal quotation marks and citation omitted]).

In *People v Nealon*, for instance, we concluded that “no mode of proceedings error occurred” even though the trial court failed to discuss the note with counsel before providing a response, because “defense counsel had notice of [the] jury note and failed to object” at a time when “the error could have been cured” (*Nealon*, 26 NY3d at 160-161 [internal quotation marks omitted]). We reached a similar conclusion in *People v Mack*, holding that the defendant was required to preserve his claim of error where “the trial court fail[ed] to provide a meaningful response to a substantive jury note but satisfie[d] its meaningful notice obligations” (*Mack*, 27 NY3d at 539). In both *Nealon* and *Mack*, we reversed the Appellate Division, which had previously been applying the mode of proceedings exception to both CPL 310.30’s “meaningful notice” and “meaningful response” requirements (*People v Mack*, 117 AD3d 1450, 1451 [4th Dept 2014]; *People v Nealon*, 116 AD3d 886, 887 [2d Dept 2014]; *see also People v McGuire*, 101 AD3d 1386 [3d Dept 2012] [reversing convictions for course of sexual conduct against a child and sexual abuse]; *People v Lockley*, 84 AD3d 836 [2d Dept 2011] [reversing convictions for murder, burglary, attempted robbery, and criminal possession of a weapon]). Indeed, the dissenting Judges in those cases criticized the Court’s inconsistent retreat from the basic tenets of *O’Rama*, reasoning that a trial court’s failure to fulfill either “core responsibility” under CPL 310.30 should be exempt from the preservation rule (*see Mack* 27 NY3d at 545-547 [Rivera, J., dissenting]; *Nealon*, 26 NY3d at 164 [Lippman, Ch. J., dissenting]).

For nearly three decades, we have endured the ramifications of a doctrine built on a “cursory rationale” that “does not seem very persuasive” (*see Walston*, 23 NY3d at 991 [Smith, J., concurring]). I see no reason to retain it.

III.

Notice is, as a general matter, a critical prerequisite to lodging an objection: a defendant “generally cannot object to an error of which he or she is unaware” (*Mack*, 27 NY3d at 541; *see*

also *Nealon*, 26 NY3d at 157). This simple and intuitive principle should, and generally does, guide our preservation rules. In this case, however, defense counsel *was* aware of the alleged error: he was informed not only that the court had received a jury note, but also that the court planned to deviate from the prescribed *O’Rama* procedure by not reading the note aloud. Defense counsel had “all the knowledge required to make an objection” (*Nealon*, 26 NY3d at 162), yet declined to do so—possibly for strategic reasons, or possibly because he had already read the note. In accordance with well-settled preservation principles, I would hold that defendant’s claim is unpreserved. To the extent *O’Rama* and its progeny would prescribe a different result, those cases should be abrogated.

A.

For purposes of preservation, defense counsel’s awareness of a jury note, by itself, sufficiently alerts counsel to object if he believes that the court has deviated from the *O’Rama* procedure by failing to provide adequate notice of the note’s contents (see *People v Kadarko*, 14 NY3d 426, 428 [2010] [no mode of proceedings error where trial court “explained the note’s contents to counsel” but “declined” to divulge a portion of the note showing the numerical breakdown of juror votes]; *People v Ramirez*, 60 AD3d 560, 561 [1st Dept 2009] [no mode of proceedings error where “the court read the note into the record *almost* verbatim” (emphasis added)], *affd* 15 NY3d 824, 825-826 [2010]; *People v Neal*, 268 AD2d 307, 307 [1st Dept 2000] [no mode of proceedings error even though part of the jury note “was not read into the record” where “counsel was aware of the . . . note’s existence and was not deprived of an opportunity to read it”]). A simple objection—asking to see the note, or for the court to read it aloud—serves not only to preserve the defendant’s claim for appellate review, it also brings the claimed error to the attention of the trial court at a time when the court has an opportunity to remedy the objectionable procedure and cure any asserted defect (see CPL 470.05 [2]; see also *People v Ippolito*, 20 NY3d 615, 625 [2013]). While a verbatim reading of the note might inform the defendant’s desired response, it is *not* necessary for purposes of alerting the defense to interpose an objection if more information is desired. So long as the parties are not misled as to the note’s contents (see *Walston*, 23 NY3d at 990), defense counsel is on notice of an *O’Rama* error, thereby enabling the defense to “adequately protect the defendant’s rights” (*O’Rama*, 78 NY2d

at 277). Notice of the *O’Rama* departure, by itself, “gives counsel the opportunity to object” (*Mack*, 27 NY3d at 541).

For these reasons, we have repeatedly “refused to classify an alleged error as a mode of proceedings error” where “the defendant has the notice and opportunity needed to object” (*Mack*, 27 NY3d at 542 n 3; *People v King*, 27 NY3d 147, 157 [2016] [“If defense counsel had an objection to the procedure employed by the trial court, he should have voiced it so that the court could have corrected any alleged error”]). We have also rejected the argument that a defendant’s preservation obligation hinges on his subjective knowledge or awareness of the alleged error (see *Williams*, 27 NY3d at 223 n 2 [noting that, while the Court has “excused the failure to use the objection method of preservation” where the defendant had no “*opportunity . . . to have discovered the error*,” the Court has never held “that the defendant’s lack of *actual knowledge* that an error has occurred, despite an opportunity to learn of the error, may excuse the defendant from having to preserve his or her claim via objection”]). “[S]uch a theory,” we have noted, “would swallow the preservation doctrine whole, thereby eviscerating an essential limit on our jurisdiction,” since “virtually every defendant could rely on a record silent on the subject of the defendant’s actual knowledge to argue that he or she did not in fact comprehend the erroneous nature of the court’s actions and therefore had no obligation to object” (*id.*, citing *People v Turriago*, 90 NY2d 77, 80 [1997], and *People v Kelly*, 5 NY3d 116, 119 [2005]). We have therefore rejected a “sweeping knowledge-based exception to the preservation rule” (*id.*), and have enforced the preservation rule even in cases where the court’s error “escaped discovery of all those involved and trained in the law—the judge, prosecutor and defense counsel” (*id.* at 231 [Rivera, J., dissenting]).

Because it is grounded in fairness and common sense, a true notice-based rule is readily administrable: Where defense counsel is not aware of the existence of a jury note, he does not have sufficient knowledge to object, and preservation would not be required (see *Silva*, 24 NY3d 294). Similarly, where a trial court inaccurately paraphrases a jury note or omits key language—without informing the parties that it is doing so—defense counsel is again unaware of any *O’Rama* deficiency, and preservation would not be required (see *Walston*, 23 NY3d 986). But where defense counsel is aware of the existence of the note and aware that he does not have notice of its contents,

counsel “has all the knowledge required to make an objection” and should be expected to do so (*Nealon*, 26 NY3d at 162).

Our decision in *People v Kadarko* (14 NY3d 426 [2010]) is illustrative. There, the trial court received a jury note indicating that the jurors were “still divided” on a few of the charges and providing a numerical breakdown of the jury’s vote splits (*id.* at 428). In lieu of reading the note verbatim into the record, the trial judge explicitly “declined” to divulge the vote splits to counsel before responding, “[b]elieving it inappropriate for him to show counsel the numerical breakdown of the votes” (*id.*). Instead, the court “explained” the contents of the note, stating that it “gave divisions among the jurors as to each robbery” (*id.*).

Although the defense did not have verbatim notice of the contents of the note, the Court in *Kadarko* nonetheless held that the trial court’s error did not “amount to a failure to provide counsel with meaningful notice of the contents of the jury note” (*Kadarko*, 14 NY3d at 429). The Court reasoned that the trial judge had informed counsel of the existence of the note, and “that he was specifically withholding the numbers from counsel until after the jury had retired to resume deliberations” (*id.*). Accordingly, while the trial court’s decision not to provide a verbatim reading prior to responding to the note “may have been error, it was not a mode of proceedings error” (*id.* at 429-430). And since “[d]efense counsel voiced no objection to this procedure,” it was unpreserved for the Court’s review (*id.* at 429).

Similarly, here, the trial court informed the parties that it had received a note, it marked the note as a court exhibit in the presence of counsel, and it explicitly advised the parties of its intended procedure, stating that the court did not intend to read the note into the record; as in *Kadarko*, the court informed the parties that it was “specifically withholding” the verbatim contents of the note (*Kadarko*, 14 NY3d at 429). Like the defense in *Kadarko*, defense counsel here was aware, at the very least, (1) of the existence of the note, and (2) that the court did not intend to provide a verbatim reading into the record before responding. And again, in *People v Parker* (32 NY3d 49 [2018] [decided today]), defense counsel knew, at minimum, (1) of the existence of the notes at issue, (2) that the notes contained requests for testimony, and (3) that the court had not read the verbatim contents of the notes into the record, or responded to them, when the jury reached its verdict. This in-

formation, by itself, alerted defense counsel to an *O’Rama* deficiency sufficient “to enable [them] to object to the trial court’s procedure if [they] considered that approach to be prejudicial” (*Mack*, 27 NY3d at 543). Defense counsel declined to do so.

B.

To be clear, I fully endorse the majority’s view that a trial court’s failure to provide meaningful notice of the contents of a jury note amounts to *error*. CPL 310.30’s notice requirement “is not a mere formality or a procedural device designed only to ensure counsel’s presence in the courtroom” (*O’Rama*, 78 NY2d at 276). Rather, just as the statute’s “requirement that juror inquiries be answered mandates a ‘meaningful’ response, so too does that statute’s ‘notice’ requirement mandate notice that is meaningful” (*id.* at 277 [citation omitted]). The “precise language and tone of [a] juror note may be critical to counsel’s analysis of the situation in the jury room and ability to frame intelligent suggestions for the fairest and least prejudicial response” (*O’Rama*, 78 NY2d at 277). Similarly, “the Trial Judge’s summary of the ‘substance’ of an inquiry cannot serve as a fair substitute for defense counsel’s own perusal of the communication,” as defense counsel “is best equipped and most motivated to evaluate the inquiry and the proper response[] in light of the defendant’s interests” (*id.*). For these reasons, we have appropriately held that meaningful notice under CPL 310.30 requires a “verbatim account” of the note (*id.* at 277, 279; *Silva*, 24 NY3d at 299; *Kisoon*, 8 NY3d at 135). And in the present case, the trial court’s procedure—declining to show meaningful notice on the record—fell short. But that error, like other errors, should require preservation.

CPL 310.30 governs procedure, *not* preservation. Though the statute imposes two “core requirements” on the trial court—notice to the parties, and a response to the jury—its text contains no exception to the preservation rule. It makes no reference to the “mode of proceedings” doctrine. And it certainly does not purport to expand this Court’s jurisdiction where a claimed error is raised. Yet the *O’Rama* mode of proceedings scheme inexplicably conflates CPL 310.30’s “meaningful notice” requirement with our preservation doctrine, requiring “verbatim notice” of the contents of a jury note before preservation requirements may be triggered. It concomitantly expands the Court’s jurisdiction beyond legislatively-circumscribed bounds.

The majority’s hyperstringent rule also perversely discourages preservation: It would be “unwise for counsel to object

and seek correction of the error” where the trial court fails to read a jury note into the record (*Nealon*, 26 NY3d at 162) since, “if the error remains uncorrected,” defense counsel “has a near guarantee that any conviction will be reversed” (*Walston*, 23 NY3d at 992 [Smith, J., concurring] [“When a trial judge makes the mistake of paraphrasing or summarizing a jury note, only a foolish defense lawyer will ask the judge to correct the error”]; *Mack*, 27 NY3d at 543-544 [“If the verdict is an acquittal, counsel will have secured the desired trial outcome. If the jury convicts the defendant, counsel will have created an appellate issue requiring automatic reversal and a new trial simply by remaining silent”]). In this way, the majority’s holding incentivizes gamesmanship, rewarding a defendant’s strategic choice not to take reasonable measures to learn the contents of a jury note or to otherwise challenge the trial court’s procedure.⁴ It also enables litigants to distort a mere record deficiency into a mode of proceedings error—a designation reserved for the most fundamental flaws, and exempt from all traditional rules governing preservation, waiver, and harmless error (*Mack*, 27 NY3d at 540-541). And it further “diminish[es] the important purposes underlying the preservation rule” (*id.* at 544).⁵

4. I do not mean to suggest that this tactic is routinely employed by defense attorneys. To the contrary, the absence of an objection (from either the defense attorney or the prosecutor) more likely indicates the absence of error. But the incentive created by *O’Rama*—rewarding silence over preservation—underscores its illogical and unjust results.

5. Appellate courts in other jurisdictions generally do not mandate automatic reversal of a conviction based on a trial court’s failure to provide on-the-record verbatim notice of a jury note (see e.g. *United States v Fernandez-Hernandez*, 652 F3d 56, 64 [1st Cir 2011] [defendants forfeited their jury note claim even though “counsel did not learn of the notes until (after) the jury . . . reached a verdict” because, at that time, “the Defendants did not object”]; *United States v Adeniji*, 31 F3d 58, 65 [2d Cir 1994] [harmless error applies to trial court’s mishandling of a jury note and therefore noncompliance “does not mandate reversal unless prejudice is shown”]; *State v Apodaca*, 303 Conn 378, 397-398, 33 A3d 224, 237 [2012] [defendant’s jury note claim was unpreserved and did not otherwise constitute reversible error]; *People v McLaurin*, 235 Ill 2d 478, 485-489, 922 NE2d 344, 349-351 [2009] [defendant “has forfeited appellate review” of his jury note claim because he did not “object to the error at trial”]; *Johnson v United States*, 840 A2d 1277, 1280-1281 [DC 2004] [defendant “failed to challenge” the “manner in which the trial court handled a note it received from the jury”]; *Commonwealth v Bacigalupo*, 49 Mass App Ct 629, 634, 731 NE2d 559, 565 [2000] [trial court’s failure to provide meaningful notice does not require reversal where the prosecution “makes an affirmative showing that the error was harmless beyond a reasonable doubt”]; *Hallmon v United States*, 722 A2d 26, 28 [DC 1998] [“a violation of Rule 43, specifically with respect to communica-

(n. cont’d)

In this case, for instance, defendant failed to object to the trial court's handling of jury note seven. He also failed to raise his jury note claim in his first appeal to the Appellate Division. And apparently, he failed to raise it in his first application for leave to appeal to this Court. Defendant first raised his jury note claim in a coram nobis application eight years after his trial. Similarly, in *People v Parker* (32 NY3d 49 [2018] [decided today]), the defendants' claimed mode of proceedings error was never raised below. Instead, the defendants consistently challenged the trial court's suppression ruling, advancing that argument before the trial court, before the Appellate Division, and in their initial filings submitted to this Court. It was not until their appeals to this Court were already underway, more than five years after the defendants were convicted, that the defendants (and their new appellate counsel) asserted, for the first time, that the trial court failed to provide meaningful notice of the contents of two jury notes. These belated claims and extensive delays are precisely the types of problems that the preservation rule is designed to combat.

C.

Of course, stare decisis generally counsels against overruling our prior decisions. That doctrine “promotes predictability in the law, engenders reliance on our decisions, encourages judicial restraint and reassures the public that our decisions arise from a continuum of legal principle rather than the personal caprice of the members of this Court” (*People v Peque*, 22 NY3d 168, 194 [2013]). But stare decisis “also recognizes that the lessons of time may lead to a different result” (*People v Taylor*, 9 NY3d 129, 149 [2007]), and in certain rare cases like this one, a reversal of course is warranted where “an extraordinary combination of factors undermines the reasoning and practical viability of our prior decision” (*Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1, 23 [2016]). And to the

tions to and from the jury, is subject to harmless error review”]; *People v Price*, 1 Cal 4th 324, 414, 821 P2d 610, 660 [1991] [“the defense waived the trial court's apparent error in failing to notify counsel” before responding to the jury's request because counsel was subsequently “made aware” of the jury's request and “did not object to the court's failure to provide earlier notice”]; *People v France*, 436 Mich 138, 163, 461 NW2d 621, 631 [1990] [improper jury communication does not mandate reversal where there is “a firm and definite showing of an absence of prejudice”]; *People v Ainsworth*, 45 Cal 3d 984, 1020, 755 P2d 1017, 1039 [1988] [a violation of the prescribed jury note procedure “does not warrant reversal of a conviction . . . unless prejudice is shown”]).

extent a defendant might “withhold an objection in reliance on *O’Rama*, in the hope of obtaining an undeserved reversal,” that surely is not the “kind of reliance” on our precedents “that should . . . be encouraged” (*Walston*, 23 NY3d at 992 [Smith, J., concurring]).

Preservation is “the rule rather than the exception” (*Williams*, 27 NY3d at 219). The *O’Rama* mode of proceedings exception to the preservation rule has grown needlessly broad, proving “more harmful” than beneficial and leading to “reversals based on errors that could easily have been cured if counsel had complained” (*Walston*, 23 NY3d at 992 [Smith, J., concurring]). Under a practical, commonsense approach to notice, defendant had both the requisite reason and opportunity to object to the trial court’s *O’Rama* departure. I would not excuse his failure to do so.

IV.

At minimum, remittal for a reconstruction hearing is warranted to determine whether defense counsel was, in fact, aware of the specific contents of the jury note. Reconstruction of the record is appropriate where, for instance, “it is clear that a proceeding took place that was not transcribed,” where “the minutes have been lost,” or where “there is significant ambiguity in the record” (*People v Velasquez*, 1 NY3d 44, 49 [2003] [citations omitted]; see also *People v Parris*, 4 NY3d 41, 44 [2004]; *People v Harrison*, 85 NY2d 794, 796 [1995]). We have also employed reconstruction to determine whether a claimed error falls within the mode of proceedings exception—in other words, to determine whether or not the Court has jurisdiction to consider the asserted error (see *People v Walker*, 18 NY3d 839 [2011]; *People v Monclavo*, 87 NY2d 1029 [1996]; *People v Michalek*, 82 NY2d 906 [1994]; *People v Odiat*, 82 NY2d 872 [1993]). In *People v Monclavo*, for example, it was not clear whether a mode of proceedings error had occurred because the record was inconclusive regarding defendant’s presence during a material stage of the proceeding (87 NY2d at 1031). Rather than automatically vacating the defendant’s conviction, the Court remitted to Supreme Court for a reconstruction hearing “to determine whether or not defendant was present”—or, in other words, whether a mode of proceedings error had in fact occurred (*id.*). On remittal, if it was “determined that defendant was present, the judgment of conviction [would] be amended to reflect that result” (*id.*, citing *Michalek*, 82 NY2d

at 907). This case presents a similarly straightforward subject for reconstruction: whether defense counsel saw the jury note.

A.

In the jury note context, Appellate Division courts routinely remit for reconstruction hearings when faced with a record ambiguity regarding *O’Rama* compliance (see *People v Mitchell*, 129 AD3d 404 [1st Dept 2015]; see also *People v Meyers*, 148 AD3d 1057 [2d Dept 2017]; *People v Williams*, 113 AD3d 1116 [4th Dept 2014]; *People v Kahley*, 105 AD3d 1322 [4th Dept 2013]; *People v Russo*, 283 AD2d 910 [4th Dept 2001]; *People v Martinez*, 186 AD2d 14 [1st Dept 1992]). In *People v Mitchell*, for instance, the Appellate Division observed that “[t]he jury note in question appeared in the court file but the transcript contain[ed] no reference to it” (129 AD3d at 404). The Court determined that, before it could “consider [the] defendant’s claim that Supreme Court’s failure to address the note . . . constituted a mode of proceeding[s] error . . . , the record should be reconstructed as completely as possible to determine the facts surrounding the submission of the note and how the note was handled by the court” (*id.*).

This Court has also, at least implicitly, condoned the use of reconstruction hearings in this context. In *People v Cruz*, we noted that reconstruction hearings have been employed in *O’Rama* cases “to determine whether there was a jury note and, if so, what action was taken with regard to the jury note” (14 NY3d 814, 815-816 [2010] [internal quotation marks and citation omitted]). There, the Appellate Division remitted to Supreme Court for a reconstruction hearing and, on appeal, this Court examined the reconstructed record (see *id.* at 818 [Lippman, Ch. J., concurring] [referring to the reconstruction hearing below as a “very useful exercise”]). The Court ultimately found “[n]othing” to suggest “that the [trial] judge received the jury note or discussed its contents with the parties,” and therefore reversed the defendant’s conviction and ordered a new trial (*id.* at 815-816).

B.

Contrary to the Court’s contention (*People v Parker*, 32 NY3d 49, 61 [2018] [decided today]), reconstruction is not foreclosed by our decision in *People v Walston* (23 NY3d 986 [2014]). In *Walston*, we held that a mode of proceedings error occurred where there was “no indication” in the record “that the entire

contents of the note were shared with counsel” (*id.* at 990). There, rather than reading the jury note into the record or making it available to the parties, the court merely “paraphrased the note for counsel” and, in doing so, “omitted any reference” to certain relevant language in the note (*id.*). Similarly, in *People v Silva*, the Court determined that a mode of proceedings error had occurred where “nothing in the record” indicated that “the court informed the parties about the jury’s inquiry” before accepting the jury’s verdict (24 NY3d at 297). Neither of those cases contained a blanket rejection of reconstruction as an available remedy in all *O’Rama* cases. Indeed, the Appellate Division courts continued remitting for reconstruction hearings in jury note cases even after *Silva* and *Walston* were decided (*e.g.* *Mitchell*, 129 AD3d 404; *Meyers*, 148 AD3d 1057).

Nor is there any indication that ordering reconstruction hearings in this context would somehow “imperil” the “necessity that courts fulfill their core responsibility of providing counsel with notice of the precise contents of a jury note” (*Parker*, 32 NY3d at 62). More likely, ordering reconstruction hearings would motivate trial courts to comply with *O’Rama* in the first instance so as to avoid the substantial burdens associated with an additional hearing—a hearing where, among other things, the trial judge might be required to provide testimony concerning his or her recollection of how jury notes were handled. Nor do I agree that trial courts would begin neglecting their record-making obligations based on our pronouncement that a corrective measure—a reconstruction hearing—should be available.

C.

Today, the Court closes the door on reconstruction in the *O’Rama* context, even in cases where, unlike in *Walston* and *Silva*, the record affirmatively provides a strong “indication that the entire contents of the note were shared” with the defense (*Walston*, 23 NY3d at 990). In *People v Parker* (32 NY3d 49 [2018] [decided today]), the record was far from “devoid of information as to how [the] jury notes were handled” (*Silva*, 24 NY3d at 300); to the contrary, the record strongly suggests that the trial court routinely displayed each jury note to the parties, and that defense counsel had, in fact, reviewed the notes at issue (*see Parker*, 32 NY3d at 66-67 [DiFiore, Ch. J., dissenting]). For instance, jury note one was never read into the record, nor was there any indication of when or how it was made available

to the parties. But note one was marked as a court exhibit, and the defense attorneys acknowledged on the record that they “ha[d] seen it”—apparently during an untranscribed proceeding. With respect to jury note two, the note was also marked as a court exhibit, and the parties were presumably made aware of the note’s contents in an off-the-record proceeding, as they had already discussed and “agreed upon” a proposed response before the court read the note into the record.

There is no reason to believe that the trial court deviated from this practice with respect to jury notes three and four—the two notes at issue. Rather, the record indicates that the court again made those notes available to the parties in an off-the-record proceeding: According to the trial transcript, the court stated that it had received “three additional notes”—jury notes two, three, and four—and that the notes were each marked as court exhibits. After reading and responding to note two, the court stated that it would provide the “additional testimony” that the jury “requested in the other two notes” (notes three and four) after lunch.⁶ The court’s on-the-record reference to the contents of notes three and four, and to the court’s intended response, strongly supports the conclusion that the parties were made aware of the notes’ contents and had discussed an appropriate response with the court in an off-the-record proceeding (*see Parker*, 32 NY3d at 66 [DiFiore, Ch. J., dissenting]).

In the instant case, the record similarly supports an inference that defense counsel received meaningful notice of the contents of jury note seven during an unrecorded proceeding before the court responded to the jury’s inquiry. As the record demonstrates, the trial court’s practice when receiving jury notes was to formulate a response “together with the attorneys” in a collaborative process that, apparently, was generally unrecorded. For example, the court responded to a note requesting a readback of testimony without having identified the relevant portion of the requested testimony on the record, indicating that the note and the court’s intended response were previously discussed with the parties off the record. The same is true of the jury’s note requesting DNA results and defendant’s confessions; the court indicated that those materials “were sent into the jury room,” but the record contains no prior discussion identifying the relevant materials. Indeed, after the court

6. Jury notes three and four requested only a readback of testimony—nothing else.

responded to jury note three, defense counsel explicitly referenced a prior off-the-record bench conference that was not transcribed.

With regard to jury note seven—the note at issue—the court marked the note as a court exhibit in the parties’ presence. In responding to the note, the court repeatedly used the pronoun “we,” indicating to the jury that the court and the parties had collectively formulated a response “as a group” during yet another proceeding that was not transcribed. And despite the court’s explicit reference to the note, defense counsel tellingly declined to object or otherwise indicate that he had not yet seen it. Under these circumstances, where the record “indicate[s] compliance with adequate procedures under *O’Rama*” (*Silva*, 24 NY3d at 300), and the proceedings can readily be reconstructed,⁷ remittal for a hearing would likely resolve the record’s ambiguity and clarify this Court’s jurisdiction—or lack thereof—to consider defendant’s claim.

Rather than remitting for reconstruction, the majority presumes that a mode of proceedings error occurred because of the absence of affirmative “record proof” that the entire contents of the note were shared with counsel (majority op at 952; *Parker*, 32 NY3d at 52). But just as we “cannot assume that the proper procedure was utilized when the record is devoid of information as to how jury notes were handled” (*Silva*, 24 NY3d at 300 [internal quotation marks omitted]; *Parker*, 32 NY3d at 60), we also should not assume that meaningful notice was lacking, particularly when the record indicates otherwise (*see Walker*, 18 NY3d at 840; *Monclavo*, 87 NY2d at 1031; *Michalek*, 82 NY2d at 907; *Odiat*, 82 NY2d at 874; *see also Ramirez*, 60 AD3d at 561 [“The record warrants an inference that the court discussed the note with counsel during a luncheon recess in the absence of the court reporter”], *affd* 15 NY3d 824, 825-826

7. In connection with defendant’s coram nobis motion, the trial prosecutor submitted an affirmation, stating that “the court handed” the note at issue “to defense counsel” and to the prosecution, and that counsel “had sufficient opportunity to give meaningful input” before the court responded. The trial judge also submitted an affirmation indicating that “it has always been, and continues to be, [his] practice to disclose all jury notes to trial counsel,” and he was “not aware of any case or instance where [he] did not follow this practice.” Notably, defendant’s appellate counsel—who was not his trial counsel—has never claimed that defendant’s trial counsel did not see the note at issue; on appeal, defendant claims only that the trial record does not affirmatively demonstrate *O’Rama* compliance. While these affirmations cannot be considered for their truth in this appeal, they demonstrate that the record could be readily reconstructed, even at this late stage.

[2010]). The majority retains jurisdiction under the guise of a speculative mode of proceedings error, even though the record does not conclusively establish that the error occurred, and in fact suggests that it did not. That result is fundamentally at odds with our preservation doctrine—an essential limit on this Court’s jurisdiction.

Employing reconstruction would also deter litigants from strategically claiming error on appeal based solely on a deficiency in the record rather than any real failure of meaningful notice. The majority’s blanket ban on reconstruction effectively mandates reversal where there is any ambiguity as to “meaningful notice,” even if the record indicates that no such error occurred. That rule, in essence, elevates the “technical defect of failing to make an adequate record” over the trial court’s meaningful notice obligation (*Parker*, 32 NY3d at 66 [DiFiore, Ch. J., dissenting]). And ironically, it “finds error in what may only be the court’s failure to record the absence of error” (*id.* at 66 n 2).

This Court, and apparently the lower courts, are now powerless to order reconstruction of the record in order to determine whether a mode of proceedings error actually occurred. Instead, the People will now have to determine whether to bring defendant to trial for a fourth time—this time, with 12-year-old evidence.

V.

Where the defense has notice of an outstanding jury note, counsel should be required to object in order to preserve defendant’s claim for appellate review. Under that rule, where the defense has not seen the note, and counsel therefore voices an objection, the parties will be given an opportunity to review the note’s contents. Conversely, where, as here, the record contains a reference to the note and defense counsel declines to object, we can safely assume the most obvious conclusion: that the parties, in fact, saw the note. In this way, a true notice-based rule will more effectively accomplish the result that the majority seeks: meaningful notice of the jury note.

The mode of proceedings doctrine, as defined by the majority, disregards our Court’s limited jurisdiction, encourages gamesmanship, and, most importantly, leads to unjust results. Once again, the majority prefers to wait for a legislative fix for a problem of the Court’s own making (*see* n 2, *supra*). Until then, the hard lessons continue.

Judges RIVERA, STEIN, FAHEY and WILSON concur. Chief Judge DiFIORE dissents in an opinion, in which Judges GARCIA and FEINMAN concur in a separate dissenting opinion by Judge GARCIA.

Order affirmed, in a memorandum.

[109 NE3d 1116, 84 NYS3d 816]

In the Matter of the Arbitration between MICHELLE WIDRICK, Appellant, and MICHAEL CARPINELLI, as Sheriff of Lewis County, et al., Respondents.

Decided June 28, 2018

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 9, 2017. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Lewis County (Charles C. Merrell J.), which had denied respondents' motion to dismiss the petition and granted the petition to compel arbitration; (2) granted the motion; and (3) dismissed the petition.

Matter of Widrick (Carpinelli), 155 AD3d 1564, affirmed.

HEADNOTE

Arbitration — Collective Bargaining Agreement — Right to Demand Arbitration

An Appellate Division order granting respondents' motion to dismiss the petition seeking to compel arbitration was affirmed, where a reading of the collective bargaining agreement as a whole established the parties' plain and unambiguous intent to limit the right to demand arbitration to petitioner's union.

APPEARANCES OF COUNSEL

O'Hara, O'Connell & Ciotoli, Fayetteville (*Stephen Ciotoli* of counsel), for appellant.

The Law Firm of Frank W. Miller, PLLC, East Syracuse (*Frank W. Miller* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order af-

firmed, with costs. “Our reading of the collective bargaining agreement as a whole establishes the parties’ plain and unambiguous intent to limit the right to demand . . . arbitration to [petitioner’s union]” (*County of Westchester v Mahoney*, 56 NY2d 756, 758 [1982]).

Concur: Chief Judge DiFiore and Judges Stein, Garcia and Feinman. Judge Wilson dissents in an opinion in which Judges Rivera and Fahey concur.

WILSON, J. (dissenting). The majority interprets contractual language giving a fired employee the right to challenge that decision as granting that right to her labor union, not the employee. That is not what the language at issue here says.

Michelle Widrick worked as a dispatcher for the Lewis County Sheriff’s Office for 17 years. In August 2015, the Sheriff observed Ms. Widrick and a deputy exchange some papers in the parking lot. The papers were signed petitions nominating the Sheriff’s challenger in the upcoming Sheriff’s election. When the Sheriff confronted Ms. Widrick and the deputy, they expressed disbelief and frustration with the Sheriff’s questioning of their actions, said the papers related to personal, off-the-clock work, and refused to let the Sheriff see the documents. Several days later, the Sheriff sent Ms. Widrick a notice that she was under investigation and that a full and truthful account of the parking lot incident was a “condition of employment.” On the advice of counsel, Ms. Widrick submitted a sworn affidavit stating that the papers were signed petitions nominating another deputy as Sheriff. She also claimed the Sheriff had been watching them with binoculars and believed “[i]t was apparent from [the Sheriff’s] actions in confronting two department employees for speaking in a public parking lot in open view and broad daylight . . . that [he] suspected [they] were discussing matters related to the Sheriff’s election.”

On November 18, the Sheriff sent Ms. Widrick a letter notifying her that she was terminated for cause, because she had committed “serious acts of misconduct,” including “dishonesty” and “participating in political campaign activity while on duty.” In the notice, the Sheriff expressly stated, in accordance with Ms. Widrick’s collective bargaining agreement (CBA): “You are further advised that you must indicate in writing to the Sheriff, within five (5) work days after notification that this discharge action is being imposed, that you either exercise your rights under the grievance and arbitration process or rights provided under Section 75 [of the Civil Service Law].”

On November 29, Ms. Widrick sent an email to the Lewis County Attorney, in which she “exercise[d] [her] right to grieve the termination of [her] employment pursuant to Article XXIII, section (2) (B) of the collective bargaining agreement.” On November 30, Ms. Widrick’s attorney sent the County Attorney a letter requesting that she “contact the American Arbitration Association to initiate the process for appointing an arbitrator.” The Sheriff and County ignored Ms. Widrick’s communications, and on December 9, Ms. Widrick’s attorney sent another letter, stating that if the County did not respond by December 11, Ms. Widrick would “initiate an action in Lewis County Supreme Court to compel arbitration pursuant to CPLR § 7503.” The following day, the County sent Ms. Widrick a letter stating, “[p]ursuant to the terms of the [CBA], there is no recognized grievance filed and the County considers the matter closed.” Ms. Widrick’s union appears to have been completely uninvolved throughout this time.

Ms. Widrick then commenced this CPLR article 75 proceeding to compel arbitration. Respondents moved to dismiss the petition, on the grounds that Ms. Widrick could not demand arbitration under the CBA. Supreme Court denied respondents’ motion to dismiss the petition and granted Ms. Widrick’s petition to compel arbitration. The Appellate Division reversed, concluding that “[p]ursuant to the express terms of the collective bargaining agreement between petitioner’s union and the County of Lewis, only the union had the right to demand arbitration of a grievance arising from a dispute involving her employment. Here, the union made no demand for arbitration, and petitioner’s demand for arbitration had no legal effect” (155 AD3d 1564, 1564 [4th Dept 2017]). The majority agrees, but the CBA’s language does not.

Article IV of the CBA (“Grievances & Arbitration”) establishes the general grievance procedure available to “all employees.” Article IV, section 1 provides that the employee presenting the grievance has the “right to be represented at any and all stages *if the employee so chooses*” (emphasis added). Section 4 lays out the procedural requirements: an employee must attempt to resolve a dispute informally, and if the employee cannot resolve the dispute, he or she must present a written grievance to the department head. The department head must make a decision within 10 days and communicate it to the employee. Section 5 explains that “[s]hould the . . . decision not be acceptable to [the union], [the union] shall have the right . . . to proceed to

binding arbitration as conducted by PERB, the Public Employment Relations Board.” Section 5, therefore, does not bar an employee from seeking arbitration, but instead grants the union the right to proceed to arbitration if the union is dissatisfied with the result of the general grievance procedure—even if the employee is satisfied, because the result may have consequences for other union members.* That language facially grants the union a right to proceed, but does not purport to remove any right of an employee.

There are several provisions of the CBA that do grant an employee the power to elect arbitration. Article XXIII relates to “Discharge & Discipline,” and states that, if the employee is covered under section 75 of the Civil Service Law, “[a disciplinary action] may be processed either by the grievance and arbitration procedure[,] or by a hearing as provided by said Section of Civil Service law, *as such employee may elect*” (emphasis added). Although the employer must give notice of the reason for discipline to the employee, the Union Steward, and the Union President, it is the employee who “must indicate in writing . . . that *he/she elects* either to exercise *his/her rights* under the grievance, and arbitration procedure or the rights provided by Section 75” (emphasis added). Article IV, section 5, which provides for the union’s right to proceed to arbitration, could be read as applicable to grievances other than those related to discipline, which would harmonize the language from article XXIII with that in article IV.

The language of the CBA clearly grants the employee the right to elect arbitration. Even were the agreement ambiguous in that regard, it must be construed in favor of the employee’s right to demand arbitration. New York has established a policy favoring arbitration (*see Matter of Nationwide Gen. Ins. Co. v Investors Ins. Co. of Am.*, 37 NY2d 91, 95 [1975] [New York “favors and encourages arbitration as a means of conserving the time and resources of the courts and the contracting parties”]), and the CBA itself provides that “[i]n order to establish a more harmonious and cooperative relationship between the County . . . and its [p]ublic [e]mployees . . . [t]he provisions of this resolution shall be liberally construed.”

The majority’s contrary interpretation—that the CBA gives the right to proceed to arbitration *only* to the union—would

* That interpretation is consistent with other sections of article IV; for example, article IV, section 4 (A) provides that “[the union] has the right to file class action grievances on behalf of the employees”—a right not exclusive to the union.

mean that the employee could “elect” to exercise “his/her rights” only where the union agrees to arbitrate—a restriction that does not appear in the agreement. The employee may not know at the time of election whether the union will pursue arbitration, and therefore could not know the scope of “his/her rights” until it is too late. Further, the rights-granting language in the CBA treats the arbitration right and the Civil Service Law § 75 right in parallel, emphasizing the employee’s right to choose. Section 75 gives Ms. Widrick a set of statutory procedural protections to prevent her wrongful termination. The CBA gave Ms. Widrick the right to choose between a hearing under Civil Service Law § 75 and arbitration; she has now lost both. Extinguishing her statutory right through language giving employees the right to make *an election* between arbitration and a section 75 hearing will cause employees to avoid arbitration when the state and federal public policy favors it.

The majority cites to *County of Westchester v Mahoney* to support the conclusion that only the union has the right to demand arbitration (56 NY2d 756, 758 [1982] [holding that where the terms of an agreement express the “plain and unambiguous intent” to limit who may demand arbitration, a petitioner’s demand will have no legal effect]). But *County of Westchester* supports Ms. Widrick’s position, not the majority’s. There, the CBA was the fifth successive agreement in a series between the union and the community college. The first three agreements had stated that the step 3 grievance could be invoked by “either party.” When the college and union replaced the third CBA with the fourth, they simultaneously added arbitration as the step 3 remedy and struck the provision that “either party” could invoke step 3, replacing it so that only the “College or Union” could do so. In *County of Westchester*, the amendment expressly removed the employee’s right to initiate a step 3 grievance: “If the words ‘either party’ had remained, arbitration would have been available to the college or individual grievant, with such representation as he or she chose, and to the college or union for college-union grievances, i.e., nonindividual grievances” (84 AD2d 803, 804 [2d Dept 1981]). Here, there is no evidence of a bargained-for amendment to the CBA whose purpose was to remove an employee’s right to demand arbitration. Further, Ms. Widrick is covered by Civil Service Law § 75, whereas the plaintiff in *County of Westchester* was not. Interpreting the agreement in *County of Westchester* as not granting employees an arbitration right when they have no

statutory right is one thing; interpreting the CBA here to conclude that an employee electing arbitration instead of a statutory right subjects that election to the whim of the union is quite another.

Accordingly, I dissent.

[109 NE3d 1153, 84 NYS3d 853]

PAUL VISELLI et al., Appellants, v THE RIVERBAY CORPORATION,
Respondent.

Decided September 6, 2018

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 9, 2017. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Kenneth L. Thompson, J.; op 2015 NY Slip Op 32849[U] [2015]), which had granted defendant's motion for summary judgment dismissing the complaint.

While responding to a fire in defendant's apartment building, plaintiff firefighter allegedly slipped, fell and was injured on an unknown "wet" substance upon the painted concrete stairs of an internal, common stairwell. The Appellate Division determined that defendant established prima facie entitlement to summary judgment dismissing plaintiffs' claims for common-law negligence, as well as under General Municipal Law § 205-a.

Viselli v Riverbay Corp., 155 AD3d 439, modified.

HEADNOTE

Negligence — Injuries to Firefighters — Summary Judgment Motion

In an action to recover for injuries allegedly sustained by plaintiff firefighter while he was responding to a fire in defendant's apartment building, defendant's motion for summary judgment as to plaintiff's General Municipal Law § 205-a cause of action was denied. Defendant's submissions of a certificate of occupancy and an expert affidavit that did not sufficiently respond to plaintiff's section 205-a claim were insufficient, without more, to meet its prima facie burden as the party moving for summary judgment.

APPEARANCES OF COUNSEL

Sullivan Papain Block McGrath & Cannavo P.C., New York City (*Stephen C. Glasser* of counsel), for appellants.

Armienti, DeBellis, Guglielmo & Rhoden, LLP, New York City (*Vanessa M. Corchia* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, without costs, by denying defendant's motion for summary judgment as to the General Municipal Law § 205-a cause of action and, as so modified, affirmed. With respect to the General Municipal Law § 205-a cause of action, defendant's submissions of a certificate of occupancy and an expert affidavit that did not sufficiently respond to plaintiffs' General Municipal Law § 205-a claim were insufficient, without more, to meet its prima facie burden as the party moving for summary judgment (*see Powers v 31 E 31 LLC*, 24 NY3d 84, 93 [2014]). We have considered plaintiffs' remaining arguments and find them to be without merit.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[109 NE3d 1153, 84 NYS3d 853]

In the Matter of the Claim of MELODY WOHLFEIL, Respondent,
v SHAREL VENTURES, LLC, Respondent. WORKERS' COMPEN-
SATION BOARD, Appellant.

Decided September 6, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 16, 2017. The Appellate Division, with two Justices dissenting, (1) reversed a decision of the Workers' Compensation Board, which had affirmed the decision of a Workers' Compensation Law judge ruling that claimant sustained a permanent partial disability and a 75% loss of wage-earning capacity; and (2) remitted the matter to the Workers' Compensation Board for further proceedings not inconsistent with the Court's decision.

Matter of Wohlfeil v Sharel Ventures, LLC, 155 AD3d 1264, reversed.

HEADNOTE**Workers' Compensation — Extent of Disability — Permanent Partial Disability**

On the record, substantial evidence supported the determination of the Workers' Compensation Board that claimant had a permanent partial disability with a 75% loss of wage-earning capacity.

APPEARANCES OF COUNSEL

Barbara D. Underwood, Attorney General, Albany (Laura Etlinger and Andrew D. Bing of counsel), for appellant.

Habberfield Kaszycki, LLP, Buffalo (Melissa Habberfield of counsel), for Sharel Ventures, LLC, respondent.

Melvin Bressler, Pittsford, for Melody Wohlfeil, respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and decision of the Workers' Compensation Board reinstated. On this record, substantial evidence supports the Board's determination that claimant has a permanent partial disability with a 75% loss of wage-earning capacity (*see generally Matter of Zamora v New York Neurologic Assoc.*, 19 NY3d 186, 192-193 [2012]; *see also Matter of Burgos v Citywide Cent. Ins. Program*, 30 NY3d 990, 990-991 [2017]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[110 NE3d 503, 85 NYS3d 391]

In the Matter of NATASHA W., Respondent, v NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES et al., Appellants, et al., Respondent.

Argued May 1, 2018; decided June 14, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 1, 2016. The Appellate Division, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, New York County (Alice Schlesinger, J.), which had (1) granted a petition seeking to, among other things,

amend and seal an indicated report of child maltreatment by petitioner, to the extent of annulling the report and the determination of an administrative law judge, which had denied petitioner's request; and (2) remanded the matter to respondents for further proceedings.

Matter of Natasha W. v New York State Off. of Children & Family Servs., 145 AD3d 401, reversed.

HEADNOTE

Social Services — Register of Child Abuse and Maltreatment — Using Child in Shoplifting Scheme

In a CPLR article 78 proceeding seeking to amend and seal an indicated report of child maltreatment by petitioner for using her child as a pawn in a shoplifting scheme, the administrative law judge's conclusions that petitioner's child was placed in imminent risk of impairment, constituting maltreatment, and that petitioner's actions were reasonably related to employment in the childcare field were rational (*see* Social Services Law §§ 412 [2] [a]; 422 [8] [a] [ii]). The act in question, using the child as a pawn in a shoplifting scheme, was sufficiently egregious so as to create an imminent risk of physical, mental, and emotional harm to the child. There is imminent potential for physical confrontation during a theft from a department store monitored by security. Under the circumstances presented here, utilizing a child to commit a crime and teaching a child that such behavior is acceptable must have an immediate impact on that child's emotional and mental well-being, particularly where, as here, the child is young and just learning to differentiate between right and wrong. Likewise, the administrative law judge rationally concluded that petitioner's actions were reasonably related to employment in the childcare field as a matter of common sense.

APPEARANCES OF COUNSEL

Barbara D. Underwood, Attorney General, New York City (*Matthew W. Grieco* and *Anisha S. Dasgupta* of counsel), for appellants.

Paul, Weiss, Rifkind, Wharton & Garrison LLP, New York City (*Audra J. Soloway, Adam J. Bernstein, Kimberly A. Francis, Sierra A.Y. Robart* and *Christopher H. Trivisonno* of counsel), for respondent Natasha W.

NYU Family Defense Clinic, Washington Square Legal Services, New York City (*Christine Gottlieb* and *Martin Guggenheim* of counsel), for NYU Family Defense Clinic and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, and the petition dismissed. Contrary to petitioner's contention, this Court has jurisdiction over this appeal

inasmuch as the dual dissent at the Appellate Division is on a question of law (*see* CPLR 5601 [a]; *see also* *Matter of Kelly v Safir*, 96 NY2d 32, 38 [2001]). On the merits, “[i]n reviewing an administrative agency determination, [courts] must ascertain whether there is a rational basis for the action in question or whether it is arbitrary and capricious” (*Matter of Peckham v Calogero*, 12 NY3d 424, 431 [2009] [internal quotation marks omitted]). “Arbitrary action is without sound basis in reason and is generally taken without regard to the facts” (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 231 [1974]). “If the [reviewing] court finds that the determination is supported by a rational basis, [then] it must sustain the determination even if the [reviewing] court concludes that it would have reached a different result than the one reached by the agency” (*Peckham*, 12 NY3d at 431).

On this record, it was rational for the Administrative Law Judge to have concluded that the child was placed in imminent risk of impairment, constituting maltreatment (*see* Social Services Law § 412 [2] [a]; Family Ct Act § 1012 [f] [I] [B]; 18 NYCRR 432.1 [b]; *see also* *Nicholson v Scoppetta*, 3 NY3d 357, 368 [2004]), and that petitioner’s actions are reasonably related to employment in the childcare field (*see* Social Services Law § 422 [8] [a] [ii]). The act in question—specifically, using the child as a pawn in a shoplifting scheme—“was sufficiently egregious so as to create an imminent risk of physical, mental[,] and emotional harm to the child” (*Matter of Natasha W. v New York State Off. of Children & Family Servs.*, 145 AD3d 401, 411 [1st Dept 2016, Tom, J.P., and Manzanet-Daniels, J., dissenting]). There is imminent potential for physical confrontation during a theft from a department store monitored by security. Moreover, we agree with the dissenters at the Appellate Division that, under the circumstances presented here, “utilizing a child to commit a crime and teaching a child that such behavior is acceptable must have an immediate impact on that child’s emotional and mental well-being,” particularly where, as here, the child is “young [and] just learning to differentiate between right and wrong” (*id.* at 418). Likewise, the Administrative Law Judge rationally concluded that petitioner’s actions are reasonably related to employment in the childcare field “[a]s a matter of common sense” (*id.* at 419).

WILSON, J. (dissenting). Natasha W., the single mother of a five year old, lived with her parents, had earned an Associate’s

degree, and was continuing at a well-regarded four-year college to earn a Bachelor's degree in Early Childhood Education. One day, inexplicably, she took her son to Bloomingdale's, outfitted him and herself in clothes (with a few cellphone cases hidden therein), and was arrested for attempted shoplifting. She had no prior involvement with the criminal justice system or child welfare services. Store security detained her, and her sister picked up the child. Store security personnel reported that the child was "not at all distraught" and was "interacting normally." The store kindly provided him a pair of new shoes to wear home, gratis.

Natasha W.'s shoplifting charge was resolved by an adjournment in contemplation of dismissal, meaning she would have no criminal record. However, after a call from a police officer regarding Natasha's arrest, the Statewide Central Register of Child Abuse and Maltreatment (Child Abuse Register) referred the case to the local child protective agency, the New York City Administration for Children's Services (ACS), which conducted a two-month-long investigation to determine whether her child was at risk from the shoplifting incident. ACS interviewed Natasha W., her parents and her sisters, all of whom said that Natasha W. had not done anything like this before and that her son was well-cared-for and well-adjusted. ACS also interviewed the social worker at the child's elementary school, who reported that she never observed anything concerning regarding the child. Based on its investigation, ACS found that the child was *not* "likely to be in immediate or impending danger of serious harm," and that no "Safety Plan/Controlling Interventions [were] necessary." Paradoxically, ACS marked its report as "indicated," meaning that evidence supported the conclusion that Natasha W. had maltreated her child. The immediate consequence to Natasha W. from that "indication" is that her name has been added to the Child Abuse Register, so that prospective employers in the occupation for which she has educated herself will be informed that she is unfit to work with children.

Natasha W. brought an administrative appeal, heard by an ALJ, to annul the "indicated" designation. The ALJ denied her appeal, holding as follows:

"Exploitation of a child to commit a crime, as well as teaching a child how to commit a crime, rises to . . . a level of outrageous behavior . . . [and] creates an imminent risk to the child's emotional

condition in that [Natasha W.'s child] will not control his impulses, and will proceed from accompanying his mother in shoplifting to doing it on his own. . . .

“Such maltreatment is found to be currently relevant and reasonably related to childcare employment, the adoption of a child or the provision of foster care.”

On Natasha W.'s CPLR article 78 proceeding to vacate the administrative decision, Supreme Court rejected, as totally lacking in evidence, ACS's conclusion that the shoplifting incident would doom the child to a life of crime, aptly characterizing ACS's decision as “nothing but an offensive rendition of the adage that ‘the apple does not fall far from the tree.’” The Appellate Division affirmed.

The majority now reverses the decision of both lower courts, claiming those courts violated the governing standard of review, namely:

“‘[I]n reviewing an administrative agency determination, [courts] must ascertain whether there is a rational basis for the action in question or whether it is arbitrary and capricious’ (*Matter of Peckham v Calogero*, 12 NY3d 424, 431 [2009] [internal quotation marks omitted]). ‘Arbitrary action is without sound basis in reason and is generally taken without regard to the facts’ (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 231 [1974])” (majority mem at 984).

Even the oracle of Delphi would demur at the ALJ's prediction that this five-year-old child is destined for a life of crime, and Natasha W. is therefore unfit to pursue a career in elementary education or child care. Those predictions are based on no facts specific to this family, but on a per se rule that children whose parents involve them in a shoplifting attempt will grow up to be criminals, and parents who involve their children in shoplifting should be listed in the Child Abuse Register. Indeed, the facts found by ACS undercut any such prediction: Natasha W.'s child is well-adjusted and Natasha W. and other relatives with whom the child lives are caring, attentive and responsible. A reader of ACS's report would most likely think the “indicated” designation was a clerical error. Where is the “sound basis in reason?”

I

Social Services Law § 412 (2) (a) provides that, for purposes of placement of a responsible adult on the Child Abuse Register, a “‘maltreated child’ includes a child under eighteen years of age . . . defined as a neglected child by the family court act.” Thus, upholding the Office of Children and Family Services’ (OCFS) placement of Natasha W. on the Child Abuse Register and upholding ACS’s “indicated” entry requires that Natasha W.’s child meet the definition of a “neglected child” in Family Court Act § 1012 (f) (I) (B):

“(f) ‘Neglected child’ means a child less than eighteen years of age

“(I) whose physical, mental or emotional condition has been impaired or is in imminent danger of becoming impaired as a result of the failure of his parent or other person legally responsible for his care to exercise a minimum degree of care

“(A) in supplying the child with adequate food, clothing, shelter or education in accordance with the provisions of part one of article sixty-five of the education law, or medical, dental, optometrical or surgical care, though financially able to do so or offered financial or other reasonable means to do so; or

“(B) in providing the child with proper supervision or guardianship, by unreasonably inflicting or allowing to be inflicted harm, or a substantial risk thereof, including the infliction of excessive corporal punishment; or by misusing a drug or drugs; or by misusing alcoholic beverages to the extent that he loses self-control of his actions; or by any other acts of a similarly serious nature requiring the aid of the court”

ACS concedes Natasha W.’s child has no physical, mental or emotional impairment, either as a result of the shoplifting episode or otherwise. ACS’s determination, as evidenced by the ALJ’s decision, is that her child is “in imminent danger of becoming impaired.” That rationale suffers from numerous insuperable defects.

First, ACS and the majority have read “imminent” out of the statute. “Imminent” means “Of an event . . . (almost always of

evil or danger): Impending threateningly, hanging over one's head ready to befall or overtake one close at hand in its incidence coming on shortly" (Oxford English Dictionary [2018], imminent; see *Yaniveth R. v LTD Realty Co.*, 27 NY3d 186, 192 [2016] ["In the absence of a statutory definition, 'we construe words of ordinary import with their usual and commonly understood meaning, and in that connection have regarded dictionary definitions as useful guideposts in determining the meaning of a word or phrase'"]). As we said in *Nicholson v Scoppetta* (3 NY3d 357, 369 [2004]), our leading case on this subject, "Imminent danger . . . must be near or impending, not merely possible." ACS's own factual findings demonstrate that Natasha W.'s child faced no imminent impairment of any kind. When Natasha W. was detained, her child was not distraught. When later interviewed, he told the investigator that his mother was taken away because she had stolen, but denied that she had asked him to steal. He also said that he felt safe at home. Natasha's sister, who lives in the same building, reported that the child had enough to eat, and that she had never known Natasha W. to steal or to harm the child in any way. Natasha W.'s other sister, who picked up the child after the incident, said that she had no concerns about Natasha W.'s ability to take good care of him. A social worker at the child's school said that she was familiar with the child and that she had no concerns about him. Most tellingly, ACS's determination that the family needed no intervention or assistance of any kind necessarily means that the child was not in "imminent danger" of impairment—unless we think that ACS deliberately abandons children in imminent danger. ACS determined that Natasha W. and her child require no services, but still awarded a modern-day scarlet A.

Second, even if the ALJ had correctly determined that Natasha W.'s son was in imminent danger of impairment, it would then have to find that such impairment was the result of Natasha W.'s "failure . . . to exercise a minimum degree of care," which must fall into one of two categories: (A) inadequate "food, clothing, shelter or education" where the parent has the ability to provide such; or (B) not "providing the child with proper supervision or guardianship" including, "the infliction of excessive corporal punishment; or by misusing a drug or drugs; or by misusing alcoholic beverages to the extent that he loses self-control of his actions; or by any other acts of a similarly serious

nature requiring the aid of the court” (Family Ct Act § 1012 [f] [I] [A], [B]). Given ACS’s factual finding that the child was “clean, healthy and cared for,” and there was no suggestion, much less evidence, of drug or alcohol misuse, ACS must be relying on “any other acts of a similarly serious nature requiring the aid of the court.” Shoplifting is not remotely comparable to excessive corporal punishment or drug or alcohol abuse leading to loss of control. Furthermore, ACS’s determination that *no* court or agency intervention was needed means that Natasha W.’s situation fails the statutory mandate that the “other . . . serious” acts require the aid of the court.

Third, the majority’s affirmance of the ALJ’s prediction that, because Natasha W. shoplifted with her five year old, the child “will proceed from accompanying his mother in shoplifting to doing it on his own” creates a *per se* rule that a parent who engages in a crime (or, at least a crime as grave as attempting to shoplift boots and coats) with a young child has met the statutory definition of “neglect,” because the apple does not fall far from the tree (or, perhaps, because the sins of the mother are visited on the child), without regard to any facts concerning the prospect of impairment as to the child in question. That *per se* rule is not merely incompatible with the legislature’s requirement of “imminent” injury, but also with *Nicholson*.

On appeal, OCFS and the Child Abuse Register attempt to defend the ALJ’s determination on an additional ground not proposed by the ALJ: Natasha W.’s “actions placed [the child] in imminent danger of physical harm because any act of theft carries the risk of a violent confrontation or arrest.” Putting aside the fatal absence of any such argument, much less finding, in the ALJ’s decision, the facts here are all to the contrary: the store was a high-end department store with a professional and discreet security force; Natasha W. did not create any sort of disruption or confrontation when apprehended; and her child was picked up by her sister shortly thereafter. Frankly, the proposition that Bloomingdale’s security personnel might rough up a five year old is preposterous, and certainly has no support in the record. More importantly, OCFS’s rationale again creates a *per se* rule: “any act of theft carries the risk of violent confrontation,” so that—contrary to the statutory language and *Nicholson*—the facts are irrelevant.

The logical extension of the majority’s affirmance of the ALJ’s decision is boundless. If Natasha W.’s child is in imminent danger of growing up to be a shoplifter, and therefore “neglected,” what of a child whose parent exceeds the speed limit

with the child in the car,¹ or teaches the child to jaywalk?² I start to worry that, when watching Disney's Aladdin with my children, or reading them *Les Misérables*, I had better not opine that theft of bread by a starving person is morally acceptable, lest they be deemed neglected and I placed on the Child Abuse Register. If we do not rely on facts showing actual or imminent injury to a specific child, there is no principled basis to draw a line between Natasha W.'s case and any of the above. If we do rely on such facts, none supports ACS's determination in her case.

II

Amici, numerous nonprofit organizations sharing the legislature's dual concern for child welfare and family integrity, point out that, although this case does not involve proceedings to remove a child from a home on grounds of neglect, the definition of "maltreatment" in Social Services Law § 412 (which contains the procedures governing appearance in the Child Abuse Register) expressly includes the definition of a "neglected child" under the Family Court Act. Thus, although OCFS made no attempt to separate Natasha W. from her child, a finding of neglect is a basis for commencing such a proceeding. That observation demonstrates how fundamentally at odds today's brief memorandum decision is with *Nicholson*. There, we expressly noted that the legislature carefully circumscribed the definition of neglect because it was "‘deeply concerned’ that an imprecise definition of child neglect might result in ‘unwarranted state intervention into private family life’" (*Nicholson*, 3 NY3d at 368, quoting Besharov, Practice Commentaries, McKinney's Cons Laws of NY, Book 29A, Family Ct Act § 1012 at 320 [1999 ed]). We unanimously reemphasized that proposition a few months ago.

"Neglect findings cannot be casually issued, but require proof of actual or imminent harm to the child as a result of a parent's failure to exercise a minimum degree of care. "This prerequisite . . .

1. "From 2010 to 2015, 59,374 American lives were lost in crashes related to excessive speed" (Vision Zero Network, *National Speed Fatality Map Highlights Tragic Losses*, available at <https://visionzeronetwork.org/resources/speed-fatality-map/>).

2. Jaywalking is a leading cause of pedestrian accidents among children (*Most children struck by cars due to jaywalking, darting into street*, LA Times, Oct. 19, 2012, available at <http://articles.latimes.com/2012/oct/19/news/la-heb-children-struck-by-cars-jaywalking-darting-into-street-20121019>).

ensures that the Family Court, in deciding whether to authorize state intervention, will focus on serious harm or potential harm to the child, not just on what might be deemed undesirable parental behavior' ” (*Matter of Jamie J. [Michelle E.C.]*, 30 NY3d 275, 284 [2017] [citations omitted], quoting *Nicholson*, 3 NY3d at 369).

Accordingly, I dissent.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents in an opinion.

Order reversed, without costs, and petition dismissed, in a memorandum.

[111 NE3d 307, 86 NYS3d 413]

In the Matter of WAYNE SPENCE, as President of the New York State Public Employees Federation, AFL-CIO, et al., Appellants, v NEW YORK STATE DEPARTMENT OF AGRICULTURE AND MARKETS et al., Respondents.

Decided September 18, 2018

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 26, 2017. The Appellate Division order, insofar as appealed from, modified, on the law, a judgment (denominated order) of the Supreme Court, Albany County (Judith A. Hard, J.; op 61 Misc 3d 337 [2016]), entered in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had (1) granted respondents' motion for summary judgment on the federal and state constitutional claims and the ultra vires cause of action (causes of action 1, 2, 4, 5, 7, 8, 10) and dismissed those causes of action; (2) granted respondents' motion to dismiss the CPLR article 78 proceeding on the remaining causes of action (causes of action 3, 6, 9, and to the extent applicable 10); and (3) dismissed the petition in its entirety. The modification consisted of declaring that the outside activities policy of respondent Department of Agriculture and Markets has not been

shown to be unconstitutional. The Appellate Division affirmed the judgment as modified.

Matter of Spence v New York State Dept. of Agric. & Mkts., 154 AD3d 1234, affirmed.

HEADNOTE

Public Officers — Conflicts of Interest — State Agency's Outside Activities Policy

The challenged policy prohibiting employees responsible for inspection of regulated entities from campaigning for or holding elected office was not shown to be unconstitutional.

APPEARANCES OF COUNSEL

Edward J. Aluck, New York State Public Employees Federation, AFL-CIO, Albany (Jessica C. Caggiano of counsel), for appellants.

Barbara D. Underwood, Attorney General, Albany (Jonathan D. Hitsous, Andrew D. Bing and Victor Paladino of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, affirmed, without costs. The challenged policy has not been shown to be unconstitutional (*see Civil Service Comm'n v Letter Carriers*, 413 US 548, 564 [1973]; *see also United States v Treasury Employees*, 513 US 454, 467 [1995]).

Concur: Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman. Judge Rivera dissents in an opinion. Judge Wilson dissents in a separate dissenting opinion.

RIVERA, J. (dissenting). I would reverse and remand to the Appellate Division for consideration of the claims raised herein as it appears its decision may be based on an erroneous legal standard. As discussed in Judge Wilson's thoughtful dissent, petitioners raise important questions of constitutional rights that should be fully considered by the Appellate Division in the first instance.

Respondents New York State Department of Agriculture and Markets and its Commissioner denied the requests to run for county legislator of two state dairy products specialists, petitioners Gregory Kulzer and Ronald Brown. Petitioners, along with their union, New York State Public Employees Federation (AFL-CIO), and its president, Wayne Spence, filed

this hybrid declaratory judgment action/CPLR article 78 proceeding challenging the constitutionality of those individual determinations and the Department’s revised policy prohibiting employees responsible for inspection of regulated entities—like Kulzer and Brown—from campaigning for or holding elected office. Supreme Court (61 Misc 3d 337 [Sup Ct, Albany County 2016]) and the Appellate Division (154 AD3d 1234 [3d Dept 2017]) both rejected petitioners’ constitutional arguments.*

In *United States v Treasury Employees* (513 US 454, 466-468 and n 11 [1995]), the United States Supreme Court clarified that a heightened standard, one less deferential to government than the test established in *Pickering v Board of Ed. of Township High School Dist. 205, Will Cty.* (391 US 563 [1968]) applies to public employee First Amendment challenges involving a generally applicable law. In *Janus v State, County, and Municipal Employees* (585 US —, 138 S Ct 2448 [2018]), the Court reaffirmed that across-the-board limitations on public employee speech are subject to considerably greater and critical examination. The Court explained:

“A speech-restrictive law with ‘widespread impact,’ we have said, ‘gives rise to far more serious concerns than could any single supervisory decision.’ Therefore, when such a law is at issue, the government must shoulder a correspondingly ‘heav[ier]’ burden, and is entitled to considerably less deference in its assessment that a predicted harm justifies a particular impingement on First Amendment rights. The end product of those adjustments is a test that more closely resembles exacting scrutiny than the traditional *Pickering* analysis.” (585 US at —, 138 S Ct at 2472 [citations omitted], quoting *Treasury Employees*, 513 US at 466, 468.)

The Appellate Division resolved petitioners’ appeal before *Janus* was decided, and the opinion below relies expressly on

* The Appellate Division treated as abandoned petitioners’ state constitutional claims and limited its decision to the First Amendment challenge. On appeal to this Court, petitioners assert both federal and state constitutional claims (letter brief for petitioners-appellants, dated Apr. 11, 2018 at 4-5), but note that “most courts simply conduct the First Amendment analysis and dispense with all free speech claims accordingly” (*id.* at 6 n 3). Since I conclude that the matter should be remanded for further consideration, I do not address whether, assuming the Department’s policy survives scrutiny under the proper federal legal standard, our State Constitution’s more expansive free speech protections would result in a different outcome.

Pickering for its conclusion that petitioners failed to establish the unconstitutionality of the Department's policy, without reference to the exacting scrutiny required by *Treasury Employees*. In fact, *Treasury Employees* is cited once without discussion or elaboration, as part of a "see generally" string citation at the end of the Court's analysis (*Matter of Spence v New York State Dept. of Agric. & Mkts.*, 154 AD3d 1234, 1238 [3d Dept 2017]). It is therefore unclear whether the Appellate Division applied the proper standard to petitioners' claims. Accordingly, I would remand to the Appellate Division so that it may consider under the standard in *Treasury Employees*, and with the benefit of the Supreme Court's directive in *Janus* that courts apply "exacting scrutiny" to widespread legislative limits on public employee speech, whether the Department here sustained its heavy burden, and whether its policy is entitled to the less deferential standard afforded laws passed by the legislature.

For the reasons discussed above and in Judge Wilson's dissent, recent Supreme Court decisions are relevant to the analysis of petitioners' constitutional claims. I would remand for consideration of these decisions and therefore dissent.

WILSON, J. (dissenting). For the past 34 years, Gregory Kulzer has worked for the Department of Agriculture and Markets as a dairy products specialist, responsible for inspecting milk plants to ensure the quality and safety of milk, cheese, butter and yogurt we consume. In 2013, Mr. Kulzer decided he would like to serve as a local legislator in Lewis County. He submitted an outside activity request to the Department, which approved his request. Mr. Kulzer, a registered Republican, was elected to a two-year term later that year. When, as the Department annually required, Mr. Kulzer renewed his outside activity request in 2014, the Department denied it "based upon a conflict of interest and/or an appearance of a conflict of interest pursuant to . . . Public Officers Law § 74." On April 6, 2015, the Department revised its Employee Policies Handbook to include a revised "Political Activities" policy. As part of the policy, "[a]ny employee that holds a position that requires him or her to conduct inspections of regulated parties may not campaign for or hold elected office (e.g., County Legislator)."

The First Amendment protects campaigning for elected office (see *Castine v Zurlo*, 756 F3d 171, 176 [2d Cir 2014]). The United States Supreme Court has recognized the importance of the Constitution's protections for political participation (see

Williams v Rhodes, 393 US 23, 32 [1968] [“Competition in ideas and governmental policies is at the core of our electoral process and of the First Amendment freedoms”]; *Illinois Bd. of Elections v Socialist Workers Party*, 440 US 173, 184 [1979] [“By limiting the choices available to voters, the State impairs the voters’ ability to express their political preferences. And for reasons too self-evident to warrant amplification here, we have often reiterated that voting is of the most fundamental significance under our constitutional structure”]. Government employees do not “relinquish[] the First Amendment rights they would otherwise enjoy as citizens to comment on matters of public interest” upon entering public service (*United States v Treasury Employees*, 513 US 454, 465 [1995] [internal quotation marks omitted], quoting *Pickering v Board of Ed. of Township High School Dist. 205, Will Cty.*, 391 US 563, 568 [1968]). I believe the majority fully agrees with the above.

Determining the validity of a restraint on speech by public employees requires a “balance between the interests of the [employee], as a citizen, in commenting upon matters of public concern and the interest of the State, as an employer, in promoting the efficiency of the public services it performs through its employees” (*Pickering*, 391 US at 568). Here, the Department’s outside activities policy is categorical and prophylactic, not individual and post hoc; that is, the policy “chills potential speech before it happens” (*Treasury Employees*, 513 US at 468). As such,

“the Government’s burden is greater with respect to this [type of] statutory restriction on expression than with respect to an isolated disciplinary action. The Government must show that the interests of both potential audiences and a vast group of present and future employees in a broad range of present and future expression are outweighed by that expression’s ‘necessary impact on the actual operation’ of the Government” (*id.*).¹

1. The Department claims that Mr. Kulzer, though citing *Pickering*, did not cite *Treasury Employees*, and therefore did not preserve any argument that *Treasury Employees* imposes a heightened level of scrutiny for restrictions on speech of government employees that have a potential to chill expression. We must follow binding precedent even if the parties do not mention it; indeed, “we [cannot] ignore binding Supreme Court precedent simply because the parties purportedly ‘agree’ that we should—even if applying the wrong law would somehow produce the right result.” (*Paramount Pictures Corp. v Allianz Risk Transfer AG*, 31 NY3d 64, 69 n 3 [2018].)

The majority cites to *Treasury Employees* but fails to engage with its “heavy” burden at all (*id.* at 466).

To be sure, the United States Supreme Court has upheld similar restraints imposed by the Hatch Act (*see Public Workers v Mitchell*, 330 US 75 [1947]; *Civil Service Comm’n v Letter Carriers*, 413 US 548 [1973]). The majority appears to take the results from those cases as outcome-determinative here, but it is their analytical method—not their result—that pertains. The rule set out in those cases—as well as in long-standing Supreme Court doctrine concerning impingement of First Amendment rights² involves a balancing of the degree of impingement against the particular interest the government seeks to address through the restrictions. Congress’ purposes underlying the Hatch Act are very different from those underlying the Department’s policy here. The constitutionally required balance must be performed with the Department’s purposes in mind, and the restrictions—though sufficiently narrowly tailored to address Congress’ Hatch Act concerns—are not narrowly tailored as to the Department’s.

Mitchell and *Letter Carriers* upheld restrictions contained in the Hatch Act.³ The policy goals underlying the Hatch Act, as identified by the United States Supreme Court, were “an efficient government, faithful to the Congress rather than to party”; “avoiding the danger of a powerful political machine” because of “the large and growing federal bureaucracy and its partisan potential”; and “ensuring that employees achieve advancement on their merits and that they be free from both coercion and the prospect of favor from political activity” (*see Magill v Lynch*, 560 F2d 22, 27-28 [1st Cir 1977] [discussing *Letter Carriers*]). “[T]he Supreme Court stressed on almost every page of the *Letter Carriers* opinion that the central purpose of the Hatch Act was to prevent the corruption of federal employment by political party activity” (*Blaylock v United States Merit Sys. Protection Bd.*, 851 F2d 1348, 1353 [11th Cir 1988]). The Supreme Court later distinguished the Hatch Act from other restrictions, noting that the Hatch Act “aimed to protect employees’ rights, notably their right to free

2. *See Thornhill v Alabama*, 310 US 88, 96 (1940); *NAACP v Button*, 371 US 415, 438 (1963); *Broadrick v Oklahoma*, 413 US 601, 611 (1973); *Pickering*, 391 US at 568.

3. I assume the continuing validity of the Hatch Act cases as controlling federal constitutional law. No challenge under New York’s Constitution is made here.

expression, rather than to restrict those rights” (*Treasury Employees*, 513 US at 471 [emphasis omitted]).

The Department’s rule in this case is motivated by quite dissimilar concerns. The Department has consistently asserted that the justification for its outside activities policy is eliminating the risk of actual or apparent conflicts of interest. The Department has never suggested that elimination of partisan political influence or the fear of partisan takeover of the Department of Agriculture and Markets makes up any part of the Department’s motivation for its policy, nor is there any support in the record for such a contention. Indeed, the Department has asserted that partisanship is irrelevant to the concerns motivating its restraints on speech, insisting that its “concern exists regardless of whether the employee is running for the county legislature, a school board, or any other publicly elected position.” (Even if the Department were genuinely concerned about a partisan takeover of milk inspection, or New York agriculture more generally, its policy applies to partisan and nonpartisan elections alike, rendering it overbroad.)

Here, because of “the absence of substantial party involvement . . . the interests identified by the *Letter Carriers* Court lose much of their force” (*Magill*, 560 F2d at 29; see also *Treasury Employees*, 513 US at 471 [“Unlike partisan political activity, however, honoraria hardly appear to threaten employees’ morale or liberty”]). Thus, the fact that Mr. Kulzer won a partisan election is of no moment. It is not the partisan/nonpartisan nature of the office sought that brings this case outside the realm of *Letter Carriers* and *Mitchell*. It is that the government’s *justification* in those cases relied on partisanship, which concern is concededly absent here.

So long as the Department’s rationale is not pretextual, we must consider the justification advanced by the Department at the time of the policy’s enactment—not any different post hoc justification (though none is offered here) (see e.g. *Wallace v Jaffree*, 472 US 38, 57 [1985] [rejecting post hoc secular justifications for an Alabama statute authorizing moments of silence in schools, where the legislative history clearly indicated that the goal was non-secular—a “return (to) voluntary prayer”]). Merely because Congress had a sufficient legislative purpose in 1939 to justify the Hatch Act’s restrictions does not mean that any other governmental entity can lawfully impose identical restrictions on speech, irrespective of whether that governmental entity has a completely different purpose, no purpose, or an invidious purpose.

As the Court recognized in *Treasury Employees*, avoiding the appearance of impropriety can be a legitimate government interest. However, legitimate interests alone do not make a rule constitutional: “Our cases do not support the notion that the bare assertion of a laudable purpose justifies wide-ranging intrusions on First Amendment liberties” (*Treasury Employees* at 483 [O’Connor, J., concurring in part, dissenting in part]).

“[W]hen the Government defends a regulation on speech as a means to redress past harms or prevent anticipated harms, it must do more than simply ‘posit the existence of the disease sought to be cured.’ . . . It must demonstrate that the recited harms are *real, not merely conjectural*, and that the regulation will in fact alleviate these harms in a *direct and material way*.” (*Id.* at 475 [emphasis added], quoting *Turner Broadcasting System, Inc. v. FCC*, 512 US 622, 664 [1994]).

In *Treasury Employees*, the Court struck down the ban on executive branch employees receiving honoraria for speeches.⁴ In addressing the weight to give the government’s interest, the Court noted that the government relied “on limited evidence of actual or apparent impropriety by legislators and high-level executives” (*id.* at 472). In contrast, the Court upheld the provisions of the Hatch Act in *Letter Carriers* because Congress enacted them “only after canvassing nearly a century of concrete experience with the evils of the political spoils system” (*id.* at 483-484 [O’Connor, J., concurring in part, dissenting in part], citing *FCC v. League of Women Voters of Cal.*, 468 US 364, 401 n 27 [1984] [the Hatch Act “evolved over a century of governmental experience with less restrictive alternatives that proved to be inadequate to maintain the effective operation of government”]).

4. The plaintiffs in *Treasury Employees* (unions representing a class of executive branch employees below grade GS-16) challenged the broad application of the honoraria ban. The Court addressed the relief sought, and agreed with the government that the remedy should be limited to the *class* of employees before the Court, but disagreed that the Court should sever the legislation and hold it constitutional where a “nexus” exists between the speech and the speaker’s official duties, i.e., where it might be constitutional (see *Treasury Employees* at 478-479). The Court rejected the narrower application because of an “obligation to avoid judicial legislation”; instead, the Court agreed that the lower court “properly left to Congress the task of drafting a narrower statute” (*id.* at 479). Justice O’Connor, however, would have tailored the relief to “invalidation of the statute insofar as it applies to honoraria [received] for speech without nexus to Government employment” (*id.* at 485).

Here, the Department's posited justification was based on one incident—the circumstances of which are disputed—and has since resulted in a rule that restricts inspectors from campaigning for and holding a range of elected offices. The Department does not offer any additional evidence. In fact, in its Appellate Division briefing, the Department claimed that it “grounded its actions in the appearance of conflict,” and as such, “the Department did not need to identify a ‘real’ conflict with particularity.” To the contrary, “a ‘reasonable’ burden on expression requires a justification far stronger than mere speculation about serious harms” (*Treasury Employees*, 513 US at 475).

Additionally, it is important to note that the outside activities policy was created by the New York State Department of Agriculture and Markets; not Congress, not the New York State Legislature, not any legislative body. In *Treasury Employees*, the Court recognized: “We normally accord a stronger presumption of validity to a congressional judgment than to an individual executive’s disciplinary action” (513 US at 468; *see also Harman v City of New York*, 140 F3d 111, 122 n 5 [2d Cir 1998] [“executive orders such as those at issue here are entitled to less deference than legislative determinations such as the Hatch Act”]). *Mitchell* and *Letter Carriers* both emphasized the importance of Congress’ role in considering the public policies behind the Hatch Act (*see Mitchell*, 330 US at 99-100; *Letter Carriers*, 413 US at 556, 561-563). Here, a non-legislative body has adopted a broad speech restraint, concededly based on a single experience, amounting to a “bare assertion of a laudable purpose.”

But let us assume that the need to avoid conflicts and the appearance of conflicts is as great for milk inspectors or Lewis County legislators as it is for judges or state legislators. Even so, the Department’s restrictions are not narrowly tailored to serve that end; numerous less-restrictive alternatives are available. The narrow-tailoring analysis must be different for conflict-of-interest concerns than for the partisan takeover concerns, because a restriction’s breadth must depend on the harm to be avoided (*see Treasury Employees*, 513 US at 472 [“Instead of a concern about the ‘cumulative effect’ of a widespread practice that Congress deemed to ‘menace the integrity and the competency of the service,’ *Mitchell*, 330 U.S., at 103, the Government relies here on limited evidence of actual or apparent impropriety by legislators and high-level executives,

together with the purported administrative costs of avoiding or detecting lower level employees' violations of established policies").

Thus, because the Department's stated justification here is based on potential conflicts of interest, such conflicts could be—and routinely are—dealt with by recusal rules, such as those that apply to judges (*see e.g.* Judiciary Law §§ 14 [disqualification/recusal], 16-17 [part-time judges], 471 [judicial clerks]), or state legislators (*see e.g.* Rules of Senate of St of NY 2017-2018 rule X, § 1; Public Officers Law § 74). Persons violating those types of rules face disciplinary proceedings and criminal prosecution (for example, Sheldon Silver, the former Speaker of the State Assembly, and Dean Skelos, the former State Senate majority leader, were charged with corruption for engaging in bribery and conflicted transactions⁵). The partisan takeover concerns Congress addressed through the Hatch Act could not have been addressed by recusal rules, and perhaps not even by the threat of criminal prosecution, where the fear was control of the entire government by a single ruling party. Likewise, where avoidance of partisan takeover might justify a ban on campaigning for office, prohibiting a public employee from running for elective office, contingent upon resigning if elected, serves no purpose articulated by the Department.

The Department's policy is not a "reasonable response to the posited harms" (*Treasury Employees*, 513 US at 476). The policy does not provide a definition of elected office that would restrict the policy's scope, nor does it set out any exceptions or procedures for recusal. Instead, the Department nakedly asserts it could not tailor the rule more narrowly: "the Department reasonably determined that there was no way to remove the taint of dual office-holding" as "[a]ny inspectors who campaigned for elected office would be susceptible to claims that they were soliciting special favors from supporters." (Of course, the same would be true for judges or legislators.) The fact that the policy is limited to inspectors does not make the policy sufficiently tailored. The policy must be a reasonable response to the *legitimate government interest at stake*. In the context of the Hatch Act, the Supreme Court held that the law

5. See Vivian Wang, *Guilty, Again: Dean Skelos, Former Senate Leader, Is Convicted of Corruption in Retrial*, NY Times, July 17, 2018, available at <https://www.nytimes.com/2018/07/17/nyregion/dean-skelos-corruption-son-senate-ny.html>; Benjamin Weiser, *Sheldon Silver Is Convicted in 2nd Corruption Trial*, NY Times, May 11, 2018, available at <https://www.nytimes.com/2018/05/11/nyregion/sheldon-silver-retrial-guilty.html>.

was constitutional even when applied to a large number of federal employees, because it was based on the “conviction that the rapidly expanding Government work force should not be employed to build a powerful, invincible, and perhaps corrupt political machine” (*Letter Carriers*, 413 US at 565). Here, however, the Department’s posited interest is the potential for conflicts of interest, yet the restriction would prevent Mr. Kulzer from running for school board, water commissioner or dog catcher.

The “speculative benefits” of the Department’s outside activities policy “are not sufficient to justify this crudely crafted burden on [employees’] freedom to engage in expressive activities” (*see Treasury Employees*, 513 US at 477). The Department has, without the benefits of the legislative process, created a broad rule that impermissibly curtails First Amendment rights. Without analysis, the majority affirms simply because the Hatch Act is constitutional. Following the holding instead of the outcome of United States Supreme Court precedent requires us to determine that the Department’s rule is unconstitutional. Accordingly, I dissent.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(September 1, 2018 through September 30, 2018)

Hogan, Matter of, v Annucci	3d Dept: 162 AD3d 1418	9/11/18
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APPEALS WITHDRAWN AND DISCONTINUED

(September 1, 2018 through September 30, 2018)

Clause v Erie County Med. Ctr.	4th Dept: 160 AD3d 1435	9/12/18
Morgan Stanley Mtge. Loan Trust	1st Dept: 143 AD3d 1	9/10/18
2006-13ARX v Morgan Stanley		
Mtge. Capital Holdings LLC		

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2018 through September 30, 2018)

People v Alexander	4th Dept: 160 AD3d 1370 (Steuben)	denied 9/25/18 (Rivera, J.)
People v Anonymous	1st Dept: 163 AD3d 442 (NY)	denied 9/6/18 (Stein, J.)

People v Ariaspacho	2d Dept: 163 AD3d 845 (Queens)	denied 9/13/18 (Rivera, J.)
People v Ash	3d Dept: 162 AD3d 1318 (Saratoga)	denied 9/14/18 (DiFiore, Ch. J.)
People v Atkins	4th Dept: 162 AD3d 1729 (Onondaga)	denied 9/26/18 (Feinman, J.)
People v Austin	4th Dept: 162 AD3d 1574 (Erie)	denied 9/10/18 (DiFiore, Ch. J.)
People v Ball	2d Dept: 162 AD3d 680 (Queens)	denied 9/13/18 (Rivera, J.)
People v Barnett	2d Dept: 163 AD3d 700 (Westchester)	denied 9/21/18 (Fahey, J.)
People v Baynes	2d Dept: 162 AD3d 897 (Kings)	denied 9/28/18 (Wilson, J.)
People v Birth	App Term, 1st Dept: 60 Misc 3d 128(A) (Bronx)	denied 9/28/18 (Wilson, J.)
People v Bishop	4th Dept: 161 AD3d 1547 (Erie)	denied 9/11/18 (Stein, J.)
People v Boy Boy	3d Dept: 163 AD3d 1358 (Schenectady)	denied 9/20/18 (DiFiore, Ch. J.)
People v Brown	App Div, 2d Dept: 2018 NY Slip Op 78448(U) (Kings)	dismissed 9/25/18 (Fahey, J.)
People v Bucalo	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 130(A) (Suffolk)	denied 9/28/18 (DiFiore, Ch. J.)
People v Bucalo-Lingerfelt	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 130(A) (Suffolk)	denied 9/28/18 (DiFiore, Ch. J.)
People v Buchanan	3d Dept: 163 AD3d 1175 (Albany)	denied 9/20/18 (Rivera, J.)
People v Cabrera-Galdames	2d Dept: 163 AD3d 586 (Suffolk)	denied 9/21/18 (Fahey, J.)
People v Carston	3d Dept: 163 AD3d 1166 (Chemung)	denied 9/20/18 (Rivera, J.)
People v Castro	4th Dept: 162 AD3d 1753 (Niagara)	denied 9/4/18 (Stein, J.)
People v Chadick	4th Dept: 162 AD3d 1662 (Onondaga)	denied 9/12/18 (Wilson, J.)
People v Cheeseboro	4th Dept: 162 AD3d 1670 (Monroe)	denied 9/12/18 (DiFiore, Ch. J.)
People v Childs	1st Dept: 163 AD3d 416 (NY)	denied 9/21/18 (Fahey, J.)
People v Cole	3d Dept: 162 AD3d 1219 (Albany)	denied 9/12/18 (Feinman, J.)
People v Coleman	2d Dept: 162 AD3d 787 (Queens)	denied 9/18/18 (Wilson, J.)
People v Cook	1st Dept: 161 AD3d 708 (Bronx)	granted 9/25/18 (Rivera, J.)
People v Cotton	4th Dept: 162 AD3d 1638 (Monroe)	denied 9/11/18 (Feinman, J.)
People v Council	4th Dept: 162 AD3d 1533 (Monroe)	denied 9/26/18 (Feinman, J.)

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People v Credell	4th Dept: 161 AD3d 1563 (Jefferson)	denied 9/14/18 (Stein, J.)
People v Crochran	2d Dept: 164 AD3d 598 (Kings)	denied 9/27/18 (Rivera, J.)
People v Crumpler	4th Dept: 163 AD3d 1457 (Monroe)	denied 9/26/18 (Feinman, J.)
People v Curtis	4th Dept: 162 AD3d 1758 (Onondaga)	denied 9/4/18 (Stein, J.)
People v Deane	2d Dept: 161 AD3d 1004 (Kings)	denied 9/26/18 (Wilson, J.)
People v Dixon	2d Dept: 163 AD3d 988 (Queens)	denied 9/28/18 (Rivera, J.)
People v Draper	1st Dept: 160 AD3d 500 (NY)	denied 9/11/18 (Stein, J.)
People v Edwards	App Term, 1st Dept: 59 Misc 3d 148(A) (Bronx)	denied 9/26/18 (Wilson, J.)
People v Eight	App Div, 3d Dept: 2018 NY Slip Op 62330(U) (Schenectady)	denied reconsideration 9/13/18 (Rivera, J.)
People v Elliott	App Div, 1st Dept: 2018 NY Slip Op 74343(U) (NY)	denied 9/27/18 (Wilson, J.)
People v Ellis	1st Dept: 161 AD3d 539 (Bronx)	denied 9/26/18 (Wilson, J.)
People v Evelyn	2d Dept: 163 AD3d 715 (Queens)	denied 9/20/18 (DiFiore, Ch. J.)
People v Figueroa	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 133(A) (Westchester)	denied 9/21/18 (Fahey, J.)
People v Fish	App Term, 1st Dept: 60 Misc 3d 126(A) (NY)	denied 9/11/18 (DiFiore, Ch. J.)
People v Flax	4th Dept: 162 AD3d 1667 (Erie)	denied 9/27/18 (Wilson, J.)
People v Flinn	4th Dept: 162 AD3d 1761 (Niagara)	denied 9/6/18 (Stein, J.)
People v Frankie	4th Dept: 160 AD3d 1505 (Erie)	denied 9/26/18 (Feinman, J.)
People v G	3d Dept: 164 AD3d 957 (Schenectady)	denied 9/25/18 (Fahey, J.)
People v Gabbidon	2d Dept: 157 AD3d 964 (Dutchess)	denied 9/24/18 (Stein, J.)
People v Garcia (Frank)	App Div, 4th Dept, 6/18/18 (Monroe)	dismissed 9/12/18 (Rivera, J.)
People v Garcia (Joy)	3d Dept: 164 AD3d 958 (Schenectady)	denied 9/12/18 (Feinman, J.)
People v Gelling	4th Dept: 163 AD3d 1489 (Onondaga)	denied 9/28/18 (Rivera, J.)
People v Giddens	2d Dept: 163 AD3d 990 (Queens)	denied 9/17/18 (Stein, J.)
People v Gifford	3d Dept: 160 AD3d 1211 (Otsego)	denied 9/13/18 (Rivera, J.)

People v Gilcrease	County Ct, 7/12/18 (Erie)	denied 9/10/18 (DiFiore, Ch. J.)
People v Giuca	2d Dept: 158 AD3d 642 (Kings)	denied reconsideration 9/13/18 (Wilson, J.)
People v Green (Musin)	1st Dept: 162 AD3d 567 (NY)	denied 9/14/18 (DiFiore, Ch. J.)
People v Green (Nicole)	4th Dept: 160 AD3d 1422 (Genesee)	granted 9/18/18 (Wilson, J.)
People v "Green Eyes"	2d Dept: 162 AD3d 901 (Dutchess)	denied 9/12/18 (Rivera, J.)
People v Hamant	1st Dept: 162 AD3d 499 (NY)	denied 9/21/18 (Fahey, J.)
People v Hansson	3d Dept: 162 AD3d 1234 (Sullivan)	denied 9/7/18 (DiFiore, Ch. J.)
People v Harper	2d Dept: 163 AD3d 718 (Queens)	denied 9/28/18 (Rivera, J.)
People v Harris	2d Dept: 163 AD3d 588 (Kings)	denied 9/20/18 (Rivera, J.)
People v Henderson	4th Dept: 162 AD3d 1507 (Oswego)	denied 9/26/18 (Feinman, J.)
People v Henriquez	1st Dept: 162 AD3d 520 (NY)	denied 9/20/18 (Rivera, J.)
People v Hibbert	4th Dept: 160 AD3d 1505 (Monroe)	denied reconsideration 9/27/18 (Rivera, J.)
People v Hill (Quentin)	4th Dept: 162 AD3d 1762 (Erie)	denied 9/14/18 (DiFiore, Ch. J.)
People v Hill (Quinton)	4th Dept: 162 AD3d 1762 (Erie)	denied 9/14/18 (DiFiore, Ch. J.)
People v Holdby	4th Dept: 158 AD3d 1291 (Onondaga)	denied reconsideration 9/27/18 (Wilson, J.)
People v Hong Mo Lin	2d Dept: 163 AD3d 849 (Kings)	denied 9/21/18 (Fahey, J.)
People v Hoyle	2d Dept: 162 AD3d 901 (Dutchess)	denied 9/12/18 (Rivera, J.)
People v Hugginis	2d Dept: 163 AD3d 719 (Queens)	denied 9/21/18 (Fahey, J.)
People v Hurd	1st Dept: 162 AD3d 551 (NY)	denied 9/28/18 (Wilson, J.)
People v Ishtiaq	2d Dept: 162 AD3d 1067 (Queens)	denied 9/21/18 (Fahey, J.)
People v Jackson (Dominique)	2d Dept: 163 AD3d 995 (Queens)	denied 9/25/18 (Fahey, J.)
People v Jackson (Scott)	App Term, 1st Dept: 60 Misc 3d 129(A) (NY)	denied 9/6/18 (Stein, J.)
People v James	2d Dept: 164 AD3d 521 (Rockland)	denied 9/20/18 (Rivera, J.)

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People v Jasiewicz	3d Dept: 162 AD3d 1398 (Clinton)	denied 9/12/18 (Rivera, J.)
People v Jenkins	4th Dept: 159 AD3d 1419 (Erie)	denied reconsideration 9/13/18 (Rivera, J.)
People v Jeremiah	App Div, 3d Dept: 2018 NY Slip Op 75630(U) (Broome)	denied 9/20/18 (DiFiore, Ch. J.)
People v Jones (Monica)	App Term, 1st Dept: 60 Misc 3d 129(A) (NY)	denied 9/11/18 (Stein, J.)
People v Jones (Pedro)	2d Dept: 163 AD3d 996 (Suffolk)	denied 9/12/18 (Feinman, J.)
People v Joseph (Joel)	2d Dept: 161 AD3d 1104 (Queens)	denied 9/12/18 (Rivera, J.)
People v Joseph (Kerry)	2d Dept: 161 AD3d 1105 (Queens)	denied 9/12/18 (Rivera, J.)
People v Kaid	3d Dept: 163 AD3d 1151 (Chemung)	denied 9/20/18 (Fahey, J.)
People v Kajuan L.	2d Dept: 164 AD3d 523 (Queens)	denied 9/26/18 (Feinman, J.)
People v Knight	3d Dept: 164 AD3d 957 (Schenectady)	denied 9/25/18 (Fahey, J.)
People v Kuney	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 133(A) (Westchester)	denied 9/21/18 (Fahey, J.)
People v Kuzdzal	4th Dept: 163 AD3d 1439 (Erie)	denied 9/20/18 (Rivera, J.)
People v Lasher	4th Dept: 163 AD3d 1424 (Niagara)	denied 9/13/18 (Rivera, J.)
People v Lawson	2d Dept: 163 AD3d 996 (Queens)	denied 9/27/18 (Rivera, J.)
People v Lipton	2d Dept: 162 AD3d 1070 (Suffolk)	denied 9/21/18 (DiFiore, Ch. J.)
People v Lopez	1st Dept: 161 AD3d 698 (NY)	denied 9/5/18 (Stein, J.)
People v Lozada	1st Dept: 163 AD3d 424 (NY)	denied 9/6/18 (Stein, J.)
People v MacLeod	4th Dept: 162 AD3d 1751 (Niagara)	denied 9/13/18 (Rivera, J.)
People v Madera	3d Dept: 163 AD3d 1295 (Schenectady)	denied 9/28/18 (DiFiore, Ch. J.)
People v Malloy	App Div, 3d Dept: 2018 NY Slip Op 76308(U) (Albany)	denied 9/12/18 (Rivera, J.)
People v Mancha	2d Dept: 162 AD3d 903 (Kings)	denied 9/26/18 (Feinman, J.)
People v Martinez	1st Dept: 161 AD3d 593 (Bronx)	denied 9/26/18 (Wilson, J.)
People v Martinezdiaz	2d Dept: 162 AD3d 904 (Suffolk)	denied 9/14/18 (DiFiore, Ch. J.)
People v Masters	App Div, 3d Dept: 2018 NY Slip Op 76929(U) (Schenectady)	dismissed 9/21/18 (Fahey, J.)

People v Mattison	2d Dept: 162 AD3d 905 (Queens)	denied 9/12/18 (Rivera, J.)
People v McCain	App Term, 1st Dept: 60 Misc 3d 127(A), 2018 NY Slip Op 50929(U) (NY)	denied 9/12/18 (Rivera, J.)
People v McCloud	App Div, 1st Dept: 2018 NY Slip Op 63317(U) (NY)	dismissed 9/27/18 (Rivera, J.)
People v McWhite	2d Dept: 161 AD3d 1106 (Kings)	denied 9/18/18 (Wilson, J.)
People v Mills	App Div, 4th Dept: 2018 NY Slip Op 76536(U) (Genesee)	dismissed 9/10/18 (DiFiore, Ch. J.)
People v Mitchell	App Div, 2d Dept: 2018 NY Slip Op 76100(U) (Kings)	dismissed 9/28/18 (Wilson, J.)
People v Moore	4th Dept: 160 AD3d 1505 (Erie)	denied 9/26/18 (Feinman, J.)
People v Morgia	App Div, 4th Dept: 2018 NY Slip Op 76520(U) (Jefferson)	denied 9/27/18 (Rivera, J.)
People v Morisseau (Charlene)	App Div, 2d Dept: 2018 NY Slip Op 69229(U) (Westchester)	dismissed 9/17/18 (Garcia, J.)
People v Morisseau (Charlene)	App Div, 2d Dept: 2018 NY Slip Op 74857(U) (Westchester)	denied 9/17/18 (Garcia, J.)
People v Morris	App Div, 3d Dept: 2018 NY Slip Op 66888(U) (Albany)	denied reconsideration 9/20/18 (Fahey, J.)
People v Mosca	4th Dept: 162 AD3d 1759 (Herkimer)	denied 9/17/18 (Garcia, J.)
People v Moses	2d Dept: 161 AD3d 1106 (Queens)	denied 9/4/18 (Stein, J.)
People v Murphy	2d Dept: 162 AD3d 688 (Queens)	denied 9/14/18 (Stein, J.)
People v Musheyev	2d Dept: 162 AD3d 794 (Queens)	denied 9/25/18 (Fahey, J.)
People v Nieves	3d Dept: 163 AD3d 1359 (Schenectady)	denied 9/12/18 (Feinman, J.)
People v Novak	App Div, 3d Dept: 2018 NY Slip Op 78336(U) (Sullivan)	dismissed 9/28/18 (DiFiore, Ch. J.)
People v Oliveras-Arvelo	4th Dept: 162 AD3d 1760 (Erie)	denied 9/27/18 (DiFiore, Ch. J.)
People v Ornelas	4th Dept: 162 AD3d 1758 (Onondaga)	denied 9/4/18 (Stein, J.)
People v Ortizcora	2d Dept: 163 AD3d 1001 (Queens)	denied 9/14/18 (Rivera, J.)
People v Oshintayo	3d Dept: 163 AD3d 1353 (Broome)	denied 9/26/18 (Feinman, J.)
People v Paris	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 139(A) (Suffolk)	denied 9/28/18 (DiFiore, Ch. J.)
People v Parker (Latwoine)	1st Dept: 163 AD3d 440 (NY)	denied 9/21/18 (Fahey, J.)
People v Parker (Marquis)	4th Dept: 162 AD3d 1602 (Monroe)	denied 9/17/18 (Garcia, J.)

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People v Payne	2d Dept: 164 AD3d 699 (Kings)	denied 9/28/18 (Rivera, J.)
People v Peace	2d Dept: 161 AD3d 1197 (Queens)	denied 9/13/18 (Rivera, J.)
People v Perez	1st Dept: 162 AD3d 571 (NY)	denied 9/14/18 (DiFiore, Ch. J.)
People v Peterkin	4th Dept: 162 AD3d 1593 (Steuben)	denied 9/27/18 (Wilson, J.) (Appeal Nos. 1 and 2)
People v Phillips	App Div, 2d Dept: 2018 NY Slip Op 76639(U) (Queens)	dismissed 9/17/18 (Feinman, J.)
People v Pierre	3d Dept: 162 AD3d 1325 (Otsego)	denied 9/14/18 (Rivera, J.)
People v Pino	2d Dept: 162 AD3d 910 (Suffolk)	denied 9/13/18 (Rivera, J.)
People v Pruitt	App Div, 2d Dept: 2018 NY Slip Op 78714(U) (Queens)	dismissed 9/17/18 (Feinman, J.)
People v Richards	2d Dept: 162 AD3d 797 (Suffolk)	denied 9/12/18 (Feinman, J.)
People v Riley D.	County Ct, 7/19/18 (Onondaga)	denied 9/28/18 (Wilson, J.)
People v Rinaldi	App Term, 1st Dept: 59 Misc 3d 137(A) (NY)	denied reconsideration 9/25/18 (Fahey, J.)
People v Romero	App Div, 1st Dept: 2018 NY Slip Op 74187(U) (NY)	dismissed 9/21/18 (Fahey, J.)
People v Rooney	2d Dept: 163 AD3d 852 (Suffolk)	denied 9/17/18 (DiFiore, Ch. J.)
People v Rosales	2d Dept: 163 AD3d 853 (Suffolk)	denied 9/21/18 (Fahey, J.)
People v Rosendo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 131(A) (Richmond)	denied 9/12/18 (Feinman, J.)
People v Royal	3d Dept: 161 AD3d 1217 (Albany)	denied 9/12/18 (Wilson, J.)
People v Sanders	2d Dept: 162 AD3d 798 (Kings)	denied 9/26/18 (Wilson, J.)
People v Sankara	1st Dept: 157 AD3d 495 (NY)	denied reconsideration 9/6/18 (Stein, J.)
People v Santiago	1st Dept: 163 AD3d 440 (NY)	denied 9/17/18 (Garcia, J.)
People v Sawyer	2d Dept: 162 AD3d 1075 (Queens)	denied 9/20/18 (Fahey, J.)
People v Schaefer	3d Dept: 163 AD3d 1179 (Schoharie)	denied 9/6/18 (Stein, J.)
People v Science	3d Dept: 163 AD3d 1175 (Albany)	denied 9/20/18 (Rivera, J.)
People v Scientific	3d Dept: 163 AD3d 1175 (Albany)	denied 9/20/18 (Rivera, J.)

People v Scivolette	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 127(A) (Dutchess)	denied 9/21/18 (Fahey, J.)
People v Scott	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 128(A) (Kings)	denied 9/27/18 (Wilson, J.)
People v Shufelt	3d Dept: 161 AD3d 1451 (Franklin)	denied 9/12/18 (Rivera, J.)
People v Smith (Anthony)	1st Dept: 162 AD3d 494 (NY)	denied 9/17/18 (Garcia, J.)
People v Smith (Taurean)	4th Dept: 158 AD3d 1081 (Erie)	denied reconsideration 9/12/18 (Feinman, J.)
People v Sotiropoulos	2d Dept: 162 AD3d 1076 (Queens)	denied 9/12/18 (Feinman, J.)
People v Spitzer	2d Dept: 163 AD3d 591 (Kings)	denied 9/4/18 (Stein, J.)
People v Standsblack (Saul)	4th Dept: 162 AD3d 1523 (Genesee)	denied 9/13/18 (Rivera, J.) (Appeal No. 1)
People v Standsblack (Saul)	4th Dept: 162 AD3d 1528 (Genesee)	denied 9/13/18 (Rivera, J.) (Appeal No. 2)
People v Street	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 137(A) (Suffolk)	denied 9/11/18 (Feinman, J.)
People v Tebout	2d Dept: 162 AD3d 690 (Suffolk)	denied 9/26/18 (Feinman, J.)
People v Terborg (Jeffrey)	4th Dept: 162 AD3d 1468 (Monroe)	denied 9/12/18 (Feinman, J.)
People v Terborg (Jeffrey)	App Div, 4th Dept: 2018 NY Slip Op 73722(U) (Monroe)	dismissed 9/12/18 (Feinman, J.)
People v Terborg (Jeffrey)	App Div, 4th Dept: 2018 NY Slip Op 73721(U) (Monroe)	dismissed 9/13/18 (Feinman, J.)
People v Terborg (Jeffrey)	App Div, 4th Dept: 2018 NY Slip Op 73720(U) (Monroe)	dismissed 9/13/18 (Feinman, J.)
People v Thatcher	App Div, 2d Dept: 2018 NY Slip Op 76102(U) (Westchester)	dismissed 9/19/18 (Rivera, J.)
People v Thioubu	1st Dept: 161 AD3d 519 (NY)	denied 9/14/18 (Stein, J.)
People v Thompson	3d Dept: 159 AD3d 1281 (Essex)	denied 9/25/18 (Fahey, J.)
People v Thorsen (Timothy)	App Div, 3d Dept: 2018 NY Slip Op 75151(U) (Rensselaer)	dismissed 9/20/18 (DiFiore, Ch. J.)
People v Thorsen (Timothy)	App Div, 3d Dept: 2018 NY Slip Op 78333(U) (Rensselaer)	dismissed 9/20/18 (DiFiore, Ch. J.)
People v Troche	2d Dept: 159 AD3d 735 (Suffolk)	denied reconsideration 9/12/18 (Feinman, J.)
People v Umanzor	2d Dept: 162 AD3d 915 (Suffolk)	denied 9/12/18 (Rivera, J.)
People v Vargas	App Term, 2d Dept: 2d, 11th & 13th Jud Dists: 60 Misc 3d 131(A) (Queens)	denied 9/6/18 (Stein, J.)

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People v Virella	App Term, 1st Dept: 59 Misc 3d 143(A) (Bronx)	denied 9/12/18 (Wilson, J.)
People v Wagoner	App Div, 4th Dept: 2018 NY Slip Op 76544(U) (Cattaraugus)	denied 9/26/18 (Feinman, J.)
People v Walker	2d Dept: 162 AD3d 1080 (Nassau)	denied 9/21/18 (Fahey, J.)
People v Walton	App Term, 1st Dept: 60 Misc 3d 127(A) (NY)	denied 9/11/18 (Stein, J.)
People v Waters	App Div, 3d Dept: 2018 NY Slip Op 62330(U) (Schenectady)	denied reconsideration 9/13/18 (Rivera, J.)
People v Watson	2d Dept: 163 AD3d 855 (Richmond)	denied 9/6/18 (Feinman, J.)
People v Welch	2d Dept: 164 AD3d 529 (Kings)	denied 9/28/18 (Wilson, J.)
People v Wells	2d Dept: 161 AD3d 1200 (Richmond)	denied 9/20/18 (Rivera, J.)
People v West	2d Dept: 162 AD3d 694 (Kings)	denied 9/13/18 (Rivera, J.)
People v White	3d Dept: 163 AD3d 1358 (Schenectady)	denied 9/20/18 (DiFiore, Ch. J.)
People v Williams	3d Dept: 163 AD3d 1172 (Albany)	denied 9/12/18 (Stein, J.)
People v Wilson (Keith)	2d Dept: 164 AD3d 700 (Kings)	denied 9/28/18 (Rivera, J.)
People v Wilson (Mandel)	1st Dept: 158 AD3d 447 (NY)	denied reconsideration 9/17/18 (DiFiore, Ch. J.)
People v Woods	App Div, 3d Dept: 2018 NY Slip Op 78824(U) (Albany)	denied 9/26/18 (Feinman, J.)

[111 NE3d 321, 86 NYS3d 427]

AVRAHAM GOLD et al., Respondents, v NEW YORK LIFE INSURANCE Co. et al., Appellants.

Decided October 11, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 18, 2017. The Appellate Division order, with two Justices dissenting, insofar as appealed from, reversed, on the law, so much of an order of the Supreme Court, New York County (O. Peter Sherwood, J.; op 2015 NY Slip Op 31699[U] [2015]), as had granted defendants' motion to compel plaintiff Melek Kartal to arbitrate her claims.

The arbitration provision in plaintiff former insurance agent's contract with defendant insurance company and its related companies, which prohibited class, collective, or representative claims, was deemed unenforceable by the Appellate Division as violative of the National Labor Relations Act. Thus, under the terms of plaintiff's contract, the Appellate Division held that her class claim on the remaining first cause of action was to proceed in court rather than in arbitration.

Gold v New York Life Ins. Co., 153 AD3d 216, reversed.

HEADNOTE

Arbitration — Agreement to Arbitrate — Enforceability of Waiver of Class Action

An Appellate Division order denying the motion of defendant insurance company and its related companies to compel plaintiff former insurance agent to arbitrate her class claim was reversed, and defendants' motion granted. The arbitration clauses in plaintiff's agreements with defendants were enforceable.

APPEARANCES OF COUNSEL

Morgan, Lewis & Bockius LLP, Princeton, New Jersey (*Sean P. Lynch* of counsel), for appellants.

Sanford F. Young, P.C., New York City (*Sanford F. Young* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, without costs, and defendants' motion to compel plaintiff Melek Kartal to arbitrate granted. The parties now agree that the arbitration clauses in Kartal's agreements are enforceable (*see Epic Systems Corp. v Lewis*, 584 US —, 138 S Ct 1612 [2018]), and ask that we reverse.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[111 NE3d 322, 86 NYS3d 428]

MARIE BRADLEY, Individually and as Administratrix of the Estate of EDWARD BRADLEY, Deceased, Appellants, v HWA 1290 III LLC et al., Respondents.

Decided October 16, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 30, 2018. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Lucy Billings; op 2017 NY Slip Op 30596[U] [2017]), which had, insofar as appealed from as limited by the briefs, denied defendants' motion for summary judgment dismissing the Labor Law § 200 and common-law negligence claims; (2) granted the motion; and (3) dismissed the complaint.

Bradley v HWA 1290 III LLC, 157 AD3d 627, affirmed.

HEADNOTE**Labor — Safe Place to Work — Reliance on Industry Standards as Proof of Negligence**

In a wrongful death action arising from a workplace accident, the Appellate Division order granting defendants' motion for summary judgment dismissing the Labor Law § 200 and common-law negligence claims was affirmed. Although plaintiffs' reliance on American National Standards Institute standards was proper to the extent that a violation of those standards constitutes evidence of negligence, plaintiffs nevertheless failed to raise a triable question of fact as to whether defendants had either actual or constructive notice of the alleged dangerous condition.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (Brian J. Isaac of counsel), for appellants.

Sabatini & Associates, New York City (Richard J. Sabatini of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. To the extent that a violation of standards of the American National Standards Institute constitutes evidence of negligence (*see Sawyer v Dreis & Krump Mfg. Co.*, 67 NY2d 328 [1986]; *Trimarco v Klein*, 56 NY2d 98 [1982]), plaintiffs' reliance on those standards was proper. However, plaintiffs nevertheless failed to raise a triable question of fact as to whether defendants had either actual or constructive notice of the alleged dangerous condition.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Wilson and Feinman. Taking no part: Judge Garcia.

BANK OF AMERICA, N.A., Successor by Merger to BAC HOME LOANS SERVICING, L.P., Formerly Known as COUNTRYWIDE HOME LOANS SERVICING, L.P., Respondent, v YAFFA SNYDER, Also Known as JAFFA SNYDER, et al., Defendants, and SHAB-BIR MOHAMMAD, Appellant.

Submitted June 25, 2018; decided September 18, 2018

Reported below, 154 AD3d 671.

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

In the Matter of RAHDEE BENNETT, Appellant, v ANTHONY J. ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, et al., Respondents.

Submitted July 23, 2018; decided September 18, 2018

Reported below, 162 AD3d 765.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

In the Matter of the Claim of DAVID BRIAN BRASHER, Appellant, v SAM DELL'S DODGE CORPORATION et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (And Another Related Claim.)

Submitted July 30, 2018; decided September 18, 2018

Reported below, 159 AD3d 1234; 2018 NY Slip Op 75588(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the March 2018 Appellate Division order appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the June 2018 Appellate Division order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

KELLY COFFEY, Respondent, v CRP/EXTCELL PARCEL I, L.P., et al., Appellants, et al., Defendant.

Submitted July 16, 2018; decided September 18, 2018

Reported below, 161 AD3d 486.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of ELAINE DeVERA, Individually and as Parent and Guardian of M.F., an Infant, et al., Petitioners, and SUSANA TAVERAS, Individually and as Parent and Guardian of K.R.R., an Infant, et al., Respondents, v MARYELLEN ELIA, as Commissioner of Education, et al., Appellants.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 152 AD3d 13.

Motion by Joel Klein for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of ELAINE DeVERA, Individually and as Parent and Guardian of M.F., an Infant, et al., Petitioners, and SUSANA TAVERAS, Individually and as Parent and Guardian of K.R.R., an Infant, et al., Respondents, v MARYELLEN ELIA, as Commissioner of Education, et al., Appellants.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 152 AD3d 13.

Motion by Achievement First Brooklyn Charter Schools et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

LUISA C. ESPOSITO, Appellant, v ALLEN H. ISAAC et al., Respondents.

Submitted July 16, 2018; decided September 18, 2018

Reported below, 2018 NY Slip Op 60572(U).

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 1071 (2018)].

FENG LI et al., Appellants, v DIANA PENG, as Administratrix of the Estate of ALFRED PENG, Deceased, et al., Respondents.

Submitted July 16, 2018; decided September 18, 2018

Reported below, 161 AD3d 823.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of MIGUEL GONZALEZ, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 149 AD3d 256.

Motion by The Legal Aid Society et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JOHNATHAN JOHNSON, Appellant, v DONALD DAVID, an Attorney, Respondent.

Submitted July 30, 2018; decided September 18, 2018

Reported below, 2018 NY Slip Op 68635(U).

Motion for reargument denied [see 31 NY3d 1138 (2018)].
Motion for poor person relief dismissed as academic.

IN the Matter of NEW YORK CITY ASBESTOS LITIGATION. MARY JUNI, Individually and as Administratrix of the Estate of ARTHUR H. JUNI, Deceased, Appellant, v A.O. SMITH WATER PRODUCTS Co. et al., Defendants, and FORD MOTOR COMPANY, Respondent.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 148 AD3d 233.

Motion by John Henderson Duffus, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges GARCIA and FEINMAN taking no part.

OPTION ONE MORTGAGE, Plaintiff, v JOSE LUIS RODRIGUEZ-CARDONA, Appellant, et al., Defendants. 21ST MORTGAGE CORPORATION, Intervenor-Respondent.

Submitted July 23, 2018; decided September 18, 2018

Reported below, 153 AD3d 1422.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DORAN ALLEN, Respondent.

Submitted August 6, 2018; decided September 18, 2018

Reported below, 152 AD3d 401.

Motion to vacate this Court's May 17, 2018 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EMANUEL ALMONTE, Appellant.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 160 AD3d 594.

Motion for assignment of counsel granted and Justine M. Luongo, Esq., Attorney-in-Chief, Criminal Defense Practice, The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
BERREZUETA, Appellant.

Submitted July 23, 2018; decided September 18, 2018

Reported below, 55 Misc 3d 143(A), 2017 NY Slip Op 50633(U).

Motion for reargument denied [*see* 31 NY3d 1091 (2018)].
Motion to expand the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
BERREZUETA, Appellant.

Submitted August 13, 2018; decided September 18, 2018

Reported below, 55 Misc 3d 143(A), 2017 NY Slip Op 50633(U).

Motion by Gideon Yaffe et al. for leave to appear amici curiae
on the motion herein denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
BERREZUETA, Appellant.

Submitted August 13, 2018; decided September 18, 2018

Reported below, 55 Misc 3d 143(A), 2017 NY Slip Op 50633(U).

Motion by Ken Onion et al. for leave to file a brief amici curiae
on the motion herein denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAMIAN
JONES, Appellant.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 149 AD3d 407.

Motion by Center for Appellate Litigation et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLARENCE ROUSE, Appellant.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 159 AD3d 530.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAYLOR SUAZO, Appellant.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 146 AD3d 423.

Motion by The Bronx Defenders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS TAPIA, Appellant.

Submitted August 6, 2018; decided September 18, 2018

Reported below, 151 AD3d 437.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE TSINTZELIS, Appellant.

Submitted September 4, 2018; decided September 18, 2018

Reported below, 153 AD3d 558.

Motion for assignment of counsel granted and Justine M. Luongo, Esq., Attorney-in-Chief, Criminal Defense Practice, The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOSE RAMIREZ,
Appellant, v JOSEPH APONTE et al., Respondent.

Submitted August 13, 2018; decided September 18, 2018

Reported below, 2018 NY Slip Op 69274(U).

Motion for reconsideration of this Court's June 26, 2018 dismissal order denied [*see* 31 NY3d 1129 (2018)].

ANNA PEZHMAN, Appellant, v CHANEL et al., Respondents.

Submitted July 16, 2018; decided September 18, 2018

Reported below, 2018 NY Slip Op 75953(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of JOSE JOAQUIN RAMIREZ, Appellant, v GEORGE GRASSO, Respondent.

Submitted August 13, 2018; decided September 18, 2018

Reported below, 160 AD3d 572.

Motion for reconsideration of this Court's June 26, 2018 dismissal order denied [*see* 31 NY3d 1129 (2018)].

In the Matter of WALTER J. ROACHE, Appellant, v ANN MARIE T. SULLIVAN, Commissioner, Forensic Service, Office of Mental Health, Respondent.

Submitted August 20, 2018; decided September 18, 2018

Reported below, 2016 NY Slip Op 83590(U); 2016 NY Slip Op 76895(U).

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 1108 (2018)].

TOWN OF AURORA, a Municipal Corporation, Respondent, v VILLAGE OF EAST AURORA, a Municipal Corporation, Appellant.

Submitted September 10, 2018; decided September 18, 2018

Reported below, 149 AD3d 1506.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and the brief submitted in digital format within seven days.

In the Matter of the Arbitration between MICHELLE WIDRICK, Appellant, and MICHAEL CARPINELLI, as Sheriff of Lewis County, et al., Respondents.

Submitted August 6, 2018; decided September 18, 2018

Reported below, 155 AD3d 1564.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 32 NY3d 975 (2018)].

SHAHLA ZAR, Appellant, v NASSER YAGHOOBZAR, Respondent. (Matter No. 1.)

MATTER OF NASSER YAGHOOBZAR, Respondent, v SHAHLA ZAR, Appellant. (Matter No. 2.)

Submitted June 18, 2018; decided September 18, 2018

Reported below, 161 AD3d 815.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the consolidated action and proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
BAISLEY, Appellant.

Argued September 13, 2018; decided October 23, 2018

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Ninth and Tenth Judicial Districts, entered May 23, 2017. The Appellate Term (1) reversed, on the law, an order of the Justice Court of the Village of Goshen, Orange County (Rory K. Brady, J.), which had granted defendant's motion to dismiss the accusatory instrument; and (2) denied the motion.

People v Baisley, 55 Misc 3d 148(A), 2017 NY Slip Op 50709(U), affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Court of Appeals

Defendant's challenge to the authority of Justice Court over criminal charges arising from his noncompliance with a child support order was not properly before the Court of Appeals. The underlying support order was issued by Supreme Court in the context of defendant's contested matrimonial proceeding. Moreover, Supreme Court had constitutional authority to issue such an order (*see* NY Const, art VI, § 7; Family Ct Act § 114). As a consequence, the Court of Appeals had no occasion to opine on defendant's claim that, pursuant to the Family Court Act, Family Court has exclusive and continuing jurisdiction over any criminal charges based on violations of its own support order.

APPEARANCES OF COUNSEL

Richard L. Herzfeld, P.C., New York City (*Richard L. Herzfeld* of counsel), for appellant.

David M. Hoovler, District Attorney, Goshen (*Andrew R. Kass* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be affirmed.

Defendant's challenge to the authority of Justice Court over criminal charges arising from his noncompliance with a child support order is not properly before this Court. Contrary to the parties' mistaken representation below, the underlying support order was not issued by Family Court but by Supreme Court in the context of defendant's contested matrimonial proceeding.

As defendant concedes, Supreme Court has constitutional authority to issue such an order (*see* NY Const, art VI, § 7; Family Ct Act § 114; *see generally* Merrill Sobie, Practice Commentaries, McKinney's Cons Laws of NY, Family Ct Act § 411 ["Family Court is . . . powerless to determine those issues which comprise a (pending) matrimonial action, including child support, unless the matter is specifically referenced to the Family Court by the Supreme Court"]). As a consequence, we have no occasion to opine on defendant's claim that, pursuant to the Family Court Act, Family Court has exclusive and continuing jurisdiction over any criminal charges based on violations of its own support order.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order affirmed, in a memorandum.

[112 NE3d 312, 87 NYS3d 135]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEXIS
SANCHEZ, Appellant.

Decided September 13, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 21, 2017. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Margaret L. Clancy, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree.

People v Sanchez, 157 AD3d 107, affirmed.

HEADNOTES

Crimes — Appeal — Intermediate Appellate Courts — Weight of Evidence Review

1. The correct standard for weight of the evidence review as set forth in *People v Romero* (7 NY3d 633 [2006]) and *People v Bleakley* (69 NY2d 490 [1987]) involves a two-step approach wherein the Court must determine whether, based on all the credible evidence, an acquittal would not have been unreasonable; and weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from

the testimony. To the extent that the decisions in *People v Castillo* (223 AD2d 481, 481 [1st Dept 1996]), *People v Bartley* (219 AD2d 566, 567 [1st Dept 1995], *lv denied* 87 NY2d 898 [1995]), and *People v Corporan* (169 AD2d 643, 643 [1st Dept 1991], *lv denied* 77 NY2d 959 [1991]) contain language that is inconsistent with the more recent guidance of the Court of Appeals regarding weight of the evidence (see *People v Delamota*, 18 NY3d 107, 116-117 [2011]), those decisions should not be followed.

Crimes — Appeal — Intermediate Appellate Courts — Weight of Evidence Review

2. In concluding that the jury was justified in finding that the People sustained their burden of disproving defendant's justification defense beyond a reasonable doubt the Appellate Division stated the correct standard of review as set forth in *People v Romero* (7 NY3d 633 [2006]) and *People v Bleakley* (69 NY2d 490 [1987]), which involves a two-step approach for weight of the evidence review wherein a court must determine whether, based on all the credible evidence, an acquittal would not have been unreasonable; and weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from the testimony. Although the Appellate Division cited to certain prior decisions containing language inconsistent with the Court of Appeals' more recent guidance regarding weight of the evidence, the incorrect language, in the context of the Court's written decision as a whole, did not manifest a lack of application of that review power to which appellants are entitled.

Crimes — Arrest — Probable Cause — Confidential Informant

3. Defendant's motion to suppress certain statements made to police was properly denied. There was sufficient record support for the lower courts' findings that the confidential informant had a basis for his knowledge of the information he transmitted and that such information was reliable.

APPEARANCES OF COUNSEL

Law Office of Richard Wojszwilo, Austin, Texas (*Richard Wojszwilo* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Andrew J. Zapata* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] The Appellate Division stated the correct standard of review when it concluded that

“viewing the evidence presented at trial in a neutral light . . . , and weighing the relative probative force of the conflicting testimony and evidence, as well as the relative strength of the conflicting inferences to be drawn therefrom, and according deference to the jury's opportunity to view the witnesses, hear their testimony and observe their demeanor, . . .

“the jury was justified in finding that the People sustained their burden of disproving defendant’s justification defense beyond a reasonable doubt” (157 AD3d 107, 116, 118 [1st Dept 2017]; see *People v Romero*, 7 NY3d 633, 643-644 [2006]; *People v Mateo*, 2 NY3d 383, 410 [2004], *cert denied* 542 US 946 [2004]; *People v Bleakley*, 69 NY2d 490, 495 [1987]).

To the extent the Appellate Division cited to certain prior decisions (see 157 AD3d at 109, citing *People v Castillo*, 223 AD2d 481, 481 [1st Dept 1996], *People v Bartley*, 219 AD2d 566, 567 [1st Dept 1995], *lv denied* 87 NY2d 898 [1995], and *People v Corporan*, 169 AD2d 643, 643 [1st Dept 1991], *lv denied* 77 NY2d 959 [1991]) containing language that is inconsistent with our more recent guidance regarding weight of the evidence (see *People v Delamota*, 18 NY3d 107, 116-117 [2011]), those decisions should not be followed.

[2] Nevertheless, a review of the Appellate Division’s analysis demonstrates that it applied the correct standard from *Romero* and *Bleakley*, which involves a “two-step approach” wherein a court must (1) “determine whether, based on all the credible evidence, an acquittal would not have been unreasonable”; and (2) “weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from the testimony” (157 AD3d at 108-109, citing *People v Danielson*, 9 NY3d 342, 348 [2007], *Romero*, 7 NY3d at 643, and *Bleakley*, 69 NY2d at 495). Thus, the incorrect language, in the context of the Court’s written decision as a whole, did not “manifest a lack of application of that review power [to] which appellants are entitled” (*Bleakley*, 69 NY2d at 496; see *Romero*, 7 NY3d at 646).

[3] Defendant’s claim that his motion to suppress certain statements to the police was improperly denied is without merit. There is sufficient record support for the lower courts’ findings that the confidential informant had a basis for his knowledge of the information he transmitted (see *People v Johnson*, 66 NY2d 398, 403 [1985]) and that such information was reliable (see *People v DiFalco*, 80 NY2d 693, 696-699 [1993]; *People v Rodriguez*, 52 NY2d 483, 489-490 [1981]).

WILSON, J. (dissenting). Mr. Sanchez was convicted of second-degree murder and possession of a weapon. There is no dispute that he fired the fatal shots; the question is whether the People proved beyond a reasonable doubt that he was not justified in

doing so. Two Justices of the Appellate Division concluded the evidence was not sufficient to convict him; three thought it was. I agree with the majority (of our Court) that much of the Appellate Division's opinion misstates the law. I also agree with the majority that much of the Appellate Division's opinion correctly states the law. My disagreement is what to do about it. The factual record below is complex; the correct and incorrect legal propositions are more like a soup than a sandwich, so that we cannot disassemble it to find the meat. Moreover, the Appellate Division split 3-2. A majority of our Court concludes, without directly saying so, that none of the three Justices in the majority below would vote differently if the incorrect statements were excised from the opinion. I do not know that, and do not know how we can know that. But I do know who does know that, and I know where to find them. I would therefore remit to the Appellate Division to apply the unambiguously correct legal standard.¹

First, the majority and I agree that the Appellate Division incorrectly stated that "reversal of a judgment of conviction on weight of the evidence review is not warranted in the absence of record evidence indicating that the jury's findings of credibility and fact were manifestly erroneous and so plainly unjustified by the evidence that rejection is required in the interest of justice" (*People v Sanchez*, 157 AD3d 107, 109 [1st Dept 2017] [internal quotation marks omitted]). In support of that erroneous statement, the Appellate Division cited only a trio of its own cases that predated our decision in *People v Romero* (7 NY3d 633 [2006]) by a decade. We reiterated the governing standard fairly recently: weight of the evidence review

"requires the court to affirmatively review the record; independently assess all of the proof; *substitute its own credibility determinations for those made by the jury in an appropriate case; determine whether the verdict was factually correct*; and acquit a defendant if the court is not convinced that the jury was justified in finding that guilt was proven beyond a reasonable doubt" (*People v Delamota*, 18 NY3d 107, 116-117 [2011] [emphasis added]).

An appellate court's obligation to "weigh the relative probative force of conflicting testimony and the relative strength of

1. I agree that Mr. Sanchez's motion to suppress certain statements lacks merit.

conflicting inferences” is mandatory and nondelegable; it cannot be abdicated to the jury below, even in the exercise of the appellate court’s own discretion (*People v Bleakley*, 69 NY2d 490, 495 [1987]).

However, directly before the Appellate Division’s erroneous articulation of the governing legal standard, the opinion identified the correct *Romero-Bleakley* standard. Both standards are recounted back-to-back under the section of the opinion with the heading “Standards of Review.” How do we know whether the Appellate Division applied the first, the second, or something in between?

Later, in section III (titled “Weight of the Evidence Review”), the Appellate Division correctly cites *Romero* and *Bleakley* (see *Sanchez*, 157 AD3d at 113-119). But in the same section, the Appellate Division majority distinguishes its analysis from the dissent’s by making another incorrect statement of law: “In isolating discrete portions of the overall trial testimony and evidence that it deems to be significant while ignoring the remainder of the evidence presented at trial, the dissent puts itself in the perilous position of substituting its view of the evidence for that of the jury,” concluding: “[t]hat is not the role of [the Appellate Division] in a weight of the evidence review” (*Sanchez*, 157 AD3d at 119). Yet this is precisely what the Appellate Division must do in assessing the evidence (other than questions of credibility involving live witnesses)² and the inferences to be drawn therefrom (see *Delamota*, 18 NY3d at 116-117; *People v Danielson*, 9 NY3d 342, 348 [2007]; see also *People v Romero*, 7 NY3d 633, 645-646 [2006] [discussing how this Court has “disavowed” its “precedent suggesting that the jury was ‘the ultimate tribunal’ for resolving controverted questions of fact”]). The Appellate Division majority’s distinction of the

2. The most important evidence in the case did not turn on live witnesses or their credibility. Instead, it consisted of: (1) defendant’s videotaped statement (which the Appellate Division was just as well-positioned to observe as any jury), (2) his prior inconsistent statements to Detective Schlosser (presented as hearsay through Schlosser’s testimony), and (3) the inferences to be drawn from the forensic evidence recovered at the scene (presented by an Office of Chief Medical Examiner specialist whose credibility was not seriously disputed). With respect to this type of evidence, the policy arguments for deferring to the jury’s own conclusions all but disappear (cf. *People v Sanducci*, 195 NY 361, 367 [1909]; *People v Gaimari*, 176 NY 84, 94 [1903]). Granting the jury deference as to the force of that evidence would deprive Mr. Sanchez of the independent review of the record to which he is entitled. Rather, our precedents require the Appellate Division independently to decide what inferences and conclusions to draw from that evidence.

dissent, which is based on an error of law, gives one pause about the soundness of the result.

In *People v Bleakley*, we explained that “where the order and writings of the intermediate appellate court manifest a lack of application of that review power which appellants are entitled to, then we reverse and remit” (69 NY2d 490, 496 [1987]). Here, perhaps it does; perhaps it does not. Only the Appellate Division, armed with the correct standard, can apply that standard to the facts and determine whether the result should remain the same or change. Faced with the decision’s analytical ambiguity, I am puzzled as to why we do not take the small step of remitting, to make sure that Mr. Sanchez has been afforded the appellate review to which he is entitled. If he has already received it, the Appellate Division will have very little to do; if he has not, it would surely be a good decision to remit.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents in an opinion in which Judge Rivera concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[112 NE3d 309, 87 NYS3d 132]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR
XOCHIMITL, Appellant.

Decided September 13, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered February 1, 2017. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Vincent M. Del Giudice, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree. The appeal to the Appellate Division brought up for review the denial, after a hearing, of that branch of defendant’s omnibus motion which was to suppress his statements to law enforcement officials.

People v Xochimitl, 147 AD3d 793, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Consent to Enter Apartment

The order of the Appellate Division affirming the trial court's denial of defendant's suppression motion was affirmed. The determination as to whether police received voluntary consent to enter defendant's apartment was a mixed question of law and fact. Since the finding of the trial court was supported by the record, the Court of Appeals was precluded from upsetting it.

APPEARANCES OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (*Dina Zloczower* of counsel), for appellant.

Eriz Gonzalez, District Attorney, Brooklyn, (*Michael L. Brenner* of counsel), for respondent.

Make the Road New York, Brooklyn (*Amy S. Taylor* and *Ariel Gould* of counsel), and *Legal Services NYC*, New York City (*Christine Clarke*, *Veronica Cook* and *Edward Josephson* of counsel), for *Make the Road New York* and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The determination as to whether police received voluntary consent to enter the apartment is a mixed question of law and fact (*see People v McFarlane*, 21 NY3d 1034, 1035 [2013]). “Although the voluntariness of the consent is open to dispute, our power to review affirmed findings of fact is limited. Since the finding of the trial court is supported by the record, we are precluded from upsetting it” (*People v Morales*, 42 NY2d 129, 138 [1977]; *see McFarlane*, 21 NY3d at 1035). As our concurring colleagues acknowledge, defendant did not contend below and does not contend on this appeal that his arrest was unlawful because the police went to his home with the intent of making a warrantless arrest.

RIVERA, J. (concurring). For the reasons I have previously explained in *People v Garvin*, a home visit by law enforcement for the sole purpose of making a warrantless arrest which leads to the defendant's involuntary consent to the arrest, and is not justified by another exception to the warrant requirement, violates a defendant's constitutionally protected indelible right to counsel (30 NY3d 174, 205-210 [2017, Rivera, J., dissenting]; *see also id.* at 210-221 [Wilson, J., dissenting] [under Federal and State Constitutions, absent exigent circumstances, officers

planning to arrest a suspect at home must obtain a warrant]). This case illustrates why such warrantless visits undermine our constitutional mandates.

The officers went to defendant's home intending to make an arrest based on his having been deported twice and gained entrance to the apartment from defendant's elderly mother without first confirming that she understood English and their request to be allowed into her apartment to speak with her son. The arresting officer maintained that although he did not recall the mother uttering a single word, she "consented" when she "stepped away from the door" and they walked in. Even though a Spanish-speaking officer was present, he did not interact with the mother or anyone on the other side of the closed door before the officers walked past her towards defendant. While defendant was eventually arrested outside the home, this type of police interaction is intended to avoid the warrant requirement and undermines the protections guaranteed by our State Constitution (*see Garvin*, 30 NY3d at 206 [Rivera, J., dissenting] ["It would be the simplest of things for police to avoid the mandates of our Constitution and sidestep a defendant's indelible right to counsel by visiting a defendant solely to effectuate a house arrest without a warrant. Surely that is not what we intended when this Court recognized the broader protections afforded under our Constitution"])). In Judge Wilson's concurrence, he sets forth the facts in greater detail and the scenarios needlessly created by approaching someone's home without a warrant but intending to make an arrest (*see Wilson, J., concurring op at 1029-1031*).

However, because defendant does not challenge his arrest on the ground that the police could not go to his home intending to make a warrantless arrest, the issue is not preserved. Therefore, I concur in the result because there is just barely enough record support on this mixed question of law and fact for the finding below that the police officers obtained consent to enter defendant's apartment (majority mem at 1027).

WILSON, J. (concurring). In *People v Garvin*, we considered the validity of a warrantless arrest at a home when no exigent circumstances existed (30 NY3d 174 [2017]). Although I concur in the judgment here for the reason given by Judge Rivera, the factual disputes in this case illustrate why, absent exigent circumstances, we should require the police to obtain a warrant when they seek to arrest a person at home, as I set forth in my dissent in *Garvin* (*id.* at 210-221).

Seven police officers, some clad in bulletproof vests, arrived at Mr. Xochimitl's residence at 6:00 a.m. Mr. Xochimitl resided there with his elderly mother and father, his sisters and his wife and children. The police believed Mr. Xochimitl was responsible for a homicide, but also knew he was a foreign national who had been twice deported and was not lawfully present in the United States. Thus, although the police were principally interested in Mr. Xochimitl as a homicide suspect, they intended to arrest him for illegal reentry at a minimum.

According to the officers present, they knocked on the door and announced themselves as police officers. An elderly woman opened the door. On direct examination, a detective testified that he asked the woman, in English, if the police could enter the home. In response, the woman backed away and "gestured" for them to enter. Upon cross-examination, however, the detective testified that he was "not exactly sure" if the woman gestured, but was sure she backed away, which he took to be an affirmative response to his request for permission to enter the home. The detective further testified that he did not know whether the woman understood English. Another detective testified that the first detective told him that the woman spoke only Spanish. Although two of the officers present spoke Spanish, they did not communicate with the woman.

According to Mr. Xochimitl's sister, who was in the home at the time, the officers entered immediately once the door was open, without asking for consent to enter. She also testified that she asked to see a warrant, and that the officers said, "[I]t's here," but never produced one.

"[A] search conducted without a warrant issued upon probable cause is 'per se unreasonable . . . subject only to a few specifically established and well-delineated exceptions' " (*Schneckloth v Bustamonte*, 412 US 218, 219 [1973], quoting *Katz v United States*, 389 US 347, 357 [1967]). Consent is one of those exceptions, and "is a question of fact to be determined from the totality of all the circumstances" (*id.* at 227). *Schneckloth* and most cases detailing consent involve searches outside the home—automobiles, hand luggage, etc. Remember, however, that "physical entry of the home is the chief evil against which the wording of the Fourth Amendment is directed" (*United States v United States Dist. Court for Eastern Dist. of Mich.*, 407 US 297, 313 [1972]). Do we really believe that the Fourth Amendment's drafters, fresh from experiences with British colonial rule, intended that taking a step or two back

when confronted by a warrantless, armed police presence at your doorstep would vitiate that Amendment's guarantees?*

(More particularly, should we interpret New York's Constitution in that way?)

By importing the outside-the-home consent rules to non-exigent, warrantless home arrests, we are needlessly and painfully asking too much of everyone involved—the police, defendants, witnesses and the courts, with the result that we are making a loosely substantiated guess about whether the Fourth Amendment has been violated. I assume the detective here forthrightly testified that he could not remember a gesture other than a retreat, which he understood to be consent to entry, and that he did not know whether the elderly woman understood English. Examining the totality of the circumstances, however, requires much more. In the elderly woman's native country, what is customary when armed officers arrive at your doorstep? In gauging the meaning of her step(s) backwards, should we import to it the same meaning as if I stepped backwards when officers ask permission to enter my home? (See e.g. Richard W. Cole & Laura Maslow-Armand, *The Role of Counsel and the Courts in Addressing Foreign Language and Cultural Barriers at Different Stages of a Criminal Proceeding*, 19 W New Eng L Rev 193, 195 [1997] ["Some defendants, victims, or witnesses from different cultures may be misunderstood, or their actions, appearance, or demeanor misinterpreted by police, parties, jurors, or the court itself"]; Peter M. Tiersma & Lawrence M. Solan, *Cops and Robbers: Selective Literalism in American Criminal Law*, 38 L & Soc'y Rev 229, 241-242 [2004] ["when someone in a position of power 'asks' or 'requests' us to do something, it will normally be interpreted as a command. . . . If Mommy 'asks' Johnny whether he 'would like' to wash the dishes, Johnny had better roll up his sleeves"]). Should our interpretation of a "reasonable, good faith reliance by the police" (*People v Adams*, 53 NY2d 1, 8-9 [1981]) ignore cultural differences between the parties involved? (See e.g. *United States v Gallego-Zapata*, 630 F Supp 665 [D Mass 1986] [suppressing evidence in light of, inter alia, defendant's age, country of origin, education, and difficulty speaking and understanding English]).

When exigent circumstances are not present, requiring the police to obtain a warrant to arrest someone at home would

* See generally Leonard W. Levy, *Origins of the Fourth Amendment*, 114 Pol Sci Q 79 (1999).

avoid our current guesstimation regime as to whether the Fourth Amendment has been violated. Here, for example, not only did the lower courts have to choose between two conflicting accounts of what happened when the police arrived, but even after choosing the police account, neither they nor we know whether the elderly woman gestured, what that gesture was or what she meant by it, how many step(s) back she took; whether she understood English; or whether she understood that she could refuse admission to the police. Instead, we are forcing officers, defendants and witnesses to do their best to recall very intricate details of an arrest—often many months after the event—and asking courts to reconcile those imperfect recollections. In truth, we do not know whether Mr. Xochimitl's Fourth Amendment rights were violated, because piecing together precisely what happened, so that we can determine what his mother's movement meant or whether an officer might reasonably believe she had consented, requires more precision than witnesses and courts can deliver.

The rule I offered in *Garvin* would better protect our constitutional rights and avoid the factual morasses police, witnesses and courts now face: "Absent exigent circumstances, officers planning to arrest a suspect at home must obtain a warrant" (*Garvin*, 30 NY3d at 210).

"The presence of a search warrant serves a high function. Absent some grave emergency, the Fourth Amendment has interposed a magistrate between the citizen and the police. This was done not to shield criminals nor to make the home a safe haven for illegal activities. It was done so that an objective mind might weigh the need to invade that privacy in order to enforce the law. The right of privacy was deemed too precious to entrust to the discretion of those whose job is the detection of crime and the arrest of criminals" (*McDonald v United States*, 335 US 451, 455-456 [1948]).

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur. Judge Rivera concurs in result in a concurring opinion, in which Judge Wilson concurs in a separate concurring opinion, in which Judge Rivera concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARVIN
DRELICH, Respondent.

Decided October 11, 2018

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered December 22, 2017. The Appellate Term (1) reversed, on the law, a judgment of the Criminal Court of the City of New York, New York County (Ann Scherzer, J.), which had convicted defendant, upon his plea of guilty, of disorderly conduct; (2) dismissed the accusatory instrument; and (3) remitted the surcharge and fees.

People v Drelich, 58 Misc 3d 81, reversed.

HEADNOTE

Crimes — Patronizing Prostitute — Sufficiency of Accusatory Instrument — Jurisdictional Defect

The accusatory instrument charging defendant with patronizing a prostitute in the third degree based on allegations that he requested “manual stimulation” from a woman on a street corner, for a specific sum of money, at 2:25 a.m., was not jurisdictionally defective, as it contained sufficient facts to demonstrate “reasonable cause” to believe (CPL 100.40 [4] [b]) that defendant was guilty of the offense charged. The factual allegations supplied defendant with sufficient notice of the charged crime to satisfy the demands of due process and double jeopardy. Any assertion that defendant was referring to a nonsexual activity was a matter to be raised as an evidentiary defense, not by insistence that the accusatory instrument was jurisdictionally defective. Nor did the use of a clinical phrase in the instrument for the sexual activity alleged render it jurisdictionally defective.

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (Rebecca Hausner and Alan Gadlin of counsel), for appellant.

Justine M. Luongo, The Legal Aid Society, New York City (Susan Epstein of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be reversed and the case remitted to the Appellate Term for consideration of issues raised but not determined on appeal to that court.

The accusatory instrument is not jurisdictionally defective. Giving the allegations “a fair and not overly restrictive or

technical reading” (*People v Casey*, 95 NY2d 354, 360 [2000]), and “drawing reasonable inferences from all the facts set forth in the accusatory instrument” (*People v Jackson*, 18 NY3d 738, 747 [2012]), the accusatory instrument contains sufficient facts to demonstrate “reasonable cause” to believe (CPL 100.40 [4] [b]) that defendant was guilty of patronizing a prostitute in the third degree (*see* Penal Law § 130.00 [10]). The factual allegations that defendant requested “manual stimulation” from a woman on a street corner, for a specific sum of money, at 2:25 a.m., supplied “defendant with sufficient notice of the charged crime to satisfy the demands of due process and double jeopardy” (*People v Dreyden*, 15 NY3d 100, 103 [2010]). Defendant’s argument that “manual stimulation” could be indicative of nonsexual conduct ignores the inferences of sexual activity to be drawn from the factual context in which the statement was alleged to have been made—a late night solicitation of a physical personal service from an individual on a public street, in exchange for a sum of money. Any assertion that defendant was referring to a nonsexual activity “was a matter to be raised as an evidentiary defense . . . , not by insistence that this [accusatory instrument] was jurisdictionally defective” (*see Casey*, 95 NY2d at 360). The fact that the instrument used a clinical phrase for the sexual activity alleged does not render the instrument jurisdictionally defective.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, and case remitted to the Appellate Term, First Department, for consideration of issues raised but not determined on appeal to that court, in a memorandum.

In the Matter of KIMBERLY AUSTIN et al., Appellants, v MARIA MILIN et al., Respondents.

Decided October 11, 2018

Reported below, 161 AD3d 675.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

MARCO BATTISTELLA, Appellant, v MARNIE ANN JOYCE, Respondent.

Submitted July 23, 2018; decided October 11, 2018

Reported below, 137 AD3d 697.

On the Court's own motion, appeal from the March 2016 Appellate Division order dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

MARCO BATTISTELLA, Appellant, v MARNIE ANN JOYCE, Respondent.

Submitted August 27, 2018; decided October 11, 2018

Reported below, 2017 NY Slip Op 87732(U).

On the Court's own motion, appeal from the October 2017 Appellate Division order dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DEBORAH BUSH, Appellant, v STEVENSON COMMONS ASSOCIATES, LLP, Esqs., Defendant. STATE OF NEW YORK, Nonparty Respondent.

Submitted July 30, 2018; decided October 11, 2018

Reported below, 156 AD3d 752.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]). Motion for poor person relief etc. dismissed as academic.

In the Matter of CAIDEN G. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES et al., Respondents; WALTER G., Appellant.

Submitted July 30, 2018; decided October 11, 2018

Reported below, 162 AD3d 1497.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from so much of the Family Court order as was entered on consent, dismissed upon the ground that, as to that portion of the Appellate Division order, appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

ROBERT BRUCE CARROLL, Appellant, v RONDOUT YACHT BASIN, INC., Respondent.

Submitted July 16, 2018; decided October 11, 2018

Reported below, 162 AD3d 1150.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARK CENTI, Respondent, v MICHAEL MCGILLIN, Appellant.

Submitted August 6, 2018; decided October 11, 2018

Reported below, 155 AD3d 1493.

Motion to vacate this Court's July 2, 2018 dismissal order granted [*see* 31 NY3d 1144 (2018)].

DANIEL COLLAZO et al., Appellants, v NETHERLAND PROPERTY ASSETS LLC et al., Respondents.

Submitted September 24, 2018; decided October 11, 2018

Reported below, 155 AD3d 538.

Motion by Legal Services NYC et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DELVERN DURAN, Appellant, v COUNTY OF MONROE, Respondent, et al., Defendants.

Decided October 11, 2018

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of DAHLIA-GAYE FLETCHER, Respondent, v DES-FORD SAUL, Appellant.

Submitted July 23, 2018; decided October 11, 2018

Reported below, 162 AD3d 1018.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of LETITIA JAMES, Appellant, et al., Petitioners, v CITY OF NEW YORK et al., Respondents, and NEW YORK CITY DEPARTMENT OF EDUCATION et al., Respondents.

Submitted June 18, 2018; decided October 11, 2018

Reported below, 154 AD3d 424.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103[b] [2]). The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT ARIDA, Appellant.

Submitted October 1, 2018; decided October 11, 2018

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEAN
CARLOS DELACRUZ, Appellant.

Decided October 11, 2018

Reported below, 161 AD3d 519.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ARTHUR
W. ELLIS JR., Respondent.

Submitted October 9, 2018; decided October 11, 2018

Reported below, 162 AD3d 161.

Motion for assignment of counsel granted and Noreen McCar-
thy, Esq., P.O. Box 756, Keene Valley, NY 12943 assigned as
counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIJAH
FOSTER-BEY, Appellant.

Submitted September 24, 2018; decided October 11, 2018

Reported below, 158 AD3d 641.

Motion for assignment of counsel granted and Paul Skip Lai-
sure, Esq., Appellate Advocates, 111 John Street, 9th Floor,
New York, NY 10038 assigned as counsel to the appellant on
the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JER-
MAINE A. JAMES, Appellant.

Submitted September 17, 2018; decided October 11, 2018

Reported below, 162 AD3d 1746.

Motion for an extension of the time within which to apply for
permission to appeal pursuant to CPL 460.20 granted and mo-
tion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES R. McINTOSH, Appellant.

Submitted September 24, 2018; decided October 11, 2018

Reported below, 162 AD3d 1612.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEXIS RODRIGUEZ, Appellant.

Submitted October 9, 2018; decided October 11, 2018

Reported below, 164 AD3d 1024.

Motion for assignment of counsel granted and Paul J. Connolly, Esq., 2 Wedge Road, Delmar, NY 12054 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CADMAN WILLIAMS, Appellant.

Submitted September 24, 2018; decided October 11, 2018

Reported below, 158 AD3d 471.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MARK MARVIN, on Behalf of ANGELIKA GRASWALD, Appellant, v SHERIFF OF ORANGE COUNTY, Respondent.

Submitted July 30, 2018; decided October 11, 2018

Reported below, 2018 NY Slip Op 73832(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

OLIVER DOUCE AL-DEY, Appellant, v CITY OF NEW YORK, Respondent.

Submitted August 13, 2018; decided October 16, 2018

Reported below, 2018 NY Slip Op 63515(U); 2017 NY Slip Op 89504(U).

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 1136 (2018)].

ARTHUR KEVIN BERRY, Appellant, v NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE et al., Respondents.

Decided October 16, 2018

Reported below, 162 AD3d 606.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

BRIGHT STONE CORP. et al., Respondents, v J&J ASSOCIATES II, LLC, Also Known as J&J ASSOCIATES, LLC, et al., Appellants.

Submitted July 23, 2018; decided October 16, 2018

Reported below, 161 AD3d 628.

Motion for leave to appeal, insofar as made by defendant Joann Montalbano, dismissed upon the ground that she is not a party aggrieved (*see* CPLR 5511); motion otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VEERAMUTHU P. GOUNDER, Appellant, v COMMUNICAR, INC., et al., Respondents.

Submitted August 13, 2018; decided October 16, 2018

Reported below, 2018 NY Slip Op 61804(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

VEERAMUTHU P. GOUNDER, Appellant, v ARGANTE R. GRIPPA et al., Respondents.

Submitted August 13, 2018; decided October 16, 2018

Reported below, 2018 NY Slip Op 65619(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

VEERAMUTHU P. GOUNDER, Appellant, v PROGRESSIVE CREDIT UNION, Respondent.

Submitted August 13, 2018; decided October 16, 2018

Reported below, 2018 NY Slip Op 66278(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

VEERAMUTHU P. GOUNDER, Appellant, v PROGRESSIVE CREDIT UNION et al., Respondents.

Submitted August 20, 2018; decided October 16, 2018

Reported below, 2018 NY Slip Op 67648(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

HUNTSMAN INTERNATIONAL LLC, Appellant, v ALBEMARLE CORPORATION et al., Respondents.

Submitted August 13, 2018; decided October 16, 2018

Reported below, 163 AD3d 420.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as stayed the action pending arbitration, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Chief Judge DiFIORE and Judge GARCIA taking no part.

JOSEPH KORFF, Appellant, v RICHARD A. CORBETT et al., Respondents.

Submitted August 6, 2018; decided October 16, 2018

Reported below, 155 AD3d 405.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 31 NY3d 912 (2018)].

LEVEL 3 COMMUNICATIONS, LLC (Now Known as CENTURYLINK), Respondent, and RCN TELECOM SERVICES OF NEW YORK L.P. et al., Appellants, v JACQUES JIHA et al., Respondents.

Submitted August 6, 2018; decided October 16, 2018

Reported below, 162 AD3d 465.

Motion by T-Mobile Northeast, LLC for leave to appear amicus curiae on the motion for leave to appeal herein denied.

In the Matter of BARRY MANUEL, Appellant, v THOMAS GRIFFIN, Respondent.

Decided October 16, 2018

Reported below, 161 AD3d 872.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MELVIN M. MARIN, a Suspended Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Submitted July 23, 2018; decided October 16, 2018

Reported below, 162 AD3d 1198.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR DELEON, Appellant.

Submitted August 20, 2018; decided October 16, 2018

Reported below, 157 AD3d 649.

Motion to enlarge the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE PEREZ, Appellant.

Submitted August 6, 2018; decided October 16, 2018

Reported below, 162 AD3d 1083.

Motion for leave to appeal granted. Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN A.J. HINSPETER, II, Appellant, v DALE A. ARTUS, Superintendent, Attica Correctional Facility, Respondent.

Submitted September 17, 2018; decided October 16, 2018

Reported below, 159 AD3d 1539.

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 1139 (2018)].

In the Matter of MICHELLE ROUSE-WILLIAMS, Respondent, v DONNIE WILLIAMS, Appellant.

Submitted August 20, 2018; decided October 16, 2018

Reported below, 2018 NY Slip Op 73653(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of RICHARD P. SAVITT (Admitted as RICHARD PAUL SAVITT), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted August 13, 2018; decided October 16, 2018

Reported below, 161 AD3d 109; 2018 NY Slip Op 02762; 2018 NY Slip Op 77193(U).

Motion, insofar as it seeks leave to appeal from the April 2018 Appellate Division orders, dismissed as untimely; motion, insofar as it seeks leave to appeal from the July 2018 Appellate Division order, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of DONNA B., Respondent, v DOMINICK C., Respondent. ARZA RAYCHES FELDMAN, ESQ., Attorney for the Child, Appellant.

Submitted July 30, 2018; decided October 16, 2018

Reported below, 162 AD3d 1053.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

TOWN OF CLIFTON PARK, Respondent, v BONI BUILDERS, INC., et al., Appellants, and LAKSHMI MOHAN et al., Respondents.

Submitted August 27, 2018; decided October 16, 2018

Reported below, 156 AD3d 1035.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order does not finally determine the action within the meaning of the Constitution and that the stipulation does not qualify as a final judgment within the meaning of CPLR 5602 (a) (1) (ii) to bring up for review the prior nonfinal Appellate Division order because it was entered without prejudice.

In the Matter of JOHN L. WESLOWSKI, Appellant, v EDWIN J. DAY, as County Executive, et al., Respondents.

Submitted August 6, 2018; decided October 16, 2018

Reported below, 136 AD3d 931.

Motion for reconsideration of this Court's June 26, 2018 dismissal order denied [*see* 31 NY3d 1130 (2018)].

[112 NE3d 323, 87 NYS3d 146]

In the Matter of BENJAMIN HAUG, Respondent, v STATE UNIVERSITY OF NEW YORK AT POTSDAM et al., Appellants.

Argued September 13, 2018; decided October 18, 2018

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 6, 2017, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in St. Lawrence County). The Appellate Division, with two Justices dissenting, (1) annulled a determination of respondent State University of New York at Potsdam which had found petitioner guilty of sexual misconduct in violation of its code of student conduct; (2) granted the petition; and (3) directed respondent State University of New York at Potsdam to expunge all references to the matter from petitioner's school record.

Matter of Haug v State Univ. of N.Y. at Potsdam, 149 AD3d 1200, reversed.

HEADNOTE

Colleges and Universities — Disciplinary Proceedings — Judicial Review

In a CPLR article 78 proceeding challenging respondents' determination that petitioner violated their code of student conduct, an order of the Appel-

late Division annulling the determination was reversed. The hearsay evidence proffered at the administrative hearing, along with petitioner's testimony, provided substantial evidence in support of the finding that he violated the code. Moreover, the hearing board could have reasonably interpreted some of petitioner's conceded behavior as consciousness of guilt and concluded that his version of the events was not credible. Ultimately, it was the province of the hearing board to resolve any conflicts in the evidence and make credibility determinations. The Appellate Division improperly engaged in a re-weighing of the evidence when it substituted its own factual findings for those of respondents.

APPEARANCES OF COUNSEL

Barbara D. Underwood, Attorney General, Albany (*Brian D. Ginsberg*, *Andrea Oser* and *Victor Paladino* of counsel), for appellants.

Carlisle Law Firm, P.C., Ogdensburg (*Lloyd G. Grandy II* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to the Appellate Division for consideration of the issues raised but not determined on the appeal to that Court.

This CPLR article 78 proceeding was transferred to the Appellate Division to address, inter alia, petitioner's challenge to respondents' determination that he violated their code of student conduct (CPLR 7803 [4]; 7804 [g]). The Court concluded that respondents' determination was not supported by substantial evidence. We disagree.

Upon judicial review, the Appellate Division must accord deference to the findings of the administrative decision-maker. As we said in *Matter of Pell*, "neither the Appellate Division nor the Court of Appeals has power to upset the determination of an administrative tribunal on a question of fact; . . . the courts have no right to review the facts generally as to weight of evidence, beyond seeing to it that there is substantial evidence" (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 230 [1974] [internal quotation marks and citation omitted]).

We emphasize that "[t]he substantial evidence standard is a minimal standard" (*Matter of FMC Corp. [Peroxygen Chems. Div.] v Unmack*, 92 NY2d 179, 188 [1998]). It is "less than a preponderance of the evidence" (*Matter of Kelly v DiNapoli*, 30

NY3d 674, 684 [2018], quoting *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494, 499 [2011]), and “demands only that a given inference is reasonable and plausible, not necessarily the most probable” (*Matter of Ridge Rd.*, 16 NY3d at 499 [internal quotation marks and citations omitted]). Stated differently, “[r]ationality is what is reviewed under . . . the substantial evidence rule” (*Matter of Pell*, 34 NY2d at 231); substantial evidence is “such relevant proof as a reasonable mind may accept as adequate to support a conclusion or ultimate fact” (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 180 [1978]). Where substantial evidence exists, the reviewing court may not substitute its judgment for that of the agency, even if the court would have decided the matter differently (see *Matter of Toys “R” Us v Silva*, 89 NY2d 411, 423 [1996]; *Matter of Axel v Duffy-Mott Co.*, 47 NY2d 1, 6 [1979]).

“[O]ften there is substantial evidence on both sides of an issue disputed before an administrative agency” (*Matter of Marine Holdings, LLC v New York City Commn. on Human Rights*, 31 NY3d 1045, 1047 [2018] [internal quotation marks and citation omitted]). Where substantial evidence exists to support a decision being reviewed by the courts, the determination must be sustained, “irrespective of whether a similar quantum of evidence is available to support other varying conclusions” (*Matter of Collins v Codd*, 38 NY2d 269, 270 [1976]; *300 Gramatan Ave.*, 45 NY2d at 180-181). Moreover, hearsay is admissible as competent evidence in an administrative proceeding, and if sufficiently relevant and probative may constitute substantial evidence even if contradicted by live testimony on credibility grounds (see *Matter of Gray v Adduci*, 73 NY2d 741, 742 [1988]; *Matter of National Basketball Assn. v New York State Div. of Human Rights*, 68 NY2d 644, 646 [1986]; *People ex rel. Vega v Smith*, 66 NY2d 130, 139 [1985]; *Matter of Malacarne v City of Yonkers Parking Auth.*, 41 NY2d 189, 193 [1976]).

Contrary to petitioner’s argument, the hearsay evidence proffered at the administrative hearing, along with petitioner’s testimony, provides substantial evidence in support of the finding that he violated respondents’ code of conduct. The hearing board also could have reasonably interpreted some of petitioner’s conceded behavior as consciousness of guilt and concluded that his version of the events was not credible. Ultimately, it was the province of the hearing board to resolve any conflicts in the evidence and make credibility determinations. The Ap-

pellate Division improperly engaged in a re-weighting of the evidence when it substituted its own factual findings for those of respondents (*see Pell*, 34 NY2d at 230).

Finally, we agree with the Appellate Division that petitioner's due process arguments were not preserved at the administrative level.

FAHEY, J. (dissenting). I respectfully dissent. I would grant the petition for reasons stated in the majority opinion of the Appellate Division (*see Matter of Haug v State Univ. of N.Y. at Potsdam*, 149 AD3d 1200, 1201-1202 [3d Dept 2017]) and therefore I vote to affirm.

Chief Judge DiFIORE and Judges RIVERA, STEIN, GARCIA, WILSON and FEINMAN concur; Judge FAHEY dissents and votes to affirm in an opinion.

Order reversed, with costs, and matter remitted to the Appellate Division, Third Department, for consideration of issues raised but not determined on the appeal to that Court, in a memorandum.

LILYA ANDRYEYeva, Individually and on Behalf of All Others Similarly Situated, et al., Respondents, v NEW YORK HEALTH CARE, INC., Doing Business as NEW YORK HOME ATTENDANT AGENCY, et al., Appellants.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 153 AD3d 1216.

Motion by Home Care Association of New York State, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. One copy the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DANIEL COLLAZO et al., Appellants, v NETHERLAND PROPERTY ASSETS LLC et al., Respondents.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 155 AD3d 538.

Motion by Rent Stabilization Association of NYC, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of ECHO WESTLEY DIXON, Appellant, v Gov. ANDREW M. CUOMO et al., Respondents.

Submitted August 13, 2018; decided October 18, 2018

Reported below, 2018 NY Slip Op 75759(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ECHO WESTLEY DIXON, Appellant, v Gov. ANDREW M. CUOMO et al., Respondents.

Submitted August 27, 2018; decided October 18, 2018

Reported below, 2018 NY Slip Op 76547(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Arbitration between MOSHE FRIEDMAN, Respondent, and SALMEN LOKSEN, Also Known as ZALMAN LOKSHIN, Appellant.

Submitted August 20, 2018; decided October 18, 2018

Reported below, 156 AD3d 971.

Motion for reargument of motion for leave to appeal denied [see 31 NY3d 1137 (2018)].

JONATHAN R. GUSTKE, Appellant, v JONATHAN T. NICKERSON et al., Respondents.

Submitted August 6, 2018; decided October 18, 2018

Reported below, 159 AD3d 1573.

Motion, insofar as it seeks leave to appeal as against defendants Brian H. Foley and Jonathan T. Nickerson, denied; motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LEROY JOHNSON, Appellant, v STEWART ECKERT, Superintendent, Wende Correctional Facility, Respondent.

Submitted August 20, 2018; decided October 18, 2018

Reported below, 159 AD3d 1509; 155 AD3d 1580.

Motion for reconsideration of this Court's June 26, 2018 dismissal order denied [*see* 31 NY3d 1126 (2018)]. Motion for poor person relief dismissed as academic.

JOHN KUZMICH et al., Appellants, v 50 MURRAY STREET ACQUISITION LLC, Respondent.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 157 AD3d 556.

Motion by Metropolitan Council on Housing for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 148 AD3d 642.

Motion by Patrolmen's Benevolent Association of the City of New York, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

PANGAEA CAPITAL MANAGEMENT, LLC, Appellant, v JOHN R. LAKIAN, Respondent, and ANDREA LAKIAN, Intervenor-Respondent.

Decided October 18, 2018

See 906 F3d 1.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahreny, Garcia, Wilson and Feinman.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMEL BELL-SCOTT, Appellant.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 162 AD3d 1558.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRELL COOK, Appellant.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 161 AD3d 708.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BRIAN HAKES, Respondent.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 143 AD3d 1054.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL J. SMITH, Appellant.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 162 AD3d 1686.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

In the Matter of T-MOBILE NORTHEAST, LLC, Appellant, v ANTHONY V. DeBELLIS, as Commissioner of Assessment of the City of Mount Vernon, et al., Respondents, et al., Respondents/Defendants.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 143 AD3d 992.

Motion by CTIA-The Wireless Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of T-MOBILE NORTHEAST, LLC, Appellant, v ANTHONY V. DeBELLIS, as Commissioner of Assessment of the City of Mount Vernon, et al., Respondents, et al., Respondents/Defendants.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 143 AD3d 992.

Motion by Broadband Tax Institute for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of T-MOBILE NORTHEAST, LLC, Appellant, v ANTHONY V. DeBELLIS, as Commissioner of Assessment of the City of Mount Vernon, et al., Respondents, et al., Respondents/Defendants.

Submitted October 15, 2018; decided October 18, 2018

Reported below, 143 AD3d 992.

Motion by New York State Conference of Mayors and Municipal Officials et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and the brief submitted in digital format within seven days.

TRIBECA LENDING CORPORATION, Respondent, v GREGORY M. BARTLETT, Appellant, et al., Defendants.

Submitted October 1, 2018; decided October 18, 2018

Reported below, 156 AD3d 519.

On the Court's own motion, appeal dismissed, without costs, upon the ground that it does not lie (*see* CPLR 5601). Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted August 20, 2018; decided October 23, 2018

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

In the Matter of the Foreclosure of Tax Liens by the COUNTY OF BROOME, Respondent. HASAN CEKIC, Appellant.

Submitted August 13, 2018; decided October 23, 2018

Reported below, 162 AD3d 1348.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of WALTER O. COWAN, Respondent.
BIMBO FOODS BAKERIES DISTRIBUTION, INC., Appellant;
COMMISSIONER OF LABOR, Respondent.

Submitted August 20, 2018; decided October 23, 2018

Reported below, 159 AD3d 1312.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

IGS REALTY CO., L.P., Respondent, v JAMES H. BRADY, Appellant.

Submitted September 17, 2018; decided October 23, 2018

Reported below, 162 AD3d 444.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 901 (2018)].

NAOMI R. JOHNSTON, Appellant, v MATTHEW W. JOHNSTON, Respondent.

Submitted August 13, 2018; decided October 23, 2018

Reported below, 156 AD3d 1181.

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (see NY Const, art VI, § 3).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAWRENCE E. PENN III, Appellant.

Submitted September 4, 2018; decided October 23, 2018

Reported below, 153 AD3d 1171.

Petition for a writ of error coram nobis dismissed. There is no authority for initiating a writ of error coram nobis in the Court of Appeals (see *People v Bond*, 93 NY2d 896 [1999]; *People v Gibbs*, 85 NY2d 1030 [1995]).

RICHARD RONKESE, Appellant, v TILCON NEW YORK, INC., Respondent, et al., Defendants.

Submitted August 6, 2018; decided October 23, 2018

Reported below, 153 AD3d 259.

Motion, insofar as it seeks reargument, dismissed as untimely [*see* 30 NY3d 1049 (2018)]; motion, insofar as it seeks leave to appeal from the March 2018 Supreme Court judgment, dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of DAVID W. SCOTT, Respondent, v COLLETTE JACQUES-SCOTT, Appellant.

Submitted August 13, 2018; decided October 23, 2018

Reported below, 156 AD3d 890.

Motion for leave to appeal denied. Motion for poor person relief etc. dismissed as academic.

[112 NE3d 848, 87 NYS3d 542]

In the Matter of PENNY MINTZ, Candidate for Female Member of the State Democratic Committee for the 66th Assembly District of New York, Appellant, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Respondent, and RACHEL LAVINE, Intervenor-Respondent.

Decided August 29, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 22, 2018. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Carol R. Edmead, J.; op 2018 NY Slip Op 31994[U] [2018]), which had (1) denied the application to declare valid the designating petition of petitioner Penny Mintz as a candidate for Female Member of the State Democratic Committee for the 66th Assembly District of New York in the Democratic Party primary election to be held on September 13, 2018, and to direct respondent Board of Elections in the City of

New York to place her name on the ballot for such primary; and (2) dismissed the petition.

Matter of Mintz v Board of Elections in the City of N.Y., 164 AD3d 442, affirmed.

HEADNOTE

Elections — Designating Petitions — Failure to Designate Party Position Sought

In a proceeding seeking an order declaring valid the petition designating petitioner as a candidate for female member of a state democratic committee in a primary election and directing respondent to place petitioner's name on the voting machines and ballots to be used at the election, the lower courts did not err in denying the petition due to petitioner's failure to specify whether the office sought was that of male or female member of the state committee. Election Law § 6-132 directs that the public office or party position sought be identified on the designating petition. Further, where, as here, a political party provides by rule for equal representation of the sexes on its state committee, "the designating petitions . . . shall list candidates for such party positions separately by sexes" (Election Law § 2-102 [4]).

APPEARANCES OF COUNSEL

Advocates for Justice, Chartered Attorneys, New York City (Arthur Z. Schwartz of counsel), for appellant.

Zachary W. Carter, Corporation Counsel, New York City (Jane L. Gordon and Stephen Kitzinger of counsel), for respondent.

Kaplan Hecker & Fink LLP, New York City (Roberta Kaplan and Gabrielle E. Tenzer of counsel), and *Sarah K. Steiner*, New York City, for intervenor-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Assuming without deciding that the proceeding was properly commenced, the petition was properly denied. Election Law § 6-132 directs, among other things, that the public office or party position sought be identified on the designating petition. Further, where, as here, a political party provides by rule for equal representation of the sexes on its state committee, "the designating petitions . . . shall list candidates for such party positions separately by sexes" (Election Law § 2-102 [4]). Thus, the courts below did not err in denying the petition to validate the designating petition due to the failure to specify whether the office sought was that of male or female member of the state committee (see *Matter of Bosco v Smith*, 104 AD2d 462

[2d Dept 1984], *affd* 63 NY2d 698 [1984]). Petitioner's remaining contentions do not afford a basis for reversal.

WILSON, J. (dissenting). "The right to vote freely for the candidate of one's choice is of the essence of a democratic society, and any restrictions on that right strike at the heart of representative government" (*Reynolds v Sims*, 377 US 533, 555 [1964]). Penny Mintz would like to serve as a Member of the Democratic State Committee for the 66th Assembly District. One of the two positions is reserved for males; the other for females. On July 11, 2018, she submitted petitions containing a sufficient number of signatures to the New York City Board of Elections. On at least seven dates after that through July 20th, the Board of Elections published a record of designating petitions that listed Ms. Mintz as a candidate for the female position on the State Committee. On August 1, however, the Board removed Ms. Mintz from the ballot, on the ground that the failure of her designating petitions to identify her as female constituted a "prima facie defect," invalidating her petitions. It is undisputed that Ms. Mintz is female, has always identified as female, and is eligible to run for the position she sought.

The Board contends that because her petitions did not identify her as female, they did not comply with subdivision (4) of section 2-102 of the Election Law. That subdivision reads as follows: "The state committee may provide by rule for equal representation of the sexes on said committee. When any such rule provides for equal representation of the sexes, the designating petitions and primary ballots shall list candidates for such party positions separately by sexes."

Respondents argue that even if few or no voters supporting Ms. Mintz's appearance on the ballot thought she was running for the male position on the State Committee, that information represents required content under state law. They urge that the Appellate Division's decision in *Matter of Bosco v Smith*, summarily affirmed by our Court, holds that content omissions, as opposed to matters of form, are fatal to balloting petitions (104 AD2d 462 [1984]). I disagree for two reasons. First, the plain words of subdivision (4) do not require identification of the gender of the prospective candidate, but instead require that a petition "list candidates for such party positions separately by sexes." Second, even were the language ambiguous, *Bosco* and other cases like it, which precede the 1996 Ballot Access Law amendments, are inconsistent with the legislative command in that law and have been legislatively supplanted.

As to the first point, I go grocery shopping from time to time, and have asked my family to give me a list separately listing refrigerated from non-refrigerated items (so that I can buy the cold items last, to better preserve them on the way home). One day, my family gives me a list that has only milk, ice cream, yogurt and frozen waffles. The list does not say “refrigerated items,” but my family has done exactly what I’ve asked: separately listed refrigerated from non-refrigerated items. That is, section 2-102 contains no requirement that a petition state the gender of a candidate (or the position). It would have been very simple for the legislature to say so, but it did not. Instead, the statute requires that petitions “list”—not “identify”—them by sex.

“The Legislature is presumed to mean what it says, and if there is no ambiguity in the act, it is generally construed according to its plain terms . . . [T]he court cannot disregard the plain words of a statute even in favor of what may be termed an equitable construction, in order to extend it to some supposed policy not included in the act” (McKinney’s Cons Laws of NY, Book 1, Statutes § 94, Comment; *see also Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018] [“The ‘literal language of a statute’ is generally controlling unless ‘the plain intent and purpose of a statute would otherwise be defeated’ ”], quoting *Bright Homes v Wright*, 8 NY2d 157, 161-162 [1960]).*

Alternatively, respondents contend that the name of the position itself is Female Member of the Democratic State Committee. The law is at most ambiguous on this point. Election Law § 2-102 provides that parties may require equal representation of the sexes on their state committees. But the rules of the Democratic Party frequently refer to the positions on the State Committee as simply “Members.” A wholly reasonable interpretation of the party rules and the statute is that the title of the office is Member of the State Committee, and some member positions have different requirements, such as the members’ sex.

* One might wonder what purpose the statute could have if interpreted that way. But it makes quite a bit of sense if you think of it in terms of both petitions and ballots. In the case of ballots, it important to separately list the positions by sex so that voters know they may vote for one of each sex, and that the male and female candidates are not competing against each other. In the case of a petition, that concern comes into play only when a petition contains more than one candidate.

As to the second point, respondents' more restrictive reading is hitched to *Matter of Bosco v Smith*, an Appellate Division decision this Court affirmed for reasons stated below in 1984 (104 AD2d 462 [1984]; 63 NY2d 698 [1984]). The Election Law has been amended since *Bosco* precisely to end this sort of ballot challenge. In 1996, the New York State Legislature changed the State's Election Law to dispose of technical barriers to running for office. The changes included removing requirements that petitioner signers list their full names and ward numbers, and including directives that corrections could be made on the signature line, that signers need not fill in information beyond their signatures, and that petitioners would have a three-day period during which they could cure errors found by the Board of Elections (L 1996, ch 709, enacting 1996 NY Senate-Assembly Bill S7856-A, A11167-A). More generally, the law instructed that the "regulations . . . promulgated by the state board of elections . . . shall be no more restrictive than is reasonably necessary for the processing of such petitions by the board of elections" (*id.* § 3, codified at Election Law § 6-134). Finally, the legislation included a provision indicating that "this section shall be liberally construed, not inconsistent with substantial compliance thereto and the prevention of fraud" (*id.*). Insofar as "this section" may be read to only apply to section 6-134 and not section 2-102 (and its command to list sexes separately), the approval memorandum from Governor Pataki should leave no doubt. The memorandum explains that the bill "provide[s] that *all rules* relating to the validity and submission of petitions are to be liberally construed" (Governor's Approval Mem, Bill Jacket, L 1996, ch 709 at 18, 1996 NY Legis Ann at 540 [emphasis added]; see also St Board of Elections Mem, Bill Jacket, L 1996, ch 709 at 20 [stating the bill "provides for the liberal construction of the rules governing petition gathering and filing"]; Assn of Bar of City of NY Rep on Legislation, Bill Jacket, L 1996, ch 709 at 25 [describing the bill as "Expanding the provision added in 1992 for liberal construction of the rules for cover sheets and binding to apply to the entire section of the Election Law prescribing the rules governing the preparation and filing of petitions. In addition . . . (the bill) evidenc(es) a legislative policy that other sections of the Election Law be interpreted to facilitate access to the ballot, and advance the policy of broad participation in the political process" (internal quotation marks omitted)]).

Those changes were the result of a long political struggle. When the bill passed, the Assembly Elections Committee Chair,

Paul Tokasz, wrote to thank Governor Pataki for his support, explaining that “[t]his legislation . . . includes many reforms which the Assembly had been passing for years. I was delighted that the Governor was able to persuade the Senate to pass the bill . . . Hopefully, New York will no longer generate half of all the election law litigation in the country” (Letter from Paul A. Tokasz, Chairman, Assembly Comm on Election Law, July 24, 1996, Bill Jacket, L 1996, ch 709 at 17). Indeed, just four years earlier in the New York Law Journal, then-New York Attorney General Bob Abrams wrote an op-ed also noting New York’s laws had “spawned almost half of all Election Law litigation in the nation” (Robert Abrams, *Comprehensive Election Law Reforms Advocated by State Attorney General; Law Day ‘92: The Struggle for Justice*, NYLJ, May 1, 1992 at 3, col 1). The Attorney General decried the system of ballot restrictions that had led to “example after example of candidates being removed from the ballot for trivial errors” and advocated reforms that would encourage people to run for office, instead of the “series of obstacles that only those well versed in the technicalities of the law can overcome” (*id.*).

The law’s bill jacket reveals advocates outside of government who had long-advocated reform with rationales in line with the Attorney General’s concerns and praised the 1996 law for substantially addressing the problem. Upon the 1996 bill’s passage, Andrew Greenblatt, the executive director of Common Cause/NY, wrote to Governor Pataki, urging him to sign this election reform into law, because “[f]or decades New York’s ballot access laws have made us the laughingstock of the nation” (Letter from Andrew Greenblatt, Executive Director, Common Cause/NY, July 12, 1996, Bill Jacket, L 1996, ch 709 at 30). The New York City Bar Association wrote to the Governor as well, urging him to sign it because “[w]hile the bill passed by the Legislature is not quite as progressive as your Program Bill, it nevertheless goes a long way towards the critically important goal of easing those requirements which govern access to the ballot” (Letter from Jonathan Burman, Director of Legis Affairs, Assn of Bar of City of NY, Bill Jacket, L 1996, ch 709 at 29). Over and over again, the historical record depicts advocates inside and outside of government pushing for the bill’s passage as a long-sought fix to New York’s restrictive balloting rules. Thus, even were one to read words into section 2-102 that do not exist in its text, the 1996 legislation makes clear that we would be frustrating the efforts of the Governor and legislature by doing so.

The Election Law evinces a clear directive that absent a serious concern with fraud, persons wishing to run for office should not be shut out of elections by court-sanctioned strict adherence to technical requirements. No such concerns exist here.

I dissent for the above reasons.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents in an opinion, in which Judge Rivera concurs.

Order affirmed, without costs, in a memorandum.

[112 NE3d 856, 87 NYS3d 550]

AGRIPINO POLANCO ROSA, Appellant, et al., Plaintiff, v RAFAEL DELACRUZ et al., Respondents.

Decided October 23, 2018

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 22, 2018. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Joseph E. Capella, J.; op 2016 NY Slip Op 32939[U] [2016]), which had granted defendants' motions for summary judgment dismissing plaintiff Agripino Polanco Rosa's complaint based on his failure to demonstrate that he suffered a serious injury to his left shoulder within the meaning of Insurance Law § 5102 (d).

Rosa v Delacruz, 158 AD3d 571, affirmed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury

Defendants' motions for summary judgment dismissing plaintiff's complaint based on his failure to demonstrate that he suffered from a serious injury to his left shoulder within the meaning of Insurance Law § 5102 (d) were properly granted. Defendants relied on independent physician reports finding that plaintiff had a normal range of motion six months following the accident, with no permanent effects, and on the results of a shoulder MRI performed six weeks after the accident by plaintiff's radiologist, who reported that plaintiff's rotator cuff tendons were intact and there was no MRI evidence of a tear. Plaintiff's responding medical submissions, which relied on the conclusory assertion of his orthopedist that there was a causal relationship between the accident and shoulder injury that he observed during surgery nearly two years after the accident, were inadequate to raise a triable issue of fact.

APPEARANCES OF COUNSEL

Gratt & Associates, P.C., Sea Cliff (*Mitchell Dranow* of counsel), for appellant.

Rivkin Radler LLP, Uniondale (*Henry Mascia* of counsel), for Rafael Delacruz, respondent.

Russo & Tambasco, Melville (*Susan J. Mitola* of counsel), and *Law Office of Dennis C. Bartling*, Westbury, for Devone Harp, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

In support of their motions for summary judgment, defendants relied on independent physician reports finding that plaintiff had a normal range of motion six months following the accident, with no permanent effects, and on the results of a shoulder MRI performed six weeks after the accident by plaintiff's radiologist, who reported that plaintiff's rotator cuff tendons were intact and there was no MRI evidence of a tear. Plaintiff's responding medical submissions were inadequate to raise a triable issue of fact because they failed to acknowledge, much less explain or contradict, the radiologist's finding. Instead, plaintiff relied on the purely conclusory assertion of his orthopedist that there was a causal relationship between the accident and anterior labrum/rotator cuff tears that he observed (and repaired) during surgery nearly two years after the accident.

FAHEY, J. (dissenting). I respectfully dissent and would reverse the order of the Appellate Division, deny defendants' motions, and reinstate the complaint. Even assuming, *arguendo*, that defendants met their initial burden on their respective motions, I would conclude that plaintiff submitted sufficient evidence to raise a triable issue of fact in opposition thereto (*see generally Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]).

Here, plaintiff tendered his medical records, together with reports of an orthopedist who examined him. The reports establish that the examining orthopedist diagnosed plaintiff with

a rotator cuff tear shortly after the subject accident,* concluded that such tear is causally related to the accident, and opined that the tear permanently limited plaintiff's use of his left shoulder (*see generally Perl v Meher*, 18 NY3d 208, 219 [2011]). The reports also sufficiently rebut defendants' theory that plaintiff's shoulder injuries were preexisting. The opinion of plaintiff's orthopedist with respect to the etiology of plaintiff's injuries is based on, among other things, that physician's review of plaintiff's medical history and personal observations that physician made during the arthroscopic procedure in which he repaired plaintiff's left shoulder (*see generally id.* at 218-219). Given the conflicting expert opinions, summary judgment is not appropriate in this case. This is a matter to be resolved by a trier of fact.

Chief Judge DiFIORE and Judges STEIN, GARCIA and FEINMAN concur; Judge FAHEY dissents in an opinion, in which Judges RIVERA and WILSON concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2018 October 31, 2018)

People v Agina	2d Dept: 163 AD3d 980 (Queens)	denied 10/2/18 (Fahey, J.)
People v Allison	4th Dept: 162 AD3d 1750 (Erie)	denied 10/24/18 (Wilson, J.)
People v Alsaifullah (Talib)	4th Dept: 162 AD3d 1483 (Cayuga)	denied 10/23/18 (Stein, J.) (Appeal No. 1)
People v Alsaifullah (Talib)	4th Dept: 162 AD3d 1487 (Cayuga)	denied 10/23/18 (Stein, J.) (Appeal No. 2)
People v Alsaifullah (Talib)	4th Dept: 162 AD3d 1487 (Cayuga)	denied 10/23/18 (Stein, J.) (Appeal No. 3)
People v Alston	2d Dept: 163 AD3d 843 (Kings)	denied 10/30/18 (Wilson, J.)
People v Anderson	2d Dept: 163 AD3d 981 (Dutchess)	denied 10/25/18 (Wilson, J.)
People v Andrews	App Term, 2d Dept, 9th & 10th Jud Dists: 59 Misc 3d 149(A) (Westchester)	denied 10/26/18 (Wilson, J.)

* I specifically note that plaintiff's orthopedist made this diagnosis based in part on his review of an MRI study of plaintiff's left shoulder that was conducted approximately six weeks after the subject accident.

MEMORANDA

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People v Anonymous	1st Dept: 161 AD3d 401 (NY)	granted 10/24/18 (DiFiore, Ch. J.)
People v Ayuso	2d Dept: 162 AD3d 1063 (Queens)	denied 10/30/18 (Wilson, J.)
People v Bartley	1st Dept: 163 AD3d 435 (Bronx)	denied 10/24/18 (Rivera, J.)
People v Borden	App Div, 4th Dept, 7/20/18 (Erie)	dismissed 10/17/18 (Stein, J.)
People v Brown (Darren)	2d Dept: 163 AD3d 705 (Queens)	denied 10/3/18 (Garcia, J.)
People v Brown (Wayne)	2d Dept: 162 AD3d 899 (Westchester)	denied 10/10/18 (Stein, J.)
People v Bruno	2d Dept: 164 AD3d 695 (Kings)	denied 10/24/18 (Garcia, J.)
People v Burks	3d Dept: 163 AD3d 1286 (Saratoga)	denied 10/11/18 (Rivera, J.)
People v Call	2d Dept: 162 AD3d 1063 (Dutchess)	denied 10/9/18 (Stein, J.)
People v Cappiello	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 139(A) (Richmond)	denied 10/11/18 (Stein, J.)
People v Charles	3d Dept: 163 AD3d 1362 (Warren)	denied 10/29/18 (Feinman, J.)
People v Chudy	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 139(A) (Nassau)	denied 10/30/18 (DiFiore, Ch. J.)
People v Conklin	3d Dept: 160 AD3d 1114 (Rensselaer)	denied 10/26/18 (Wilson, J.)
People v Cowan	2d Dept: 164 AD3d 597 (Queens)	denied 10/19/18 (DiFiore, Ch. J.)
People v Crawford	2d Dept: 163 AD3d 986 (Westchester)	denied 10/15/18 (Garcia, J.)
People v Crewe	App Div, 2d Dept: 2018 NY Slip Op 76633(U) (Westchester)	dismissed 10/9/18 (Stein, J.)
People v Crockett	4th Dept: 162 AD3d 1757 (Monroe)	denied 10/24/18 (Wilson, J.)
People v Cunny	2d Dept: 163 AD3d 708 (Kings)	denied 10/26/18 (Fahey, J.)
People v Diggity	3d Dept: 163 AD3d 1273 (Albany)	denied 10/26/18 (Fahey, J.)
People v D'Lucca	2d Dept: 163 AD3d 989 (Kings)	denied 10/24/18 (Rivera, J.)
People v Daley	2d Dept: 152 AD3d 786 (Kings)	denied 10/18/18 (Stein, J.)
People v Danford	App Div, 3d Dept: 2018 NY Slip Op 80039(U) (Cortland)	denied 10/26/18 (Fahey, J.)
People v David	2d Dept: 163 AD3d 846 (Suffolk)	denied 10/24/18 (Garcia, J.)
People v Delgado	2d Dept: 164 AD3d 912 (Kings)	denied 10/18/18 (Feinman, J.)
People v Del Plato	County Ct, 6/22/18 (Genesee)	denied 10/16/18 (Rivera, J.)

People v Diasia F.	2d Dept: 164 AD3d 913 (Queens)	denied 10/26/18 (Rivera, J.)
People v Diaz	2d Dept: 164 AD3d 519 (Kings)	denied 10/2/18 (Fahey, J.)
People v Durrell	4th Dept: 162 AD3d 1753 (Monroe)	denied 10/18/18 (DiFiore, Ch. J.)
People v Espinal	1st Dept: 161 AD3d 556 (NY)	denied 10/24/18 (DiFiore, Ch. J.)
People v Faria	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 130(A) (Dutchess)	denied 10/2/18 (Garcia, J.)
People v Fuller	2d Dept: 163 AD3d 715 (Kings)	denied 10/24/18 (Wilson, J.)
People v Gaillard	3d Dept: 162 AD3d 1205 (Schenectady)	denied 10/25/18 (Wilson, J.)
People v Gajadhad	App Div, 1st Dept: 2017 NY Slip Op 77504(U) (NY)	denied 10/31/18 (DiFiore, Ch. J.)
People v Gajadhar	App Div, 1st Dept: 2017 NY Slip Op 77504(U) (NY)	denied 10/31/18 (DiFiore, Ch. J.)
People v Gardner	2d Dept: 164 AD3d 602 (Queens)	denied 10/15/18 (Garcia, J.)
People v Gibson	2d Dept: 163 AD3d 586 (Nassau)	denied 10/11/18 (Feinman, J.)
People v Gilliam	3d Dept: 162 AD3d 1413 (St. Lawrence)	denied 10/3/18 (Garcia, J.)
People v Glover (Douglas)	2d Dept: 164 AD3d 1259 (Queens)	denied 10/30/18 (DiFiore, Ch. J.)
People v Glover (Freddie)	4th Dept: 162 AD3d 1558 (Monroe)	denied 10/30/18 (Wilson, J.)
People v Goodspeed	County Ct, 7/26/18 (Washington)	denied 10/26/18 (Fahey, J.)
People v Graves	App Div, 2d Dept: 2018 NY Slip Op 77696(U) (Kings)	dismissed 10/24/18 (Rivera, J.)
People v Griffin	2d Dept: 160 AD3d 660 (Orange)	denied reconsideration 10/26/18 (Fahey, J.)
People v Hankerson	2d Dept: 164 AD3d 698 (Kings)	denied 10/10/18 (DiFiore, Ch. J.)
People v Harris	2d Dept: 163 AD3d 993 (Suffolk)	denied 10/10/18 (DiFiore, Ch. J.)
People v Hayes	2d Dept: 163 AD3d 719 (Kings)	denied 10/27/18 (DiFiore, Ch. J.)
People v Hester	App Div, 2d Dept: 2018 NY Slip Op 79094(U) (Kings)	dismissed 10/15/18 (Stein, J.)
People v Hickey	App Term, 2d Dept, 9th & 10th Jud Dists: 60 Misc 3d 137(A) (Suffolk)	denied 10/2/18 (Garcia, J.)
People v Hicks	3d Dept: 162 AD3d 1406 (Albany)	denied 10/3/18 (Garcia, J.)

MEMORANDA

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People v Hinds	2d Dept: 160 AD3d 983 (Queens)	denied reconsideration 10/29/18 (Feinman, J.)
People v Hoffman	4th Dept: 162 AD3d 1753 (Monroe)	denied 10/18/18 (DiFiore, Ch. J.)
People v Holmes	1st Dept: 162 AD3d 585 (NY)	denied* (Stein, J.)
People v Hooks	App Div, 2d Dept: 2018 NY Slip Op 77697(U) (Kings)	dismissed 10/26/18 (Fahey, J.)
People v Jackson	3d Dept: 163 AD3d 1273 (Albany)	denied 10/26/18 (Fahey, J.)
People v Jean	App Div, 2d Dept: 2018 NY Slip Op 77293(U) (Rockland)	dismissed 10/24/18 (Garcia, J.)
People v Jeffrey	2d Dept: 164 AD3d 604 (Kings)	denied 10/18/18 (Feinman, J.)
People v Jules	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 128(A) (Kings)	denied 10/24/18 (Rivera, J.)
People v Kates (Alexander)	4th Dept: 162 AD3d 1627 (Monroe)	denied 10/4/18 (Garcia, J.) (Appeal No. 1)
People v Kates (Alexander)	4th Dept: 162 AD3d 1633 (Monroe)	denied 10/4/18 (Garcia, J.) (Appeal No. 2)
People v Keishawn W.	2d Dept: 164 AD3d 699 (Kings)	denied 10/30/18 (Wilson, J.)
People v Keita	1st Dept: 162 AD3d 610 (NY)	denied 10/3/18 (Garcia, J.)
People v Kelley	1st Dept: 163 AD3d 422 (NY)	denied 10/2/18 (Fahey, J.)
People v Kruppenbacher	3d Dept: 163 AD3d 1266 (Greene)	denied 10/26/18 (Fahey, J.)
People v Lankford	4th Dept: 162 AD3d 1583 (Onondaga)	denied 10/26/18 (Wilson, J.)
People v Leak	2d Dept: 164 AD3d 606 (Queens)	denied 10/30/18 (Wilson, J.)
People v Lively	4th Dept: 163 AD3d 1466 (Monroe)	denied 10/4/18 (Garcia, J.)
People v Lopes	1st Dept: 161 AD3d 456 (NY)	denied 10/30/18 (DiFiore, Ch. J.)
People v Lynch	App Div, 2d Dept: 2018 NY Slip Op 74856(U) (Queens)	denied reconsideration 10/26/18 (Fahey, J.)
People v Lyons	2d Dept: 163 AD3d 589 (Queens)	denied 10/3/18 (Garcia, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in both *People v Diaz* (149 AD3d 974 [2017], *lv granted* 29 NY3d 1136 [2017]) and *People v Cisse* (149 AD3d 435 [2017], *lv granted* 29 NY3d 1124 [2017]).

People v Mack	2d Dept: 164 AD3d 607 (Kings)	denied 10/18/18 (DiFiore, Ch. J.)
People v Magny	2d Dept: 162 AD3d 1072 (Kings)	denied 10/2/18 (Garcia, J.)
People v Maisonet	2d Dept: 164 AD3d 608 (Queens)	denied 10/10/18 (Garcia, J.)
People v Mallard	3d Dept: 163 AD3d 1350 (Rensselaer)	denied 10/4/18 (Garcia, J.)
People v Marvin	4th Dept: 162 AD3d 1744 (Ontario)	denied 10/2/18 (Garcia, J.)
People v McClough	App Div, 2d Dept: 2018 NY Slip Op 76637(U) (Nassau)	dismissed 10/30/18 (Wilson, J.)
People v McEachern	2d Dept: 163 AD3d 850 (Kings)	denied 10/24/18 (Wilson, J.)
People v McFadden (Chondrae)	App Term, 1st Dept: 60 Misc 3d 129(A) (Bronx)	denied 10/3/18 (Garcia, J.)
People v McFadden (Reginald)	2d Dept: 162 AD3d 686, 2018 NY Slip Op 04000 (Rockland)	denied 10/30/18 (Wilson, J.)
People v McFadden	2d Dept: 162 AD3d 686, 2018 NY Slip Op 04001(Rockland)	denied 10/30/18 (Wilson, J.)
People v McNeil	2d Dept: 164 AD3d 608 (Kings)	denied 10/15/18 (DiFiore, Ch. J.)
People v Medina	1st Dept: 162 AD3d 515 (NY)	denied 10/26/18 (Wilson, J.)
People v Meehan	App Div, 3d Dept: 2018 NY Slip Op 75631(U) (Broome)	denied 10/19/18 (DiFiore, Ch. J.)
People v Mendez	App Term, 1st Dept: 60 Misc 3d 129(A) (NY)	denied 10/25/18 (Wilson, J.)
People v Mercer	App Div, 4th Dept, 8/7/18 (Oneida)	dismissed 10/26/18 (DiFiore, Ch. J.)
People v Metzler	2d Dept: 162 AD3d 687 (Putnam)	denied 10/24/18 (Wilson, J.)
People v Mills	App Div, 4th Dept, 6/28/18 (Onondaga)	dismissed 10/3/18 (Garcia, J.)
People v Milton	2d Dept: 143 AD3d 918 (Queens)	denied 10/26/18 (Rivera, J.)
People v Minaya	2d Dept: 164 AD3d 836 (Kings)	denied 10/15/18 (Garcia, J.)
People v Miranda	3d Dept: 163 AD3d 1168 (Schenectady)	denied 10/18/18 (Stein, J.)
People v Moore	App Div, 2d Dept: 2018 NY Slip Op 81022(U) (Nassau)	dismissed 10/11/18 (Feinman, J.)
People v Moronta	2d Dept: 163 AD3d 851 (Westchester)	denied 10/15/18 (Garcia, J.)
People v Myers (Ariel)	3d Dept: 163 AD3d 1152 (Rensselaer)	denied 10/25/18 (Wilson, J.)
People v Myers (Jay)	App Div, 4th Dept: 2018 NY Slip Op 78751(U) (Niagara)	dismissed 10/15/18 (Stein, J.)

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People v Nicholas (David)	App Div, 4th Dept, 7/27/18 (Onondaga)	dismissed 10/19/18 (DiFiore, Ch. J.)
People v Nichols (Heather)	App Term, 1st Dept: 60 Misc 3d 127(A) (NY)	denied 10/26/18 (Wilson, J.)
People v Odendahl	2d Dept: 162 AD3d 908 (Orange)	denied 10/17/18 (DiFiore, Ch. J.)
People v Olson	3d Dept: 162 AD3d 1249 (Ulster)	denied 10/2/18 (Garcia, J.)
People v Parker	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 131(A) (Richmond)	denied 10/2/18 (Garcia, J.)
People v Paulino	1st Dept: 162 AD3d 614 (NY)	denied 10/24/18 (Wilson, J.)
People v Pearson	1st Dept: 163 AD3d 446 (NY)	denied 10/2/18 (Garcia, J.)
People v Peguero-Sanchez	2d Dept: 163 AD3d 852 (Suffolk)	denied 10/15/18 (Stein, J.)
People v Perez-Coira	2d Dept: 162 AD3d 909 (Rockland)	denied 10/2/18 (Garcia, J.)
People v Perez-Ramirez	2d Dept: 163 AD3d 725 (Nassau)	denied 10/9/18 (Stein, J.)
People v Perkins	App Div, 2d Dept: 2018 NY Slip Op 77708(U) (Queens)	dismissed 10/29/18 (Feinman, J.)
People v Perry	2d Dept: 164 AD3d 525 (Kings)	denied 10/10/18 (Garcia, J.)
People v Ransom	2d Dept: 164 AD3d 838 (Kings)	denied 10/29/18 (Feinman, J.)
People v Reed	4th Dept: 163 AD3d 1446 (Onondaga)	denied 10/24/18 (Stein, J.)
People v Reillo	2d Dept: 164 AD3d 1476 (Kings)	denied 10/26/18 (Rivera, J.)
People v Rivera	2d Dept: 163 AD3d 852 (Queens)	denied 10/2/18 (Fahey, J.)
People v Robinson (Eric)	4th Dept: 158 AD3d 1263 (Ontario)	denied 10/9/18 (Stein, J.)
People v Robinson (Kendale)	2d Dept: 163 AD3d 1002 (Kings)	denied 10/10/18 (Garcia, J.)
People v Robinson (Shavon)	2d Dept: 164 AD3d 924 (Kings)	denied 10/29/18 (Feinman, J.)
People v Robinson (Stevie)	App Div, 2d Dept: 2017 NY Slip Op 96840(U) (Dutchess)	denied reconsideration 10/24/18 (Wilson, J.)
People v Rodriguez	1st Dept: 163 AD3d 437 (NY)	denied 10/18/18 (DiFiore, Ch. J.)
People v Ross	2d Dept: 164 AD3d 528 (Kings)	denied 10/4/18 (Garcia, J.)
People v Ruiz	2d Dept: 164 AD3d 924 (Westchester)	denied 10/25/18 (Garcia, J.)
People v Rydzynski	County Ct, 7/12/18 (Ontario)	denied 10/9/18 (Stein, J.)

People v Sahadeo	App Div, 2d Dept: 2018 NY Slip Op 76101(U) (Queens)	dismissed 10/24/18 (Wilson, J.)
People v Saliani	2d Dept: 163 AD3d 854 (Suffolk)	denied 10/30/18 (DiFiore, Ch. J.)
People v Sands	2d Dept: 164 AD3d 613 (Queens)	denied 10/26/18 (Fahey, J.)
People v Santiago	1st Dept: 161 AD3d 642 (NY)	denied 10/4/18 (Fahey, J.)
People v Sheikh (Akhtar)	App Term, 1st Dept: 58 Misc 3d 158(A), 2018 NY Slip Op 50241(U) (NY)	denied reconsideration 10/26/18 (Rivera, J.)
People v Sheikh (Akhtar)	App Term, 1st Dept: 58 Misc 3d 158(A), 2018 NY Slip Op 50242(U) (NY)	denied reconsideration 10/26/18 (Rivera, J.)
People v Smith (Laquan)	2d Dept: 164 AD3d 619 (Westchester)	denied 10/26/18 (Fahey, J.)
People v Smith (Tyrell)	2d Dept: 163 AD3d 1005 (Richmond)	denied 10/26/18 (Fahey, J.)
People v Snipe	App Term, 1st Dept: 60 Misc 3d 133(A) (NY)	denied 10/9/18 (Stein, J.)
People v Soule	3d Dept: 162 AD3d 1407 (Chemung)	denied 10/26/18 (Fahey, J.)
People v Steffens	2d Dept: 164 AD3d 616 (Queens)	denied 10/4/18 (Garcia, J.)
People v Sterling	2d Dept: 162 AD3d 914 (Kings)	denied 10/2/18 (Garcia, J.)
People v Stewart	2d Dept: 161 AD3d 1108 (Westchester)	denied 10/2/18 (Fahey, J.)
People v Stokes	App Div, 4th Dept: 2018 NY Slip Op 73687(U) (Erie)	denied reconsideration 10/19/18 (DiFiore, Ch. J.)
People v Stonesco	2d Dept: 163 AD3d 1006 (Queens)	denied 10/10/18 (Stein, J.)
People v Sumpter	2d Dept: 164 AD3d 619 (Queens)	denied 10/2/18 (Fahey, J.)
People v Surdis	3d Dept: 163 AD3d 1363 (Delaware)	denied 10/9/18 (Stein, J.)
People v Taylor	3d Dept: 163 AD3d 1275 (Cortland)	denied 10/24/18 (Garcia, J.)
People v Thomas (Michael)	2d Dept: 164 AD3d 619 (Westchester)	denied 10/26/18 (Fahey, J.)
People v Thomas (Mychael)	3d Dept: 163 AD3d 1293 (Albany)	denied 10/15/18 (Garcia, J.)
People v Toledo	App Div, 3d Dept: 2018 NY Slip Op 77543(U) (Montgomery)	dismissed 10/30/18 (Wilson, J.)
People v Tyrell	App Div, 3d Dept: 2018 NY Slip Op 78873(U) (Albany)	dismissed 10/4/18 (Garcia, J.)

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People v Valdiviezo	2d Dept: 162 AD3d 800 (Kings)	denied 10/15/18 (Stein, J.)
People v Walker	2d Dept: 164 AD3d 623 (Richmond)	denied 10/25/18 (Wilson, J.)
People v Webb	2d Dept: 163 AD3d 880 (Kings)	denied 10/15/18 (Stein, J.)
People v Whidbee	2d Dept: 164 AD3d 623 (Kings)	denied 10/11/18 (DiFiore, Ch. J.)
People v Wilborn	2d Dept: 164 AD3d 530 (Orange)	denied 10/30/18 (Wilson, J.)
People v Williams (Chad)	App Div, 4th Dept: 2018 NY Slip Op 78208(U) (Monroe)	dismissed 10/24/18 (Rivera, J.)
People v Williams (Chad)	App Div, 4th Dept, 7/17/18 (Monroe)	dismissed 10/24/18 (Rivera, J.)
People v Williams (Isiah)	4th Dept: 163 AD3d 1420 (Monroe)	dismissed 10/15/18 (Stein, J.) (Appeal No. 2)
People v Williams (Isiah)	4th Dept: 163 AD3d 1422 (Monroe)	denied 10/15/18 (Stein, J.) (Appeal No. 3)
People v Williams (Jeffrey)	3d Dept: 163 AD3d 1283 (Schoharie)	denied 10/4/18 (Garcia, J.)
People v Wood	4th Dept: 163 AD3d 1485 (Monroe)	denied 10/30/18 (Feinman, J.)
People v Wright (Ronald)	2d Dept: 160 AD3d 667 (Kings)	denied reconsideration 10/24/18 (Garcia, J.)
People v Wright (Terrence)	App Div, 1st Dept: 2018 NY Slip Op 74878(U) (NY)	dismissed 10/3/18 (Garcia, J.)
People v Yorke	App Div, 2d Dept: 2018 NY Slip Op 79558(U) (Suffolk)	dismissed 10/26/18 (Fahey, J.)
People v Zarro	2d Dept: 157 AD3d 727 (Dutchess)	denied 10/30/18 (DiFiore, Ch. J.)
People v Zirkel	2d Dept: 164 AD3d 846 (Kings)	denied 10/30/18 (Wilson, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(October 1, 2018 through October 31, 2018)

People v Pendell	3d Dept: 164 AD3d 1063 (Columbia)	granted 10/23/18 (Clark, J.)
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* Includes only applications that were granted.

In the Matter of ANDRENA ALPHONSE, Respondent, v ALFRED ALPHONSE, Appellant.

Submitted October 1, 2018; decided November 14, 2018

Reported below, 2018 NY Slip Op 75245(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LILYA ANDRYEYEV, Individually and on Behalf of All Others Similarly Situated, et al., Respondents, v NEW YORK HEALTH CARE, INC., Doing Business as NEW YORK HOME ATTENDANT AGENCY, et al., Appellants.

Submitted November 5, 2018; decided November 14, 2018

Reported below, 153 AD3d 1216.

Motion by Consumer Directed Personal Assistance Association of New York State, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

BRONX ISLAMIC SOCIETY, INC., Respondent, v TERRENCE H. ALLY et al., Appellants.

Submitted July 30, 2018; decided November 14, 2018

Reported below, 158 AD3d 581.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Accounting by DOMINICK EUGENE, as the Executor of the Estate of MARCO EUGENE, Deceased, Appellant. DENISE SCHUMACHER et al., Respondents.

Decided November 14, 2018

Reported below, 160 AD3d 506; 2018 NY Slip Op 79969(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the orders appealed from do not finally determine the proceeding within the meaning of the Constitution.

ANTHONY MODICA et al., Appellants, v TOPAZ ENTERPRISES, INC.,
Respondent.

Submitted September 4, 2018; decided November 14, 2018

Reported below, 147 AD3d 1041.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

ANN M. SOUTH, Respondent, v CHEVRON CORPORATION, Appel-
lant, et al., Defendant.

Submitted October 22, 2018; decided November 14, 2018

Reported below, 153 AD3d 461.

Motion by Association of American Railroads for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of MIKHAIL ONEFATER et al., Respondents, v
ILDIKO NYARI, Appellant.

Submitted September 4, 2018; decided November 14, 2018

Reported below, 2018 NY Slip Op 77282(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

130 THIRD STREET LOFT, LLC, Appellant, v HKF, INC., Respondent.

Submitted November 9, 2018; decided November 14, 2018

Reported below, 164 AD3d 724.

Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TRAVIS BRECKENRIDGE, Respondent.

Decided November 14, 2018

Reported below, 162 AD3d 425.

Appeal dismissed, by the Court of Appeals sua sponte, upon the ground that the modification by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification” (CPL 450.90 [2] [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICOLE L. GREEN, Also Known as NICOLE GREEN, Appellant.

Submitted November 13, 2018; decided November 14, 2018

Reported below, 160 AD3d 1422.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 290 Main Street, Suite 350, Buffalo, NY 14202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GROVER FRANCIS, on Behalf of LUIS MUNIZ, Respondent, v CYNTHIA BRANN, Commissioner, Department of Correction, Appellant.

Decided November 14, 2018

Reported below, 163 AD3d 1038.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RICHARD MILLS,
Appellant, v JOHN COLVIN, Superintendent, Five Points
Correctional Facility, Respondent.

Submitted October 1, 2018; decided November 14, 2018

Reported below, 2018 NY Slip Op 82028(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANGEL ORTIZ,
Appellant, v DENNIS BRESLIN et al., Respondents.

Decided November 14, 2018

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of SAVE AMERICA'S CLOCKS, INC., et al., Respon-
dents, v CITY OF NEW YORK et al., Appellants.

Submitted October 22, 2018; decided November 14, 2018

Reported below, 157 AD3d 133.

Motion by The City Club of New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Chief Judge DiFIORE taking no part.

ANDREW CAROTHERS, M.D., P.C., Appellant, v PROGRESSIVE IN-
SURANCE COMPANY, Respondent.

Submitted September 10, 2018; decided November 20, 2018

Reported below, 150 AD3d 192.

Motion to dismiss appeal denied.

MARION DUDLEY, Plaintiff, v CITY OF NEW YORK et al., Respondents, et al., Defendants. GEORGE HEATH, Nonparty Appellant.

Submitted September 4, 2018; decided November 20, 2018

Reported below, 2018 NY Slip Op 78901(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for other relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

AARON S. HAGLER, an Infant, by His Mother and Natural Guardian, REBECCA HAGLER, et al., Appellants, v SOUTHAMPTON HOSPITAL et al., Respondents, et al., Defendant.

Submitted September 17, 2018; decided November 20, 2018

Reported below, 164 AD3d 479.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Paglia v Agrawal*, 69 NY2d 946 [1987]).

INTERNATIONAL BRAIN RESEARCH FOUNDATION, INC., Appellant, v JOHN A. CAVALIER et al., Respondents.

Submitted September 10, 2018; decided November 20, 2018

Reported below, 158 AD3d 464.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

BIJAN KARIMIAN, Appellant, v TIME EQUITIES, INC., et al., Respondents.

Submitted September 10, 2018; decided November 20, 2018

Reported below, 164 AD3d 486.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SHARIF KING, Appellant, v NEIL ROSS, Respondent.

Submitted October 22, 2018; decided November 20, 2018

Reported below, 163 AD3d 450.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of TINA LEGGIO, Appellant, v SHARON DEVINE, as Executive Deputy Commissioner of the New York State Office of Temporary and Disability Assistance, et al., Respondents.

Submitted August 13, 2018; decided November 20, 2018

Reported below, 158 AD3d 803; 2018 NY Slip Op 76233(U).

Motion, insofar as it seeks leave to appeal from the February 2018 Appellate Division judgment, granted; motion for leave to appeal otherwise dismissed upon the ground that the June 2018 Appellate Division order denying reargument or leave to appeal does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief granted.

ADAM MATUSZEWSKI, Appellant, v CITY OF NEW YORK et al., Defendants/Second Third-Party Plaintiffs-Respondents, and SKANSKA/PICONE II, a Joint Venture, et al., Defendants/Third-Party Plaintiffs-Respondents, et al., Defendant. WELSBACH ELECTRICAL CORP., Third-Party/Second Third-Party Defendant-Respondent.

Submitted September 10, 2018; decided November 20, 2018

Reported below, 163 AD3d 546.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ADA OPARAJI, Plaintiff, and MAURICE OPARAJI, Appellant, v
CITIBANK, N.A., et al., Respondents.

Submitted September 10, 2018; decided November 20, 2018

Reported below, 2018 NY Slip Op 78936(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion for leave to appeal from the order of the Appellate Division entered in this action commenced in Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAMDY
MOHAMED, Appellant.

Submitted September 17, 2018; decided November 20, 2018

Reported below, 2018 NY Slip Op 80669(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

DOMENICK PERRUCCIO, Appellant, v LEONORA EVELYN S. PERRUCCIO, Respondent.

Submitted September 10, 2018; decided November 20, 2018

Reported below, 2018 NY Slip Op 79814(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JAMES PETTUS, Appellant, et al., Petitioner, v
BOARD OF DIRECTORS et al., Respondents.

Submitted August 13, 2018; decided November 20, 2018

Reported below, 155 AD3d 485.

Motion, insofar as treated as a motion for reargument, denied. Motion for poor person relief dismissed as academic. Motion for other relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of JAMES PETTUS, Appellant, et al., Petitioner, v
BOARD OF DIRECTORS et al., Respondents.

Submitted August 20, 2018; decided November 20, 2018

Reported below, 2018 NY Slip Op 83910(U).

Motion, insofar as treated as a motion for reargument, denied. Motion for poor person relief dismissed as academic. Motion for other relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of MARC SALZ, Appellant, v BELLAGIO, LLC, et
al., Respondents.

In the Matter of MARC SALZ, Appellant, v CHRISTIES, INC., et
al., Respondents.

Submitted August 20, 2018; decided November 20, 2018

Reported below, 163 AD3d 422.

Motion for leave to appeal denied. Motion for ancillary relief dismissed as academic.

In the Matter of STEPHEN SCHOONMAKER, Appellant, v NEW
YORK STATE DEPARTMENT OF MOTOR VEHICLES, Respondent.

Submitted November 5, 2018; decided November 20, 2018

Reported below, 165 AD3d 677.

Motion for a stay denied.

DONNELL BAINES, Appellant, v THE DAILY NEWS, L.P., et al.,
Respondents.

Submitted September 17, 2018; decided November 27, 2018

Reported below, 2018 NY Slip Op 78596(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TAMARA BEHAN, Respondent, v ANDREW N. KORNSTEIN, Appellant.

Submitted October 22, 2018; decided November 27, 2018

Reported below, 164 AD3d 1113.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's order finding defendant in contempt, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

DANIEL COLLIN et al., Respondents, v PARK RIGHT CORPORATION, Defendant, and 415 PR LLC, Appellant.

Submitted September 4, 2018; decided November 27, 2018

Reported below, 2018 NY Slip Op 68236(U).

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511).

ANTHONY GORDON, Plaintiff, and MARTINA GORDON, Appellant, v 476 BROADWAY REALTY CORP. et al., Respondents.

Submitted September 24, 2018; decided November 27, 2018

Reported below, 161 AD3d 417.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WALTER GRANT, Appellant, v COUNTY OF NEW YORK, Respondent.

Submitted October 1, 2018; decided November 27, 2018

Reported below, 2018 NY Slip Op 80617(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

INTREPID INVESTMENTS, LLC, Appellant, et al., Plaintiff, v SELLING SOURCE, LLC, Respondent, et al., Defendants.

In the Matter of INTREPID INVESTMENTS, LLC, Appellant, v SELLING SOURCE, LLC, Respondent.

Submitted September 4, 2018; decided November 27, 2018

Reported below, 159 AD3d 508.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the September 2015 order in the above-captioned action, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v DOINA ALMAZON, Appellant, et al., Defendants.

Submitted September 17, 2018; decided November 27, 2018

Reported below, 2018 NY Slip Op 75563(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of RICHARD LOVE, Respondent, v VILLAGE OF PLEASANTVILLE et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted October 1, 2018; decided November 27, 2018

Reported below, 161 AD3d 1477.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

METROPOLITAN LOFTS OF NY, LLC, Respondent, v METROEB REALTY 1, LLC, Appellant-Respondent, and REDSKY CAPITAL, LLC, Respondent-Appellant.

Submitted October 1, 2018; decided November 27, 2018

Reported below, 160 AD3d 632; 160 AD3d 637.

Motions for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the NEW YORK STATE OFFICE OF VICTIM SERVICES, Respondent, v WILLIAM D. SMITH, Appellant.

Submitted October 1, 2018; decided November 27, 2018

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3 [b]; CPLR 5602 [a]). Motion for poor person relief etc. dismissed as academic.

PROJECT CRICKET ACQUISITION, INC., Appellant, v FCP INVESTORS VI, L.P., et al., Respondents, et al., Defendants.

Submitted September 4, 2018; decided November 27, 2018

Reported below, 159 AD3d 600.

Motion, insofar as it seeks leave to appeal as against defendants Felix J. Wong and Gregory Johnson, denied; motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

UBS SECURITIES LLC et al., Respondents, v HIGHLAND CAPITAL MANAGEMENT, L.P., et al., Appellants.

Submitted October 1, 2018; decided November 27, 2018

Reported below, 159 AD3d 512.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of JOHN W. YENGO, JR., et al., Appellants, v
LAWYERS' FUND FOR CLIENT PROTECTION OF THE STATE OF
NEW YORK, Respondent.

Submitted September 17, 2018; decided November 27, 2018

Reported below, 163 AD3d 1300.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]; 2103 [b] [2]).

JENNIFER CANGRO, Appellant, v GINA MARIE REITANO, Respon-
dent.

Decided December 11, 2018

Reported below, 163 AD3d 494.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

In the Matter of DENNIS E., Appellant, v MATTHEW J. D'EMIC, a
Justice of the Supreme Court, Kings County, et al., Respon-
dents.

Submitted September 17, 2018; decided December 11, 2018

Reported below, 159 AD3d 699.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

Chief Judge DiFIORE taking no part.

MARC FISHMAN, Appellant, v JENNIFER SOLOMON, Respondent.

Submitted September 10, 2018; decided December 11, 2018

Reported below, 163 AD3d 630.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

RANDALL M. HINTON, Appellant, v VILLAGE OF PULASKI, Respondent.

Submitted December 3, 2018; decided December 11, 2018

Reported below, 160 AD3d 1446.

Motion by New York State Conference of Mayors and Municipal Officials et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. An original and nine copies of the brief must be filed and the brief submitted in digital format within seven days.

HYUNCHEOL HWANG, Appellant, v MIRAE ASSET SECURITIES (USA) INC., Formerly Known as DAEWOO SECURITIES (AMERICA) INC., et al., Respondents.

Submitted November 19, 2018; decided December 11, 2018

Reported below, 165 AD3d 413.

Motion for a stay dismissed as academic.

In the Matter of LARCHMONT PANCAKE HOUSE, Appellant, v BOARD OF ASSESSORS and/or the ASSESSOR OF THE TOWN OF MAMARONECK, et al., Respondents. (And Three Other Proceedings.)

Submitted December 3, 2018; decided December 11, 2018

Reported below, 153 AD3d 521.

Motion by Stop & Shop Supermarket Company, LLC for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LARCHMONT PANCAKE HOUSE, Appellant, v BOARD OF ASSESSORS and/or the ASSESSOR OF THE TOWN OF MAMARONECK, et al., Respondents. (And Three Other Proceedings.)

Submitted December 3, 2018; decided December 11, 2018

Reported below, 153 AD3d 521.

Motion by International Council of Shopping Centers for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LIANG-HOUH SHIEH, a Disbarred Attorney.
COMMITTEE ON PROFESSIONAL STANDARDS, Now Known as
ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL
DEPARTMENT, Respondent, LIANG-HOUH SHIEH, Appellant.

Submitted September 17, 2018; decided December 11, 2018

Reported below, 162 AD3d 1393.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANONY-
MOUS, Appellant.

Submitted November 19, 2018; decided December 11, 2018

Reported below, 161 AD3d 401.

Motion for assignment of counsel granted and Christina A. Swarns, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALI
CISSE, Appellant.

Submitted December 3, 2018; decided December 11, 2018

Reported below, 149 AD3d 435.

Motion by The Brennan Center for Justice at NYU School of Law et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EM-
MANUEL DIAZ, Appellant.

Submitted December 3, 2018; decided December 11, 2018

Reported below, 149 AD3d 974.

Motion by Sanctuary for Families, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY-
HEAME HILL, Appellant.

Submitted November 19, 2018; decided December 11, 2018

Reported below, 153 AD3d 413.

Motion for assignment of counsel granted and Justine M. Luongo, Esq., Attorney-in-Charge, Criminal Defense Practice, The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANGELO D.
JOHNSON, Appellant, v MICHAEL A. SCHIFF, as Sheriff of
Sullivan County, Respondent.

Decided December 11, 2018

Reported below, 2018 NY Slip Op 80760(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CHANCE MC-
CURDY, Appellant, v WARDEN, WESTCHESTER COUNTY COR-
RECTIONAL FACILITY, et al., Respondents.

Submitted October 9, 2018; decided December 11, 2018

Reported below, 164 AD3d 692.

Motion for leave to appeal granted. Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* JUSTO RICHARDS,
Appellant, v NYS DEPARTMENT OF CORRECTIONS AND COM-
MUNITY SUPERVISION, Respondent.

Submitted September 24, 2018; decided December 11, 2018

On the Court's own motion, appeal transferred without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for poor person relief dismissed as academic.

In the Matter of REGINA METROPOLITAN Co., LLC, Respondent,
v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY
RENEWAL, Respondent, and LESLIE E. CARR *et al.*,
Intervenors-Appellants.

In the Matter of LESLIE E. CARR *et al.*, Appellants, v NEW YORK
STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Re-
spondent, and REGINA METROPOLITAN Co., LLC, Intervenor-
Respondent.

Decided December 11, 2018

Reported below, 164 AD3d 420.

Appeal dismissed without costs, by the Court of Appeals *sua sponte*, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

6 HARBOR PARK DRIVE, LLC, Appellant, v TOWN OF NORTH
HEMPSTEAD *et al.*, Respondents.

Submitted September 4, 2018; decided December 11, 2018

Reported below, 159 AD3d 777.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed that portion of the Supreme Court order granting the motions of defendants Town of North Hempstead, Incorporated Village of Flower Hill, Woo Chang, Sook Chang, Manfred Demenus, and Marita Demenus for summary judgment dismissing the complaint insofar as asserted against them, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARK F. SLOANE, M.D., Respondent, v M.G.,
Appellant.

Decided December 11, 2018

Reported below, 164 AD3d 158.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

In the Matter of JENNIFER S. SOLOMON, Respondent, v MARC H.
FISHMAN, Appellant.

Submitted September 10, 2018; decided December 11, 2018

Reported below, 162 AD3d 1051.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of JENNIFER S. SOLOMON, Respondent, v MARC H.
FISHMAN, Appellant.

Submitted September 10, 2018; decided December 11, 2018

Reported below, 162 AD3d 1052.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

U.S. BANK NATIONAL ASSOCIATION, Appellant, v DLJ MORTGAGE
CAPITAL, INC., Respondent.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v DLJ MORT-
GAGE CAPITAL, INC., Appellant.

Submitted December 3, 2018; decided December 11, 2018

Reported below, 141 AD3d 431.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Concur: Chief Judge DiFiore and Judges Jenny Rivera, Stein, Fahey, Garry, by designation, Reinaldo E. Rivera, by designation, and Sweeny, by designation.*

Taking no part: Judges Garcia, Wilson and Feinman.

[114 NE3d 141, 89 NYS3d 673]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALEX FLORES, LUCIO RAMIREZ, BENIGNO AGUILAR and EMMANUEL FLORES, Respondents.

Argued November 15, 2018; decided December 13, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered July 5, 2017. The Appellate Division (1) reversed, on the law, four judgments of the Orange County Court (Nicholas De Rosa, J.), entered after a joint trial, which had (a) convicted defendant Alex Flores, upon a jury verdict, of gang assault in the first degree, gang assault in the second degree, assault in the first degree and assault in the second degree (two counts); (b) convicted defendant Lucio Ramirez, upon a jury verdict, of gang assault in the first degree, gang assault in the second degree, assault in the first degree, assault in the second degree (two counts) and criminal possession of a weapon in the fourth degree; (c) convicted defendant Benigno Aguilar, upon a jury verdict, of gang assault in the first degree, gang assault in the second degree, assault in the first degree, assault in the second degree (two counts) and criminal possession of a weapon in the fourth degree; and (d) convicted defendant Emmanuel Flores, upon a jury verdict, of gang assault in the first degree, gang assault in the second degree, assault in the first degree and assault in the second degree (two counts); and (2) ordered a new trial. The appeal to

* Designated pursuant to NY Constitution, article VI, § 2.

the Appellate Division brought up for review the denial, after a hearing, of that branch of defendant Lucio Ramirez's omnibus motion which was to suppress identification testimony.

People v Flores, 153 AD3d 182, affirmed.

HEADNOTE

Crimes — Jurors — Anonymous Jury

In a joint prosecution of four defendants for multiple crimes, including gang assault in the first degree, the trial court committed reversible error by empaneling an anonymous jury. Assuming that trial courts may, under certain circumstances, anonymize jurors, here the trial court acted without any factual predicate. It expressly based its decision on anecdotal accounts from jurors in unrelated cases and, then, exacerbated the error by taking no steps to lessen the potential prejudice to defendants.

APPEARANCES OF COUNSEL

David M. Hoovler, District Attorney, Goshen (*Robert H. Middlemiss* and *Andrew R. Kass* of counsel), for appellant.

Leonard J. Levenson, New York City, for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The trial court committed reversible error by empaneling an anonymous jury. Assuming that trial courts may, under certain circumstances, anonymize jurors, here County Court acted without any factual predicate for the extraordinary procedure. Indeed, the trial court expressly based its decision to empanel an anonymous jury on anecdotal accounts from jurors in unrelated cases and, then, exacerbated the error by taking “no steps to lessen the potential prejudice” to defendants (153 AD3d 182, 193 [2d Dept 2017]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.

In the Matter of the Claim of MALCOLM ALDRIDGE, Respondent.
QUALITY SYSTEMS & COMPLIANCE, INC., Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted September 10, 2018; decided December 13, 2018

Reported below, 2018 NY Slip Op 78826(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DEBORAH BUSH, Appellant, v STEVENSON COMMONS ASSOCIATES, LLP, Esqs., Defendant. STATE OF NEW YORK, Nonparty Respondent.

Submitted November 13, 2018; decided December 13, 2018

Reported below, 156 AD3d 752.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1034 (2018)]. Motion for poor person relief dismissed as academic.

In the Matter of KEVIN McK., Appellant, v ELIZABETH A.E., Respondent.

Submitted October 22, 2018; decided December 13, 2018

Reported below, 151 AD3d 600.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 944 (2018)].

ASHLEY KOZEL, Respondent, v TODD KOZEL, Defendant. INGA KOZEL, Nonparty Appellant.

Submitted October 22, 2018; decided December 13, 2018

Reported below, 161 AD3d 699.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ASHLEY KOZEL, Respondent, v TODD KOZEL, Defendant. INGA KOZEL, Nonparty Appellant.

Submitted October 22, 2018; decided December 13, 2018

Reported below, 161 AD3d 700.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

STUART KREISLER et al., Respondents, v B-U REALTY CORP. et al., Appellants.

Submitted October 29, 2018; decided December 13, 2018

Reported below, 164 AD3d 1117.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MANJULA PATEL, Respondent, v VINOD PATEL, Appellant.

Submitted October 22, 2018; decided December 13, 2018

Reported below, 2018 NY Slip Op 71768(U); 2018 NY Slip Op 80921(U).

Motion, insofar as deemed to be seeking leave to appeal (*see* CPLR 5512) from so much of the May 2018 Appellate Division order as dismissed the appeal from the final July 2015 Supreme Court judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the August 2018 order does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD JOHNSON, Appellant.

Submitted October 15, 2018; decided December 13, 2018

Reported below, 164 AD3d 1280.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of STAHL YORK AVENUE CO., LLC, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted October 9, 2018; decided December 13, 2018

Reported below, 162 AD3d 103.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

KISS TREBBLES, Appellant, v SHELTER FAMILY SERVICE, INC., Respondent.

Submitted October 1, 2018; decided December 13, 2018

Motion to vacate this Court's July 6, 2018 dismissal order denied [*see* 31 NY3d 1144 (2018)].

RICHARD G. VOGT, Individually and as Executor of the Estate of LINDA VOGT, Deceased, Appellant, v WILLIAM B. EBERHARDT, JR., et al., Respondents.

Submitted October 1, 2018; decided December 13, 2018

Reported below, 163 AD3d 1514.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[114 NE3d 1070, 90 NYS3d 617]

THE ALLIANCE TO END CHICKENS AS KAPOROS et al., Appellants, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents, et al., Defendants.

Argued October 17, 2018; decided November 14, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 6, 2017. The Appellate Division, with two Justices dissenting, affirmed, insofar as appealed from, so much of an order of the Supreme Court, New York County (Debra A. James, J.; op 2015 NY Slip Op 32708[U] [2015]), as had converted, pursuant to CPLR 103 (c), the plenary action as against defendants New York City Police Department, Commissioner William Bratton, City of New York, and New York City Department of Health

and Mental Hygiene to a CPLR article 78 proceeding, and dismissed such proceeding.

Alliance to End Chickens as Kaporos v New York City Police Dept., 152 AD3d 113, affirmed.

HEADNOTE

Proceeding against Body or Officer — Mandamus — When Remedy Appropriate

The Appellate Division properly affirmed an order denying plaintiffs' request for a writ of mandamus to compel defendants New York City Police Department and New York City Department of Health and Mental Hygiene to enforce certain laws related to preserving public health and preventing animal cruelty that plaintiffs alleged were violated during the religious practice of Kaporos. Since enforcement of the laws cited by plaintiffs would involve some exercise of discretion, and plaintiffs did not seek to compel the performance of ministerial duties but, rather, sought to compel a particular outcome, mandamus was not the appropriate vehicle for the relief sought.

APPEARANCES OF COUNSEL

Law Office of Nora Constance Marino, Great Neck (*Nora Constance Marino* and *Brad Landau* of counsel), for appellants.

Zachary W. Carter, Corporation Counsel, New York City (*Elina Druker*, *Richard Dearing* and *Jane L. Gordon* of counsel), for respondents.

Vinson & Elkins LLP, Washington, D.C. (*Jason A. Levine* and *Christian D. Sheehan* of counsel) and New York City (*Ari M. Berman* and *Laurel S. Fensterstock* of counsel), *First Liberty Institute*, Plano, Texas (*Kelly J. Shackelford*, *Jeremiah G. Dys*, *Roger L. Byron* and *Stephanie N. Taub* of counsel), and *Agudath Israel of America*, New York City (*Mordechai Biser* of counsel), for Agudath Israel of America, amicus curiae.

Richmond Law Group, Brooklyn (*Jay Shooster* of counsel), for Animal Legal Defense Fund, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division dismissing the pleading against the City defendants should be affirmed, with costs.

Plaintiffs appeal the Appellate Division's affirmance of an order denying their request for a writ of mandamus to compel the New York City Police Department and the New York City Department of Health and Mental Hygiene to enforce certain laws related to preserving public health and preventing animal cruelty (152 AD3d 113 [1st Dept 2017]). Plaintiffs allege those

laws are routinely violated when thousands of chickens are killed during the religious practice of Kaporos performed in certain Brooklyn neighborhoods prior to Yom Kippur.

A writ of mandamus “is an ‘extraordinary remedy’ that is ‘available only in limited circumstances’” (*Matter of County of Chemung v Shah*, 28 NY3d 244, 266 [2016], quoting *Klostermann v Cuomo*, 61 NY2d 525, 537 [1984]). Such remedy will lie “only to enforce a clear legal right where the public official has failed to perform a duty enjoined by law” (*New York Civ. Liberties Union v State of New York*, 4 NY3d 175, 184 [2005]; see also CPLR 7803 [1]). While mandamus to compel “‘is an appropriate remedy to enforce the performance of a ministerial duty, it is well settled that it will not be awarded to compel an act in respect to which [a public] officer may exercise judgment or discretion’” (*Klostermann*, 61 NY2d at 539, quoting *Matter of Gimprich v Board of Educ. of City of N.Y.*, 306 NY 401, 406 [1954]). Discretionary acts “‘involve[] the exercise of reasoned judgment which could typically produce different acceptable results whereas a ministerial act envisions direct adherence to a governing rule or standard with a compulsory result’” (*New York Civ. Liberties Union*, 4 NY3d at 184, quoting *Tango v Tulevech*, 61 NY2d 34, 41 [1983]). Further, mandamus may only issue to compel a public officer to execute a legal duty; it may not “‘direct how [the officer] shall perform that duty’” (*Klostermann*, 61 NY2d at 540, quoting *People ex rel. Schau v McWilliams*, 185 NY 92, 100 [1906]).

Enforcement of the laws cited by plaintiffs would involve some exercise of discretion (see *Castle Rock v Gonzales*, 545 US 748, 760-761 [2005]). Moreover, plaintiffs do not seek to compel the performance of ministerial duties but, rather, seek to compel a particular outcome. Accordingly, mandamus is not the appropriate vehicle for the relief sought (see *Matter of Walsh v LaGuardia*, 269 NY 437, 440-441 [1936]).

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON concur; Judge FEINMAN taking no part.

Order affirmed, with costs, in a memorandum.

[114 NE3d 1071, 90 NYS3d 618]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TAMARKUA GARLAND, Appellant.

Decided November 20, 2018

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 28, 2017. The Appellate Division affirmed (1) a judgment of the Supreme Court, Bronx County (Peter J. Benitez, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree (two counts), and criminal possession of a weapon in the second degree; and (2) a judgment of that court (Peter J. Benitez, J., at suppression hearing; Lester B. Adler, J., at plea and sentencing), which had convicted defendant, upon his plea of guilty, of attempted criminal possession of a controlled substance in the fourth degree.

People v Garland, 155 AD3d 527, affirmed.

HEADNOTE

Crimes — Assault — Serious Physical Injury — Sufficiency of Evidence — Gunshot Wound

In a prosecution arising from an incident in which defendant fired five shots into a crowd and struck a 15-year-old bystander in the leg, the evidence was legally sufficient to establish the element of “serious physical injury” as required to support defendant’s first-degree assault convictions (Penal Law §§ 10.00 [10]; 120.10 [1], [3]). Medical records indicated that the bullet was lodged in the soft tissues of the victim’s leg, near the femoral artery. The bullet fragments were never removed, and a medical expert testified that where a bullet is lodged near a blood vessel, taking it out can cause more injury. The victim testified that he could still feel the bullet poking out, and he could no longer participate in competitive sports. Furthermore, the medical expert testified that there were many repercussions of the type of muscle damage that the victim sustained, such as possible long-term injuries to the kidneys from leakage of chemicals from the muscle, pain and weakness, and difficulty walking.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (David Bernstein of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (James J. Wen of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant challenges his first-degree assault convictions, arguing that the evidence against him was not legally sufficient to establish the element of “serious physical injury” (Penal Law § 120.10 [1], [3]). Serious physical injury means “physical injury which creates a substantial risk of death, or which causes death or serious and protracted disfigurement, protracted impairment of health or protracted loss or impairment of the function of any bodily organ” (Penal Law § 10.00 [10]). In reviewing a legal sufficiency claim, the Court must “view[] the facts in a light most favorable to the People” to determine “whether, as a matter of law, a jury could logically conclude that the People sustained its burden of proof” (*People v Danielson*, 9 NY3d 342, 349 [2007]). This “deferential standard” is satisfied so long as “there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt” (*People v Acosta*, 80 NY2d 665, 672 [1993] [internal quotation marks and citation omitted]).

In this case, defendant fired five shots into a crowd and struck a 15-year-old bystander in the leg. According to medical records, the bullet was “lodged in the soft tissues of the [victim’s] leg.” An X ray showed two fragments of the bullet “on the side towards the front of the thigh,” and the possibility of multiple other, smaller fragments. The victim testified at trial that, after the shooting, the injury hurt and he was bleeding a lot. He “had crutches for about two months” and, “after that, there was a lot of limping, crutches in the shower.” The victim indicated that the ordeal was “[v]ery traumatizing.”

The bullet fragments were never removed from the victim’s leg. Medical records indicated that the injury was close to the victim’s femoral artery—a “big blood vessel”—and, as a medical expert testified at trial, “where a bullet enters an extremity, we don’t take the bullet out in the trauma situations” because “going after a bullet like this can cause further injury.” In particular, where a bullet is “lodged near a blood vessel . . . , actually taking it out can cause injury to that blood vessel and near around it,” resulting in “bleeding,” “neurological deficit,” “numbness,” “tingling,” and “weakness.” The expert further noted that, had “the femoral artery . . . been struck with a bullet,” possible medical complications could include “exsanguinating, bleeding, excessive bleeding” and “possibly loss of limb.”

The victim testified that he can still “feel [the bullet] poking out,” and that he continues to endure the effects “of the metal inside [his] leg.” Even four years after the shooting, the victim noted that the injury still “disturbs” him at times, and that “something is wrong with [his] leg.” The victim stated that, because the bullet “didn’t come out of [his] leg,” his “life” had been “tampered with.” For instance, he can no longer participate in competitive sports, as the injury would present a “very, very, very big risk.” The medical expert further testified that there are “many repercussions” of the type of muscle damage that the victim sustained: “Muscle damage can cause long-term injuries to the kidneys from leakage of chemicals from the muscle, toxic to the kidneys, can cause pain and weakness, difficulty walking.”

As the dissent notes, there is certainly record evidence favorable to the defense that, when viewed in isolation, might have presented an issue of fact for the jury. That said, viewing the evidence in the light most favorable to the People, as our legal sufficiency standard requires, we have no trouble concluding that the jury acted rationally in finding that the victim’s gunshot wound constituted a “serious physical injury” (Penal Law § 10.00 [10]).

We have considered defendant’s remaining contentions and conclude that they are without merit.

WILSON, J. (dissenting). The Penal Law quite sensibly establishes various gradations of severity for assault, with the punishment increasing as the severity increases. Setting aside various types of assault involving circumstances not present here,¹ assault, like many other crimes, falls into the first, second and third degrees. As relevant here, assault in the first degree requires either: (i) “[w]ith intent to cause serious physical injury to another person, [the defendant] causes such injury to such person or to a third person by means of a deadly weapon or a dangerous instrument,” or (ii) “[u]nder circumstances evincing a depraved indifference to human life, he recklessly engages in conduct which creates a grave risk of death to another person, and thereby causes serious physical injury to another person” (Penal Law § 120.10 [1], [3]). Assault in the second degree requires: “[w]ith intent to cause physical injury to another person, [the defendant] causes such injury to such

1. *E.g.* Penal Law §§ 120.01 (reckless assault of a child by child day care provider), 120.04 (vehicular assault in the first degree), 120.09 (assault on a judge).

person or to a third person by means of a deadly weapon or a dangerous instrument” (Penal Law § 120.05 [2]). Assault in the third degree reaches physical injury caused either recklessly or with criminal negligence by use of a deadly weapon or dangerous instrument (Penal Law § 120.00). What level of assault a defendant may properly be convicted of, then, turns on a combination of that defendant’s intent, the actual injury caused, and the use of a deadly weapon.

Whether Mr. Garland’s conviction for first-degree assault can be sustained turns on whether Mr. Bethea, who has bullet fragments lodged in his leg, suffered a “serious physical injury.” Here, the evidence is legally insufficient to show that Mr. Bethea suffered a “serious” physical injury. We do not have to guess at what the legislature meant in distinguishing “serious physical injury” from “physical injury.” Penal Law § 10.00 (10) defines serious physical injury as “physical injury which creates a substantial risk of death, or which causes death or serious and protracted disfigurement, protracted impairment of health or protracted loss or impairment of the function of any bodily organ.” “Physical injury,” on the other hand, is defined as “impairment of physical condition or substantial pain” (Penal Law § 10.00 [9]).

The evidence of the victim’s injury is as follows. At around 5:30 p.m., while walking past a group of people he did not know, the victim believed he had been shot by a BB gun because “the bullet hole was so little.” He did not notice any blood and spent a while examining his leg before going to the hospital, arriving there around 6:20 p.m. An X ray of the victim’s left thigh showed metal fragments but no fractures or neurovascular damage. He told the hospital staff that he had no numbness and was not suffering from any motor functions deficits. At 9:30 p.m., the victim described his pain level as being a 7 out of 10. By 11:50 p.m., he said it was 0 out of 10. The victim was not prescribed any pain medication upon discharge that night; he was prescribed antibiotics and given a tetanus shot. He was discharged with crutches that he used for two months. The metal fragments were never removed from his leg.

When asked how long after the shooting he felt pain in his leg, the victim responded: “Probably like every other day like trying to do activity involving my leg or something, like running or basketball, you feel slight pain when you’re overdoing it, I guess.” At trial, four years after the shooting, when asked

if his leg was “back to a hundred percent,” he testified: “No, still have little problems, like it will be sore at night. When it rains it disturbs me.”

The People’s medical expert testified it was “pretty protocol” not to remove the fragments because removal could cause further injury. The expert further testified that if the bullet had struck the femoral artery, it could have had severe health consequences, but told the court that his femoral artery was not injured, according to the hospital records. She stated that “possible” effects from a bullet protruding through nerves could cause “injuries to the kidneys from leakage of chemicals from the muscle, toxic to the kidneys, can cause pain and weakness, difficulty walking,” though she did not testify that the fragments had protruded through nerves. She further testified that the X rays revealed no fractures, and no neurovascular or nerve damage. She acknowledged that she had never examined the victim and had not seen any medical records of his dated after 2010, when the shooting occurred. She concluded by saying that she was not able to testify that he had suffered any permanent disability.

The victim is not at substantial risk of dying; he has no serious disfigurement; he has no protracted health impairment and has not lost the function of any bodily organ. The record contains nothing that would meet the statutory definition of “serious physical injury.” Our only decision bearing directly on that definition is *People v Stewart*, in which we held that “serious physical injury” is not satisfied by “complaints of persisting discomfort unconnected to ascertainable health impairment” (18 NY3d 831, 833 [2011]). In *Stewart*, the victim suffered numerous blows from a sharp instrument. The wounds were described as “superficial” by an emergency room physician, and no organ damage was evident. The victim described still feeling daily pain from the scars, much as Mr. Bethea claims “slight pain when . . . overdoing it” or when it rains.

The lower courts have generally hewed to the legislature’s language and ours in *Stewart*. For example, in *People v Horton* (9 AD3d 503 [3d Dept 2004]), the victim had been shot in the neck, bullet fragments remained in his body, but the gunshot wound did not injure his esophagus, trachea, or major blood vessels or nerves. The Court held those injuries did not constitute “serious physical injury.” In *People v Matthews* (59 Misc 3d 1218[A], 2018 NY Slip Op 50615[U] [Sup Ct, NY County 2018]), the victim was shot at point-blank range in his abdomen, but

the bullet missed his major organs. Although the shooting caused an infection, the injury did not meet Penal Law § 10.00 (10)'s standard because no substantial risk of death was ever present (2018 NY Slip Op 50615[U], *5). Similarly, the injuries in *People v Castillo* were deemed insufficiently serious, even though the victim had two stab wounds that required sutures and said at trial, 18 months after the incident, that his injuries hurt when the weather changed (199 AD2d 276 [2d Dept 1993]). In *People v Daniels* (97 AD3d 845 [3d Dept 2012]), the Court held the victim had not suffered a serious physical injury although the victim was stabbed and had a concussion, but six months later said she could still play soccer despite a sore knee. In *People v Adames*, the victim was stabbed in the chest and back, but those injuries and her testimony that her scars still hurt were insufficient to constitute a "serious physical injury" (52 AD3d 617 [2d Dept 2008]).

One instructive comparison is to our decisions in "no-fault" automobile insurance cases. We regularly reject the sort of evidence of injury the victim here suffered as sufficient to support a jury verdict for the plaintiff; often we deem it insufficient to create a triable issue of fact as to whether an injury was serious (see e.g. *Lopez v Senatore*, 65 NY2d 1017 [1985]; *Gaddy v Eyler*, 79 NY2d 955 [1992]; *Scheer v Koubek*, 70 NY2d 678 [1987]). The Insurance Law's definition of "serious injury" is quite similar to the definition of "serious physical injury" in Penal Law § 10.00 (10).² The plaintiffs in those cases, of course, have a much lower burden of proof than do the People here, who must prove the seriousness of the physical injury beyond a reasonable doubt. Nevertheless, disregarding the kind of analysis we regularly employ in those cases, the majority concludes that the victim's "slight pain" and "little problems" are legally sufficient to establish "serious physical injury."

The requirements set out in *Stewart* are similar to our approach in the no-fault context, where we have said that "subjec-

2. See Insurance Law § 5102 (d) (" 'Serious injury' means a personal injury which results in death; dismemberment; significant disfigurement; a fracture; loss of a fetus; permanent loss of use of a body organ, member, function or system; permanent consequential limitation of use of a body organ or member; significant limitation of use of a body function or system; or a medically determined injury or impairment of a non-permanent nature which prevents the injured person from performing substantially all of the material acts which constitute such person's usual and customary daily activities for not less than ninety days during the one hundred eighty days immediately following the occurrence of the injury or impairment").

tive complaints alone are not sufficient” to establish serious injury, and that claims must be supported by “objective evidence” (*Toure v Avis Rent A Car Sys.*, 98 NY2d 345, 350-351 [2002]). Of course, the crucial difference between that regime and the elements required in assault statutes is that no-fault cases are civil, and criminal prosecutions require a much higher standard of evidentiary proof than civil suits. The majority’s opinion rests on less, based on assertions that are trivial or wholly speculative. We would not, in a no-fault or malpractice case, accept evidence about a plaintiff’s injury from a doctor who had never examined a patient and whose most recent review of medical records was four years distant.³

Someone who shoots into a crowd and strikes an innocent teenager deserves to be harshly punished. But the legislature, not the courts, has the responsibility to enact statutes criminalizing behavior and prescribing ranges of punishments. The legislature has determined that the degree of actual injury to the victim is a crucial determinant of the amount of punishment to be meted out—even if the insubstantiality of the injury is the result of pure dumb luck. The legislature has dealt with the use of a firearm to cause an injury separately, which is why second-degree assault can be established either by causing serious physical injury, or by causing physical injury by use of a deadly weapon. The legislature has also attached a separate, substantial penalty (up to 15 years of imprisonment) to possession of a handgun, of which Mr. Garland was convicted. Those are legislative enactments to which we should adhere. Mr. Garland’s maximum sentence for second-degree assault is seven years; for first-degree assault, it is 25. By treating what is plainly not a serious physical injury as if it were, we are shredding the statutory scheme adopted by the legislature and

3. See *Toure*, 98 NY2d 345, 357-358 (“objective evidence in support of a serious injury . . . must be objectively ascertained. This requirement was not satisfied by the testimony of plaintiff’s expert that he detected a spasm, where he did not, for example, indicate what test, if any, he performed to induce the spasm. Furthermore, Dr. Patriarco testified on cross-examination that the tests he administered to reach his conclusion regarding plaintiff’s limitation of motion were subjective in nature as they relied on plaintiff’s complaints of pain”); *Gaddy v Eyler*, 79 NY2d 955, 957-958 (1992) (“the mere repetition of the word ‘permanent’ in the affidavit of plaintiff’s treating physician—prepared two years after his last examination and consisting of conclusory assertions tailored to meet the statutory requirements—is insufficient to establish ‘serious injury’” [citation omitted]). I am unable to find any case where this Court found it sufficient to prove a present injury by the testimony of a physician who never examined the injured person and relied on records that were several years old.

imposing one of our own making. I would vacate his first-degree assault convictions (leaving intact his conviction for criminal possession of a weapon in the second degree) and remit the case for further proceedings.

Accordingly, I dissent.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents in an opinion in which Judge Rivera concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[114 NE3d 1076, 90 NYS3d 623]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROHAN
MANRAGH, JR., Appellant.

Argued October 11, 2018; decided November 20, 2018

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 3, 2017. The Appellate Division affirmed a judgment of the Suffolk County Court (Andrew A. Crecca, J.), which had convicted defendant, upon his plea of guilty, of criminal contempt in the first degree.

People v Manragh, 150 AD3d 762, affirmed.

HEADNOTE

Crimes — Plea of Guilty — Forfeiture of Right to Raise Issues on Appeal — Impairment of Integrity of Grand Jury Proceeding

Defendant's claim that the integrity of the grand jury proceeding was impaired by the prosecutor's failure to notify the grand jury of his request to call a particular witness, and failure to allow the grand jury to vote whether to hear that witness, in violation of CPL190.50 (6), was forfeited by his guilty plea. Even after entering a valid guilty plea, a defendant may not forfeit a claim of constitutional defect implicating the integrity of the process, and certain claimed defects in a grand jury proceeding rise to that level. Defendant's claim rested on the purported exclusion of a witness, the substance of whose testimony was contained in an affidavit provided to the courts below. That proffered testimony was largely inadmissible and, in any event, would have inculpated him. The exclusion of such testimony before the grand jury did not present a constitutional defect implicating the integrity of the process.

APPEARANCES OF COUNSEL

Thomas E. Scott, Melville, for appellant.

Timothy D. Sini, District Attorney, Riverhead (*Caren C. Manzello* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed. Defendant, who pleaded guilty, claims his guilty plea was entered involuntarily and the indictment must be dismissed because the prosecutor failed to notify the grand jury of his request to call a particular witness, and failed to allow the grand jury to vote whether to hear that witness, in violation of Criminal Procedure Law § 190.50 (6). Defendant does not contend that the evidence before the grand jury was insufficient to support the indictment. Instead, defendant claims that the prosecutor's conduct impaired the integrity of the grand jury proceeding and argues his motion to dismiss the indictment for defective grand jury proceedings on that ground is not forfeited by his guilty plea. The Appellate Division held that defendant's plea was entered voluntarily, knowingly, and intelligently and that "[b]y pleading guilty, the defendant forfeited his contention that his motion to dismiss the indictment should have been granted" (150 AD3d 762, 762 [2017]). We granted leave to appeal (29 NY3d 1130 [2017]), and now affirm.

On review of the record as a whole, we agree that defendant entered his guilty plea "understandingly and voluntarily" (*People v Harris*, 61 NY2d 9, 19 [1983]) and that the County Court did not improvidently exercise its discretion in refusing to allow defendant to withdraw his plea (CPL 220.60 [3]). Nonetheless, we have explained that even after entering a valid guilty plea, "a defendant may not forfeit a claim of a constitutional defect implicating the integrity of the process" (*People v Hansen*, 95 NY2d 227, 231 [2000]) and we have recognized that certain claimed defects in a grand jury proceeding rise to this level (*see e.g. Hansen*, 95 NY2d at 232 [claims implicating "the constitutional function of the Grand Jury to indict" or "the prosecutor's duty of fair dealing" survive a guilty plea]; *People v Pelchat*, 62 NY2d 97, 108 [1984] [claim that prosecutor knew, and concealed from the grand jury, his knowledge that there was no evidence to support the indictment survives a guilty plea]).

Defendant's claim in this case rests on the purported exclusion of a witness, the substance of whose testimony was

contained in an affidavit provided to the courts below. That proffered testimony was largely inadmissible and, in any event, would have inculpated him by establishing that he had a relationship with the complainant and had been in her presence in violation of an order of protection. The exclusion of such testimony before the grand jury does not present “a constitutional defect implicating the integrity of the process” (*Hansen*, 95 NY2d at 231) and accordingly the claimed violation in this case did not survive defendant’s guilty plea.

In light of defendant’s forfeiture of this claim, his remaining contentions have been rendered academic.

RIVERA, J. (concurring). Defendant Rohan Manragh, Jr., challenges his conviction upon his guilty plea. I agree with the majority that the Appellate Division should be affirmed because all of defendant’s grounds for reversal are without merit. However, the majority has improperly merged the forfeiture and merits analysis of defendant’s claim regarding the integrity of the grand jury process. While this doctrinal misstep does not affect the outcome here, the majority creates confusion as to the proper application of the law to future cases. I write to clarify that the question whether a defendant’s guilty plea works a forfeiture of an appellate claim is a threshold matter as to the opportunity for judicial review of a type of claim, and not a merits-based determination or a ruling on the proper remedy for a proven error.

I.

Defendant argues, *inter alia*, that his conviction should be reversed because the integrity of the grand jury proceeding was impaired when the prosecutor did not ask the grand jury to vote on whether to call a witness whom defendant requested. The People concede that the prosecutor did not put the witness to a vote but contend that defendant’s guilty plea works a forfeiture of the claim and, alternatively, that his claim is without merit because the prosecutor acted within her discretion to exclude from grand jury consideration what amounts to hearsay testimony.

The State Constitution expressly requires that “[n]o person shall be held to answer for a capital or otherwise infamous crime . . . unless on indictment of a grand jury” (NY Const, art I, § 6; *see People v Iannone*, 45 NY2d 589, 593 n 3 [1978]). The legislature imposed this requirement to protect “the people of this State from potentially oppressive excesses by the agents

of the government in the exercise of the prosecutorial authority vested in the State” (*Iannone*, 45 NY2d at 594 [citation omitted]). Indeed, such a check on the government is necessary given the onerous task of defending oneself against criminal charges (*see id.*). “As the constitutional ‘check’ on the prosecutorial power of the State and in its accusatory role, the grand jury ‘remains the exclusive judge of the facts with respect to any matter before it’ ” (*People v Guerrero*, 28 NY3d 110, 119 [2016, Rivera, J., dissenting], quoting *People v Pelchat*, 62 NY2d 97, 105 [1984]).

Article 190 of the Criminal Procedure Law, titled “The Grand Jury and Its Proceedings,” sets forth the process that ensures the proper and unobstructed exercise of the grand jury power. As relevant to defendant’s claim, pursuant to CPL 190.50 (6), a defendant may “request the grand jury, either orally or in writing, to cause a person designated by him to be called as a witness in such proceeding.” After reviewing any such request, “[t]he grand jury may as a matter of discretion grant such request and cause such witness to be called pursuant to subdivision three” (CPL 190.50 [6]). Subdivision (3) provides:

“The grand jury may cause to be called as a witness any person believed by it to possess relevant information or knowledge. If the grand jury desires to hear any such witness who was not called by the people, it may direct the district attorney to issue and serve a subpoena upon such witness, and the district attorney must comply with such direction. At any time after such a direction, however, or at any time after the service of a subpoena pursuant to such a direction and before the return date thereof, the people may apply to the court which impaneled the grand jury for an order vacating or modifying such direction or subpoena on the ground that such is in the public interest. Upon such application, the court may in its discretion vacate the direction or subpoena, attach reasonable conditions thereto, or make other appropriate qualification thereof” (CPL 190.50 [3]).

In sum, the legislature has provided defendant the right to request the grand jury call a named witness, and therefore implicitly imposed an obligation on the prosecutor to honor this right by ensuring the request is put before the grand

jurors.¹ In accordance with CPL 190.50 (6), the prosecutor has no discretion to deny defendant's request.²

The People are incorrect that defendant's guilty plea forfeited his claim that the prosecutor's conduct impaired the grand jury proceeding. Further, as the text of CPL 190.50 (3) and (6) makes clear, the prosecutor could not unilaterally decide to avoid a vote on defendant's request. As I discuss below, and contrary to the majority's approach, we resolve this threshold issue by following distinct analytic steps.

II.

A forfeiture is the loss of a right, privilege, or property due to a crime (Black's Law Dictionary [10th ed 2014], forfeiture). It automatically "occurs by operation of law as a consequence of a guilty plea, with respect to issues which as a matter of policy the law does not permit to survive such a plea" (*People v Thomas*, 53 NY2d 338, 342 n 2 [1981]; see *People v Hansen*, 95 NY2d 227, 230 n 1 [2000]). This forfeiture of claims is consistent with the understanding that a guilty plea "marks the end of a criminal case, not a gateway to further litigation" (*People v Taylor*, 65 NY2d 1, 5 [1985]), and reflects the fact that a guilty plea shifts the propriety of a conviction to the sufficiency of the plea (*People v Di Raffaele*, 55 NY2d 234, 240 [1982] ["(W)here defendant has by his plea admitted commission of the crime with which he was charged, his plea renders irrelevant his contention that the criminal proceedings preliminary to trial were infected with impropriety and error; his conviction rests directly on the sufficiency of his plea, not on the legal or constitutional sufficiency of any proceedings which might have led to his conviction after trial"]). Notwithstanding this interest in "mark[ing] the end of a criminal case," and forfeiture's

1. Although the prosecutor could not avoid presenting the witness's name for a vote, the prosecutor was free, in the role of advisor to the grand jury, to explain that the witness did not have relevant information and primarily offered inadmissible hearsay testimony, and if unpersuasive in this effort, the prosecutor could have sought a court order quashing the subpoena or limiting the witness's testimony as provided in CPL 190.50 (3) (see *People v Lancaster*, 69 NY2d 20, 26 [1986] [holding that the prosecutor's duty of fair dealing extends to the submission of evidence and instructions of law to the grand jury]).

2. The People assert that defendant testified to the grand jury and discussed his proposed witness but do not argue that the mandates of CPL 190.50 (6) were met by this testimony. Thus, for purposes of my discussion, I assume the prosecutor refused to submit the witness name to a grand jury vote.

general application in furtherance of that goal, forfeiture is neither an absolute nor inevitable rule of claim foreclosure but a rule contingent on the nature of the claim. While a guilty plea “effect[s] a forfeiture of the right to revive certain claims made prior to the plea, [it] does not, however, extinguish every claim on appeal” (*Hansen*, 95 NY2d at 230). Claims which are not forfeited by a guilty plea are preserved by legislative design or judicial recognition (see *Taylor*, 65 NY2d at 5; CPL 710.70 [2] [providing that an order denying a suppression motion may be appealed notwithstanding a guilty plea]).

The Court has excluded from forfeiture those claims that relate to a fundamental matter distinct from challenges related to the factual elements of the crime charged; these include “jurisdictional matters” and “rights of a constitutional dimension that go to the very heart of the process” (*Hansen*, 95 NY2d at 230). Moreover, while indictments are presumed valid and rarely open to post-conviction attack, courts have “inherent powers to dismiss an indictment” under certain circumstances, notwithstanding a defendant’s guilty plea (*Pelchat*, 62 NY2d at 106 [noting that courts have properly dismissed indictments where there was a total lack of evidence before the grand jury, the grand jury testimony was perjured, and the indictment was founded on hearsay, even when there was otherwise reliable evidence to support the indictment, and defendant pleaded guilty]).

A court’s first task, then, is to determine whether the defendant’s appellate argument invokes the type of claim that survives a guilty plea based on the nature of the claim itself, without reference to the merits of the defendant’s challenge. If the claim survives the plea, then, and only then, does the court consider the merits of the claim. In other words, once the court determines the defect is of a jurisdictional nature or of a kind that impairs the process, the court may reach the merits and decide whether the defect warrants a remedy.

Here, the threshold determination is made simple because as the majority explains, certain defects in a grand jury proceeding are not forfeited by a guilty plea (majority mem at 1102). As in *Pelchat* and *People v Hill* (5 NY3d 772 [2005]), defendant’s claim is based on the constitutional function of the grand jury to indict, and on the prosecutor’s duty to comply with the statutorily prescribed process set forth in CPL 190.50. In *Pelchat*, the focus was on the prosecutor’s duty of fair dealing (*Hansen*, 95 NY2d at 232, citing *Pelchat*, 62 NY2d at 97). The

prosecution's dual role of advocate and public officer charges it "with the duty not only to secure indictments but also to see that justice is done" (*Lancaster*, 69 NY2d at 26). A prosecutor's legislatively imposed duty to submit the name of a defendant's proffered witness to the grand jurors is of no less significance to the integrity of the process than a general duty to act with due consideration is to the fairness of the process. In *Hill*, a case with similar undertones to the instant appeal, we held that a prosecutor's inaccurate and misleading answer to grand jury questions regarding a defendant's requested witnesses "substantially undermin[es] the integrity of the proceeding and potentially prejudic[es] defendant" (*Hill*, 5 NY3d at 773). Certainly, a prosecutor's refusal to even present the witness's name is of equal if not greater impact on the fairness of the process. In the former case, the grand jurors at least know that the defendant has submitted witnesses that the defendant believes may shed light on the alleged crime and defendant's supposed involvement, but in the latter, the grand jury is expected to render a decision with life-changing consequences for a defendant without any knowledge or opportunity to consider whether the defendant's proposed witness may assist in the grand jury's decision-making process.

The majority ignores this two-step process and instead concludes that because the underlying claim is without merit, defendant has forfeited his claim. That puts the cart before the horse because an appellate court cannot consider the merits of defendant's challenge to the prosecutor's actions if defendant forfeited his claim. Essentially, the majority has added a prejudice requirement which we have never imposed and which has no place in the analysis. Notably, our legislature recognizes that impairment of the grand jury process may not cause prejudice to a defendant. Thus, section 210.35 (5) of the CPL permits dismissal of an indictment only where the integrity of the grand jury proceeding is impaired *and* prejudice to the defendant may result from such impairment.

III.

The fact that the prosecutor did not permit a vote on defendant's named witness does not end the inquiry because, as a final step in the analysis, we must decide what, if any, remedy is warranted by the specific defect that tainted defendant's grand jury proceedings. Contrary to defendant's argument, on the facts of this appeal, the defect does not warrant reversal of

his conviction or dismissal of the indictment. As the majority sets forth, the proffered testimony was largely inadmissible and inculpatory (majority mem at 1103).³

The correct process here was for the prosecutor to submit the name of the witness to the grand jury and, if she so chose, then explain why the witness would not have provided information of value to the grand jurors' deliberations. If the grand jurors had directed the prosecutor to issue and serve a subpoena on the witness, the prosecutor would not have been without recourse. She could have sought a court order under CPL 190.50 (3) "vacating or modifying such direction or subpoena on the ground that such is in the public interest." Although that did not occur here, the conviction should stand for the reasons upon which the majority and I agree.

Chief Judge DiFiore and Judges Stein, Garcia, Wilson and Feinman concur; Judge Rivera concurs in result in an opinion in which Judge Fahey concurs.

Order affirmed, in a memorandum.

APPEALS WITHDRAWN AND DISCONTINUED

(November 1, 2018 through November 30, 2018)

Philius v City of New York	2d Dept: 161 AD3d 787	11/15/18
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2018 through November 30, 2018)

People v Aguilar	1st Dept: 164 AD3d 1160 (Bronx)	denied 11/14/18 (Stein, J.)
People v Alvarez	1st Dept: 162 AD3d 596 (Bronx)	denied 11/30/18 (Wilson, J.)
People v Anderson	2d Dept: 163 AD3d 700 (Suffolk)	denied 11/2/18 (Rivera, J.)
People v Anselmo	2d Dept: 164 AD3d 1462 (Kings)	denied 11/30/18 (Feinman, J.)
People v Anthony M.	2d Dept: 164 AD3d 1473 (Kings)	denied 11/23/18 (DiFiore, Ch. J.)

3. Defendant argues that the indictment should have been dismissed due to the prosecution's procedural error, but does not assert any claim as to the manner in which the proffered testimony was exculpatory as to his multi-count indictment. Accordingly, I have no occasion to opine on the exculpatory value of the proffered testimony.

MEMORANDA

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People v Arellano	1st Dept: 165 AD3d 447 (NY)	denied 11/30/18 (Fahey, J.)
People v Arida	County Ct, 12/22/17 (Erie)	denied 11/27/18 (DiFiore, Ch. J.)
People v Armstead	1st Dept: 163 AD3d 403 (NY)	denied 11/2/18 (Fahey, J.)
People v Austin	4th Dept: 164 AD3d 1672 (Erie)	denied 11/29/18 (DiFiore, Ch. J.)
People v Ayala	2d Dept: 164 AD3d 815 (Kings)	denied 11/16/18 (DiFiore, Ch. J.)
People v Bajas	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 20 (Kings)	denied 11/15/18 (Garcia, J.)
People v Baptiste	2d Dept: 164 AD3d 1357 (Kings)	denied 11/2/18 (Rivera, J.)
People v Barabondeka	App Term, 1st Dept: 61 Misc 3d 126(A) (NY)	denied 11/15/18 (Garcia, J.)
People v Basta	App Term, 1st Dept: 60 Misc 3d 140(A) (NY)	denied 11/26/18 (Stein, J.)
People v Beard	2d Dept: 165 AD3d 688 (Richmond)	denied 11/28/18 (Feinman, J.)
People v Boney	App Div, 2d Dept: 2018 NY Slip Op 79085(U) (Queens)	dismissed 11/7/18 (Feinman, J.)
People v Bratton	2d Dept: 165 AD3d 693 (Queens)	denied 11/26/18 (Feinman, J.)
People v Bray	2d Dept: 163 AD3d 703 (Richmond)	denied 11/26/18 (Stein, J.)
People v Bregg	3d Dept: 164 AD3d 1569 (St. Lawrence)	denied 11/26/18 (Feinman, J.)
People v Brown	2d Dept: 164 AD3d 695 (Kings)	denied 11/28/18 (Feinman, J.)
People v Bruno	App Term, 1st Dept: 61 Misc 3d 127(A) (NY)	denied 11/30/18 (DiFiore, Ch. J.)
People v Bvunzawabaya	App Term, 1st Dept: 61 Misc 3d 126(A) (NY)	denied 11/30/18 (Wilson, J.)
People v Cardillo	2d Dept: 164 AD3d 1254 (Queens)	denied 11/21/18 (Wilson, J.)
People v Carlson	2d Dept: 164 AD3d 823 (Orange)	denied 11/28/18 (Stein, J.)
People v Carrino	2d Dept: 164 AD3d 695 (Dutchess)	denied 11/30/18 (Feinman, J.)
People v Casablanca	2d Dept: 164 AD3d 1255 (Queens)	denied 11/29/18 (Feinman, J.)
People v Cash	2d Dept: 164 AD3d 1465 (Queens)	denied 11/28/18 (Feinman, J.)
People v Cayea	3d Dept: 163 AD3d 1279 (Tompkins)	denied 11/15/18 (Feinman, J.)
People v Cepeda	App Term, 1st Dept: 60 Misc 3d 141(A) (NY)	denied 11/7/18 (DiFiore, Ch. J.)
People v Chapman	1st Dept: 164 AD3d 1181 (NY)	denied 11/30/18 (Wilson, J.)

People v Chin	2d Dept: 163 AD3d 986 (Kings)	denied 11/14/18 (Rivera, J.)
People v Clasablanca	2d Dept: 164 AD3d 1255 (Queens)	denied 11/29/18 (Feinman, J.)
People v Combs	1st Dept: 165 AD3d 412 (Bronx)	denied 11/30/18 (Fahey, J.)
People v Comfort (James)	4th Dept: 165 AD3d 1608 (Onondaga)	denied 11/21/18 (Rivera, J.) (Appeal No. 1)
People v Comfort (James)	4th Dept: 165 AD3d 1609 (Onondaga)	denied 11/21/18 (Rivera, J.) (Appeal No. 2)
People v Concepcion	3d Dept: 160 AD3d 1279 (Sullivan)	denied 11/30/18 (Fahey, J.)
People v Correa	2d Dept: 164 AD3d 826 (Kings)	denied 11/15/18 (Stein, J.)
People v Cotto	2d Dept: 164 AD3d 826 (Nassau)	denied 11/21/18 (Rivera, J.)
People v Credell	4th Dept: 161 AD3d 1563 (Jefferson)	denied reconsideration 11/14/18 (Stein, J.)
People v Crosby	App Div, 4th Dept, 8/22/18 (Erie)	dismissed 11/26/18 (Garcia, J.)
People v Dagraca	2d Dept: 164 AD3d 1467 (Kings)	denied 11/21/18 (Wilson, J.)
People v Daniels	2d Dept: 164 AD3d 599 (Kings)	denied 11/30/18 (Feinman, J.)
People v Davila	1st Dept: 164 AD3d 1165 (Bronx)	denied 11/30/18 (Wilson, J.)
People v Davis (Lamar)	4th Dept: 162 AD3d 1596 (Erie)	denied reconsideration 11/2/18 (Rivera, J.)
People v Davis (Rashan)	2d Dept: 164 AD3d 827 (Queens)	denied 11/13/18 (Stein, J.)
People v DeJesus	1st Dept: 165 AD3d 492 (NY)	denied 11/30/18 (Wilson, J.)
People v Diaz (Brian)	2d Dept: 164 AD3d 829 (Westchester)	denied 11/29/18 (Feinman, J.)
People v Diaz (David)	2d Dept: 164 AD3d 1468 (Kings)	denied 11/27/18 (Feinman, J.)
People v Diaz (Juan)	3d Dept: 163 AD3d 110 (Washington)	denied 11/2/18 (Fahey, J.)
People v Dixon	2d Dept: 164 AD3d 1468 (Kings)	denied 11/27/18 (Feinman, J.)
People v "Dollar Bill"	2d Dept: 162 AD3d 1073 (Dutchess)	denied 11/26/18 (Wilson, J.)
People v Duwe	2d Dept: 164 AD3d 1256 (Nassau)	denied 11/15/18 (DiFiore, Ch. J.)

MEMORANDA

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People v Edwards	2d Dept: 164 AD3d 830 (Kings)	denied 11/29/18 (DiFiore, Ch. J.)
People v Elgut	2d Dept: 164 AD3d 1360 (Suffolk)	denied 11/30/18 (Wilson, J.)
People v Falls	2d Dept: 164 AD3d 1362 (Orange)	denied 11/2/18 (Feinman, J.)
People v Fitzrandolph	4th Dept: 162 AD3d 1537 (Erie)	denied reconsideration 11/28/18 (Feinman, J.)
People v Fraser	1st Dept: 162 AD3d 480 (Bronx)	denied 11/30/18 (Fahey, J.)
People v Frazier	2d Dept: 165 AD3d 699 (Queens)	denied 11/6/18 (Rivera, J.)
People v Garcia (Carlos)	1st Dept: 164 AD3d 454 (NY)	denied 11/26/18 (Stein, J.)
People v Garcia (Frank)	App Div, 4th Dept, 9/19/18 (Ontario)	dismissed 11/30/18 (Wilson, J.)
People v Garcia-Toro	App Div, 3d Dept: 2018 NY Slip Op 82088(U) (Montgomery)	denied 11/1/18 (Feinman, J.)
People v Gayot (Andrew)	2d Dept: 164 AD3d 1259 (Suffolk)	denied 11/15/18 (Feinman, J.)
People v Gayot (Andy)	2d Dept: 164 AD3d 1259 (Suffolk)	denied 11/15/18 (Feinman, J.)
People v Gerard	App Term, 1st Dept: 59 Misc 3d 143(A) (Bronx)	denied 11/16/18 (Stein, J.)
People v Gibson	App Div, 1st Dept: 2018 NY Slip Op 61598(U) (NY)	dismissed 11/9/18 (DiFiore, Ch. J.)
People v Goberman	2d Dept: 164 AD3d 602 (Queens)	denied 11/6/18 (Rivera, J.)
People v Gordon (Derrick)	1st Dept: 164 AD3d 1170 (Bronx)	denied 11/14/18 (Rivera, J.)
People v Gordon (Jeffrey)	App Term, 1st Dept: 61 Misc 3d 127(A) (NY)	denied 11/20/18 (Fahey, J.)
People v Grasso	2d Dept: 163 AD3d 991 (Richmond)	denied 11/16/18 (Feinman, J.)
People v Graves	2d Dept: 164 AD3d 1469 (Kings)	denied 11/28/18 (Feinman, J.)
People v Grays	3d Dept: 162 AD3d 1224 (Otsego)	denied 11/21/18 (Wilson, J.)
People v Haggray	3d Dept: 164 AD3d 1522 (Albany)	denied 11/30/18 (Fahey, J.)
People v Hammond	County Ct, 9/11/18 (Genesee)	denied 11/29/18 (DiFiore, Ch. J.)
People v Hatcher	App Div, 2d Dept: 2018 NY Slip Op 78466(U) (Kings)	dismissed 11/26/18 (Rivera, J.)
People v Haynes	2d Dept: 163 AD3d 994 (Nassau)	denied 11/21/18 (DiFiore, Ch. J.)
People v Henderson	1st Dept: 162 AD3d 517 (NY)	denied 11/21/18 (DiFiore, Ch. J.)

People v Henry	2d Dept: 165 AD3d 700 (Kings)	denied 11/26/18 (Stein, J.)
People v Hernandez	2d Dept: 164 AD3d 520 (Suffolk)	denied 11/13/18 (DiFiore, Ch. J.)
People v Heverly	3d Dept: 165 AD3d 1320 (Chemung)	denied 11/28/18 (Feinman, J.)
People v Hill	App Div, 1st Dept: 2018 NY Slip Op 67295(U) (NY)	dismissed 11/26/18 (Garcia, J.)
People v Howe	3d Dept: 164 AD3d 951 (Cortland)	denied 11/15/18 (Feinman, J.)
People v Hueston	1st Dept: 164 AD3d 1153 (Bronx)	denied 11/14/18 (DiFiore, Ch. J.)
People v Jagnandan	1st Dept: 162 AD3d 480 (Bronx)	denied 11/30/18 (Fahey, J.)
People v James (Jermaine)	4th Dept: 162 AD3d 1746 (Monroe)	denied 11/26/18 (Stein, J.)
People v James (Odell)	2d Dept: 164 AD3d 1363 (Queens)	denied 11/7/18 (DiFiore, Ch. J.)
People v Jasper	App Term, 1st Dept: 61 Misc 3d 126(A) (NY)	denied 11/20/18 (DiFiore, Ch. J.)
People v Jemmott	3d Dept: 164 AD3d 953 (Ulster)	denied 11/21/18 (Stein, J.)
People v Jiminez	2d Dept: 164 AD3d 914 (Queens)	denied 11/7/18 (Fahey, J.)
People v Johnson (Don)	App Term, 1st Dept: 61 Misc 3d 128(A) (NY)	denied 11/15/18 (DiFiore, Ch. J.)
People v Johnson (Gary)	2d Dept: 165 AD3d 701 (Nassau)	denied 11/26/18 (Rivera, J.)
People v Johnson (Gregory)	2d Dept: 164 AD3d 1469 (Queens)	denied 11/30/18 (Fahey, J.)
People v King	2d Dept: 164 AD3d 915 (Kings)	denied 11/12/18 (Stein, J.)
People v Kinley	1st Dept: 164 AD3d 1156 (Bronx)	denied 11/14/18 (Rivera, J.)
People v Knight	2d Dept: 164 AD3d 832 (Queens)	denied 11/14/18 (Stein, J.)
People v Lamb	3d Dept: 162 AD3d 1395 (Washington)	denied 11/16/18 (DiFiore, Ch. J.)
People v Lara	1st Dept: 164 AD3d 438 (NY)	dismissed 11/14/18 (Wilson, J.)
People v Largo	App Div, 2d Dept: 2018 NY Slip Op 67796(U) (Queens)	dismissed 11/26/18 (Garcia, J.)
People v LaRoche	2d Dept: 162 AD3d 684 (Suffolk)	denied reconsideration 11/13/18 (Stein, J.)
People v Leader	2d Dept: 164 AD3d 1472 (Queens)	denied 11/30/18 (Wilson, J.)

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People v Lee	4th Dept: 165 AD3d 1616 (Onondaga)	denied 11/21/18 (Rivera, J.)
People v Leon	2d Dept: 164 AD3d 1369 (Richmond)	denied 11/15/18 (DiFiore, Ch. J.)
People v Lomax	3d Dept: 161 AD3d 1454 (Tompkins)	denied 11/1/18 (Stein, J.)
People v Lopez	1st Dept: 165 AD3d 479 (NY)	denied 11/30/18 (Rivera, J.)
People v Lozada	2d Dept: 164 AD3d 1260 (Queens)	withdrawn 11/13/18 (DiFiore, Ch. J.)
People v Manzembe- Udekwu	County Ct, 9/7/18 (Steuben)	denied 11/26/18 (Stein, J.)
People v Marquez- Delacruz	App Term, 1st Dept: 61 Misc 3d 131(A) (Bronx)	denied 11/30/18 (DiFiore, Ch. J.)
People v Martinez	2d Dept: 165 AD3d 702 (Kings)	denied 11/26/18 (Feinman, J.)
People v McCallum	App Term, 1st Dept: 61 Misc 3d 127(A) (Bronx)	denied 11/19/18 (DiFiore, Ch. J.)
People v McIntyre	App Term, 1st Dept: 61 Misc 3d 127(A) (Bronx)	denied 11/13/18 (DiFiore, Ch. J.)
People v McKenzie	1st Dept: 161 AD3d 703 (NY)	denied 11/29/18 (DiFiore, Ch. J.)
People v McKinney	2d Dept: 162 AD3d 1073 (Dutchess)	denied 11/26/18 (Wilson, J.)
People v McTyere	4th Dept: 164 AD3d 1658 (Niagara)	denied 11/26/18 (Feinman, J.)
People v Mendez	1st Dept: 165 AD3d 462 (NY)	denied 11/23/18 (DiFiore, Ch. J.)
People v Michael L.	App Term, 1st Dept: 61 Misc 3d 126(A) (Bronx)	denied 11/26/18 (Wilson, J.)
People v Mickens	App Div, 2d Dept: 2018 NY Slip Op 80476(U) (Suffolk)	dismissed 11/14/18 (Stein, J.)
People v Mills	2d Dept: 163 AD3d 722 (Queens)	denied 11/16/18 (Feinman, J.)
People v Mishoe	1st Dept: 162 AD3d 529 (NY)	denied 11/21/18 (Wilson, J.)
People v Mohamed	App Term, 1st Dept: 2018 NY Slip Op 80669(U) (NY)	denied 11/19/18 (DiFiore, Ch. J.)
People v Moore	2d Dept: 164 AD3d 1370 (Kings)	denied 11/30/18 (Fahey, J.)
People v Moran	2d Dept: 164 AD3d 1474 (Queens)	denied 11/29/18 (Feinman, J.)
People v Moye	2d Dept: 164 AD3d 698 (Queens)	denied 11/15/18 (Garcia, J.)
People v Murdock	2d Dept: 163 AD3d 590 (Kings)	denied 11/16/18 (Feinman, J.)
People v Muriqi	County Ct, 9/6/18 (Steuben)	denied 11/26/18 (Stein, J.)

People v Newton	2d Dept: 164 AD3d 921 (Queens)	denied 11/29/18 (DiFiore, Ch. J.)
People v Nieves	1st Dept: 165 AD3d 488 (Bronx)	denied 11/30/18 (Fahey, J.)
People v Nolan	1st Dept: 159 AD3d 455 (NY)	denied reconsideration 11/14/18 (Rivera, J.)
People v Norton	3d Dept: 164 AD3d 1502 (Saratoga)	denied 11/29/18 (DiFiore, Ch. J.)
People v Oliver	1st Dept: 165 AD3d 464 (NY)	denied 11/26/18 (Stein, J.)
People v Parker	2d Dept: 165 AD3d 688 (Richmond)	denied 11/28/18 (Feinman, J.)
People v Perez-Ramirez	2d Dept: 163 AD3d 725 (Nassau)	denied reconsideration 11/16/18 (Stein, J.)
People v Petrino	2d Dept: 163 AD3d 991 (Richmond)	denied 11/16/18 (Feinman, J.)
People v Portilloaguiar	2d Dept: 164 AD3d 1376 (Suffolk)	denied 11/26/18 (Wilson, J.)
People v Quinones	2d Dept: 164 AD3d 1266 (Orange)	denied 11/20/18 (Fahey, J.)
People v Ramirez	1st Dept: 164 AD3d 1188 (NY)	denied 11/20/18 (Fahey, J.)
People v Ramos	2d Dept: 164 AD3d 922 (Westchester)	denied 11/2/18 (Rivera, J.)
People v Reddick	2d Dept: 164 AD3d 526 (Kings)	denied 11/26/18 (Stein, J.)
People v Reina	1st Dept: 165 AD3d 478 (NY)	denied 11/21/18 (Rivera, J.)
People v Reinard	4th Dept: 162 AD3d 1776 (Niagara)	denied 11/14/18 (DiFiore, Ch. J.) (Appeal Nos. 1 and 2)
People v Reynolds	4th Dept: 164 AD3d 1662 (Genesee)	denied 11/29/18 (DiFiore, Ch. J.)
People v Richards	2d Dept: 164 AD3d 1378 (Dutchess)	denied 11/28/18 (Feinman, J.)
People v Risco	2d Dept: 165 AD3d 703 (Queens)	denied 11/21/18 (Rivera, J.)
People v Robinson	App Div, 2d Dept: 2018 NY Slip Op 72585(U) (Kings)	denied reconsideration 11/9/18 (Wilson, J.)
People v Rodriguez (Luis)	1st Dept: 165 AD3d 438 (Bronx)	denied 11/21/18 (Wilson, J.)
People v Rodriguez (Mario)	1st Dept: 165 AD3d 456 (NY)	denied 11/30/18 (Fahey, J.)
People v Rosa	1st Dept: 164 AD3d 1182 (NY)	denied 11/30/18 (Rivera, J.)

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People v Sanchez	3d Dept: 164 AD3d 1545 (Ulster)	denied 11/26/18 (Feinman, J.)
People v Santagata	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 138(A) (Richmond)	denied 11/28/18 (Feinman, J.)
People v Santini	2d Dept: 163 AD3d 991 (Richmond)	denied 11/16/18 (Feinman, J.)
People v Scott	App Term, 2d Dept, 9th & 10th Jud Dists: 61 Misc 3d 129(A) (Orange)	denied 11/27/18 (DiFiore, Ch. J.)
People v Selim	3d Dept: 164 AD3d 1576 (Schenectady)	denied 11/16/18 (Feinman, J.)
People v Sharper	1st Dept: 165 AD3d 409 (Bronx)	denied 11/16/18 (Stein, J.)
People v Shureb	County Ct, 9/7/18 (Steuben)	denied 11/26/18 (Stein, J.)
People v Simmonds (Alderay)	App Div, 2d Dept: 2018 NY Slip Op 80735(U) (Queens)	dismissed 11/7/18 (Fahey, J.)
People v Simmonds (Alderay)	App Div, 2d Dept: 2018 NY Slip Op 80485(U) (Queens)	dismissed 11/7/18 (Fahey, J.)
People v Simpson	2d Dept: 164 AD3d 1477 (Queens)	denied 11/30/18 (Fahey, J.)
People v Sparks	3d Dept: 160 AD3d 1279 (Sullivan)	denied 11/30/18 (Fahey, J.)
People v Standsblack	4th Dept: 162 AD3d 1528 (Genesee)	denied reconsideration 11/21/18 (Rivera, J.) (Appeal No. 2)
People v Stauring	County Ct, 7/20/18 (Ontario)	denied 11/30/18 (Fahey, J.)
People v Steele	1st Dept: 165 AD3d 459 (NY)	denied 11/26/18 (Stein, J.)
People v Stovall	App Term, 1st Dept: 61 Misc 3d 127(A) (NY)	denied 11/20/18 (Fahey, J.)
People v Stover	1st Dept: 165 AD3d 460 (NY)	denied 11/23/18 (DiFiore, Ch. J.)
People v Summerlin	2d Dept: 164 AD3d 1380 (Queens)	denied 11/30/18 (Fahey, J.)
People v Swen	2d Dept: 164 AD3d 926 (Richmond)	denied 11/9/18 (Wilson, J.)
People v Taylor	2d Dept: 164 AD3d 839 (Kings)	denied 11/20/18 (Fahey, J.)
People v Thompson	2d Dept: 164 AD3d 529 (Queens)	denied 11/15/18 (Garcia, J.)
People v Tidd	4th Dept: 164 AD3d 1596 (Genesee)	denied 11/26/18 (Feinman, J.)
People v Tyemel S.	1st Dept: 165 AD3d 438 (NY)	denied 11/16/18 (DiFiore, Ch. J.)
People v Urena	1st Dept: 164 AD3d 1169 (Bronx)	denied 11/20/18 (Fahey, J.)
People v Vasquez	1st Dept: 164 AD3d 1153 (NY)	denied 11/14/18 (Rivera, J.)

People v Wade	2d Dept: 164 AD3d 840 (Nassau)	denied 11/15/18 (Stein, J.)
People v Walcott	4th Dept: 164 AD3d 1593 (Niagara)	denied 11/30/18 (Wilson, J.)
People v Walker	App Div, 2d Dept: 2018 NY Slip Op 83684(U) (Kings)	dismissed 11/16/18 (Stein, J.)
People v Waterman	3d Dept: 164 AD3d 1570 (Rensselaer)	denied 11/21/18 (Rivera, J.)
People v Wesley	4th Dept: 164 AD3d 1617 (Ontario)	denied 11/30/18 (DiFiore, Ch. J.)
People v White	App Div, 2d Dept: 2018 NY Slip Op 81025(U) (Suffolk)	dismissed 11/26/18 (Feinman, J.)
People v Whitehead	App Div, 3d Dept: 2018 NY Slip Op 83394(U) (Albany)	denied 11/15/18 (Garcia, J.)
People v Whittle	2d Dept: 164 AD3d 841 (Westchester)	denied 11/26/18 (Wilson, J.)
People v Williams (Chad)	App Div, 4th Dept, 9/10/18 (Monroe)	dismissed 11/30/18 (Rivera, J.)
People v Williams (Jamel)	2d Dept: 164 AD3d 842 (Queens)	denied 11/30/18 (Fahey, J.)
People v Wisoff	County Ct, 10/10/18 (Schenectady)	denied 11/29/18 (Wilson, J.)
People v Wong	1st Dept: 165 AD3d 468 (NY)	denied 11/30/18 (Rivera, J.)
People v Yancy	2d Dept: 165 AD3d 711 (Queens)	denied 11/26/18 (Feinman, J.)

[116 NE3d 75, 91 NYS3d 784]

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

MARY JUNI, Individually and as Administratrix of the Estate of
ARTHUR H. JUNI, JR., Deceased, Appellant, v A.O. SMITH
WATER PRODUCTS Co. et al., Defendants, and FORD MOTOR
COMPANY, Respondent.

Argued October 16, 2018; decided November 27, 2018

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 28, 2017. The Appellate Division (1) affirmed a judgment of the Supreme Court, New York County (Barbara Jaffe, J.), rendered in favor of defendant Ford Motor Company against plaintiff; and (2) dismissed the

appeal from the order of that court (op 48 Misc 3d 460 [2015]) upon which the judgment had been entered, which had (a) granted defendant Ford Motor Company's motion to set aside the verdict, (b) set the verdict aside in its entirety, and (c) directed the clerk to enter judgment in defendant Ford Motor Company's favor. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by . . . this Court, properly made?"

The Appellate Division determined that a plaintiff who seeks damages for contracting mesothelioma based on exposure to a defendant's asbestos-containing products must satisfy the standards expressed in *Parker v Mobil Oil Corp.* (7 NY3d 434 [2006]) and *Cornell v 360 W. 51st St. Realty, LLC* (22 NY3d 762 [2014]) by offering evidence that, if it does not provide an exact mathematical quantification of that exposure, at least provides some scientific expression of the level of exposure to toxins in defendant's products that was sufficient to have caused the disease. Accordingly, in an action alleging that plaintiff's decedent contracted mesothelioma caused by claimed exposure to defendant automobile manufacturer's asbestos-containing products while he worked as an auto mechanic, the Appellate Division determined that the evidence presented by plaintiff was insufficient because it failed to establish that the decedent's mesothelioma was a result of his exposure to a sufficient quantity of asbestos in friction products sold or distributed by defendant.

Matter of New York City Asbestos Litig., 148 AD3d 233, affirmed.

HEADNOTE

Torts — Toxic Torts — Exposure to Asbestos-Containing Products as Cause of Mesothelioma

In an action alleging that plaintiff's decedent contracted mesothelioma caused by claimed exposure to defendant automobile manufacturer's asbestos-containing products, an Appellate Division order which affirmed a Supreme Court order granting defendant's motion to set aside the verdict as against it was affirmed. Since the evidence was insufficient as a matter of law to establish that defendant's conduct was a proximate cause of the decedent's injuries pursuant to the standards set forth in *Parker v Mobil Oil Corp.* (7 NY3d 434 [2006]) and *Cornell v 360 W. 51st St. Realty, LLC* (22 NY3d 762 [2014]), defendant was entitled to judgment as a matter of law under CPLR 4404 (a).

APPEARANCES OF COUNSEL

Weitz & Luxenberg, P.C., New York City (*Alani Golanski* of counsel), for appellant.

McGuire Woods, LLP, Richmond, Virginia (*J. Tracy Walker, IV*, of the Virginia bar, admitted pro hac vice, and *Tennille J. Checkovich* of counsel), and *Aaronson Rappaport Feinstein & Deutsch, LLP*, New York City (*Nancy L. Pennie* of counsel), for respondent.

Lipsitz & Ponterio, LLC, Buffalo (*John Ned Lipsitz* of counsel), for Philip J. Landrigan and others, amici curiae.

Nathan A. Schachtman, Esq., P.C., New York City (*Nathan A. Schachtman* of counsel), and *Crowell & Moring, LLP*, Washington, D.C. (*William L. Anderson*, of the District of Columbia bar, admitted pro hac vice, of counsel), for Coalition for Litigation Justice, Inc., and others, amici curiae.

Belluck & Fox, L.L.P., New York City (*Seth A. Dymond* of counsel), for Military-Veterans Advocacy, Inc., amicus curiae.

Atlantic Legal Foundation, Harrison (*Martin S. Kaufman* of counsel), for John Henderson Duffus and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Viewing the evidence in the light most favorable to plaintiff, the evidence was insufficient as a matter of law to establish that defendant Ford Motor Company's conduct was a proximate cause of the decedent's injuries pursuant to the standards set forth in *Parker v Mobil Oil Corp.* (7 NY3d 434 [2006]) and *Cornell v 360 W. 51st St. Realty, LLC* (22 NY3d 762 [2014]). Accordingly, on this particular record, defendant was entitled to judgment as a matter of law under CPLR 4404 (a).*

FAHEY, J. (concurring). I join the majority's memorandum decision, but write separately to highlight that, in my view, plaintiff's proof failed to establish, by legally sufficient evidence, a connection between defendant Ford Motor Company's products and decedent's exposure to asbestos. I do not address any other issues of general or specific causation reached by the Appellate Division.

* Inasmuch as the parties make no arguments about *Matter of New York City Asbestos Litig.* (27 NY3d 765 [2016] [*Dummitt*]), we have no occasion to address whether, as the dissent concludes, the jury charge given in this case conflicts with our decision therein.

Wilson, J. (concurring). I concur in the Court's opinion but write separately to explain what I see as the failure in the proof here. In brief, I believe that the failure of proof as to general causation identified by Supreme Court, and not any failure as to specific causation identified by the Appellate Division, warrants affirmance.

Mr. Juni spent his entire career working for Orange and Rockland Utilities, where he was exposed to asbestos in various capacities. For 25 of those years, he worked as an auto mechanic servicing Ford Motor Company (Ford) vehicles. As part of that job, Mr. Juni worked with Ford and other "friction" products (i.e., brakes and clutches) that contained chrysotile asbestos; his employment exposed him to other types of asbestos-containing products as well (e.g., during welding work or work in the powerhouse). There is no dispute that raw chrysotile asbestos greater than five microns in length is toxic and exposure to it carries increased risk for mesothelioma, or that Mr. Juni died of mesothelioma, and the proof is more than sufficient to establish that his exposure to asbestos caused his disease and death.

However, Ford adduced evidence that the process of manufacturing friction products under extreme temperatures alters the chemical composition of the asbestos, and the subsequent use of those products also subjects them to very high temperatures causing the conversion of the asbestos into a biologically inert substance called Forsterite. Plaintiffs did not produce an expert to rebut the argument that the physical properties of the asbestos in Ford's friction products had been so radically altered as to render conventional asbestos toxicology irrelevant. Instead, one of plaintiffs' causation experts testified extensively that chrysotile asbestos in its raw state caused mesothelioma. But when asked about chrysotile asbestos subjected to the extreme temperatures involved in the manufacture and use of friction products, he testified that he had not studied the release of chrysotile asbestos from friction products because he was "not an engineer or industrial hygienist." He further admitted that the only study of which he was aware on the subject of "the biological activity . . . [of] this [heat-]altered state of chrysotile" concluded that "[c]hrysotile biological activity is thereby greatly reduced, and can become virtually nil hundreds of degrees below" the relevant temperatures. He also opined that the epidemiological studies examining a relationship between garage workers and mesothelioma failed to show a causal relationship, which he ascribed to data and methodologi-

cal issues. Plaintiff's other causation expert, when asked specifically about the high temperature transformation of asbestos to Forsterite, testified that "no one knows" whether the friction product dust to which Mr. Juni was exposed when replacing the used products was toxic. Supreme Court, in setting aside the jury verdict, relied on this same problem as to both of plaintiff's experts (*see Matter of New York City Asbestos Litig.*, 48 Misc 3d 460, 482-486 [Sup Ct, NY County 2015]).

Thus, a necessary link in the proof of proximate cause was missing. I do not suggest that Ford is correct as a scientific matter; that question remains for the trier of fact in each case. Here, in my view, there was simply a gap in proof as to the toxicity of the products at issue (*see Parker v Mobil Oil Corp.*, 7 NY3d 434, 449-450 [2006] ["(the plaintiff's expert) concentrates on the relationship between exposure to benzene and the risk of developing AML—an association that is not in dispute. Key to this litigation is the relationship, if any, between exposure to *gasoline* containing benzene as a component and AML"]).

RIVERA, J. (dissenting). Arthur H. Juni, Jr., died of mesothelioma, a rare and fatal cancer caused by exposure to asbestos. He and his wife sued, among others, defendant Ford Motor Company, claiming Ford's failure to warn him of the dangers of exposure to its asbestos-containing products was a substantial cause of his illness. Mr. Juni passed away before trial and his wife substituted as administrator for his estate. Although the jury returned a verdict in his favor, finding Ford 49% liable, Supreme Court granted that part of Ford's motion to set aside the verdict pursuant to CPLR 4404 (a), on the ground that the evidence was legally insufficient to support the verdict.* That was error.

* Plaintiff litigated to verdict prior to our decision in *Dummitt v A.W. Chesterton* (27 NY3d 765 [2016]), where we held that "the manufacturer of a product has a duty to warn of the danger arising from the known and reasonably foreseeable use of its product in combination with a third-party product which, as a matter of design, mechanics or economic necessity, is necessary to enable the manufacturer's product to function as intended" (*id.* at 793). Plaintiff had requested a jury charge in Supreme Court instructing the jury that defendant Ford could be liable for asbestos-containing replacement parts used in its vehicles even if Ford did not manufacture those products. Supreme Court rejected plaintiff's request, and "declined to instruct the jury on whether defendant failed to warn Juni of the danger of components used in its vehicles" (*Matter of New York City Asbestos Litig.*, 48 Misc 3d 460, 462 [Sup Ct, NY County 2015, Jaffe, J.]). That decision conflicts with *Dummitt*.

The jury heard testimony by way of Mr. Juni's deposition that for over 25 years he worked as a garage mechanic, servicing Ford vehicles. On a daily basis, he was exposed to asbestos-laden dust from new and used brakes, clutches, and manifold and engine gaskets. That dust emanated from parts worked on by himself and other mechanics in the surrounding work area. The jury also heard expert testimony that during the time of Mr. Juni's exposure, Ford's vehicle parts contained chrysotile asbestos, which had been linked to mesothelioma. Another expert opined that the presence of visible dust is a scientifically recognized way of identifying the presence of airborne asbestos in amounts generally recognized within the scientific community as toxic to humans, and that it is the cumulative exposure to asbestos that increases the risk of mesothelioma. The jury was presented with various internal Ford documents revealing that Ford recognized that friction products in Ford vehicles "[o]verexpos[ed]" mechanics to carcinogenic asbestos fibers and that Ford took steps to protect its own employees from exposure to dust from these products. Nevertheless, Ford disputed causation and presented expert testimony contesting the toxicity of the product contents to which Mr. Juni was exposed during his years as a mechanic, and whether mechanics, like Mr. Juni, had an increased risk of developing mesothelioma based on the type of work performed and their work environment.

To succeed on its CPLR 4404 (a) motion, defendant had to establish that the jury's verdict was "utterly irrational" (*Killon v Parrotta*, 28 NY3d 101, 108 [2016], quoting *Campbell v City of Elmira*, 84 NY2d 505, 510 [1994]). "To conclude that a verdict is utterly irrational, requiring vacatur of the verdict, the Court must determine that 'there is simply no valid line of reasoning and permissible inferences which could possibly lead [a] rational [person] to the conclusion reached by the jury on the basis of the evidence presented at trial'" (*id.*, quoting *Campbell v City of Elmira* at 509).

For the reasons stated in then-Justice Feinman's well-reasoned and thorough dissent, defendant failed to meet its burden, as the evidence was sufficient to support the jury's verdict that Ford was a substantial cause of Mr. Juni's illness (*Matter of New York City Asbestos Litig.*, 148 AD3d 233, 242-256 [1st Dept 2017] [Feinman, J., dissenting]). In light of the compelling evidence of Mr. Juni's exposure to asbestos while working on Ford vehicles and products, I find no basis to conclude that the verdict was utterly irrational. Essentially,

the jury was unpersuaded by Ford's experts. That decision should stand. I would reverse the Appellate Division order and remit to the trial court for consideration of those grounds raised by Ford and not addressed below.

Chief Judge DiFiore and Judges Stein, Fahey and Wilson concur; Judge Fahey in a concurring opinion and Judge Wilson in a separate concurring opinion; Judge Rivera dissents in an opinion; Judges Garcia and Feinman taking no part.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[116 NE3d 74, 91 NYS3d 783]

In the Matter of LUIS PENA, Respondent, v NEW YORK STATE GAMING COMMISSION, Appellant.

Argued November 13, 2018; decided November 27, 2018

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 3, 2016, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Schenectady County). The Appellate Division (1) annulled a determination of respondent insofar as it found petitioner committed 1,717 of the 1,719 charged violations and imposed a penalty, including, among other things, revoking petitioner's licenses to participate in pari-mutuel harness racing for a period of three years; and (2) granted the petition.

Respondent New York State Gaming Commission revoked petitioner harness racehorse trainer's licenses to participate in pari-mutuel harness racing for three years based on veterinary records insinuating that he had illegally administered multiple substances to horses in the lead-up to hundreds of harness races run between January 2010 and April 2012. The majority at the Appellate Division concluded that, while the veterinary records were admissible in the administrative context even though they were not certified, the records lacked substantial probative evidentiary value on the key issue of whether substances were administered to horses within prohibited time

frames, thus warranting annulment of respondent's determination. The dissent at the Appellate Division held, with respect to the veterinary records, that the inference that respondent made that the dates listed next to specified veterinary care represented the dates that such care was administered was reasonable and plausible, thus concluding that respondent's determination was supported by substantial evidence.

Matter of Pena v New York State Gaming Commn., 144 AD3d 1244, reversed.

HEADNOTE

Horse Racing — Revocation or Suspension of License — Trainer

In a proceeding pursuant to CPLR article 78 challenging a determination of respondent New York State Gaming Commission revoking petitioner harness racehorse trainer's licenses to participate in pari-mutuel harness racing for three years, an Appellate Division order which annulled respondent's determination was reversed, the determination confirmed, and the petition dismissed for reasons stated in the dissenting opinion at the Appellate Division.

APPEARANCES OF COUNSEL

Barbara D. Underwood, Attorney General, Albany (*Jonathan D. Hitsous* and *Andrew D. Bing* of counsel), for appellant.

Meyer, Suozzi, English & Klein, P.C., Garden City (*Andrew J. Turro* of counsel), for respondent.

OPINION OF THE COURT

Order reversed, with costs, determination of the New York State Gaming Commission confirmed, and petition dismissed for reasons stated in the dissenting opinion of Justice Presiding William E. McCarthy (144 AD3d 1244, 1247-1252 [2016]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2018 through December 31, 2018)

U.S. Bank N.A. v GreenPoint
Mtge. Funding, Inc.

1st Dept: 147 AD3d 79

12/20/18

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2018 through December 31, 2018)

People v AJ	2d Dept: 165 AD3d 837 (Suffolk)	denied 12/10/18 (Fahey, J.)
People v Aldous	3d Dept: 166 AD3d 1077 (Albany)	denied 12/31/18 (Fahey, J.)
People v Anthony	2d Dept: 165 AD3d 971 (Suffolk)	denied 12/19/18 (Stein, J.)
People v Armstrong	App Term, 1st Dept: 2018 NY Slip Op 51455(U) (NY)	denied 12/13/18 (DiFiore, Ch. J.)
People v Aviles	2d Dept: 165 AD3d 1278 (Suffolk)	denied 12/28/18 (Feinman, J.)
People v Basurto-Lopez	2d Dept: 166 AD3d 643 (Richmond)	denied 12/28/18 (Feinman, J.)
People v Batista	2d Dept: 165 AD3d 1158 (Nassau)	denied 12/31/18 (Fahey, J.)
People v Beloved	App Div, 3d Dept: 2018 NY Slip Op 84130(U) (Clinton)	denied 12/10/18 (Fahey, J.)
People v Bogle	2d Dept: 164 AD3d 1372 (Kings)	denied 12/18/18 (Fahey, J.)
People v Bradley	2d Dept: 165 AD3d 693 (Kings)	denied 12/27/18 (Rivera, J.)
People v Bridge	3d Dept: 166 AD3d 1168 (Ulster)	denied 12/14/18 (Rivera, J.)
People v Broderick	2d Dept: 165 AD3d 972 (Kings)	denied 12/3/18 (Feinman, J.)
People v Brooks (Marquis)	2d Dept: 165 AD3d 1280 (Queens)	denied 12/31/18 (DiFiore, Ch. J.)
People v Brooks (Michael)	4th Dept: 140 AD3d 1780 (Cayuga)	denied 12/14/18 (Wilson, J.)
People v Bryant	2d Dept: 165 AD3d 1162 (Kings)	denied 12/18/18 (Fahey, J.)
People v Bullet	2d Dept: 165 AD3d 837 (Suffolk)	denied 12/10/18 (Fahey, J.)
People v Burris	2d Dept: 164 AD3d 821 (Nassau)	denied 12/31/18 (Stein, J.)
People v Cahill	4th Dept: 164 AD3d 1669 (Onondaga)	denied 12/13/18 (DiFiore, Ch. J.)
People v Campbell	1st Dept: 161 AD3d 634 (NY)	denied 12/13/18 (Wilson, J.)
People v Carey	3d Dept: 163 AD3d 1289 (Ulster)	denied 12/27/18 (Rivera, J.)
People v Carr	App Div, 4th Dept, 9/17/18 (Erie)	dismissed 12/21/18 (DiFiore, Ch. J.)
People v Carrasco	App Div, 1st Dept: 2018 NY Slip Op 85905(U) (Bronx)	denied 12/31/18 (Fahey, J.)
People v Cerda	App Term, 1st Dept: 2018 NY Slip Op 51430(U) (Bronx)	denied 12/21/18 (DiFiore, Ch. J.)

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People v Chalen	App Term, 1st Dept: 2018 NY Slip Op 51456(U) (NY)	denied 12/27/18 (Fahey, J.)
People v Coleman	1st Dept: 165 AD3d 528 (Bronx)	denied 12/13/18 (DiFiore, Ch. J.)
People v Colson	2d Dept: 164 AD3d 1358 (Queens)	denied 12/31/18 (Stein, J.)
People v Cooper	County Ct, 7/30/18 (Erie)	denied 12/31/18 (Stein, J.)
People v Crisalli	1st Dept: 164 AD3d 1191 (NY)	denied 12/10/18 (Garcia, J.)
People v Crumpler	4th Dept: 163 AD3d 1457 (Monroe)	denied reconsideration 12/3/18 (Feinman, J.)
People v D	4th Dept: 164 AD3d 1670 (Erie)	denied 12/27/18 (Rivera, J.)
People v DeJesus	2d Dept: 165 AD3d 972 (Kings)	denied 12/18/18 (Feinman, J.)
People v Delorbe	1st Dept: 165 AD3d 531 (NY)	granted 12/27/18 (Fahey, J.)
People v Dickenson	2d Dept: 164 AD3d 1358 (Nassau)	denied 12/18/18 (Feinman, J.)
People v Duren	2d Dept: 164 AD3d 913 (Nassau)	denied 12/18/18 (Feinman, J.)
People v Flowers	4th Dept: 166 AD3d 1492 (Monroe)	denied 12/28/18 (Feinman, J.)
People v Flynn	2d Dept: 165 AD3d 973 (Suffolk)	denied 12/28/18 (Feinman, J.)
People v Francis	1st Dept: 164 AD3d 1108 (NY)	granted 12/18/18 (Rivera, J.)
People v G Money	App Div, 3d Dept: 2018 NY Slip Op 84848(U) (Ulster)	denied 12/18/18 (Feinman, J.)
People v Gonzalez	2d Dept: 164 AD3d 1362 (Kings)	denied 12/10/18 (Garcia, J.)
People v Gorman	3d Dept: 165 AD3d 1349 (Saratoga)	denied 12/27/18 (Rivera, J.)
People v Gray	County Ct, 9/11/18 (Erie)	denied 12/17/18 (DiFiore, Ch. J.)
People v Gregory	2d Dept: 163 AD3d 847 (Queens)	granted 12/13/18 (Rivera, J.)
People v Griffin	App Div, 3d Dept: 2018 NY Slip Op 84848(U) (Ulster)	denied 12/18/18 (Feinman, J.)
People v Hasan	4th Dept: 165 AD3d 1606 (Onondaga)	denied 12/27/18 (Rivera, J.)
People v Hatch	3d Dept: 165 AD3d 1321 (Madison)	denied 12/31/18 (Fahey, J.)
People v Hawes	App Div, 1st Dept: 2018 NY Slip Op 84359(U) (NY)	dismissed 12/10/18 (Garcia, J.)
People v Hickson	2d Dept: 165 AD3d 1166 (Suffolk)	denied 12/31/18 (Stein, J.)

People v Hill	4th Dept: 164 AD3d 1651 (Onondaga)	denied 12/19/18 (DiFiore, Ch. J.)
People v Howie	4th Dept: 164 AD3d 1669 (Erie)	denied 12/11/18 (Feinman, J.)
People v Hunter	2d Dept: 165 AD3d 978 (Queens)	denied 12/31/18 (Stein, J.)
People v Irizarry	1st Dept: 165 AD3d 612 (Bronx)	denied 12/31/18 (Fahey, J.)
People v Jamison	App Div, 2d Dept: 2018 NY Slip Op 81502(U) (Kings)	dismissed 12/12/18 (Wilson, J.)
People v Jean	2d Dept: 165 AD3d 837 (Suffolk)	denied 12/10/18 (Fahey, J.)
People v Jimenez	App Div, 4th Dept, 9/17/18 (Onondaga)	dismissed 12/10/18 (Garcia, J.)
People v Johnson (Andre)	1st Dept: 164 AD3d 1176 (NY)	denied 12/10/18 (Garcia, J.)
People v Johnson (Djani)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 130(A) (Kings)	denied 12/18/18 (Rivera, J.)
People v Johnson (Willelle)	App Div, 3d Dept: 2018 NY Slip Op 87024(U) (Columbia)	denied 12/28/18 (Feinman, J.)
People v Joyner	2d Dept: 165 AD3d 838 (Kings)	denied 12/21/18 (DiFiore, Ch. J.)
People v Kaye	App Div, 3d Dept: 2018 NY Slip Op 84130(U) (Clinton)	denied 12/10/18 (Fahey, J.)
People v Lang	3d Dept: 164 AD3d 963 (Essex)	granted 12/18/18 (Rivera, J.)
People v Larregui	4th Dept: 164 AD3d 1622 (Monroe)	denied 12/31/18 (Stein, J.)
People v Lewis	4th Dept: 164 AD3d 1670 (Erie)	denied 12/27/18 (Rivera, J.)
People v Long	3d Dept: 165 AD3d 1323 (Broome)	denied 12/31/18 (Stein, J.)
People v Lorenzo	1st Dept: 165 AD3d 412 (Bronx)	denied 12/19/18 (DiFiore, Ch. J.)
People v Lucca	1st Dept: 165 AD3d 414 (NY)	denied 12/19/18 (Fahey, J.)
People v Mackie	App Div, 1st Dept: 2018 NY Slip Op 78012(U) (NY)	denied 12/31/18 (Stein, J.)
People v Maloy	App Div, 3d Dept: 2018 NY Slip Op 84805(U) (Sullivan)	dismissed 12/10/18 (Fahey, J.)
People v Marable	3d Dept: 164 AD3d 1542 (Albany)	denied 12/31/18 (Fahey, J.)
People v Marrero (Anibal)	2d Dept: 165 AD3d 702 (Kings)	denied 12/3/18 (Wilson, J.)
People v Marrero (Christian)	1st Dept: 165 AD3d 517 (NY)	denied 12/14/18 (DiFiore, Ch. J.)
People v Martinez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 135(A) (Kings)	denied 12/31/18 (DiFiore, Ch. J.)

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People v Masters	App Div, 3d Dept: 2018 NY Slip Op 76929(U) (Schenectady)	denied reconsideration 12/10/18 (Fahey, J.)
People v McLean	2d Dept: 165 AD3d 703 (Queens)	denied 12/28/18 (DiFiore, Ch. J.)
People v Megnath	2d Dept: 164 AD3d 834 (Queens)	denied 12/17/18 (Wilson, J.)
People v Melendez	1st Dept: 165 AD3d 481 (Bronx)	denied 12/19/18 (Rivera, J.)
People v Melendez-Torres	2d Dept: 165 AD3d 840 (Nassau)	denied 12/31/18 (DiFiore, Ch. J.)
People v Meyer	2d Dept: 165 AD3d 981 (Suffolk)	denied 12/14/18 (Rivera, J.)
People v Meyers	2d Dept: 162 AD3d 1074 (Nassau)	granted 12/10/18 (Garcia, J.)
People v Millan	1st Dept: 165 AD3d 590 (Bronx)	denied 12/27/18 (Rivera, J.)
People v Moise	1st Dept: 165 AD3d 516 (NY)	denied 12/31/18 (Stein, J.)
People v Mone	4th Dept: 164 AD3d 1670 (Erie)	denied 12/27/18 (Rivera, J.)
People v Morales (Manuel)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 130(A) (Queens)	denied 12/4/18 (Rivera, J.)
People v Morales (Pedro)	1st Dept: 164 AD3d 1131 (Bronx)	denied 12/10/18 (Garcia, J.)
People v Moran	1st Dept: 165 AD3d 545 (NY)	denied 12/14/18 (Rivera, J.)
People v Morros	1st Dept: 166 AD3d 407 (NY)	denied 12/31/18 (Stein, J.)
People v Muicela	2d Dept: 165 AD3d 982 (Suffolk)	denied 12/13/18 (DiFiore, Ch. J.)
People v Murat-Hinton	County Ct, 9/21/18 (Warren)	denied 12/11/18 (Feinman, J.)
People v Naya B.	1st Dept: 165 AD3d 593 (Bronx)	denied 12/21/18 (DiFiore, Ch. J.)
People v Ndiaye	1st Dept: 165 AD3d 522 (NY)	denied 12/31/18 (DiFiore, Ch. J.)
People v Nelson (Xavier)	4th Dept: 164 AD3d 1643 (Monroe)	denied 12/3/18 (Feinman, J.) (Appeal No. 1)
People v Nelson (Xavier)	4th Dept: 164 AD3d 1650 (Monroe)	denied 12/3/18 (Feinman, J.) (Appeal No. 2)
People v Perea	2d Dept: 165 AD3d 703 (Kings)	denied 12/3/18 (Wilson, J.)
People v Pierre	2d Dept: 165 AD3d 1175 (Queens)	denied 12/31/18 (Stein, J.)
People v Pinilla	1st Dept: 164 AD3d 452 (NY)	denied 12/27/18 (Fahey, J.)
People v Polite	2d Dept: 164 AD3d 1372 (Kings)	denied 12/18/18 (Fahey, J.)

People v Porter	1st Dept: 165 AD3d 544 (NY)	denied 12/19/18 (Fahey, J.)
People v Posy	2d Dept: 165 AD3d 1176 (Queens)	denied 12/19/18 (Rivera, J.)
People v Prude (Robert)	2d Dept: 165 AD3d 1176 (Kings)	denied 12/19/18 (DiFiore, Ch. J.)
People v Prude (Roderick)	1st Dept: 166 AD3d 411 (NY)	denied 12/19/18 (Stein, J.)
People v Quell	4th Dept: 164 AD3d 1669 (Erie)	denied 12/11/18 (Feinman, J.)
People v Ramlagan	1st Dept: 166 AD3d 410 (NY)	denied 12/31/18 (Fahey, J.)
People v Ramos	2d Dept: 164 AD3d 1267 (Nassau)	denied 12/10/18 (Wilson, J.)
People v Ratliff	2d Dept: 165 AD3d 845 (Nassau)	denied 12/19/18 (Fahey, J.)
People v Reap	3d Dept: 163 AD3d 1287 (Tompkins)	denied 12/12/18 (Wilson, J.)
People v Reich	App Term, 2d Dept, 9th & 10th Jud Dists: 61 Misc 3d 136(A) (Orange)	denied 12/18/18 (Feinman, J.)
People v Richardson	3d Dept: 162 AD3d 1328 (Albany)	denied 12/13/18 (Wilson, J.)
People v Rivera (Carmelo)	App Div, 2d Dept: 2018 NY Slip Op 78950(U); 2018 NY Slip Op 78951(U) (Westchester)	dismissed 12/18/18 (Feinman, J.)
People v Rivera (Dioris)	1st Dept: 165 AD3d 522 (NY)	denied 12/31/18 (Stein, J.)
People v Robinson (Icylin)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 130(A) (Kings)	denied 12/18/18 (Feinman, J.)
People v Robinson (Joseph)	2d Dept: 160 AD3d 991 (Queens)	denied 12/13/18 (Wilson, J.)
People v Rolon	1st Dept: 165 AD3d 507 (NY)	denied 12/21/18 (DiFiore, Ch. J.)
People v Romero	App Div, 1st Dept: 2018 NY Slip Op 74187(U) (NY)	denied reconsideration 12/27/18 (Fahey, J.)
People v Rose	2d Dept: 165 AD3d 1178 (Suffolk)	denied 12/14/18 (Rivera, J.)
People v Roulhac	3d Dept: 166 AD3d 1066 (Clinton)	denied 12/31/18 (Fahey, J.)
People v Sanchez	1st Dept: 165 AD3d 531 (NY)	denied 12/10/18 (Fahey, J.)
People v Santiago (Gabriel)	1st Dept: 165 AD3d 417 (NY)	denied 12/31/18 (Fahey, J.)
People v Santiago (George)	1st Dept: 165 AD3d 505 (NY)	denied 12/31/18 (Stein, J.)
People v Saunders (Michael)	2d Dept: 165 AD3d 705 (Westchester)	denied 12/11/18 (Feinman, J.)
People v Saunders (Troy)	3d Dept: 162 AD3d 1217 (Albany)	denied 12/28/18 (Feinman, J.)

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People v Sears	3d Dept: 163 AD3d 1040 (Franklin)	dismissed 12/19/18 (DiFiore, Ch. J.)
People v Senquiz	1st Dept: 165 AD3d 438 (NY)	denied 12/14/18 (DiFiore, Ch. J.)
People v Serrano	4th Dept: 164 AD3d 1658 (Niagara)	denied 12/11/18 (DiFiore, Ch. J.)
People v Singletary	2d Dept: 164 AD3d 1477 (Suffolk)	denied 12/27/18 (Rivera, J.)
People v Smalls	1st Dept: 162 AD3d 555 (NY)	denied 12/13/18 (Wilson, J.)
People v Solano	App Div, 1st Dept: 2017 NY Slip Op 78638(U) (NY)	denied 12/10/18 (Fahey, J.)
People v Stevens	3d Dept: 166 AD3d 1167 (Franklin)	denied 12/28/18 (DiFiore, Ch. J.)
People v Strong	4th Dept: 165 AD3d 1589 (Monroe)	denied 12/31/18 (Stein, J.)
People v Sturges	2d Dept: 164 AD3d 616 (Kings)	denied 12/14/18 (Wilson, J.)
People v Tacuri	2d Dept: 163 AD3d 593 (Kings)	denied 12/14/18 (Wilson, J.)
People v Tate	App Term, 1st Dept: 61 Misc 3d 127(A) (NY)	denied 12/3/18 (Wilson, J.)
People v Thatcher	2d Dept: 164 AD3d 619 (Westchester)	denied 12/14/18 (Wilson, J.)
People v Thomas (James)	4th Dept: 165 AD3d 1636 (Monroe)	denied 12/31/18 (Stein, J.)
People v Thomas (Wayne)	4th Dept: 165 AD3d 1636 (Monroe)	denied 12/31/18 (Stein, J.)
People v Thompson	1st Dept: 165 AD3d 602 (Bronx)	denied 12/31/18 (Stein, J.)
People v Tromp	2d Dept: 164 AD3d 1479 (Richmond)	denied 12/4/18 (Wilson, J.)
People v Trotman	1st Dept: 165 AD3d 561 (NY)	denied 12/19/18 (Stein, J.)
People v Udeke (Sixtus)	App Term, 1st Dept: 59 Misc 3d 136(A) (NY)	granted 12/13/18 (Wilson, J.)
People v Udeke (Sixtus)	1st Dept: 166 AD3d 549 (NY)	denied 12/14/18 (Wilson, J.)
People v Velez	2d Dept: 164 AD3d 622 (Queens)	granted 12/19/18 (Fahey, J.)
People v Walters	3d Dept: 164 AD3d 1569 (Albany)	denied 12/27/18 (Fahey, J.)
People v Wares	2d Dept: 165 AD3d 1182 (Orange)	denied 12/31/18 (Fahey, J.)
People v West	3d Dept: 166 AD3d 1080 (Warren)	denied 12/31/18 (Fahey, J.)
People v Wheeler	App Term, 2d Dept, 9th & 10th Jud Dists: 61 Misc 3d 30 (Orange)	granted 12/13/18 (Rivera, J.)
People v White	1st Dept: 165 AD3d 427 (NY)	denied 12/10/18 (Fahey, J.)

People v Williams (Chad)	1st Dept: 165 AD3d 590 (Bronx)	denied 12/31/18 (Stein, J.)
People v Williams (Corey)	App Term, 1st Dept: 61 Misc 3d 133(A) (NY)	denied 12/31/18 (DiFiore, Ch. J.)
People v Wilson	2d Dept: 163 AD3d 881 (Queens)	denied 12/19/18 (Rivera, J.)
People v Wynn	App Div, 3d Dept: 2018 NY Slip Op 84130(U) (Clinton)	denied 12/10/18 (Fahey, J.)
People v Zalevsky	2d Dept: 164 AD3d 1483 (Kings)	denied 12/31/18 (Stein, J.)

LILYA ANDRYEYEV, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v NEW YORK
HEALTH CARE, INC., Doing Business as NEW YORK HOME
ATTENDANT AGENCY, et al., Appellants.

ADRIANA MORENO, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v FUTURE CARE
HEALTH SERVICES, INC., et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216; 153 AD3d 1254.

Motion by Sanford Heisler Sharp, LLP for leave to file a brief
amicus curiae on the appeals herein granted and the proposed
brief is accepted as filed. Two copies of the brief must be served,
an original and nine copies filed, and the brief submitted in
digital format within seven days.

LILYA ANDRYEYEV, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v NEW YORK
HEALTH CARE, INC., Doing Business as NEW YORK HOME
ATTENDANT AGENCY, et al., Appellants.

ADRIANA MORENO, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v FUTURE CARE
HEALTH SERVICES, INC., et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216; 153 AD3d 1254.

Motion by Greater New York Hospital Association et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

LILYA ANDRYEYEV, Individually and on Behalf of All Others Similarly Situated, et al., Respondents, v NEW YORK HEALTH CARE, INC., Doing Business as NEW YORK HOME ATTENDANT AGENCY, et al., Appellants.

ADRIANA MORENO, Individually and on Behalf of All Others Similarly Situated, et al., Respondents, v FUTURE CARE HEALTH SERVICES, INC., et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216; 153 AD3d 1254.

Motion by Home Care Association of America et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

LILYA ANDRYEYEV, Individually and on Behalf of All Others Similarly Situated, et al., Respondents, v NEW YORK HEALTH CARE, INC., Doing Business as NEW YORK HOME ATTENDANT AGENCY, et al., Appellants.

ADRIANA MORENO, Individually and on Behalf of All Others Similarly Situated, et al., Respondents, v FUTURE CARE HEALTH SERVICES, INC., et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216; 153 AD3d 1254.

Motion by Community Development Project et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

LILYA ANDRYEYEV, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v NEW YORK
HEALTH CARE, INC., Doing Business as NEW YORK HOME
ATTENDANT AGENCY, et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216.

Motion by New York State Association of Health Care Providers Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

LILYA ANDRYEYEV, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v NEW YORK
HEALTH CARE, INC., Doing Business as NEW YORK HOME
ATTENDANT AGENCY, et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216.

Motion by New York State Department of Labor for leave to appear amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

LILYA ANDRYEYEV, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v NEW YORK
HEALTH CARE, INC., Doing Business as NEW YORK HOME
ATTENDANT AGENCY, et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1216.

Motion by National Center for Law and Economic Justice for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

LESLIE BARNAVE, Appellant, v TARIK DAVIS, Respondent.

Decided January 10, 2019

Reported below, 2014 NY Slip Op 90975(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

BOARD OF DIRECTORS OF WINDSOR OWNERS CORP., Respondent,
v ELAINE PLATT, Appellant.

Submitted November 5, 2018; decided January 10, 2019

Reported below, 161 AD3d 637.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DARRYL BRIGGS, Appellant, v STATE OF NEW YORK DEPARTMENT
OF CORRECTIONS AND COMMUNITY SUPERVISION et al., Re-
spondents.

Decided January 10, 2019

Reported below, 163 AD3d 1306.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

SOFIA FASOLAS, Respondent, v BOBCAT OF NEW YORK, INC., et
al., Defendants, BOBCAT OF LONG ISLAND, INC., et al., Ap-
pellants, and PORT JEFFERSON RENTAL CENTER, INC., Doing
Business as TAYLOR RENTAL CENTER, Respondent.

Submitted December 24, 2018; decided January 10, 2019

Reported below, 150 AD3d 147.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of GINO L. GIORGINI, III (Admitted as GINO LOUIS GIORGINI, III), an Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted December 10, 2018; decided January 10, 2019

Reported below, 166 AD3d 43.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for a stay dismissed as academic.

JP MORGAN CHASE BANK, NA, Plaintiff, v OFRA LEVIN, Appellant, and WELLS FARGO BANK, NA, as Trustee, Respondent, et al., Defendants.

Decided January 10, 2019

Reported below, 161 AD3d 966.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

LAWRENCE KINGSLEY, Appellant, v 300 W. 106TH ST. CORP., Respondent. (And a Third-Party Action.)

Submitted November 19, 2018; decided January 10, 2019

Reported below, 162 AD3d 420.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

JOHN KUZMICH et al., Appellants, v 50 MURRAY STREET ACQUISITION LLC, Respondent.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 157 AD3d 556.

Motion by The Real Estate Board of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LARCHMONT PANCAKE HOUSE, Appellant, v
BOARD OF ASSESSORS AND/OR THE ASSESSOR OF THE TOWN OF
MAMARONECK et al., Respondents. (And Three Other Pro-
ceedings.)

Submitted December 17, 2018; decided January 10, 2019

Reported below, 153 AD3d 521.

Motion by New York State School Boards Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of LARCHMONT PANCAKE HOUSE, Appellant, v
BOARD OF ASSESSORS AND/OR THE ASSESSOR OF THE TOWN OF
MAMARONECK et al., Respondents. (And Three Other Pro-
ceedings.)

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 521.

Motion by New York State Conference of Mayors and Municipal Officials et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of MICHAEL P., an Infant. MICHAEL P., Appellant;
EDWIN GOULD SERVICES FOR CHILDREN AND FAMILIES, Re-
spondent.

Submitted November 5, 2018; decided January 10, 2019

Reported below, 165 AD3d 497.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ADRIANA MORENO, Individually and on Behalf of All Others
Similarly Situated, et al., Respondents, v FUTURE CARE
HEALTH SERVICES, INC., et al., Appellants.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 153 AD3d 1254.

Motion by New York State Department of Labor for leave to appear amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

NEW YORK COMMUNITY BANK, Respondent, v WOODHAVEN ASSOCIATES LLC, Appellant, et al., Defendants.

Submitted December 17, 2018; decided January 10, 2019

Reported below, 137 AD3d 1231.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANONYMOUS, Appellant.

Submitted December 17, 2018; decided January 10, 2019

Reported below, 161 AD3d 401.

Motion to seal granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v WILLIAM MORRISON, Respondent.

Submitted December 17, 2018; decided January 10, 2019

Reported below, 148 AD3d 1707.

Motion for assignment of counsel granted and Mary R. Humphrey, Esq., 4063 Oneida Street, Suite 6, New Hartford, NY 13413 assigned as counsel to the respondent nunc pro tunc on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN MURRAY, Appellant.

Submitted December 10, 2018; decided January 10, 2019

Reported below, 163 AD3d 1000.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SIXTUS UDEKE, Appellant.

Submitted January 7, 2019; decided January 10, 2019

Reported below, 59 Misc 3d 136(A).

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUSTIN WEHLING, Appellant.

Submitted December 31, 2018; decided January 10, 2019

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

JAMES PETTUS, Appellant, v BOYD, RICHARDS, PARKER & COLONNELLI, P.L., et al., Respondents.

Decided January 10, 2019

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie.

In the Matter of JAMES PETTUS, Appellant, et al., Petitioner, v
BOARD OF DIRECTORS et al., Respondents.

Submitted October 29, 2018; decided January 10, 2019

Reported below, 160 AD3d 551.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for other relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of THE PLASTIC SURGERY GROUP, P.C., Appellant,
v COMPTROLLER OF THE STATE OF NEW YORK, Respondent.

Submitted December 17, 2018; decided January 10, 2019

Reported below, 155 AD3d 1417.

Motion by Medical Society of the State of New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

RACHANA SURI, Respondent, v GREY GLOBAL GROUP, INC., et al.,
Appellants.

Decided January 10, 2019

Reported below, 164 AD3d 108.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

MARCO BATTISTELLA, Appellant, v MARNIE ANN JOYCE, Respondent.

Submitted November 5, 2018; decided January 15, 2019

Reported below, 137 AD3d 697; 2017 NY Slip Op 87732(U).

Motion for reargument denied. Motion for poor person relief dismissed as academic.

In the Matter of RICHARD BLACKMAN, Deceased. BOCA RATON REGIONAL HOSPITAL, INC., Respondent; TIM WILLIAMS, Appellant.

Submitted November 13, 2018; decided January 15, 2019

Reported below, 165 AD3d 654.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S. SULTAN, Appellant.

Submitted November 19, 2018; decided January 15, 2019

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order denying the motion for the imposition of sanctions, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

PATRICIA J. CURTO, Appellant, v TOWN OF ORCHARD PARK et al., Respondents, et al., Defendants. (Appeal No. 1.)

Submitted November 5, 2018; decided January 15, 2019

Reported below, 158 AD3d 1093.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 903 (2018)].

PATRICIA J. CURTO, Appellant, v TOWN OF ORCHARD PARK et al., Defendants, and COUNTY OF ERIE, Respondent. (Appeal No. 2.)

Submitted November 5, 2018; decided January 15, 2019

Reported below, 158 AD3d 1094.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 903 (2018)].

YORAM FINKELSTEIN, Respondent, v BAT-EL YISHAY FINKELSTEIN, Appellant.

Submitted October 22, 2018; decided January 15, 2019

Reported below, 162 AD3d 401.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

In the Matter of TREVIS L. FUNCHES, Appellant, v STATE OF NEW YORK DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted October 22, 2018; decided January 15, 2019

Reported below, 163 AD3d 1390.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of SHAWN GREEN, Appellant, v DONALD G. UHLER, Superintendent, Upstate Correctional Facility, Respondent.

Submitted November 19, 2018; decided January 15, 2019

Reported below, 2018 NY Slip Op 85472(U); 2018 NY Slip Op 74501(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of HAMILTON EQUITY GROUP, LLC, as Assignee of HSBC Bank USA, National Association, Respondent, v SOUTHERN WELLCARE MEDICAL, P.C., Appellant.

Submitted November 19, 2018; decided January 15, 2019

Reported below, 164 AD3d 1670.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of CLIFF JONES, Also Known as CLIFTON MORRIS,
Appellant, v IRENE DUFFY et al., Respondents.

Submitted November 13, 2018; decided January 15, 2019

Reported below, 159 AD3d 459.

Motion, insofar as it seeks leave to appeal as against Darcel D. Clark, etc. dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2); motion for leave to appeal otherwise dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of JORDAN R. ORANGE COUNTY DEPARTMENT OF
SOCIAL SERVICES, Respondent; YON R.-W., Appellant, et al.,
Respondent. (Proceeding No. 1.)

In the Matter of GRANT R. ORANGE COUNTY DEPARTMENT OF
SOCIAL SERVICES, Respondent; YON R.-W., Appellant, et al.,
Respondent. (Proceeding No. 2.)

Submitted November 5, 2018; decided January 15, 2019

Reported below, 162 AD3d 671.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2).

CARMINE MONTEMARANO, JR., Administrator of the Estate of
CARMINE MONTEMARANO, et al., Appellants, v ATLANTIC
EXPRESS TRANSPORTATION GROUP, INC., et al., Respondents.

Submitted November 19, 2018; decided January 15, 2019

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MURLAR EQUITIES PARTNERSHIP, Appellant, v FRANKLIN JIMINEZ, Respondent, et al., Defendants.

Submitted November 19, 2018; decided January 15, 2019

Reported below, 161 AD3d 569.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Cross motion for the imposition of sanctions denied.

PRINCE OPARAJI et al., Appellants, v LAWRENCE T. YABLON et al., Respondents.

Submitted November 5, 2018; decided January 15, 2019

Reported below, 159 AD3d 539; 2018 NY Slip Op 83909(U).

Motion, insofar as it seeks leave to appeal from the September 2018 Appellate Division order and so much of the March 2018 Appellate Division order as affirmed Supreme Court's denial of plaintiffs' motion to renew, dismissed upon the ground that the September 2018 order and the above-stated portion of the March 2018 order do not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

OPTION ONE MORTGAGE, Plaintiff, v JOSE LUIS RODRIGUEZ-CARDONA, Appellant, et al., Defendants. 21ST MORTGAGE CORPORATION, Intervenor-Respondent.

Submitted November 5, 2018; decided January 15, 2019

Reported below, 153 AD3d 1422.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1015 (2018)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL J. HILL, Appellant, v MATTHEW J. MURPHY, III, Niagara County Court, Respondent.

Submitted November 13, 2018; decided January 15, 2019

Reported below, 2018 NY Slip Op 81271(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CERIOUS-DELMARR McCRAY, Appellant, v DARWIN LACLAIR, as Superintendent of Franklin Correctional Facility, Respondent.

Submitted November 13, 2018; decided January 15, 2019

Reported below, 161 AD3d 1490.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeals from the Supreme Court orders denying reargument, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

CARRIANN RAY, Appellant, v VICTORIA J.G. STOCKTON, Respondent. (Appeal No. 2.)

Submitted November 13, 2018; decided January 15, 2019

Reported below, 164 AD3d 1670.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROYAL PARK INVESTMENTS SA/NV, Appellant, v MORGAN STANLEY et al., Respondents.

ROYAL PARK INVESTMENTS SA/NV, Appellant, v CREDIT SUISSE AG et al., Respondents.

ROYAL PARK INVESTMENTS SA/NV, Appellant, v DEUTSCHE BANK AG et al., Respondents.

ROYAL PARK INVESTMENTS SA/NV, Appellant, v UBS AG et al., Respondents.

Submitted November 19, 2018; decided January 15, 2019

Reported below, 165 AD3d 460.

Motion for leave to appeal denied.

Concur: Judges RIVERA, STEIN, FAHEY, FEINMAN and GARRY, by designation.*

Chief Judge DiFIORE and Judges GARCIA and WILSON taking no part.

MAIN UDDIN, Respondent, v A.T.A. CONSTRUCTION CORP. et al.,
Defendants. FLAN REALTY, LLC, Nonparty Appellant. (And
Third-Party Actions.)

Submitted November 19, 2018; decided January 15, 2019

Reported below, 164 AD3d 1400.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

EDITH WIENER et al., Appellants, v RICHARD WEISSMAN et al.,
Respondents.

Submitted November 13, 2018; decided January 15, 2019

Reported below, 164 AD3d 1162.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

[116 NE3d 1239, 92 NYS3d 707]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ERICK ALLEN,
Appellant, v BRUCE YELICH, as Superintendent of Bare
Hill Correctional Facility, Respondent.

Argued November 14, 2018; decided December 11, 2018

* Designated pursuant to NY Constitution, article VI, § 2.

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 15, 2018. The Appellate Division modified, on the law, a judgment of the Supreme Court, Franklin County (S. Peter Feldstein, J.; op 2016 NY Slip Op 32348[U] [2016]), which had denied petitioner's application for a writ of habeas corpus in a proceeding pursuant to CPLR article 70, without a hearing. The modification consisted of converting the habeas corpus proceeding to a proceeding pursuant to CPLR article 78. The Appellate Division affirmed the judgment as modified.

Following petitioner's release to a five-year period of post-release supervision in July 2010, he absconded and, in January 2011, was declared delinquent. In May 2011, he was arrested in New Jersey on unrelated charges, and in satisfaction of those charges, he pleaded guilty to two crimes. At sentencing, the New Jersey trial court specified that the sentences it imposed on the convictions were "to run concurrent[ly] with the sentence imposed on [the] New York State parole violation." In January 2016, petitioner was released from the New Jersey Department of Corrections and returned to a New York jail. He thereafter pleaded guilty to violating his postrelease supervision and was given a 15-month time assessment.

The Appellate Division determined that the Department of Corrections and Community Supervision (DOCCS) did not improperly decline to credit petitioner for the period of out-of-state incarceration that he served in New Jersey from June 2012 to January 2016. When petitioner was declared delinquent on his parole release in January 2011, his New York sentence was interrupted and did not resume until he was returned to the custody of DOCCS in January 2016; thus, the Appellate Division found, DOCCS's recalculation and adjustment of petitioner's maximum expiration date did not impermissibly extend or modify petitioner's period of postrelease supervision.

People ex rel. Allen v Yelich, 159 AD3d 1202, affirmed.

HEADNOTE

Prisons and Prisoners — Calculation of Sentence — Maximum Expiration Date and Period of Postrelease Supervision

The order of the Appellate Division affirming Supreme Court's denial of petitioner's application for a writ of habeas corpus, which was based on the

claim that he was wrongfully denied credit in New York for his incarceration in New Jersey, was affirmed. On the record, there was no reason to disturb the determination of the Appellate Division that petitioner was not entitled to the relief sought (*see* Penal Law §§ 70.45 [5] [d]; 70.40 [3] [c]). The Department of Corrections and Community Supervision was not bound by the New Jersey sentencing court's recommendation.

APPEARANCES OF COUNSEL

Karen L. Murtagh, Prisoners' Legal Services of New York, Plattsburgh (Michael E. Cassidy of counsel), for appellant.

Barbara D. Underwood, Attorney General, Albany (Brian D. Ginsberg, Andrea Oser and Victor Paladino of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs. On the record before us, there is no reason to disturb the determination of the Appellate Division that petitioner was not entitled to the relief sought (*see* Penal Law §§ 70.45 [5] [d]; 70.40 [3] [c]). As petitioner concedes, the Department of Corrections and Community Supervision was not bound by the New Jersey sentencing court's recommendation (*see Jake v Herschberger*, 173 F3d 1059, 1065 [7th Cir 1999]; *Breeden v New Jersey Dept. of Corr.*, 132 NJ 457, 465, 625 A2d 1125, 1129 [1993]).

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order affirmed, without costs, in a memorandum.

[117 NE3d 782, 93 NYS3d 223]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAMIAN JONES, Appellant.

Argued October 16, 2018; decided November 27, 2018.

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 4, 2017. The Appellate Division affirmed a judgment of the

Supreme Court, New York County (Marcy L. Kahn, J.), as amended, which had convicted defendant, upon a jury verdict, of enterprise corruption.

People v Jones, 149 AD3d 407, reversed.

HEADNOTE

Crimes — Enterprise Corruption — Sufficiency of Evidence

In a criminal prosecution for enterprise corruption, the proof elicited at trial was not legally sufficient to establish the elements of defendant's knowledge of the existence of the subject criminal enterprise and the nature of its affairs or his intent to participate in such affairs (Penal Law § 460.20 [1] [a]). On the mens rea element, the People were required to prove, beyond a reasonable doubt, that defendant, "having knowledge of the existence of a criminal enterprise and the nature of its activities," and, "being employed by or associated with such enterprise . . . intentionally conduct[ed] or participate[d] in the affairs of an enterprise" (Penal Law § 460.20 [1] [a]). The evidence of defendant's participation in the three requisite criminal acts included in the pattern activity alone did not establish defendant's knowledge of the existence of the criminal enterprise and the nature of its activities. In addition, the critical trial testimony of the People's cooperating witness demonstrated that defendant was isolated from—rather than employed by or associated with—the enterprise, and that defendant acted independently on his own behalf, with the singular purpose of serving his own interests.

APPEARANCES OF COUNSEL

Holwell Shuster & Goldberg LLP, New York City (*Scott M. Danner* of counsel), and *Office of the Appellate Defender*, New York City (*Christina A. Swarns* and *Rosemary Herbert* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Ross D. Mazer* and *David M. Cohn* of counsel), for respondent.

White & Case LLP, Washington, D.C. (*Dana Foster* of counsel), *Robert S. Dean*, *Center for Appellate Litigation*, New York City, *New York State Association of Criminal Defense Attorneys*, White Plains (*Richard D. Willstatter* of counsel), and *Chief Defenders Association of New York*, Bronx (*Leanne G. Lapp* of counsel), for Center for Appellate Litigation and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the indictment dismissed.

Defendant was convicted, upon a jury verdict, of enterprise corruption as defined by Penal Law § 460.20—the single count filed against him in the indictment. For purposes of this appeal

only, we assume, without deciding, that the People established the existence of a criminal enterprise. Viewing the evidence in the light most favorable to the People, as we must (*People v Contes*, 60 NY2d 620, 621 [1983]), the proof elicited at trial was not legally sufficient to establish the elements of defendant's knowledge of the existence of the subject criminal enterprise and the nature of its affairs or his intent to participate in such affairs (Penal Law § 460.20 [1] [a]).

On the mens rea element, the People were required to prove, beyond a reasonable doubt, that defendant, "having knowledge of the existence of a criminal enterprise and the nature of its activities," and, "being employed by or associated with such enterprise . . . intentionally conduct[ed] or participate[d] in the affairs of an enterprise" (Penal Law § 460.20 [1] [a]). Consistent with this statutory mens rea requirement, the trial court additionally instructed the jury, without objection, that the People were required to show that defendant had "chosen to be part of the group and to have worked as a member of it or in affiliation with it to achieve its criminal purposes."

Here, the evidence of defendant's knowledge of the existence of the criminal enterprise and his intention to participate in its affairs fell short as a matter of law. The evidence of defendant's participation in the three requisite criminal acts included in the pattern activity alone does not establish defendant's knowledge of the existence of the criminal enterprise and the nature of its activities. In addition, the critical trial testimony of the People's cooperating witness demonstrated that defendant was isolated from—rather than employed by or associated with—the enterprise, and that defendant acted independently on his own behalf, with the singular purpose of serving his own interests.

In light of this determination, defendant's remaining contentions are academic.

RIVERA, J. (concurring). The People prosecuted defendant Damian Jones for enterprise corruption under New York State's Organized Crime Control Act (OCCA) on evidence that he stole four motorcycles for resale by other criminal actors, independent of the commands of any organization, without direction from a superior or upon a demand by his cohorts. In other words, the evidence showed that defendant acted in pursuit of his individual interest in the money to be made from an illicit market in stolen property, of his own volition, and not as part

of an association with a purpose separate from the criminal acts he and others committed. Whatever else that evidence proved, the one thing it did not establish was defendant's participation in a criminal enterprise.

As its name suggests, the purpose of the Organized Crime Control Act is to prevent and eliminate organized crime, a pernicious system of criminal action which is difficult to prosecute under existing laws because it involves a complex organizational structure which insulates its upper echelon members. The legislative findings confirm that the distinguishing features of the OCCA's target enterprise is membership in an organization with an ascertainable structure distinct from the underlying criminal conduct, and a hierarchy of authority or a system of ascending command which directs and approves the members' actions. Yet, here there was no evidence of such structure and no evidence that defendant is a "kingpin," "boss," "soldier," or superior in a criminal organization, or a low-level participant in a defined criminal structure that exists apart from the sale of stolen motorcycles. The evidence made him out to be a motorcycle thief, the type of common criminal individually prosecuted every day without the need for prosecutorial resort to the OCCA.¹

I.

New York State's Organized Crime Control Act of 1986

A. Legislative Findings and Statutory Purpose

By the 1980s, the legislature crafted a state-based response to the growing threat of organized crime in New York and its expanding corruptive influence over lawful institutions. After years of debate, the legislature enacted the Organized Crime Control Act of 1986, which created the new crime of "enterprise corruption" with enhanced incarceratory penalties (*see* Penal Law § 460.00 *et seq.*; Feldman letter, Bill Jacket, L 1986, ch 516 at 5 ["As you know, I have carried this legislation for the past four years and, during that time it has been one of my

1. While I agree with the majority that the People failed to establish sufficient evidence of defendant's criminal mens rea (majority mem at 1148), I reach that conclusion for the more fundamental reason that defendant cannot have knowledge of a nonexistent criminal enterprise.

highest legislative priorities in the fight against organized crime”)].²

As described in the legislative findings, which are expressly incorporated into the OCCA, organized crime “involves highly sophisticated, complex and widespread forms of criminal activity” and “threatens the peace, security and general welfare of the people of the state” (Penal Law § 460.00). Through money and influence, criminal organizations not only establish illegal operations but also infiltrate “businesses, unions and other legitimate enterprises,” diverting their focus to criminal ends (*id.*).

Typical Penal Law provisions are ineffective at preventing and eliminating organized crime, as these statutes “are primarily concerned with the commission of specific and limited criminal acts without regard to the relationships of particular criminal acts or the illegal profits derived therefrom, to legitimate or illicit enterprises operated or controlled by organized crime” (*id.*). In other words, the complex structure of the criminal enterprise shields high-level actors from prosecution, while exposing low-level actors to traditional criminal penalties, thus ensuring the continuity of the criminal organization with its attendant corruptive influence on society’s institutions and the economy (*see id.*). Accordingly, the OCCA “focuses upon criminal enterprises because their sophistication and organization make them more effective at their criminal purposes and because their structure and insulation protect their leadership from detection and prosecution” (*id.*).

The legislative findings note that organized criminal structures can take many forms and “the concept of criminal enterprise should not be limited to traditional criminal syndicates or crime families” (*id.*). Thus, the OCCA also targets groups of persons working together within a similar framework of leadership control that proves efficient at expanding and diversifying its reach through legal and illegal enterprises.

In drafting the OCCA, the legislature considered the approach taken by Congress in the federal Racketeer Influenced and Corrupt Organization Act (18 USC § 1961 *et seq.*) (RICO). Recognizing that RICO and the state analogues inspired by its passage “provided law enforcement agencies with an effective tool to fight organized crime” (Penal Law § 460.00), the

2. In addition to imprisonment, the OCCA provided for forfeiture and trebled fines, and enacted CPLR 1353, which provided civil injunctive relief (Penal Law § 460.30 [1], [5]; CPLR 1353).

legislature sought to draw on the strengths and successes of those laws, as well as from lessons learned during over a decade of RICO enforcement (see Donald J. Rebovich, Kenneth R. Coyle & John C. Schaaf, *Local Prosecution of Organized Crime: The Use of State RICO Statutes* at 1-2 [1993], Bureau of Justice Statistics, US Dept of Justice, available at <https://www.bjs.gov/content/pub/pdf/lpocusricos.pdf>; see generally John E. Floyd, *RICO State By State: A Guide to Litigation under the State Racketeering Statutes* [Am Bar Assn 2d ed 2011]; see e.g. NJ Rev Stat § 2C: 41-1 *et seq.*; Conn Gen Stat Ann § 53-393 *et seq.*; 18 Pa Stat and Cons Stat Ann § 911 *et seq.*).

By this time, several federal judges and scholars had criticized RICO for being overly expansive as applied, and bringing within its prosecutorial net criminal activity that did not pose the type of structural problems that RICO was intended to address: the infiltration of legitimate businesses and institutions by criminal organizations (see *United States v Anderson*, 626 F2d 1358, 1364 n 8 [8th Cir 1980] [“RICO has grown in popularity. Broad interpretation and simplistic resolution of the complicated statutory language pose the danger of enhancing this popularity beyond the intentions of Congress by bringing within the sphere of RICO minor offenses and by intruding on state power”]; *United States v Huber*, 603 F2d 387, 395-396 [2d Cir 1979] [warning “that the potentially broad reach of RICO poses a danger of abuse where a prosecutor attempts to apply the statute to situations for which it was not primarily intended”]; *United States v Altese*, 542 F2d 104, 107-111 [2d Cir 1976, Van Graafeiland, J., dissenting] [“The end result of the majority’s expansive interpretation of (18 USC) § 1962(c) is to accord the word ‘enterprise’, intended by Congress to be synonymous with commercial business, parity with the term ‘conspiracy’ ”]; Gerald E. Lynch, *RICO: The Crime of Being a Criminal, Parts I & II*, 87 Colum L Rev 661, 661-662 [1987] [“Congress viewed RICO principally as a tool for attacking the specific problem of infiltration of legitimate business by organized criminal syndicates . . . Instead, prosecutors have seized on the virtually unlimited sweep of the language of RICO to bring a wide variety of different prosecutions in the form of RICO indictments”]). It also faced criticism for prosecution of defendants with tenuous connections to larger criminal schemes (see Barry Tarlow, *RICO: The New Darling of the Prosecutor’s Nursery*, 49 Fordham L Rev 165, 169-171, n 11 [1980]).

New York's legislature sought to avoid these problems by limiting the OCCA's coverage as compared to RICO (*see* Daniel L. Feldman, *Principled Compromise: The New York State Organized Crime Control Act*, 6 *Crim Just Ethics* 50, 51 [1987] [noting the legislature was motivated by a concern that "RICO may be used to obtain convictions in mass trials of defendants who would not otherwise have been convicted, were it not for the prejudicial presence of their codefendants (because) such defendants need not know their codefendants, need not have worked toward a common specific criminal purpose with them, and in most jurisdictions apparently need not even have known of or benefited from their common participation in an overall organization"]). The OCCA's primary sponsor noted that the drafting process took "four years to refine the bill to the point at which it achieve[d] its purposes without raising some of the problems of fair trial for which the federal law (RICO) ha[d] been criticized" (Feldman letter, Bill Jacket, L 1986, ch 516 at 5; *see id.* [noting distinctions between the OCCA and RICO]).

Thus, while having a "comparable purpose" to RICO, the OCCA is "tempered by reasonable limitations on its applicability, and by due regard for the rights of innocent persons" (Penal Law § 460.00). As enacted and intended by the legislature, "[b]ecause of its more rigorous definitions, [the OCCA] will not apply to some situations encompassed within comparable statutes in other jurisdictions" (*id.*).³ By design, the OCCA applies to a narrow category of crimes that may not be otherwise adequately addressed by the Penal Law (*see People v Western Express Intl., Inc.*, 19 NY3d 652, 657-658 [2012] ["The common challenge posed both federal and state legislators in penalizing enterprise corruption as a separate crime was to delineate the circumstances under which conduct already fitting under a criminal definition would additionally be subject to prosecution and more serious penalization for its connection to a criminal organization"])).⁴

3. The legislature also included two safeguards against prosecutorial abuse and overreach. First, the district attorney must file a statement to the court attesting to the appropriateness of an enterprise corruption charge (CPL 200.65). Second, a defendant may move to dismiss the count in the interest of justice "where prosecution of that count is inconsistent with the stated legislative findings in [Penal Law article 460]" (CPL 210.40 [2]).

4. The context of the OCCA's passage—an era when "the state was grappling with an epidemic of organized crime"—lends further support for its narrow application to defendants who participate in complex criminal

(n. cont'd)

B. Statutory Elements of “Enterprise Corruption”

A person is guilty of enterprise corruption “when, having knowledge of the existence of a criminal enterprise and the nature of its activities, and being employed by or associated with such enterprise, [the person] . . . intentionally conducts or participates in the affairs of an enterprise by participating in a pattern of criminal activity” (Penal Law § 460.20 [1] [a]). For purposes of the OCCA, an “enterprise” may itself be legitimate, as the term includes the traditionally lawful entities referenced in the Penal Law § 175.00 (1) definition of enterprise (see Penal Law §§ 460.10 [2]; 175.00 [1] [defining enterprise as “any entity . . . corporate or otherwise, public or private, engaged in business, commercial, professional, industrial, eleemosynary, social, political or governmental activity”]). Or, it may fit within the OCCA definition of a “criminal enterprise”: “a group of persons sharing a common purpose of engaging in criminal conduct, associated in an ascertainable structure distinct from a pattern of criminal activity, and with a continuity of existence, structure and criminal purpose beyond the scope of individual criminal incidents” (Penal Law § 460.10 [3]).⁵

The legislature intended that its “carefully drawn definitions of the terms ‘pattern of criminal activity’ and ‘criminal enterprise’ . . . should be given their plain meaning, and should not be construed either liberally or strictly, but in the

organizations akin to traditional syndicates (Noah A. Rosenblum, Comment, *In Wakefield’s Wake: Rescuing New York’s Enterprise Corruption Jurisprudence*, 126 Yale L J 525, 527, 530 [2016]).

5. The OCCA’s definition of a criminal enterprise is narrower than that of an enterprise under RICO. While the OCCA defines a criminal enterprise as a group of individuals “associated in an ascertainable structure” (Penal Law § 460.10 [3]), RICO broadly defines an enterprise as any legal entity or any group of individuals “associated in fact although not a legal entity” (18 USC § 1961 [4]; *Boyle*, 556 US at 944 [“the very concept of an association in fact is expansive”]). This difference is consistent with the legislature’s intent, discussed above, to adopt more rigorous standards than RICO. Indeed, the OCCA’s more stringent application is evidenced in the numerous differences between the two statutes. For instance, although both RICO and the OCCA require that a defendant participate in a pattern of criminal conduct associated with the enterprise, the OCCA sets a higher bar—RICO requires only two criminal acts while the OCCA requires participation in a minimum of three criminal acts, two of which are felonies other than conspiracy (18 USC § 1961 [5]; Penal Law § 460.20 [2] [a]). Similarly, while RICO encompasses a conspiracy to engage in racketeering activities, the New York Legislature has expressly provided that conspiracy to engage in enterprise corruption is not a criminal offense (18 USC § 1962 [d]; Penal Law § 105.35 [“conspiracy to commit the crime of enterprise corruption in violation of section 460.20 of this chapter shall not constitute an offense”]).

context of the legislative purposes set forth” in the legislative findings (Penal Law § 460.00). The legislature emphasized that “the question whether to prosecute under [existing criminal statutes] or for the pattern itself is essentially one of fairness” (*id.*). That ultimate determination “will depend on the particular situation, and is best addressed by those institutions of government which have traditionally exercised that function: the grand jury, the public prosecutor, and an independent judiciary” (*id.*). Thus, the legislature intended for the courts, in their traditional role as final arbiters of the law, to ensure the application of the OCCA in any individual case is in accordance with the statutory language and the legislative intent.

II.

Defendant’s Prosecution for Criminal Enterprise

The People charged defendant under the OCCA for participating in an alleged motorcycle theft ring in what the People labeled a “procurer” role, meaning a person who stole motorcycles for resale by other criminal actors. Defendant was jointly tried with, among others, Steve Dow, who the People maintained was a “distributor” of motorcycles stolen by defendant and other procurers in the criminal enterprise.⁶ The People’s theory was that, although the alleged criminal enterprise lacked a formal hierarchy, participants were governed by the organization’s rules and practices and a system of designated roles.

According to the testimony at defendant’s trial, procurers stole motorcycles, distributors found buyers and sometimes shipped the motorcycles to dealers in other countries, and dealers worked with the distributors in the domestic and international marketing of the motorcycles. The People presented proof that defendant had stolen and sold motorcycles on three separate occasions.⁷ Each sale was conducted in a common manner.

6. Dow was ultimately convicted at trial of enterprise corruption and two counts of criminal possession of stolen property in the third degree (Penal Law § 165.50). He also pleaded guilty to a severed charge of criminal sale of a firearm in the first degree (Penal Law § 265.13 [1]). A third codefendant was convicted of grand larceny in the third and fourth degree (Penal Law §§ 155.35 [1]; 155.30) and criminal possession of stolen property in the fourth degree (Penal Law § 165.45). The fourth codefendant was acquitted of enterprise corruption.

7. Defendant was alleged to have stolen four motorcycles, but one of the transactions, involving a single motorcycle, was struck as a pattern act. Evidence of that transaction was nevertheless admitted as evidence of an enterprise.

Defendant sent text messages with photographs of the motorcycles he had stolen to a distributor, who in turn would contact a potential buyer or another distributor who knew of a potential buyer. The distributor would then arrange to meet with the buyer, or with the buyer and defendant, to execute the transaction. For each transaction, defendant set the price for the motorcycle and paid the distributor a \$150 commission per motorcycle after the sale was completed.

The People elicited testimony regarding other participants in the alleged motorcycle theft ring to establish the existence of a criminal enterprise that operated with rules and coordination. For example, law enforcement officers testified that one of the distributors placed “orders” with a “crew” of procurers, asking them to steal certain models of motorcycles, and had, on one occasion, asked procurers (not defendant) to steal a specific motorcycle at the request of an undercover agent. Extensive wiretaps revealed that distributors typically brokered deals for procurers and that distributors would occasionally work together to hide or alter motorcycles. These telephone calls also established that one of the distributors reached a pricing agreement with a procurer who had started selling motorcycles to an undercover agent, so as to avoid undercutting each other. However, a cooperating witness for the People testified that “[t]here [was] no boss, everyone would work at your own free will but everyone had like their own part that they would play.”

At the close of the evidence, defendant moved to dismiss for legal insufficiency, arguing that the People failed to establish a criminal enterprise with a hierarchy of authority or that defendant knew of or intentionally participated in the affairs of any enterprise. The trial court denied the motion, concluding that the OCCA does not require proof of a leadership structure and that the evidence was sufficient for a jury to determine whether defendant evinced knowledge of and an intent to further the enterprise. Defendant joined codefendant Dow’s request for a charge that the jury must find a hierarchical structure to find them guilty. The court denied the request but instructed the jury that they could find an enterprise if they found a “hierarchy structure of authority that governed the relations of the members of the group, or that there was collective decision making as well as coordination of the group’s activities.”

The jury convicted defendant as charged of enterprise corruption, in violation of Penal Law § 460.20 (1) (a). The Appellate Division affirmed the conviction, rejecting defendant’s

argument that the People failed to establish the existence of a criminal enterprise with an ascertainable structure within the meaning of the OCCA. The Court concluded “[t]here was a sufficiently ascertainable structure in which members of the enterprise played specific roles and worked collaboratively to effectuate the common purpose of the enterprise” (*People v Jones*, 149 AD3d 407, 408 [1st Dept 2017]). A Judge of this Court granted defendant leave to appeal (*People v Jones*, 29 NY3d 1128 [2017]).

III.

Insufficient Evidence of an Ascertainable Structure of a Criminal Enterprise

On appeal, defendant renews his argument that the evidence is insufficient to establish that he participated in a criminal enterprise with an “ascertainable structure” because there is no evidence of a hierarchy of leadership or a system of authority governing the affairs of the participants. He argues the evidence showed that participants acted on their own initiative, in arm’s-length transactions, without direction from one another. The People concede that the theft ring did not have a formal hierarchy but argue that there is sufficient evidence of an ascertainable structure because the participants adhered to a set of rules and practices that governed how they conducted their criminal transactions. According to the People, by way of example, the evidence established that even though procurers set their own sale price, the system ensured everyone was paid a “fair” amount for their role in the enterprise, and the system minimized the participants’ exposure because the motorcycles were quickly stolen, modified to avoid detection, and then sold. The People also assert there was evidence of “collective decision-making,” referring essentially to market driven collaboration such as when distributors asked procurers to steal particular models of motorcycles.

The People’s interpretation of the statutory term “ascertainable structure” ignores the text and purpose of the OCCA and would lead to an expansive application of the statute in contravention of the legislature’s intent to cabin the OCCA to a narrow class of crimes. While the People argue that collective decision-making of all participants with majority rule could qualify as the enterprise’s organizing principle for purposes of the OCCA, this position is belied by the legislative findings,

which make clear that the intended targets of the OCCA are criminal actors working within a system of authority where certain individuals hold positions of power superior to low-level actors. An ascertainable system then is one which is identifiable as distinct from the criminal transactions and is defined by an ascending command structure. As I discuss, the evidence here falls far short of establishing such a system.

A. Sufficiency of the Evidence Standard as Applied to Enterprise Corruption

“A verdict is legally sufficient when, viewing the facts in a light most favorable to the People, ‘there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt’” (*People v Danielson*, 9 NY3d 342, 349 [2007], quoting *People v Acosta*, 80 NY2d 665, 672 [1993]). The Court must “marshal competent facts most favorable to the People and determine whether, as a matter of law, a jury could logically conclude that the People sustained its burden of proof” (*id.*). Here, because the People’s proof failed to establish the existence of an ascertainable structure within the meaning of the OCCA, the jury could not have found that there was a criminal enterprise and the proof was legally insufficient to support defendant’s conviction for enterprise corruption.

The OCCA provides that a person is guilty of enterprise corruption “when, having knowledge of the existence of a criminal enterprise and the nature of its activities, and being employed by or associated with such enterprise, [the person] . . . intentionally conducts or participates in the affairs of an enterprise by participating in a pattern of criminal activity” (Penal Law § 460.20 [1] [a]), consisting of at least three criminal acts (Penal Law § 460.10 [4]). The OCCA defines a criminal enterprise as “a group of persons sharing a common purpose of engaging in criminal conduct, associated in an ascertainable structure distinct from a pattern of criminal activity, and with a continuity of existence, structure and criminal purpose beyond the scope of individual criminal incidents” (Penal Law § 460.10 [3]). To meet their burden, the People’s evidence must establish (1) an identifiable organizational structure, (2) distinct from the underlying criminal pattern acts, (3) with its own defining purpose, and (4) exhibiting the capacity to continue in existence after the occurrence of any individual criminal transaction.

The Court has elucidated on the scope of the OCCA, providing guidance on what makes participation in three or more

crimes a criminal enterprise under the OCCA, exposing defendants to dramatically longer sentences than what would apply for the underlying pattern crimes. Those decisions, in various measures, are based on the analytic premise that the ascertainable structure is an identifiable system of authority, distinct from the pattern criminal acts.

In *People v Besser*, the Court explained

“[t]he emphasis of the [OCCA] was not on the quantity or nature of the myriad, isolated criminal activities underlying the new offense—conduct adequately addressed elsewhere in the Penal Law. Instead, it ‘focuse[d] upon criminal enterprises because their sophistication and organization make them more effective at their criminal purposes and because their structure and insulation protect their leadership from detection and prosecution’ (Penal Law § 460.00). Thus, the purpose of creating the separate crime was to address the particular and cumulative harm posed by persons who band together in complex criminal organizations” (96 NY2d 136, 142 [2001]).

Even where a defendant’s commission of several pattern crimes is established, “[a] defendant may not be convicted of [enterprise corruption] unless the jury finds the acts were part of a pattern of criminal activity undertaken in furtherance of a cognizable criminal enterprise that extended beyond the common plan or scheme encompassing the alleged pattern acts” (*id.* at 143). That standard was easily met in *Besser* where the evidence connected the defendants to the activities of a crime family—the prototypical criminal enterprise—defined by a leadership hierarchy in service of traditional organized crime pursuits, which included loansharking, extortion, and larceny (*id.* at 144; see Penal Law § 460.00; Governor’s Approval Mem, Bill Jacket, L 1986, ch 516 at 35 [“If, however, the group demonstrates a structure—such as the hierarchy of a ‘Cosa Nostra’ family, or the specialization of a narcotics, loansharking or gambling operation the criminal enterprise requirement is satisfied”]).

In *People v Western Express Intl., Inc.* (19 NY3d at 658-659), a case on all fours with defendant’s appeal, the Court addressed directly whether an ascertainable structure exists where participants in an illegal market carry out criminal transactions through specific roles. *Western Express* involved the prosecution of alleged trafficking in stolen credit card information

facilitated by publicly available websites that served as meeting places for vendors and buyers of the stolen credit card data (19 NY3d at 659). The entity operating the websites was “not a neutral observer,” as sites offered advice to vendors on how to structure transactions to best avoid detection, actively sought the business of vendors of stolen data, and provided an exchange service for the E-currency that was used in the transactions (19 NY3d at 655-656). The websites also collected a commission for their exchange services (*id.*). Nevertheless, the Court reasoned that the evidence failed to establish an ascertainable structure because the actors’ specified roles—buyer, vendor, and facilitator—were not indicative of a “distinct, structured criminal enterprise,” but were rather a description of how any illegal market for stolen credit card data is generally configured “given the needs and interests of the individual market participants” (*id.* at 659). The websites did “not permit the inference of an overarching criminal purpose or organization” because they were merely “publicly accessible loci for the conduct of business, the legality of which turned in the end upon the independent agendas of individual users” (*id.* at 660). The Court further reasoned

“[t]o the extent that the usage was for illegal purposes, it reflected the existence of a prevalent [illicit] market but did not reasonably justify the additional inference necessary to the viability of the proposed enterprise corruption prosecution, that there was within that market an enduring structurally distinct symbiotically related criminal entity with which [defendants] were purposefully associated” (*id.*).

In *Western Express*, the People argued, as they do here, that the requisite “ascertainable structure” of the criminal enterprise does not have to be hierarchical and may be inferred from patterns of criminal conduct (*id.* at 659). The Court acknowledged that while this may be a theoretical possibility, the OCCA requires the existence of an ascertainable structure distinct from the criminal pattern, and that “not surprisingly,” no New York cases inferred the structure “simply from an underlying pattern” (*id.* at 659-660). Contrasting New York’s law to RICO, the Court explained that RICO and the OCCA both require proof “of an association possessing a continuity of existence, criminal purpose, and structure—which is to say, of constancy and capacity exceeding the individual crimes com-

mitted under the association's auspices or for its purposes" (*id.* at 658 [citation omitted]). However, the Court clarified that the OCCA "is assertedly of more narrow application" and "makes the requirement of 'an ascertainable structure distinct from a pattern of criminal activity' express in its definition of 'criminal enterprise'" (*id.*).

To illustrate, the Court compared the facts of *Western Express* with *United States v Boyle*, which involved a ring of bank thieves whose constant membership met occasionally to plan and execute the heists and share the proceeds from their criminal activity (*id.* at 660, citing *Boyle*, 556 US at 941). This established an enterprise for purposes of RICO. In contrast, the defendant in *Western Express* was implicated by "evidence of many arms' length transactions" that was insufficient to elevate an apparent illegal market to a criminal enterprise with "an enduring structurally distinct symbiotically related criminal entity with which appellants were purposefully associated" (*id.*). In other words, under the OCCA no criminal enterprise exists where participants in criminal activity merely enter an illicit market and do not act in accordance with the directives of a separate organizing structure. In such circumstances, defendants do not pose the same threat of a complex criminal association because they act in furtherance of their own economic interests and not the interests of a "structured, purposeful criminal organization" (*id.* at 659).

The requirement of a separate organizational command was reaffirmed in *People v Kancharla* (23 NY3d 294 [2014]), where, quoting *Western Express*, we stated that the OCCA does not cover "mere patterns of criminal conduct" but instead criminalizes "patterns of such conduct demonstrably designed to achieve the purposes and promote the interests of organized, structurally distinct criminal entities" (*id.* at 304, quoting *Western Express*, 19 NY3d at 658). In *Kancharla*, defendants were high-level officers in a corporation that tested construction materials (*id.* at 299-302). One of the defendants provided blank reports to allow employees to use a mathematical formula instead of actually conducting the tests, while the other defendant altered or directed others to alter the data used in the formula to ensure passing results (*id.*). We reversed the Appellate Division, which concluded in part that there was insufficient proof of a criminal enterprise. We held that the facts established a leadership structure because the participants engaged in their illicit activities within the corporate

structure “with the common purpose to promote its status as a major metropolitan materials testing laboratory and increase profits, despite the fact that the ill-gotten gains comprised only a small portion of the company’s overall revenue” (*id.* at 305). We further observed that “[c]orporate officers and employees of a legitimate business organization can fall within the ambit of the enterprise corruption statutes” (*id.* at 304). Thus, although there was no direct evidence of communications, planning, or concerted activity, the pattern showed that defendants, as high-level corporate officers, were not only aware of the activities but “directed others to commit crimes in furtherance of the [criminal enterprise, namely, the legal business and its employees]” (*id.* at 305).

Then, in *People v Keschner*, we restated that the OCCA “specifically demands that the structure be distinct from the predicate illicit pattern” (25 NY3d 704, 719 [2015], quoting *Western Express*, 19 NY3d at 659). In that case, defendants were a doctor and chiropractor who ran a medical clinic with a third person who filed fraudulent insurance claims and operated a referral-kickback scheme (*id.* at 709-712). We were not called upon in that case to opine on the ascertainable structure element per se because the structure was obvious, as there were several persons with the shared purpose of committing a pattern of illicit activities associated with the lawful clinic business. Rather, we discussed the OCCA’s separate continuity element and held that the enterprise survived removal of a key participant—in that case, a person who allegedly devised and entirely controlled the illegal actions of the clinic (*id.* at 719-721). As relevant here, we explained:

“[a] team of people who unite to carry out a single crime or a brief series of crimes may lack structure and criminal purpose beyond the criminal actions they carry out; such an ad hoc group is not a criminal enterprise. If a group persists, however, in the form of a ‘structured, purposeful criminal organization,’ beyond the time required to commit individual crimes, the continuity element of criminal enterprise is met” (*id.* at 720, quoting *Western Express*, 19 NY3d at 659).

Our reasoning in these four cases makes clear that, contrary to the People’s assertion, a criminal enterprise must have a system of authority defined by an ascending command structure. In *Besser*, *Kancharla*, and *Keschner*, the defendants were

associated with organizations that had a hierarchy of authority—a command structure that ordered individuals to take on particular roles or carry out specific acts. In comparison, in the one case in which the Court held there was no ascertainable structure, *Western Express*, the Court explained that illegal market transactions alone cannot serve as the basis for finding a criminal enterprise because the actions of the participants are indistinct from the pattern criminal acts, as was evident by the fact that the buyers and vendors in that case were driven by their own interests and acted without direction.

The People struggle to identify a case where a criminal enterprise existed in the absence of an ascending command structure. This is because a structure cannot be distinct from a pattern of criminal acts without a system of authority. Otherwise, individuals are merely acting in an ad hoc fashion, in a manner necessary to carry out the pattern criminal acts. This is not to say that a criminal enterprise must have a single leader or that a collective of individuals who share some decision-making could never meet the requirements of the OCCA. Rather, what the legislature made clear and what we have held is required by the statute is that a criminal enterprise operate with a structure that is distinct from the agreed-upon criminal acts. Such a structure may only exist where the participants submit to a system of authority with an ascending command structure.

B. The People Fail to Establish Defendant's Guilt of Enterprise Corruption

This case is distinguishable from those cases with clearly ascertainable structures. This is not a case in which defendant was involved in the criminal activities of a crime family, as in *Besser*. Nor did the People's trial evidence establish defendant's involvement with an existing lawful business structure used for criminal activities, as in *Kancharla* and *Keschner*. Defendant's case instead reflects the type of criminal behavior that the Court held in *Western Express* lacks the characteristics of "a distinct, beneficially related criminal enterprise" (*Western Express*, 19 NY3d at 659), because the actors are nothing more than an ad hoc group whose shared purpose is to engage in the underlying criminal conduct (*Keschner*, 25 NY3d at 720).⁸

The People's evidence established only that defendant communicated and coordinated with distributors when he had

8. The People charged a total of 27 codefendants. My analysis applies only to the facts as presented at defendant's trial and I do not reach any

(n. cont'd)

motorcycles to sell, which he had stolen on his own initiative. There is no evidence that had defendant stopped stealing motorcycles, the distributors would have found he had failed to satisfy an obligation, or that he would have faced a negative consequence, which would have been indicative of ascending authority. The evidence further established that procurers, like defendant, set their prices, distributors negotiated for lower prices, and distributors competed for buyers—evinced the self-interest of individual actors which belie the People's argument that they worked within an organized structure, distinct from the pattern criminal acts, and with its own common purpose. As the People's cooperating witness explained, "[t]here [was] no boss, everyone would work at your own free will but everyone had like their own part that they would play."

Even if the evidence established that defendant and the other participants had specific roles, the evidence failed to show that those roles were assigned or approved by a distinct criminal organizational entity whose structure existed independent of the criminal pattern. Moreover, what the People describe as designated or specialized roles reflect conduct inherent to a stolen property illicit market, which developed organically given the needs and interests of the individual market participants, including defendant. In other words, inherent in the criminal pattern activity was theft, modification of the property to avoid detection, and resale. Consider, for instance, the People's evidence that distributors placed "orders" with procurers. Apart from articulating the demands of the market, what did these orders amount to? They were not founded in a separate structure—e.g. an employer—employee, union officer—union member, or crime boss—underboss relationship—and there was evidence that procurers filled the orders only after negotiating a price.

Nor does evidence that defendant and the other participants coordinated their criminal activities to secure illicit profits transform their market transactions into an organizational structure with an existence independent of the acts themselves. Such evidence proves only that the participants here worked together, which is far from establishing their membership in an independent criminal entity. The People's argument extended to its logical conclusion would sweep within the OCCA's coverage all forms of criminal activity, expanding the

conclusions as to the conduct of the other codefendants or the sufficiency of the People's evidence as related to those individuals.

scope of enterprise corruption beyond its intended parameters and the narrow class of crimes targeted by the OCCA. As the legislative findings explain, and as this Court recognized in *Besser*, the OCCA “focuses upon criminal enterprises because their sophistication and organization make them more effective at their criminal purposes and because their structure and insulation protect their leadership from detection and prosecution” (Penal Law § 460.00). It did not transform crimes that properly fall within other Penal Law prohibitions into “organized crime.”⁹

To achieve the OCCA’s intended purpose to address that narrow category of organized crime, the People must present evidence of a hierarchy or some distinct system of authority with an ascending command leadership, insulated from prosecution, that directs enterprise participants and which survives the individual criminal transactions. In these organizations, the low-level actors bear the greatest risk of criminal penalty because they are visible participants in the crime and thus vulnerable to arrest and prosecution for their criminal acts while the higher-ups are less exposed. Here, by contrast, the People failed to establish an independent structure that survives beyond the pattern acts of motorcycle theft. The distributors, who the People allege coordinated the ring’s activity, were present at the sale of the stolen motorcycles and were not insulated from criminal prosecution. This is not the equivalent of a hierarchical structure, and there is no organizational foundation.

In summary, several actors collaborating to further a criminal act is not a criminal enterprise. To justify the enhanced penalties attendant to conviction for enterprise corruption there must be proof of “patterns of criminal activity and their connection to ongoing enterprises, legitimate or illegal, that are controlled or operated by organized crime” (Penal Law § 460.00). That structure is lacking on the facts of this case.

IV.

Defendant’s conviction for enterprise corruption should be reversed and the indictment dismissed because the People’s theory of the case and trial evidence failed to establish the ex-

9. The statement in *Western Express* that it “may be true in theory” that “a criminal enterprise need not be hierarchical to be structured” should not be given outsized significance (19 NY3d at 659). Whatever the intent of the majority’s statement in that case, it does not stand for the proposition that the OCCA applies in a theoretical realm. To the contrary, *Western Express* highlights the absurdity of that suggestion in practice.

istence of a criminal enterprise. A fortiori, the majority is correct that there is no evidence of the requisite mens rea, not because the evidence of intent is itself insufficient, but because defendant cannot have knowledge of a nonexistent criminal enterprise.¹⁰

Order reversed and indictment dismissed, in a memorandum. Chief Judge DiFIORE and Judges STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur. Judge RIVERA concurs in result in an opinion.

[117 NE3d 814, 93 NYS3d 255]

In the Matter of LUIS P., a Person Alleged to be a Juvenile Delinquent, Appellant.

Decided December 11, 2018

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 12, 2018. The Appellate Division, with two Justices dissenting, affirmed an order of disposition of the Family Court of New York County (Sarah P. Cooper, J.), which had adjudicated respondent a juvenile delinquent upon a fact-finding determination that he had committed acts which, if committed by an adult, would constitute the crimes of criminal sexual act in the first degree (two counts), sexual abuse in the first degree (two counts), sexual misconduct (two counts), and endangering the welfare of a child.

Matter of Luis P., 161 AD3d 59, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Voluntariness of Statements

Respondent's challenge to the admission of his statements in a juvenile delinquency proceeding, insofar as preserved, presented a mixed question of law and fact. Inasmuch as there was record support for the lower courts' determination that the statements were voluntary, that issue was beyond further review by the Court of Appeals.

10. Given my conclusion that there is insufficient evidence of an ascertainable structure, and as a consequence the People failed to establish the requisite mens rea, I have no occasion to opine on the merits of defendant's remaining claims.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Raymond E. Rogers* of counsel), for appellant.

Zachary W. Carter, Corporation Counsel, New York City (*Janet L. Zaleon* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Respondent Luis P.'s challenge to the admission of his statements—insofar as preserved (*see People v Panton*, 27 NY3d 1144, 1145 [2016])—presents a mixed question of law and fact (*see Matter of Jimmy D.*, 15 NY3d 417, 423 [2010]). Inasmuch as there is record support for the lower courts' determination that respondent's statements were voluntary, that issue is beyond further review by this Court (*see id.*). Further, any hearsay error in the admission of certain medical records relating to the complainant was harmless.

RIVERA, J. (dissenting). I would reverse and remit for a new fact-finding hearing for the reasons set forth in the dissent below (*Matter of Luis P.*, 161 AD3d 59, 78-90 [1st Dept 2018, Gesmer, J., dissenting]).¹ During his interrogation at the precinct, respondent stated that he understood his *Miranda* rights and waived them while his mother was present, but then he was questioned after his mother had left the room. After respondent made a short oral statement, the detective asked respondent, who himself had previously been a victim of sexual abuse, if he wanted to write an "apology letter" to the complainant—which suggested that the letter was private. The officer made no mention of the apology letter in front of respondent's mother. The officer's deception undermined the *Miranda* warnings, putting in question whether respondent understood

1. Contrary to the majority's conclusion, respondent's challenge to the admission of his written confession is preserved and presents a question of law for this Court's review. Respondent argued at the *Huntley* hearing that the statements were involuntarily obtained through deceptive tactics in violation of his constitutional rights and Family Court held that the juvenile *Miranda* waiver, respondent's oral statement, and his written statements were all voluntarily obtained. Thus, whether a 13 year old's written confession is voluntary when a detective asks him if he would like to write an "apology letter" without an adult or guardian present in the room presents a legal question that may properly be reviewed as a matter of law by this Court.

that his letter and statements could be used against him in a court proceeding. As the dissent below correctly concluded, relying on this Court's guidance in *Matter of Jimmy D.* (15 NY3d 417 [2010]) that the court must analyze the statements of children under the totality of the circumstances, the written confession was not voluntary since it was obtained through deception.

Additionally, this Court held in *Jimmy D.* that the parent of a child has the right to attend the child's interrogation by a police officer but that a confession obtained in the absence of a parent is not necessarily involuntary (15 NY3d at 422-423). Here, although respondent's mother was present during the *Miranda* warnings, she is not his legal guardian as respondent was previously removed from her care due to her failure to protect him from sexual abuse—an additional fact that impacts the voluntariness of the statements and calls into question the sufficiency of *Jimmy D.* to adequately protect the rights of juveniles. Respondent's legal guardian, his grandmother, was never consulted. She was not in the room when respondent waived his rights and was questioned, despite being present at the precinct throughout the interrogation. Further, in light of the United States Supreme Court's jurisprudence on the consideration of a juvenile's age during custodial interrogation, further guidance on how juveniles are constitutionally distinct from adults, and recognition that the scientific studies on juveniles supporting the conclusions of its earlier cases has become stronger over the ensuing years, we should revisit *Matter of Jimmy D.* (15 NY3d 417 [2010]; see *Montgomery v Louisiana*, 577 US —, 136 S Ct 718 [2016]; *Miller v Alabama*, 567 US 460, 472 n 5 [2012]; *J. D. B. v North Carolina*, 564 US 261 [2011]). In my view, those cases and the developing scholarship in this area lead to the inexorable conclusion that minors should not be interrogated outside the presence of their adult legal guardians.²

2. I note that respondent opposes placement of his appeal on our alternative review track (see Rules of Ct of Appeals [22 NYCRR] § 500.11 [b]) and requests that the case be set for full briefing. Appeals on submission under section 500.11 include matters which are subject to limited review, turn on "recent, controlling precedent," or raise narrow legal issues "not of statewide importance" (see *id.* § 500.11 [b] [2], [3]). Respondent argues that the instant appeal fits none of these categories, nor are there obvious "other appropriate factors" (*id.* § 500.11 [b] [6]) that tip in favor of our alternative review procedure. Further, respondent contends that this case presents important, preserved issues of law regarding juveniles and the permissible tactics the

Chief Judge DiFIORE and Judges STEIN, FAHEY and GARCIA concur; Judge RIVERA dissents in an opinion in which Judge WILSON concurs; Judge FEINMAN taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, in a memorandum.

APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2019 through January 31, 2019)

Farrugia v 1440 Broadway Assoc.	1st Dept:163 AD3d 452	1/14/19
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2019 through January 31, 2019)

People v Abraham	County Ct, 10/22/18 (Erie)	denied 1/23/19 (DiFiore, Ch. J.)
People v Abreu (Luis)	1st Dept: 166 AD3d 529 (Bronx)	denied 1/22/19 (Wilson, J.)
People v Abreu (William)	2d Dept: 165 AD3d 832 (Kings)	denied 1/3/19 (Garcia, J.)
People v Ackerman	App Div, 3d Dept: 2018 NY Slip Op 82636(U) (Albany)	denied 1/8/19 (Wilson, J.)
People v Acosta	1st Dept: 166 AD3d 554 (NY)	denied 1/22/19 (Wilson, J.)
People v Alcalá	1st Dept: 165 AD3d 606 (NY)	denied 1/22/19 (Fahey, J.)
People v Alexander	App Term, 1st Dept: 61 Misc 3d 133(A) (NY)	denied 1/29/19 (Garcia, J.)
People v Alicea	2d Dept: 164 AD3d 1253 (Kings)	denied 1/3/19 (Garcia, J.)
People v Allen (Brian)	App Term, 1st Dept: 61 Misc 3d 132(A) (NY)	denied 1/18/19 (Wilson, J.)
People v Allen (Carl)	App Div, 2d Dept: 2018 NY Slip Op 89967(U) (Richmond)	dismissed 1/31/19 (Feinman, J.)
People v Allen (Gary)	1st Dept: 165 AD3d 476 (Bronx)	denied 1/3/19 (Garcia, J.)
People v Anderson (Cornel)	1st Dept: 165 AD3d 483 (Bronx)	denied 1/3/19 (Stein, J.)

police may use to extract statements from them and, thus, warrants full briefing and oral argument. However, as we must consider the issues as presented in this current posture, for the reasons I have stated and more fully discussed in the dissent below, I would reverse and remit.

MEMORANDA

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People v Anderson (Grover)	2d Dept: 163 AD3d 699 (Queens)	denied ¹ 1/10/19 (Feinman, J.)
People v Anthony	1st Dept: 165 AD3d 545 (NY)	denied 1/29/19 (Garcia, J.)
People v Arboleda	App Term, 1st Dept: 61 Misc 3d 140(A) (Bronx)	denied 1/11/19 (Stein, J.)
People v Bailey	App Div, 2d Dept: 2018 NY Slip Op 87726(U) (Kings)	dismissed 1/24/19 (Stein, J.)
People v Balkisson	2d Dept: 165 AD3d 1158 (Kings)	denied 1/3/19 (Stein, J.)
People v Barham	2d Dept: 166 AD3d 643 (Suffolk)	denied 1/18/19 (Fahey, J.)
People v Barksdale	1st Dept: 166 AD3d 553 (NY)	denied 1/22/19 (Fahey, J.)
People v Barrett-Johnson	2d Dept: 165 AD3d 1278 (Westchester)	denied 1/29/19 (Garcia, J.)
People v Bass	2d Dept: 164 AD3d 1463 (Queens)	denied 1/3/19 (Garcia, J.)
People v Batista	2d Dept: 167 AD3d 69 (Queens)	denied 1/30/19 (Feinman, J.)
People v Bell-Scott	4th Dept: 162 AD3d 1558 (Onondaga)	denied 1/3/19 (Garcia, J.)
People v Bevel	1st Dept: 164 AD3d 1188 (NY)	denied 1/3/19 (Stein, J.)
People v Bird	2d Dept: 164 AD3d 1357 (Nassau)	denied 1/3/19 (Garcia, J.)
People v Birkett	1st Dept: 166 AD3d 532 (NY)	denied 1/30/19 (DiFiore, Ch. J.)
People v Blodywon	2d Dept: 167 AD3d 643 (Queens)	denied 1/22/19 (Wilson, J.)
People v Boateng	1st Dept: 165 AD3d 424 (NY)	denied 1/3/19 (Garcia, J.)
People v Bodrick	2d Dept: 165 AD3d 692 (Kings)	denied 1/3/19 (Garcia, J.)
People v Bookard	1st Dept: 167 AD3d 424 (NY)	denied 1/24/19 (Feinman, J.)
People v Breckenridge	1st Dept: 162 AD3d 425 (NY)	denied 1/3/19 (Garcia, J.)
People v Brett-Pierce	2d Dept: 166 AD3d 644 (Kings)	denied 1/11/19 (Stein, J.)
People v Brooks	2d Dept: 165 AD3d 694 (Kings)	denied 1/11/19 (Wilson, J.)
People v Brown (Andre)	1st Dept: 164 AD3d 1180 (NY)	denied 1/9/19 (Fahey, J.)
People v Brown (Corey)	4th Dept: 166 AD3d 1579 (Onondaga)	denied 1/18/19 (DiFiore, Ch. J.)
People v Brown (Edward)	4th Dept: 166 AD3d 1543 (Monroe)	dismissed 1/25/19 (DiFiore, Ch. J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Cisse* (149 AD3d 435 [1st Dept 2017], *lv granted* 29 NY3d 1124 [2017]) and *People v Diaz* (149 AD3d 974 [2d Dept 2017], *lv granted* 29 NY3d 1136 [2017]).

People v Brown Edward)	App Div, 4th Dept: 2018 NY Slip Op 88872(U) (Monroe)	dismissed 1/25/19 (DiFiore, Ch. J.)
People v Brown (Edward)	App Div, 4th Dept: 2018 NY Slip Op 88824(U) (Monroe)	dismissed 1/25/19 (DiFiore, Ch. J.)
People v Brown (Gregory)	App Div, 3d Dept: 2018 NY Slip Op 87793(U) (Albany)	denied 1/3/19 (Garcia, J.)
People v Brown (Spartacus)	4th Dept: 166 AD3d 1582 (Onondaga)	denied 1/23/19 (Rivera, J.)
People v Bruno	App Div, 3d Dept: 2018 NY Slip Op 86616(U) (Albany)	dismissed 1/22/19 (Fahey, J.)
People v "Bugs"	2d Dept: 165 AD3d 1291 (Orange)	denied 1/10/19 (DiFiore, Ch. J.)
People v Bunyan	2d Dept: 166 AD3d 645 (Suffolk)	denied 1/4/19 (Garcia, J.)
People v Burno	2d Dept: 165 AD3d 1163 (Nassau)	denied 1/31/19 (Wilson, J.)
People v Burrowes	1st Dept: 165 AD3d 575 (NY)	denied 1/8/19 (Rivera, J.)
People v Caldavado	2d Dept: 166 AD3d 792 (Queens)	denied 1/24/19 (Garcia, J.)
People v Calzudes	2d Dept: 165 AD3d 972 (Queens)	denied 1/29/19 (Wilson, J.)
People v Candelario	1st Dept: 166 AD3d 420 (NY)	denied 1/31/19 (Rivera, J.)
People v Ceballos	1st Dept: 166 AD3d 553 (NY)	denied 1/28/19 (Fahey, J.)
People v Chestnut	2d Dept: 164 AD3d 1467 (Kings)	denied 1/3/19 (Stein, J.)
People v Colon	2d Dept: 165 AD3d 1163 (Kings)	denied 1/10/19 (Feinman, J.)
People v Correa	App Div, 4th Dept, 9/5/18 (Onondaga)	dismissed 1/29/19 (Garcia, J.)
People v Covington (John)	App Div, 2d Dept: 2018 NY Slip Op 75902(U) (Kings)	dismissed 1/11/19 (Wilson, J.)
People v Covington (John)	App Div, 2d Dept: 2018 NY Slip Op 87988(U) (Kings)	dismissed 1/11/19 (Wilson, J.)
People v Crews	2d Dept: 164 AD3d 1467 (Suffolk)	denied 1/3/19 (Garcia, J.)
People v Cristomo	1st Dept: 166 AD3d 496 (NY)	denied 1/11/19 (Stein, J.)
People v Crome	3d Dept: 163 AD3d 1160 (Albany)	denied 1/8/19 (Rivera, J.)
People v Cromer	1st Dept: 166 AD3d 417 (Bronx)	denied 1/4/19 (Garcia, J.)
People v Dalton	4th Dept: 164 AD3d 1645 (Onondaga)	denied 1/11/19 (Wilson, J.)
People v Davion T.	App Term, 1st Dept: 61 Misc 3d 144(A) (NY)	denied 1/24/19 (Garcia, J.)
People v Delacruz (Jose)	1st Dept: 166 AD3d 467 (Bronx)	denied 1/25/19 (DiFiore, Ch. J.)

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People v Delacruz (Rumaldo)	1st Dept: 166 AD3d 405 (NY)	denied 1/22/19 (Fahey, J.)
People v Dewitt (Richard)	4th Dept: 166 AD3d 1572 (Ontario)	denied 1/25/19 (Feinman, J.) (Appeal No. 1)
People v Dewitt (Richard)	4th Dept: 166 AD3d 1572 (Ontario)	denied 1/25/19 (Feinman, J.) (Appeal No. 2)
People v Diaz	1st Dept: 166 AD3d 508 (NY)	denied 1/29/19 (Garcia, J.)
People v Dixon	1st Dept: 166 AD3d 504 (NY)	denied 1/25/19 (DiFiore, Ch. J.)
People v Dominguez	1st Dept: 165 AD3d 553 (NY)	denied 1/23/19 (Wilson, J.)
People v Dunn	2d Dept: 167 AD3d 651 (Queens)	denied 1/28/19 (Fahey, J.)
People v Duran	App Term, 1st Dept: 60 Misc 3d 141(A) (NY)	denied 1/29/19 (Garcia, J.)
People v Dwaileebe	1st Dept: 165 AD3d 588 (NY)	denied 1/8/19 (Stein, J.)
People v Echavarria	1st Dept: 165 AD3d 570 (NY)	denied 1/8/19 (Rivera, J.)
People v Esposito	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 60 Misc 3d 60 (Richmond)	granted 1/14/19 (Feinman, J.)
People v Estruch	4th Dept: 164 AD3d 1632 (Livingston)	denied 1/23/19 (Rivera, J.)
People v Evans	1st Dept: 165 AD3d 577 (NY)	denied 1/11/19 (Wilson, J.)
People v Feher	4th Dept: 165 AD3d 1610 (Onondaga)	denied 1/9/19 (Feinman, J.)
People v Fernandez	1st Dept: 166 AD3d 426 (Bronx)	denied 1/10/19 (Rivera, J.)
People v Ferrer	1st Dept: 166 AD3d 406 (NY)	denied 1/29/19 (Garcia, J.)
People v Fewes	2d Dept: 165 AD3d 973 (Kings)	denied 1/3/19 (Stein, J.)
People v Figueroa (Danny)	1st Dept: 165 AD3d 509 (Bronx)	denied 1/18/19 (Fahey, J.)
People v Figueroa (Ruben)	1st Dept: 166 AD3d 424 (NY)	denied 1/8/19 (Rivera, J.)
People v Flagg	App Div, 1st Dept: 2018 NY Slip Op 84355(U) (NY)	dismissed 1/9/19 (Wilson, J.)
People v Forbes	1st Dept: 166 AD3d 414 (NY)	granted 1/29/19 (Wilson, J.)
People v Franco	App Term, 1st Dept: 61 Misc 3d 144(A) (Bronx)	denied 1/31/19 (Rivera, J.)
People v Franklin	3d Dept: 164 AD3d 1547 (Warren)	denied 1/10/19 (Wilson, J.)
People v Fraser	2d Dept: 165 AD3d 697 (Suffolk)	denied 1/22/19 (Fahey, J.)

People v Freeman	2d Dept: 164 AD3d 1257 (Kings)	denied 1/18/19 (Fahey, J.)
People v Funk	4th Dept: 166 AD3d 1487 (Ontario)	denied 1/15/19 (Feinman, J.)
People v Garcia	2d Dept: 165 AD3d 1280 (Suffolk)	denied 1/22/19 (Wilson, J.)
People v Giardala	1st Dept: 165 AD3d 569 (NY)	denied 1/18/19 (Fahey, J.)
People v Gibson	App Div, 1st Dept: 2018 NY Slip Op 61598(U) (NY)	denied reconsideration 1/11/19 (DiFiore, Ch. J.)
People v Gomez (Benito)	2d Dept: 166 AD3d 1006 (Kings)	denied 1/18/19 (Wilson, J.)
People v Gomez (Peter)	3d Dept: 162 AD3d 1311 (Albany)	denied 1/14/19 (DiFiore, Ch. J.)
People v Gonzalez (Luis)	1st Dept: 166 AD3d 430 (Bronx)	denied 1/24/19 (Garcia, J.)
People v Gonzalez (Victor)	App Term, 1st Dept: 61 Misc 3d 140(A) (NY)	denied 1/22/19 (Fahey, J.)
People v Goodwin	1st Dept: 167 AD3d 450 (NY)	denied 1/28/19 (Fahey, J.)
People v Gott	2d Dept: 165 AD3d 1283 (Suffolk)	denied 1/24/19 (Garcia, J.)
People v Griffin	4th Dept: 166 AD3d 1543 (Monroe)	denied 1/30/19 (Garcia, J.)
People v Gulbin	4th Dept: 165 AD3d 1611 (Oneida)	denied 1/9/19 (DiFiore, Ch. J.)
People v Gumbs	1st Dept: 166 AD3d 495 (NY)	denied 1/22/19 (Wilson, J.)
People v Gutt	1st Dept: 165 AD3d 411 (NY)	denied ² 1/8/19 (Stein, J.)
People v Hall	4th Dept: 166 AD3d 1520 (Erie)	denied 1/25/19 (Feinman, J.)
People v Hankerson	2d Dept: 165 AD3d 1285 (Queens)	denied 1/8/19 (Stein, J.)
People v Hardy	2d Dept: 166 AD3d 645 (Queens)	denied 1/15/19 (Feinman, J.)
People v Harlach	4th Dept: 166 AD3d 1594 (Erie)	denied 1/29/19 (Wilson, J.)
People v Hatcher	2d Dept: 165 AD3d 700 (Suffolk)	denied 1/3/19 (Garcia, J.)
People v Henriquez-Ramos	2d Dept: 166 AD3d 1008 (Suffolk)	denied 1/29/19 (Garcia, J.)
People v Hernandez	2d Dept: 166 AD3d 647 (Kings)	denied 1/18/19 (Fahey, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Francis* (164 AD3d 1108 [1st Dept 2018], *lv granted* 32 NY3d 1125 [2018]).

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People v Hill	App Div, 1st Dept: 2018 NY Slip Op 67295(U) (NY)	denied reconsideration 1/29/19 (Garcia, J.)
People v Hilton	1st Dept: 166 AD3d 567 (NY)	denied 1/24/19 (Feinman, J.)
People v Hodgee	3d Dept: 166 AD3d 1248 (Rensselaer)	denied 1/16/19 (Rivera, J.)
People v Holmes	1st Dept: 165 AD3d 424 (NY)	denied 1/3/19 (Garcia, J.)
People v Holquin	1st Dept: 165 AD3d 510 (NY)	denied 1/18/19 (Wilson, J.)
People v Howard	App Div, 3d Dept: 2018 NY Slip Op 74507(U) (Albany)	dismissed 1/14/19 (Feinman, J.)
People v Hurley	App Div, 3d Dept: 2018 NY Slip Op 88135(U) (Franklin)	denied 1/30/19 (Feinman, J.)
People v Is	App Div, 3d Dept: 2018 NY Slip Op 85857(U) (Albany)	denied 1/18/19 (Wilson, J.)
People v Jackson (Shaborn)	2d Dept: 166 AD3d 649 (Suffolk)	denied 1/8/19 (Wilson, J.)
People v Jackson (Tyrell)	2d Dept: 166 AD3d 649 (Suffolk)	denied 1/8/19 (Wilson, J.)
People v James (Alston)	1st Dept: 166 AD3d 534 (NY)	denied 1/29/19 (Garcia, J.)
People v James (Damien)	2d Dept: 165 AD3d 700 (Kings)	denied 1/3/19 (Garcia, J.)
People v Jawan	3d Dept: 165 AD3d 1350 (St. Lawrence)	denied 1/11/19 (Wilson, J.)
People v Jenkins (Denarious)	1st Dept: 165 AD3d 583 (NY)	denied 1/3/19 (Garcia, J.)
People v Jenkins (Dontan)	2d Dept: 165 AD3d 1167 (Westchester)	denied 1/22/19 (Fahey, J.)
People v Johnson (Bobby)	1st Dept: 166 AD3d 518 (Bronx)	denied 1/18/19 (Wilson, J.)
People v Johnson (Dion)	1st Dept: 165 AD3d 499 (NY)	denied 1/10/19 (Wilson, J.)
People v Johnson (Laron)	2d Dept: 165 AD3d 702 (Queens)	denied 1/9/19 (Wilson, J.)
People v Johnson (Timothy)	4th Dept: 164 AD3d 1593 (Erie)	denied 1/3/19 (Garcia, J.)
People v Jones (Keston)	2d Dept: 165 AD3d 1172 (Kings)	denied 1/14/19 (Stein, J.)
People v Jones (Lindy)	2d Dept: 164 AD3d 1363 (Queens)	denied 1/3/19 (Garcia, J.)
People v Kates (Alexander)	4th Dept: 162 AD3d 1627 (Monroe)	denied reconsideration 1/29/19 (Garcia, J.) (Appeal No. 1)
People v Kates (Alexander)	4th Dept: 162 AD3d 1633 (Monroe)	denied reconsideration 1/29/19 (Garcia, J.) (Appeal No. 2)

People v Kennedy	4th Dept: 164 AD3d 1669 (Cayuga)	denied 1/8/19 (Feinman, J.)
People v Khattak	App Term, 1st Dept: 61 Misc 3d 144(A) (NY)	denied 1/28/19 (DiFiore, Ch. J.)
People v Kuras	County Ct, 7/26/18 (Ontario)	denied 1/3/19 (Garcia, J.)
People v Kurtis P.	3d Dept: 166 AD3d 1165 (Chemung)	denied 1/9/19 (Stein, J.)
People v Landrum	App Term, 1st Dept: 61 Misc 3d 144(A) (NY)	denied 1/22/19 (Fahey, J.)
People v Lang	4th Dept: 165 AD3d 1584 (Genesee)	granted 1/31/19 (DiFiore, Ch. J.)
People v Langevin	4th Dept: 164 AD3d 1597 (Steuben)	denied 1/16/19 (Rivera, J.)
People v Lasher	3d Dept: 166 AD3d 1242 (Schenectady)	denied 1/30/19 (DiFiore, Ch. J.)
People v Lebron	3d Dept: 166 AD3d 1069 (Schenectady)	denied 1/3/19 (Garcia, J.)
People v Lee	2d Dept: 165 AD3d 838 (Orange)	denied 1/29/19 (Garcia, J.)
People v Leslie (Ezra)	App Div, 2d Dept: 2018 NY Slip Op 75904(U) (Suffolk)	dismissed 1/23/19 (Rivera, J.)
People v Leslie (Ezra)	App Div, 2d Dept: 2018 NY Slip Op 87991(U) (Suffolk)	dismissed 1/23/19 (Rivera, J.)
People v Letohic	3d Dept: 166 AD3d 1223 (Sullivan)	denied 1/29/19 (Wilson, J.)
People v Lewis (Gil)	App Div, 1st Dept: 2018 NY Slip Op 83922(U) (NY)	dismissed 1/14/19 (Stein, J.)
People v Lewis (Quincy)	2d Dept: 165 AD3d 979 (Nassau)	denied 1/4/19 (Garcia, J.)
People v Link	4th Dept: 166 AD3d 1581 (Cattaraugus)	denied 1/29/19 (Garcia, J.)
People v Little	4th Dept: 166 AD3d 1541 (Monroe)	denied 1/8/19 (Rivera, J.)
People v Lopez (Luis)	App Term, 1st Dept: 61 Misc 3d 127(A) (NY)	denied 1/9/19 (Wilson, J.)
People v Lopez (Martin)	1st Dept: 166 AD3d 462 (Bronx)	denied 1/15/19 (Wilson, J.)
People v Lopez (Rufino)	4th Dept: 164 AD3d 1625 (Monroe)	denied 1/10/19 (Wilson, J.)
People v Lora	1st Dept: 165 AD3d 500 (NY)	denied 1/3/19 (Garcia, J.)
People v Lozada	4th Dept: 164 AD3d 1626 (Onondaga)	denied 1/18/19 (Wilson, J.)
People v Lundy	4th Dept: 165 AD3d 1626 (Onondaga)	denied 1/3/19 (Stein, J.)
People v Lyons	1st Dept: 165 AD3d 597 (NY)	denied 1/18/19 (Fahey, J.)
People v Maffei	2d Dept: 165 AD3d 1173 (Kings)	granted 1/31/19 (Rivera, J.)

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People v Mallo	1st Dept: 165 AD3d 495 (NY)	denied 1/8/19 (Rivera, J.)
People v Maloy	App Div, 3d Dept: 2018 NY Slip Op 88800(U) (Sullivan)	dismissed 1/22/19 (Fahey, J.)
People v Marini	1st Dept: 165 AD3d 445 (NY)	denied 1/11/19 (Wilson, J.)
People v Marks	1st Dept: 166 AD3d 511 (NY)	denied 1/24/19 (Garcia, J.)
People v Martin	1st Dept: 165 AD3d 514 (Bronx)	denied 1/3/19 (Garcia, J.)
People v Martz	County Ct, 9/7/18 (Yates)	denied 1/8/19 (Wilson, J.)
People v Mavour	2d Dept: 166 AD3d 811 (Kings)	denied 1/29/19 (Garcia, J.)
People v McCray	1st Dept: 165 AD3d 595 (Bronx)	denied 1/31/19 (DiFiore, Ch. J.)
People v McDonald (Bryan)	3d Dept: 165 AD3d 1327 (St. Lawrence)	denied 1/3/19 (Garcia, J.)
People v McDonald (Lorenzo)	1st Dept: 165 AD3d 492 (Bronx)	denied 1/3/19 (Garcia, J.)
People v McNeil	1st Dept: 164 AD3d 1106 (NY)	denied ³ 1/8/19 (Stein, J.)
People v Meden	4th Dept: 166 AD3d 1536 (Niagara)	denied 1/10/19 (Feinman, J.)
People v Melendez	2d Dept: 164 AD3d 1473 (Queens)	denied 1/8/19 (Wilson, J.)
People v Melvin	2d Dept: 165 AD3d 1291 (Orange)	denied 1/10/19 (DiFiore, Ch. J.)
People v Mendez	App Term, 1st Dept: 61 Misc 3d 141(A) (NY)	denied 1/10/19 (Rivera, J.)
People v Middleton	County Ct, 7/25/18 (Washington)	granted 1/30/19 (Feinman, J.)
People v Miller	1st Dept: 166 AD3d 502 (NY)	denied 1/22/19 (Fahey, J.)
People v Milton	2d Dept: 143 AD3d 918 (Queens)	denied reconsideration 1/8/19 (Rivera, J.)
People v Miranda	1st Dept: 166 AD3d 456 (NY)	denied 1/4/19 (Garcia, J.)
People v Moreno	App Term, 1st Dept: 61 Misc 3d 128(A) (Bronx)	denied 1/8/19 (Rivera, J.)
People v Morgan	2d Dept: 165 AD3d 1175 (Kings)	denied 1/16/19 (Wilson, J.)
People v Morrow	2d Dept: 164 AD3d 1263 (Kings)	denied 1/11/19 (Wilson, J.)
People v Murdaugh	1st Dept: 167 AD3d 483 (NY)	denied 1/23/19 (Rivera, J.)

3. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Francis* (164 AD3d 1108 [1st Dept 2018], *lv granted* 32 NY3d 1125 [2018]).

People v Myers	1st Dept: 166 AD3d 434 (NY)	denied 1/18/19 (Wilson, J.)
People v Nadler	2d Dept: 164 AD3d 1263 (Kings)	denied 1/28/19 (Fahey, J.)
People v Neal	1st Dept: 165 AD3d 518 (Bronx)	denied 1/3/19 (Stein, J.)
People v Neaton	3d Dept: 166 AD3d 1230 (Saratoga)	denied 1/30/19 (Feinman, J.)
People v Nelson	App Term, 1st Dept: 61 Misc 3d 131(A) (NY)	denied 1/22/19 (Fahey, J.)
People v Nicholas	App Div, 4th Dept, 7/27/18 (Onondaga)	denied reconsideration 1/11/19 (DiFiore, Ch. J.)
People v Nowak	County Ct, 10/26/18 (Erie)	denied 1/25/19 (DiFiore, Ch. J.)
People v Nunez	App Div, 1st Dept, 3/29/18 (NY)	dismissed 1/3/19 (Stein, J.)
People v O'Carrol	1st Dept: 165 AD3d 437 (Bronx)	denied 1/3/19 (Garcia, J.)
People v O'Neal	2d Dept: 166 AD3d 656 (Suffolk)	denied 1/8/19 (Feinman, J.)
People v Odom	2d Dept: 164 AD3d 1475 (Queens)	denied 1/11/19 (DiFiore, Ch. J.)
People v Onatolu	App Term, 1st Dept: 61 Misc 3d 148(A) (NY)	denied 1/29/19 (DiFiore, Ch. J.)
People v Ortiz	App Term, 1st Dept: 61 Misc 3d 133(A) (NY)	denied 1/30/19 (DiFiore, Ch. J.)
People v Pavone	App Div, 3d Dept: 2018 NY Slip Op 85469(U) (Clinton)	denied 1/3/19 (Garcia, J.)
People v Pena	App Term, 1st Dept: 61 Misc 3d 133(A) (NY)	denied 1/29/19 (DiFiore, Ch. J.)
People v Penn	1st Dept: 164 AD3d 1142 (NY)	denied 1/3/19 (Garcia, J.)
People v Perez	2d Dept: 164 AD3d 921 (Westchester)	denied 1/18/19 (Wilson, J.)
People v Pete	2d Dept: 164 AD3d 1473 (Queens)	denied 1/8/19 (Wilson, J.)
People v Pinnacle	1st Dept: 165 AD3d 521 (NY)	denied 1/29/19 (Garcia, J.)
People v Pittman	3d Dept: 166 AD3d 1243 (Schenectady)	denied 1/8/19 (Feinman, J.)
People v Plato	2d Dept: 166 AD3d 814 (Kings)	denied 1/29/19 (DiFiore, Ch. J.)
People v Powell	App Div, 1st Dept, 9/27/18 (NY)	dismissed 1/29/19 (Garcia, J.)
People v Purnell	2d Dept: 166 AD3d 814 (Suffolk)	denied 1/30/19 (Garcia, J.)
People v Ramjattan	County Ct, 11/16/18 (Chemung)	denied 1/8/19 (Rivera, J.)

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People v Ramos	1st Dept: 166 AD3d 442 (NY)	denied 1/28/19 (Wilson, J.)
People v Repka	2d Dept: 165 AD3d 1177 (Suffolk)	denied 1/9/19 (Feinman, J.)
People v Rivera (Angel)	1st Dept: 165 AD3d 514 (Bronx)	denied 1/9/19 (Wilson, J.)
People v Rivera (Douglas)	3d Dept: 164 AD3d 1573 (Montgomery)	denied 1/11/19 (Wilson, J.)
People v Rodriguez (Hector)	2d Dept: 167 AD3d 662 (Queens)	denied 1/22/19 (Wilson, J.)
People v Rodriguez (Jose)	1st Dept: 165 AD3d 431 (Bronx)	denied 1/29/19 (Garcia, J.)
People v Rose	1st Dept: 165 AD3d 525 (Bronx)	denied 1/8/19 (Rivera, J.)
People v Rucker	4th Dept: 165 AD3d 1638 (Onondaga)	denied 1/16/19 (Wilson, J.)
People v Salako	2d Dept: 165 AD3d 846 (Queens)	denied 1/31/19 (Rivera, J.)
People v Sam	2d Dept: 164 AD3d 1379 (Kings)	denied 1/3/19 (Stein, J.)
People v Samuels	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 152(A) (Queens)	denied 1/30/19 (Feinman, J.)
People v Sanchez	2d Dept: 164 AD3d 925 (Dutchess)	denied 1/11/19 (Feinman, J.)
People v Scheifla	4th Dept: 166 AD3d 1531 (Erie)	denied 1/30/19 (Feinman, J.)
People v Schooler	1st Dept: 165 AD3d 575 (Bronx)	denied 1/22/19 (Fahey, J.)
People v Scott	2d Dept: 165 AD3d 1295 (Suffolk)	denied 1/8/19 (Feinman, J.)
People v Senat	2d Dept: 165 AD3d 705 (Queens)	denied 1/15/19 (Stein, J.)
People v Sesay	App Term, 1st Dept: 61 Misc 3d 128(A) (Bronx)	denied 1/8/19 (Rivera, J.)
People v Shabazz	App Div, 3d Dept: 2018 NY Slip Op 88135(U) (Franklin)	denied 1/30/19 (Feinman, J.)
People v Shags	2d Dept: 164 AD3d 925 (Dutchess)	denied 1/11/19 (Feinman, J.)
People v Shareef	App Term, 2d Dept, 9th & 10th Jud Dists: 61 Misc 3d 137(A) (Westchester)	denied 1/18/19 (Fahey, J.)
People v Silverstein	1st Dept: 167 AD3d 500 (NY)	denied 1/22/19 (Wilson, J.)
People v Simpkins	County Ct, 9/14/18 (Warren)	denied 1/21/19 (Rivera, J.)
People v Slavik	2d Dept: 166 AD3d 817 (Suffolk)	denied 1/28/19 (Fahey, J.)
People v Small	4th Dept: 166 AD3d 1471 (Erie)	denied 1/8/19 (Rivera, J.)
People v Smith	4th Dept: 164 AD3d 1621 (Erie)	denied 1/3/19 (Garcia, J.)

People v Smythe	4th Dept: 166 AD3d 1543 (Erie)	denied 1/24/19 (Garcia, J.)
People v Sorbera	2d Dept: 165 AD3d 982 (Queens)	denied 1/11/19 (Stein, J.)
People v Sotero	4th Dept: 166 AD3d 1581 (Cattaraugus)	denied 1/29/19 (Wilson, J.)
People v Stanley	4th Dept: 162 AD3d 1581 (Erie)	denied 1/29/19 (Garcia, J.)
People v Stetin	3d Dept: 167 AD3d 1245 (Montgomery)	denied 1/28/19 (Stein, J.)
People v Stokeling	2d Dept: 165 AD3d 1180 (Kings)	denied 1/8/19 (Feinman, J.)
People v Stokes	App Div, 3d Dept: 2018 NY Slip Op 85857(U) (Albany)	denied 1/18/19 (Wilson, J.)
People v Strong	4th Dept: 164 AD3d 1637 (Onondaga)	denied 1/29/19 (Garcia, J.)
People v Suddard	3d Dept: 164 AD3d 950 (Washington)	denied 1/23/19 (Wilson, J.)
People v Sullivan	2d Dept: 166 AD3d 911 (Kings)	denied 1/28/19 (Wilson, J.)
People v Tariq (Wahaj)	3d Dept: 166 AD3d 1248 (Rensselaer)	denied 1/16/19 (Rivera, J.)
People v Tariq (Wahaj)	3d Dept: 166 AD3d 1211 (Rensselaer)	denied 1/16/19 (Rivera, J.)
People v Taylor (Calvin)	2d Dept: 156 AD3d 826 (Richmond)	denied ⁴ 1/16/19 (Wilson, J.)
People v Taylor (Dante)	4th Dept: 158 AD3d 1095 (Wayne)	denied reconsideration 1/3/19 (Garcia, J.)
People v Taylor (Elvis)	2d Dept: 165 AD3d 707 (Westchester)	denied 1/10/19 (Feinman, J.)
People v Taylor (Larney)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 61 Misc 3d 135(A) (Kings)	denied 1/28/19 (Fahey, J.)
People v Taylor (Travis)	1st Dept: 166 AD3d 426 (Bronx)	denied 1/3/19 (Garcia, J.)
People v Teboul	App Term, 1st Dept: 60 Misc 3d 141(A) (NY)	denied 1/3/19 (Garcia, J.)
People v Terborg	4th Dept: 164 AD3d 1670 (Monroe)	dismissed 1/10/19 (Wilson, J.)
People v Terry	App Div, 2d Dept: 2018 NY Slip Op 86577(U) (Queens)	dismissed 1/24/19 (Garcia, J.)
People v Then	2d Dept: 164 AD3d 1277 (Queens)	denied 1/3/19 (Garcia, J.)
People v Thomas (Lee)	4th Dept: 166 AD3d 1499 (Wayne)	denied 1/29/19 (Wilson, J.)
People v Thomas (Ronald)	4th Dept: 166 AD3d 1524 (Onondaga)	denied 1/14/19 (Stein, J.)

4. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Alvarez* (2017 NY Slip Op 87246[U] [1st Dept 2017], *lv granted* 30 NY3d 1113 [2018]), which is scheduled to be argued in the Court of Appeals on February 12, 2019.

MEMORANDA

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People v Tromp	2d Dept: 164 AD3d 1479 (Richmond)	denied 1/31/19 (Wilson, J.)
People v Turbe	2d Dept: 165 AD3d 1297 (Kings)	denied 1/8/19 (Rivera, J.)
People v Tyler	4th Dept: 166 AD3d 1556 (Erie)	denied 1/29/19 (DiFiore, Ch. J.)
People v Vega	2d Dept: 165 AD3d 984 (Kings)	denied 1/10/19 (Wilson, J.)
People v Venture	2d Dept: 166 AD3d 1021 (Queens)	denied 1/25/19 (Feinman, J.)
People v Vernon	4th Dept: 164 AD3d 1657 (Erie)	denied 1/23/19 (Wilson, J.)
People v Viera	2d Dept: 164 AD3d 1277 (Kings)	denied 1/18/19 (Fahey, J.)
People v Walder	App Div, 2d Dept: 2018 NY Slip Op 87994(U) (Dutchess)	dismissed 1/18/19 (Fahey, J.)
People v Walls	4th Dept: 166 AD3d 1528 (Orleans)	denied 1/29/19 (Wilson, J.)
People v White (Michael)	App Div, 4th Dept, 10/22/18 (Ontario)	dismissed 1/25/19 (DiFiore, Ch. J.)
People v White (Michael)	App Div, 4th Dept, 11/7/18 (Ontario)	dismissed 1/25/19 (DiFiore, Ch. J.)
People v Whitson	2d Dept: 166 AD3d 663 (Suffolk)	denied 1/22/19 (Fahey, J.)
People v Wilkinson	3d Dept: 166 AD3d 1396 (Cortland)	denied 1/30/19 (DiFiore, Ch. J.)
People v Williams (Dante)	1st Dept: 165 AD3d 505 (NY)	denied 1/29/19 (Garcia, J.)
People v Williams (Kenmar)	1st Dept: 166 AD3d 426 (Bronx)	denied 1/3/19 (Garcia, J.)
People v Williams (Melvin)	1st Dept: 164 AD3d 1145 (Bronx)	denied 1/3/19 (Garcia, J.)
People v Williams (Naquan)	3d Dept: 163 AD3d 1160 (Albany)	denied 1/8/19 (Rivera, J.)
People v Williams (Nicole)	1st Dept: 165 AD3d 577 (NY)	denied 1/11/19 (Wilson, J.)
People v Willis	2d Dept: 165 AD3d 984 (Queens)	denied 1/30/19 (Feinman, J.)
People v Wilson	App Div, 1st Dept: 2018 NY Slip Op 85536(U) (Bronx)	denied 1/4/19 (Garcia, J.)
People v Windsor	2d Dept: 165 AD3d 709 (Kings)	denied 1/10/19 (Feinman, J.)
People v Wolf	3d Dept: 151 AD3d 1459 (Rensselaer)	denied 1/28/19 (Fahey, J.)
People v Word	App Div, 1st Dept: 2018 NY Slip Op 86143(U) (NY)	dismissed 1/8/19 (Wilson, J.)
People v Wright	3d Dept: 160 AD3d 1110 (Broome)	denied reconsideration 1/24/19 (Garcia, J.)

People v Young (David)	2d Dept: 166 AD3d 664 (Queens)	denied 1/25/19 (Feinman, J.)
People v Young (Malique)	2d Dept: 166 AD3d 1024 (Kings)	denied 1/29/19 (DiFiore, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(January 1, 2019 through January 31, 2019)

People v Malloy	3d Dept: 166 AD3d 1302 (Albany)	granted 1/10/19 (Clark, J.)
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[118 NE3d 906, 94 NYS3d 244]

In the Matter of the Estate of EDWARD V. GIAQUINTO, Deceased.
CYNTHIA A. JOHNSON, Respondent; JOANN FARINA, Appel-
lant. (And Another Related Proceeding.)

Decided February 14, 2019

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered September 13, 2018. The Appellate Division order, with two Justices dissenting, insofar as appealed from, held that the Surrogate's Court of Schenectady County (Vincent W. Versaci, S.) properly granted summary judgment to petitioner to the extent of dismissing the objection that decedent lacked testamentary capacity, and affirmed the decree of that court which had admitted to probate an instrument purporting to be the last will and testament of decedent.

Matter of Giaquinto, 164 AD3d 1527, affirmed.

HEADNOTE

Wills — Probate — Testamentary Capacity

In response to petitioner's prima facie showing of entitlement to summary judgment on the issue of testamentary capacity, respondent failed to raise a triable issue of fact.

APPEARANCES OF COUNSEL

Parisi, Coan & Saccocio, PLLC, Schenectady (*Gerard F. Parisi* of counsel), for appellant.

Couch White, LLP, Albany (*Donald J. Hillmann* of counsel), for respondent.

* Includes only applications that were granted.

OPINION OF THE COURT

MEMORANDUM.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, affirmed, with costs. In response to petitioner's prima facie showing of entitlement to summary judgment on the issue of testamentary capacity, respondent failed to raise a triable issue of fact.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

In the Matter of ADIRONDACK WILD: FRIENDS OF THE FOREST PRESERVE et al., Appellants, v NEW YORK STATE ADIRONDACK PARK AGENCY et al., Respondents.

Submitted January 22, 2019; decided February 14, 2019

Reported below, 161 AD3d 169.

Motion by Adirondack Council, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of JIMMIE LEE ALLEN, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Decided February 14, 2019

Reported below, 164 AD3d 1581.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ANDREW CAROTHERS, M.D., P.C., Appellant, v PROGRESSIVE INSURANCE COMPANY, Respondent.

Submitted February 11, 2019; decided February 14, 2019

Reported below, 150 AD3d 192.

Motion by The Coalition Against Insurance Fraud for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ARROWHEAD CAPITAL FINANCE, LTD., Appellant, v CHEYNE SPECIALTY FINANCE FUND L.P. et al., Respondents.

Submitted April 16, 2018; decided February 14, 2019

Reported below, 154 AD3d 523.

Motion to strike portions of appellant's brief on appeal granted.

In the Matter of DARNELL BALLARD, Appellant, v SUSAN KICKBUSH, Superintendent, Gowanda Correctional Facility, Respondent.

Decided February 14, 2019

Reported below, 165 AD3d 1587.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

PETER BEARD et al., Respondents, v BERNIE CHASE et al., Appellants.

Decided February 14, 2019

Reported below, 162 AD3d 533.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the judgment appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JAMAEEL BURSCH, Appellant, v PURCHASE COLLEGE OF THE STATE UNIVERSITY OF NEW YORK et al., Respondents.

Submitted February 11, 2019; decided February 14, 2019

Reported below, 164 AD3d 1324.

Motion for poor person relief granted.

CAYUGA NATION, by and through its Lawful Governing Body,
Cayuga Nation Council, Respondent, v SAMUEL CAMPBELL
et al., Appellants, and COUNTY OF SENECA, Intervenor-
Respondent.

Submitted December 31, 2018; decided February 14, 2019

Reported below, 163 AD3d 1500.

Motion to modify statutory stay denied.

CHURCH OF JESUS CHRIST OF LATTER DAY SAINTS SERVANT XIU
JIAN SUN, Appellant, v PHILIP O. OHENE, Respondent.

Decided February 14, 2019

Reported below, 2018 NY Slip Op 87957(U).

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

CNH DIVERSIFIED OPPORTUNITIES MASTER ACCOUNT, L.P., et al.,
Appellants, v CLEVELAND UNLIMITED, INC., et al., Respon-
dents.

Submitted December 24, 2018; decided February 14, 2019

Reported below, 162 AD3d 573.

Motion by Jared Ellias et al. for leave to appear amici curiae
on the motion for leave to appeal herein granted and the brief
is accepted as filed.

DANIEL COLLAZO et al., Appellants, v NETHERLAND PROPERTY
ASSETS LLC et al., Respondents.

Submitted January 28, 2019; decided February 14, 2019

Reported below, 155 AD3d 538.

Motion by Brooklyn Bar Association Volunteer Lawyers Proj-
ect et al. for leave to file a brief amici curiae on the appeal
herein granted and the proposed brief is accepted as filed. Two
copies of the brief must be served, an original and nine copies
filed, and the brief submitted in digital format within seven
days.

In the Matter of JEANENE JUNE DeMARC, Respondent, v PATRICIA ANN GOODYEAR, Appellant.

Submitted January 14, 2019; decided February 14, 2019

Reported below, 163 AD3d 1430.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of CRAIG RAYMOND FRITZSCH, an Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Submitted October 22, 2018; decided February 14, 2019

Reported below, 164 AD3d 1077.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

E. DEANE LEONARD et al., Appellants, v PLANNING BOARD OF THE TOWN OF UNION VALE, Respondent.

Decided February 14, 2019

Reported below, 164 AD3d 662.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFIORE taking no part.

THERESA MADDICKS et al., Respondents, v BIG CITY PROPERTIES, LLC, et al., Defendants, and BIG CITY REALTY MANAGEMENT, LLC, et al., Appellants.

Submitted February 11, 2019; decided February 14, 2019

Reported below, 163 AD3d 501.

Motion by Rent Stabilization Association of NYC, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of MATTHEW JOSEPH MANN, an Attorney, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Submitted October 29, 2018; decided February 14, 2019

Reported below, 157 AD3d 1160.

Motion for reargument of motion for leave to appeal etc. denied [*see* 32 NY3d 948 (2018)].

In the Matter of CYNTHIA MANOCHERIAN et al., Appellants, v ZONING BOARD OF APPEALS OF THE TOWN OF NEW CASTLE et al., Respondents. (Proceeding No. 1.)

In the Matter of LAURA HOUSTON WHITLINGER et al., Appellants, v ZONING BOARD OF APPEALS OF THE TOWN OF NEW CASTLE et al., Respondents. (Proceeding No. 2.)

Submitted February 4, 2019; decided February 14, 2019

Reported below, 2019 NY Slip Op 60933(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the hybrid proceedings within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

DONALD H. McCORMACK, Appellant, v KEVIN P. MALONEY, Respondent.

Submitted October 15, 2018; decided February 14, 2019

Reported below, 160 AD3d 1098.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of SALVATORE MISTRETTA, Appellant, v DONALD F. KANE, as Commissioner of Nassau County Police Department, et al., Respondents.

Decided February 14, 2019

Reported below, 251 AD2d 418.

Appeal dismissed without costs, by the Court of Appeals sua sponte, as untimely taken (*see* CPLR 5513 [a]).

In the Matter of SALVATORE MISTRETTA, Appellant, v DONALD F. KANE, as Commissioner of Nassau County Police Department, et al., Respondents.

Submitted February 4, 2019; decided February 14, 2019

Reported below, 251 AD2d 418.

Motion by Vincent J. Grande III for leave to file a brief amicus curiae on the appeal herein denied.

In the Matter of NATIONAL ENERGY MARKETERS ASSOCIATION et al., Appellants, v NEW YORK STATE PUBLIC SERVICE COMMISSION, Respondent. (And Two Other Related Proceedings.)

Submitted February 11, 2019; decided February 14, 2019

Reported below, 152 AD3d 1122.

Motion by New York State Office of the Attorney General et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

ANN MARIE IDELL, Respondent, v AERCO INTERNATIONAL, INC., et al., Defendants, CRANE CO. et al., Respondents, and JENKINS BROS., Appellant.

Decided February 14, 2019

Reported below, 164 AD3d 1128.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the Appellate Division order appealed from does not finally determine the action within the meaning of the Constitution.

NYCTL 1998-2 TRUST et al., Respondent, v FREDERICK SIEMON,
Appellant, et al., Defendants.

Decided February 14, 2019

Reported below, 165 AD3d 529.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
DELORBE, Appellant.

Submitted January 28, 2019; decided February 14, 2019

Reported below, 165 AD3d 531.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MONIQUE
ESPOSITO, Respondent.

Submitted February 11, 2019; decided February 14, 2019

Reported below, 60 Misc 3d 60.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GERALD
FRANCIS, Appellant.

Submitted January 28, 2019; decided February 14, 2019

Reported below, 164 AD3d 1108.

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENDEL R. GREGORY, Appellant.

Submitted January 14, 2019; decided February 14, 2019

Reported below, 163 AD3d 847.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VICTOR N. KOLTUN, Appellant.

Submitted February 4, 2019; decided February 14, 2019

Reported below, 163 AD3d 720.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD MALLOY, Also Known as EB, Appellant.

Submitted February 4, 2019; decided February 14, 2019

Reported below, 166 AD3d 1302.

Motion for assignment of counsel granted and Paul J. Connolly, Esq., 2 Wedge Road, Delmar, NY 12054 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VICTOR THOMAS, Appellant.

Submitted February 11, 2019; decided February 14, 2019

Reported below, 158 AD3d 434.

Motion by Criminal Appeals Bureau of the Legal Aid Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EARL
WATSON, Appellant.

Submitted January 28, 2019; decided February 14, 2019

Reported below, 157 AD3d 914.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAMON
WHEELER, Appellant.

Submitted February 4, 2019; decided February 14, 2019

Reported below, 61 Misc 3d 30.

Motion for assignment of counsel granted and Richard L. Herzfeld, Esq., c/o Richard L. Herzfeld, P.C., 112 Madison Avenue, 8th Floor, New York, NY 10016 assigned as counsel to the appellant on the appeal herein.

PREFERRED GROUP OF MANHATTAN, INC., Appellant, v CITY OF
POUGHKEEPSIE et al., Respondents.

Decided February 14, 2019

Reported below, 166 AD3d 916.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of RETAIL ENERGY SUPPLY ASSOCIATION et al., Appellants, v PUBLIC SERVICE COMMISSION OF THE STATE OF NEW YORK et al., Respondents. (And Two Other Related Proceedings.)

Submitted February 11, 2019; decided February 14, 2019

Reported below, 152 AD3d 1133.

Motion by New York State Office of the Attorney General et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DANIEL WILLIAMS et al., Appellants, v BEEMILLER, INC., Doing Business as Hi-POINT, et al., Defendants, and CHARLES BROWN, Respondent.

Submitted February 11, 2019; decided February 14, 2019

Reported below, 159 AD3d 148.

Motion by American Association for Justice for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of JERRY ADAMS, Appellant, v KENNETH THOMPSON, Respondent.

Submitted December 3, 2018; decided February 19, 2019

Reported below, 2018 NY Slip Op 72456(U), 2018 NY Slip Op 86192(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted December 10, 2018; decided February 19, 2019

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1052 (2018)].

In the Matter of CARMELA H. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES, Respondent; DANIELLE F., Appellant, et al., Respondent.

Submitted December 10, 2018; decided February 19, 2019

Reported below, 164 AD3d 1607.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from the portion of the Family Court order as was entered on consent, dismissed upon the ground that such portion of the Appellate Division order is not appealable; motion for leave to appeal otherwise denied.

MICHAEL CHENKIN, Appellant, v PUBLIC ADMINISTRATOR OF NEW YORK COUNTY, Respondent.

Submitted December 3, 2018; decided February 19, 2019

Reported below, 163 AD3d 410.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ALEXANDROS DEMETRIADES, Appellant, v ROYAL ABSTRACT DEFERRED, LLC, Respondent.

Submitted October 1, 2018; decided February 19, 2019

Reported below, 159 AD3d 501.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

INTERNATIONAL BRAIN RESEARCH FOUNDATION, INC., Appellant, v JOHN A. CAVALIER et al., Respondents.

Submitted December 17, 2018; decided February 19, 2019

Reported below, 158 AD3d 464.

Motion for reargument of motion for leave to appeal denied [see 32 NY3d 1074 (2018)].

In the Matter of J.C. SMITH, INC., Appellant, v NEW YORK STATE DEPARTMENT OF ECONOMIC DEVELOPMENT, Also Known as EMPIRE STATE DEVELOPMENT, et al., Respondents.

Submitted December 3, 2018; decided February 19, 2019

Reported below, 163 AD3d 1517.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

JERRY L. JOHNSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 3, 2018; decided February 19, 2019

Reported below, 2017 NY Slip Op 76547(U).

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR 500.22 [b] [2]). Motion for poor person relief dismissed as academic.

In the Matter of MISHELYS R. and Others, Infants. GARLAND R., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted December 3, 2018; decided February 19, 2019

Reported below, 165 AD3d 554.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

KAITLYN MONAGHAN, Appellant, v ROMAN CATHOLIC DIOCESE OF ROCKVILLE CENTRE et al., Respondents, et al., Defendant.

Submitted November 19, 2018; decided February 19, 2019

Reported below, 165 AD3d 650.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ARIEL GARCIA, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, et al., Respondents.

Submitted December 24, 2018; decided February 19, 2019

Reported below, 167 AD3d 199.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

In the Matter of CARL D. WELLS, Appellant, v WARDEN ADA PRESSLEY et al., Respondents.

Submitted December 10, 2018; decided February 19, 2019

Reported below, 159 AD3d 651.

Motion for reconsideration of this Court's June 7, 2018 dismissal order dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 31 NY3d 1076 (2018)].

Judge FEINMAN taking no part.

AQUELINA EQUITIES, LLC, Respondent, v JOHN WESLEY UNITED METHODIST CHURCH, Appellant.

Submitted December 10, 2018; decided February 21, 2019

Reported below, 2018 NY Slip Op 79663(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOYCE DEMETRIOU, Appellant, v LINDSEY WOLFER, D.D.S., Respondent.

Submitted December 24, 2018; decided February 21, 2019

Reported below, 165 AD3d 1230.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANTHONY GORDON, Plaintiff, and MARTINA GORDON, Appellant, v 476 BROADWAY REALTY CORP. et al., Respondents.

Submitted January 7, 2019; decided February 21, 2019

Reported below, 161 AD3d 417.

Motion for reargument of motion for leave to appeal denied [*see* 32 NY3d 1078 (2018)].

PAUL A. GORMAN, Also Known as P. ANTHONY GORMAN, et al., Appellants, v THOMAS W. DESPART, Respondent.

Submitted December 31, 2018; decided February 21, 2019

Reported below, 164 AD3d 1059.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JAMES B. NUTTER & COMPANY, Respondent, v ERIC H. FEINTUCH, as Trustee of the BERNARD FEINTUCH LIVING TRUST, Appellant, et al., Defendants.

Submitted December 24, 2018; decided February 21, 2019

Reported below, 164 AD3d 485.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THOMAS H. KHEEL, Appellant, v JOSEPH A. MOLINARI, Respondent.

Submitted December 10, 2018; decided February 21, 2019

Reported below, 165 AD3d 1576.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

AMIR KORANGY, Appellant, v GEORGIA MALONE et al., Respondents, et al., Defendants.

Submitted December 10, 2018; decided February 21, 2019

Reported below, 161 AD3d 645.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see McDermott v Manhattan Eye, Ear & Throat Hosp.*, 15 NY2d 20, 23 n 2 [1964]).

PAIGE MILLER, Respondent, v JAMES BALL, Appellant.

Submitted December 31, 2018; decided February 21, 2019

Reported below, 165 AD3d 920.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MORAN ENTERPRISES, INC., Appellant, v MARGARET HURST, Respondent, et al., Defendants.

Submitted December 10, 2018; decided February 21, 2019

Reported below, 160 AD3d 638.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAITLYN CONLEY, Defendant. GATEHOUSE MEDIA NEW YORK HOLDINGS, INC., et al., Intervenors-Appellants.

Submitted December 10, 2018; decided February 21, 2019

Reported below, 165 AD3d 1602 (Appeal No. 1), 165 AD3d 1604. (Appeal No. 2).

On the Court's own motion, appeal dismissed, without costs, and motion for leave to appeal dismissed, without costs, each upon the ground that no civil appeal lies from the orders of the Appellate Division entered in this criminal action.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAITLYN CONLEY, Defendant. GATEHOUSE MEDIA NEW YORK HOLDINGS, INC. et al., Intervenors-Appellants.

Submitted January 28, 2019; decided February 21, 2019

Reported below, 165 AD3d 1602 (Appeal No. 1), 165 AD3d 1604. (Appeal No. 2).

Motion by Advance Publications, Inc., et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EMANUEL DIAZ, Appellant.

Submitted October 9, 2018; decided February 21, 2019

Reported below, 149 AD3d 974.

Motion to strike those portions of respondent's brief as rely on or reference grand jury minutes granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD GRIFFITH, Appellant.

Submitted December 17, 2018; decided February 21, 2019

Reported below, 166 AD3d 1518.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RISK CONTROL ASSOCIATES INSURANCE GROUP, Appellant, v MALLOF, LEBOWITZ, CONNAHAN & OLESKE, P.C., et al., Respondents.

Submitted December 3, 2018; decided February 21, 2019

Reported below, 151 AD3d 527.

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved within the meaning of CPLR 5511, having stipulated to dismiss the action in its entirety.

Judge FEINMAN taking no part.

In the Matter of ROGER W. STRNAD, JR., Respondent, v LESLEY B. STEVENS, Appellant.

Submitted December 17, 2018; decided February 21, 2019

Reported below, 166 AD3d 789.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOHN SULLIVAN, Appellant, v NEW YORK ATHLETIC CLUB OF CITY OF NEW YORK et al., Respondents. (And a Third-Party Action.)

Submitted December 24, 2018; decided February 21, 2019

Reported below, 162 AD3d 950, 955.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of MOHAMMED TAHER, Respondent,
v YIOTA TAXI, INC., et al., Appellants. WORKERS' COMPENSA-
TION BOARD, Respondent.

Submitted December 31, 2018; decided February 21, 2019

Reported below, 162 AD3d 1288.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of RICHARD TAUS, Appellant, v TINA M. STANFORD,
as Chair of the Board of Parole, et al., Respondents.

Submitted December 17, 2018; decided February 21, 2019

Reported below, 164 AD3d 1556.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of T-MOBILE NORTHEAST, LLC, Appellant, v AN-
THONY V. DEBELLIS, as Commissioner of Assessment of the
City of Mount Vernon, et al., Respondents, et al., Respon-
dents/Defendants.

Submitted January 22, 2019; decided February 21, 2019

Reported below, 143 AD3d 992.

Motion for reargument denied [*see* 32 NY3d 594 (2018)].

U.S. BANK NATIONAL ASSOCIATION, as Trustee for ADJUSTABLE
RATE MORTGAGE TRUST 2005-11, ADJUSTABLE RATE MORT-
GAGE BACKED PASS THROUGH CERTIFICATE, SERIES 2005-11,
Respondent, v RUTH CLEMENT, Also Known as RUTH LEONA
CLEMENT, Appellant, et al., Defendants.

Submitted December 17, 2018; decided February 21, 2019

Reported below, 163 AD3d 742.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LARRY WILLIAMS, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 17, 2018; decided February 21, 2019

Reported below, 2018 NY Slip Op 87100(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of JOHN W. YENGO, JR., et al., Appellants, v
LAWYERS FUND FOR CLIENT PROTECTION OF THE STATE OF
NEW YORK, Respondent.

Submitted January 14, 2019; decided February 21, 2019

Reported below, 163 AD3d 1300.

Motion for reargument of motion for leave to appeal denied
[see 32 NY3d 1081 (2018)].

[120 NE3d 364, 96 NYS3d 165]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALI
CISSE, Appellant.

Argued January 10, 2019; decided February 21, 2019

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 6, 2017. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Herbert J. Adlerberg,

J.H.O., at suppression hearing; Richard D. Carruthers, J., at suppression ruling; A. Kirke Bartley, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts), robbery in the second degree, attempted robbery in the first degree (two counts), attempted robbery in the second degree, criminal possession of a weapon in the second degree (two counts), reckless endangerment in the first degree and criminal possession of a weapon in the third degree.

People v Cisse, 149 AD3d 435, affirmed.

HEADNOTES

Crimes — Evidence — Tape Recordings — Telephone Calls while Confined

1. Since defendant impliedly consented to the monitoring and recording of his telephone calls while confined, neither the recording of those phone calls nor the admission of excerpts from the recorded calls violated the New York or federal wiretapping statutes (CPL art 700; Penal Law §§ 250.00 [1]; 250.05; 18 USC §§ 2510, 2511 [2] [c]; 2515). Moreover, the recording of defendant's nonprivileged phone calls did not violate his right to counsel under the New York Constitution.

Crimes — Appeal

2. The Appellate Division properly considered the suppression hearing record and the colloquy with counsel to determine that the suppression court had concluded that the police engaged in a level one encounter with defendant. The Appellate Division's further holding that the officer lawfully approached defendant to request information based on an objective credible reason presented a mixed question of law and fact. Because there was record support for the Appellate Division's determination, that issue was beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Matthew Bova* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Susan Axelrod* and *Alan Gadlin* of counsel), for respondent.

Brooklyn Defender Services, Brooklyn (*Lisa Schreibersdorf* and *Susannah Karlsson* of counsel), and *Fried, Frank, Harris, Shriver & Jacobson LLP*, New York City (*Aleksandr B. Livshits* and *Arielle F. Evans* of counsel), for Brooklyn Defender Services and others, amici curiae.

Holwell, Shuster & Goldberg LLP, New York City (*Scott M. Danner*, *Daniel M. Horowitz*, *Evan H. Stein* and *Meredith J. Nelson* of counsel), *The Brennan Center for Justice at NYU School of Law*, New York City (*Priya Raghavan*, *Ames Grawert* and *Bryan Furst* of counsel), and *Cato Institute*, Washington, D.C. (*Ilya Shapiro* of counsel), for The Brennan Center for Justice at NYU School of Law and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

[1] The order of the Appellate Division decision should be affirmed. Defendant impliedly consented to the monitoring and recording of his telephone calls (*see United States v Conley*, 531 F3d 56, 58 [1st Cir 2008]; *United States v Verdin-Garcia*, 516 F3d 884, 894 [10th Cir 2008]; *United States v Faulkner*, 439 F3d 1221, 1224-1225 [10th Cir 2006]; *United States v Hammond*, 286 F3d 189, 192 [4th Cir 2002]; *United States v Van Poyck*, 77 F3d 285, 292 [9th Cir 1996]; *United States v Horr*, 963 F2d 1124, 1126 [8th Cir 1992]; *United States v Workman*, 80 F3d 688, 696 [2d Cir 1996]; *United States v Amen*, 831 F2d 373, 378-379 [2d Cir 1987]). Thus, neither the recording of those phone calls nor the admission of excerpts from the recorded calls violated the New York or federal wiretapping statutes (CPL art 700; Penal Law §§ 250.00 [1]; 250.05; 18 USC §§ 2510, 2511 [2] [c]; 2515). Further, the recording of defendant's nonprivileged phone calls did not violate his right to counsel under the New York State Constitution (*see People v Johnson*, 27 NY3d 199 [2016]). Defendant's conclusory argument that his statements were "involuntarily made" in violation of CPL 60.45 (2) (a) because of the conditions of his confinement is devoid of record support.

[2] The Appellate Division properly considered the suppression hearing record and the colloquy with counsel to determine that the suppression court had concluded that the police engaged in a level one encounter with defendant (*see People v Nicholson*, 26 NY3d 813 [2016]). The Appellate Division's further holding that the officer lawfully approached defendant to request information—not, as defendant argues, to demand that he stop and respond—based on an objective credible reason (*see People v Hollman*, 79 NY2d 181, 191 [1992]; *People v De Bour*, 40 NY2d 210, 223 [1976]), presents a mixed question of law and fact. Because there is record support for the Appellate Division's determination, it is beyond our further review (*see People v Parker*, 32 NY3d 49, 55 [2018]).

Defendant's claim of a violation of a due process right to prepare for trial is unpreserved for our review. His other arguments are unpersuasive.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.
